

AKA 2022000 72-53C 2025002 H7

D.O.F. 30.07.2025

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
PRESENTATION FORM

1283/25
F.R. 1283

WRIT APPEAL No. 1333 / 2025

IN

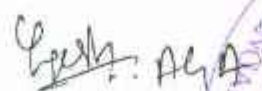
WRIT PETITION No. 24304 / 2021 (Over-Res)

Advocate General / Government Advocate.

PRESENTED WITH COURT FEE LABELS AS FOLLOWS :

SL. No.	PARTICULARS	Court fee affixed on the papers	
		Rs.	P.
1.	On Memorandum of Appeal / Petition Application	Nil	
2.	On the certified copies of Judgment and decree		
3.	Memo of appearance		
4.	Process fees		
5.	I.A. for C.D. in filing the W.A.		
6.	SA for production of addl. documents		
7.	I.A. for Stay in filing the W.A.		
8.			
Total			

Number of copies furnished.


Advocate - General &
Advocate for Petitioner / Respondent Appellant.


Clerk
Office of the Advocate-General
For Karnataka, Bengaluru

Received Court fee &
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Bengaluru 30/07/2025
Dated:

Receiving Clerk.

IN THE HIGH COURT OF KARNATAKA, AT BENGALURU

WRIT APPEAL NO. _____ / 2025

IN

WRIT PETITION NO.24304/2021(KLR-RES)

BETWEEN:The State of Karnataka
and others

.... APPELLANTS

AND

Sri. L.N. Govindasway

....RESPONDENTS

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BANGALORE
DATE :30.07.2025

GOVT. ADVOCATE &
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA BANGALORE

WRIT APPEAL NO. OF 2025

BETWEEN:

The State of Karnataka
And others

... Appellants

AND:

Sri L.N Govindaswamy
And another

... Respondents

LIST OF DATES AND SYNOPSIS

SL NO	DATES	EVENTS
1	31-03-1954	According to the 1 st Respondent, the petition schedule lands are granted in favour of Sheregar Laxmi Bhovi.
2	06-02-1996:	The 1 st Respondent and their family members filed O S.No.96/1997 before the Court of II Addl. Civil Judge (Junior Division), Mysore, against State of Karnataka and the Assistant Commissioner.
3	08-07-2009	The 1 st Respondent and his family members filed W P.No.13813/2008 and the same was allowed by the learned Single Judge by directing the Appellant No.4 to consider the

Signature

		representation of the 1 st Respondent.
4	13-07-2020	WP.No.34297/2017 filed by the 1 st Respondent and his family members was disposed of by this Hon'ble Court by directing that the Writ Petition itself to be treated as a representation and by further directing that the concerned authority shall redress the grievance of the 1 st Respondent within 8 weeks.
5	28-12-2021	The 1 st Respondent filed WP.No.24304/2021(KLR-RES) seeking for direction against the Appellants to consider his representation dated:15/09/2021 and also seeking for a direction against 2 nd Respondent herein to pay compensation in respect of the petition schedule lands.
6	27-11-2024:	The learned Single Judge passed the impugned order.
7	29.07.2025	Being Aggrieved by the Order dated 27.11.2024 in Writ Petition No.24304 /2021 (KLR-RES) passed by the learned Single Judge of this Hon'ble



		Court, Appellants are preferring this Writ Appeal.
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SYNOPSIS

It is humbly submitted that the 1st Respondent filed WP.No.24304/2021(KLR-RES), wherein he sought for a direction to the Appellants herein to consider his representation dated:15/09/2021 for restoration of the name of the 2nd Respondent and his family members in the revenue records pertaining to petition schedule lands and the 1st Respondent also sought for a direction against the 2nd Respondent herein for payment of compensation. By the impugned order, the learned Single Judge has directed the Appellant No.4 to enter the name of the 1st Respondent and his family members in the RTC and further directed that thereafter the 1st Respondent herein to seek compensation from the 2nd Respondent-MUDA. Being aggrieved by the said order passed by the learned Single Judge, the Appellants are filing this Writ Appeal.

BANGALORE
DATE:


(YOGESH D NAIK)
ADDL. GOVT ADVOCATE
ADVOCATE FOR APPELLANTS

ARADHYA/YOGESH D NAIK/
28072025/29072025/MAIL ALIGNMENT/



IN THE HIGH COURT OF KARNATAKA, BANGALORE

(CIVIL APPELLATE JURISDICTION)

**MEMORANDUM OF WRIT APPEAL
UNDER SECTION 4 OF THE
KARNATAKA HIGH COURT ACT, 1961**

WRIT APPEAL NO. _____/2025

IN W.P.NO.24304/2021 (KLR-RES)

RANK OF THE PARTIES IN

WRIT
PETITION

WRIT
APPEAL

BETWEEN:

(1) State of Karnataka,
Revenue Department,
M S. Building,
Dr.Ambedkar Veedhi,
Bangalore-560 001.
Represented by
its Secretary.

**Respondent
No. 1**

**Appellant
No. 1**

(2) The Deputy Commissioner,
Mysuru District,
Mysuru-571 129.

**Respondent
No. 2**

**Appellant
No. 2**

(3) The Assistant Commissioner,
Mysuru Sub Division,
Mysuru-571 129

**Respondent
No. 3**

**Appellant
No. 3**

(4) The Tahsildar,
Mysuru-Hunsur Road,
Mysuru-571 105.



(Now at Nazarbad,
Mini Vidhana Souhda,
Mysuru Taluk,
Mysuru-570 010.)

Respondent
No.4

Appellant
No.4

AND:

(1) Sri. L.N Govindaswamy,
S/O. Late Sri.Ra,ma Bhovi,
Aged About 76 years,
R/At No.90/9,
Naachanahalli Palya,
J.P Nagara,
Mysuru District,
Mysuru-570 008.

Petitioner

**Respondent
No. 1**

(2) Mysore Urban
Development Authority (MUDA),
Jhansi Laxmi Bai Road,
Mysuru-570 005
Represented by
its commissioner.

**Respondent
No. 5**

**Respondent
No. 2**

The Appellants above named most respectfully submit
as follows: -

I. The Addresses of the Appellants for the
purposes of service of Court Notices, Processes, Summons
etc., from this Hon'ble Court is that of their Counsel, the
Government Advocate, Office of the Advocate General,
High Court of Karnataka, Bangalore.



II. The Address of the respondents for the aforesaid purposes is as stated in the above cause title.

III. The Appellants, being aggrieved by the order dated 27/11/2024 passed by the learned Single Judge in W.P. No. 24304/2021 (KLR-RES), begs to prefer this Memorandum of Writ Appeal before this Hon'ble Court on the following facts and grounds.

IV. The Appellants submit that, the Appellants have not filed any other appeal or other proceedings against impugned order challenged in this appeal.

BRIEF FACTS OF THE CASE

1. The 1st Respondent is the Petitioner, the Appellants are Respondent Nos. 1 to 4 and the 2nd Respondent is the Respondent No.5 in the W P.No.24304/2021(KLR-RES). The said Writ Petition came to be filed by the 1st Respondent seeking for a writ of mandamus against the Respondents in the Writ Petition to consider the representation dated:15/09/2021 and restore the name of the 1st Respondent and his family members in the RTC and all other revenue records. A further direction was also sought in the Writ Petition, to direct the 2nd Respondent herein(MUDA) to pay compensation in respect of Petition schedule properties to the 1st Respondent and his family members. The subject matter of the Writ Petition are the lands in Sy.No.52 measuring 1 Acre 34 guntas, Sy.No.61



measuring 1 Acre 35 guntas and Sy.No.82 measuring 10 Acres, all situated at Dattagalli Village, Kasaba Hobli, Mysuru Taluk and District.

2. It is humbly submitted that the case of the 1st Respondent as could be made out from the averments in Writ Petition is that petition schedule property was originally possessed by one Sheragar Laxma Bhovi who is said to be grandfather of the 1st Respondent succeeded to the said property; that there is a grant in favor of late Sheragar Laxma Bhovi dated:31/03/1954 and pursuant to the same revenue records are mutated in the name of Sheragar Laxma Bhovi; that after the death of the said Sheragar Laxma Bhovi, name of the 1st Respondent is entered as per IHR.4/1983-84.

3. It is humbly submitted that further case of the 1st Respondent in the Writ Petition is that a suit was filed in the year 1987 against the State of Karnataka and the Assistant Commissioner for the relief of declaration which suit was subsequently numbered as OS.No.96/1997 and the said suit came to be decreed vide judgement and decree dated:30/07/2001; that against the said judgement and decree, the State of Karnataka filed RA.No.257/2009 and as there was a delay of 5 years in filing the Appeal, considering of the IA for condonation of delay by the Appellate Court has been questioned by the 1st Respondent and others by filing WP.No.27735/2010(GM-CPC) and the said Writ Petition came to be allowed by this Hon'ble Court



vide order dated:30/08/2011; that thereafter the 2nd Respondent herein proceeded to develop the land and hence the 1st Respondent and his family members are entitled for compensation in respect of the land utilized by the 2nd Respondent and hence the 1st Respondent and his family members submitted application to the Appellants for restoration of their names in the revenue records so that the 2nd Respondent can consider their request for release of compensation.

4. It is humbly submitted that it is the further case of the 1st Respondent in the Writ Petition that he along with two others filed WP.No.13813/2008(KLR-RR/SUR) seeking for a direction against the Appellant No.4 herein to restore Katha in respect of the lands and the said Writ Petition came to be disposed of vide order dated:08/07/2009 directing the Appellant No.4, i.e., the Tahsildar to consider the request of the Petitioner; that subsequently the 1st Respondent along with others filed WP.No.34297/2017(KLR-RES) seeking for a direction against the Appellant No.4 herein to restore Katha in respect of the lands in question as per judgment and decree dated:30/07/2001 in O S.No.96/1997 and the said petition was disposed of by this Hon'ble Court vide order dated:13/07/2020 with an observation that the Writ Petition itself will have to be treated as representation to the concerned Respondent and that the grievance of the 1st Respondent shall be redressed within a period of 8 weeks.



5. It is humbly submitted that the further case of the 1st Respondent in Writ Petition is that the authorities failed to consider and redress his grievance and that he also made representations dated:30/11/2020 to the Appellants and the 2nd Respondent. Based on such averments, the 1st Respondent has sought for directions which are already stated above.

6. It is humbly submitted that it was also brought to the notice of the learned single Judge that against the judgement and decree dated:24/11/2011 passed in RA.No.257/2009, the State Government filed R.S.A.No.2026/2012 which came to be dismissed by this Hon'ble Court vide judgement and decree dated:22/04/2014 and that the State Govt also filed Civil Appeal No.20866/2012 challenging the order dated:30/08/2011 passed in WP.No.27735/2010 before the Hon'ble Supreme Court and the said Civil Appeal came to be dismissed by the Hon'ble Supreme Court vide order dated:30/11/2012.

7.It is humbly submitted that during the pendency of the Writ Petition, in view of the interim directions dated:29/01/2024 and 12/02/2024, the 2nd Respondent-MUDA deposited a sum of Rs.51,50,161(Rupees fifty-one lakh fifty thousand one hundred and sixty-one only) before



this Hon'ble Court which is stated to be the compensation amount towards the land utilized by the MUDA.

8. It is humbly submitted that the learned single Judge heard the parties and thereafter passed the impugned order dated:27/11/2024 by directing the Appellant No.4 to pass an order to enter the name of the 1st Respondent and his family members in the RTC within one month and further directed that thereafter the 1st Respondent shall approach the 2nd Respondent seeking compensation in respect of the land utilized by the 2nd Respondent.

9. It is humbly submitted that, so far as the status of lands are concerned, as per revenue records, originally land in Sy.No.82 of Dattagalli Village measures 168-30 Acres and is classified as "Sarkari Kere". Out of the said 168-30 Acres, 7-20 Acres are bifurcated through durasti and balance 161-10 Acres are remaining. As per the RTC extracts for the year 1970-1971, 1971-1972, 1979-1980 and 1980-1981, the land is classified as Govt Tank Bed. However, in the RTC pertaining to 1979-1980 onwards mutation entries in MR.No.20/53-54 is standing in the name of Laxmi Bhovi and also two others. The said mutation entries have been cancelled as per the order of the Assistant Commissioner in case no. LND Audit..4/85-86 dated:05/08/1989. Thereafter, from the year 1995-1996, the RTC indicates that in Column No.9 it is shown as



"Sarkari Kere" which means it's a Govt Lake. At an earliest point of time the names of Laxma Bhovi and others have been illegally entered and therefore the said illegal mutation entries have been rightly cancelled by the order of the Assistant Commissioner.

10. It is humbly submitted that as per the directions of the State Govt vide letter no. RD 86 LGN 2001 dated:08/07/2003, the Appellant No.2 issued official memorandum dated:28/02/2003 wherein, it is ordered that excluding 15 Acres in possession of Mary Brick Industries and 10 Acres in possession of the 2nd Respondent-MUDA, the remaining extent of 136.10 Acres shall be reserved for forest and handed over the said extent to the Forest Department and the said land is notified under Section (4) as Reserved Forest and the process is under way for declaration of reserved Forest under Section (17) of Karnataka Forest Act, and Rules.

11. The 1st Respondent who is the Writ Petitioner has filed OS.No.84/2015 by arraying the Deputy Conservator of Forest, Mysore and others as parties to the said suit. In the said suit, IA No.1 filed by the 1st Respondent herein seeking Temporary Injunction was dismissed by the Hon'ble II Addl. Civil Judge and JMFC, Mysuru vide order dated:04/07/2015. Even the Appeal in MA.No.76/2015 filed against the said order before the Hon'ble III Addl. Senior Civil Judge and CJM, Mysuru in MA.No.76/2015 also came to be dismissed by order dated:19/06/2016. It is also



relevant to state here that apart from the dispute amongst the Appellants and 1st Respondent, there are also other claims in respect of the same land in Sy.No.82 measuring 10 Acres. In this regard one Sri. Sreenivasa had filed O S.No.321/1995 before the Prl. Civil Judge (Senior Division), Mysuru for the relief of declaration, possession and permanent injunction. The said suit was decreed by the Trial Court vide judgement and decree dated:13/11/2002. R A.No.7/2004 filed by the Forest Officers before the 1st Appellate Court, challenging the judgement and decree in O S.No.321/1995 has also been dismissed by the Hon'ble II Addl. District Judge, Mysuru on 23/10/2010. Against the said judgement and decree, the State Govt filed R.S.A.No.588/2011, which came to be dismissed on 11/07/2017 and ultimately the State Govt filed SLP(civil) Dairy No.32076/2018 before Hon'ble Supreme Court and same is pending before the Hon'ble Supreme Court.

12. It is humbly submitted that in so far land in Sy. No. 52 of Dattagalli village is concerned, the same measures 1-34 acres. As per the revenue records, originally the said land is classified as 'B' Kharab land. RTC extracts from the year 1970-71 reveals that the same is shown as "Kharabu Katte". The 2nd Respondent-MUDA has developed layout and storm water drain in 0.34 acre and remaining 1 Acre is occupied by Water spread area of lake in Sy. No. 52 of Dattagalli village and the same is never granted to anyone.



13. It is humbly submitted that in so far land in Sy. No. 61 of Dattagalli village is concerned, the same measures 1-35 acres. As per the revenue records, originally the said land is classified as 'B' Kharab land. RTC extracts from the year 1970-71 in respect of this land also reveals that the same is shown as "Kharabu Katte". The 2nd Respondent-MUDA has developed layout in Sy. No. 61 of Dattagalli village also and the same is never granted to anyone.

14. It is humbly submitted that suppressing all these material facts in the Writ Petition, the 1st Respondent sought for directions against the Appellants for change of revenue entries. The 1st Respondent failed to array the Forest Department as party in the Writ Petition. The 1st Respondent also failed to array the other persons who are claiming right in respect of the same land. Thereby, the 1st Respondent has mischievously filed the Writ Petition. The learned Single Judge, without examining these aspects has allowed the Writ Petition, hence the Appellant-State is filing this Writ Appeal.

GROUND

15. The impugned order dated:27/11/2024 passed by the Learned Single Judge in WP.No.24304/2021(KLR-RES) is highly illegal and opposed to law.



16. The learned single judge ought to have appreciated that the 1st Respondent has failed to produce any cogent evidence on record to substantiate his title over the disputed land. Therefore, the direction issued by the Learned Single Judge to enter the name of the 1st Respondent in the RTC is Improper.

17. The learned Single Judge ought to have considered that the mutation entry in MR.No.20/53-54 in the name of Laxmi Bhovi came to be cancelled by the Assistant Commissioner vide order dated:05/08/1989. When such being the position, there is no other document to substantiate the right of the 1st Respondent and his family.

18. The 1st Respondent is agitating his claim before the Civil Court by filing O S.No.84/2015 against the officials of the Forest Department. The 1st Respondent suppressed the said fact in the Writ Petition and therefore such conduct disentitles him to seek any relief by invoking the Writ jurisdiction under Article 226 and 227 of the Constitution of India.

19.If the name of the 1st Respondent and his family members are entered in RTC pertaining to the land in dispute as directed by the learned single judge in the impugned order, it will enable them to claim compensation from the 2nd Respondent-MUDA. But the fact remains that



land in question does not belong to the 1st Respondent and his family members.

20. As per the official memorandum dated:28/08/2003 Issued by the Appellant No.2, the 10 Acres of land is in the possession of 2nd Respondent for the purpose of house sites. Therefore, at this length of time if direction is issued for making revenue entries in the name of the 1st Respondent and his family members and for payment of compensation, it will cause serious prejudice to the authorities. Therefore, the impugned order passed by the learned Single Judge is liable to be set aside.

21. In para 11 of the impugned order, learned Single Judge observed that the title in respect of the land in question has reached finality. However, in view of the suppression of fact by the 1st Respondent regarding filing of the suit before the Civil Court against the Officials of Forest Department, it is clear that the learned Single Judge did not have the correct facts. Therefore, the findings of the learned Single Judge regarding title of the land in question is contrary to records.

22. Viewed from any angle, the impugned order passed by the learned Single Judge in WP.No.24304/2021(KLR-RES) dated:27/11/2024 is unsustainable and same is liable to be set aside.



P R A Y E R

WHEREFORE, the Appellants humbly pray that this Hon'ble Court may be pleased to:

- a) Set aside the order dated 27/11/2024 passed by the learned Single Judge in Writ Petition No. 24304/2021 (KLR-RES) by allowing this Appeal;
- b) Consequently dismiss Writ Petition No. 24304/2021 (KLR-RES) filed by the 1st Respondent;
- c) Grant such other and further reliefs as this Hon'ble Court deems fit in the facts and circumstances of the case, in the interest of justice and equity.

LIST OF CITATIONS : NIL

BANGALORE
DATE:29.07.2025


(**YOGESH D NAIK**)
ADDL. GOVT ADVOCATE
ADVOCATE FOR APPELLANTS

ARADHYA/YOGSH D NAIK/
28072025/29072025/MAIL ALIGNMENT/



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.A. NO. OF 2025

IN

W.P.NO.24304/2021 (KLR-RES)

BETWEEN:

The State of Karnataka
And others

:APPELLANTS

AND:

Sri L.N. Govindaswamy
And another

:RESPONDENTS

VERIFYING AFFIDAVIT

I K.M. Mahesh Kumar S/o Late Muniyappa aged about 40 years, working as Tahsildar, Mysuru Taluk, Mysuru, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:

1. I am working as Tahsildar, Mysuru Taluk, Mysuru, today at Bengaluru. I have read Petition and Affidavit filed by the Appellants and I have acquainted myself with the facts of the case from the available records. I am authorised to swear to this Affidavit.

2. The averments made in paragraphs 1 to 22 of the Appeal, accompanying this Affidavit are true to my knowledge.




DEPONENT

VERIFICATION

I, the above-named deponent do hereby verify that all the facts stated in the Affidavit are all true to my knowledge and that no part thereof is false and nothing material is concealed therefrom.

Bengaluru
Date: 29.07.2025

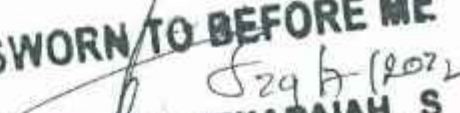

DEPONENT

IDENTIFIED BY ME:


Assistant,
Advocate General's Office,
High Court Building,
Bengaluru-560 001.

No. Of Corrections:



SWORN TO BEFORE ME

CHANDRASHEKARAIYAH. S
Advocate & Notary
No. 917, Kempegowda Nilaya
4 Cross, Muthurayaswamy Extension
Bekadakatte, Bangalore-560091

Subscribed on 29/7/2025
Reg. No. 1634

NO

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NC: 2024:KHC:49256
WP No. 24304 of 2021

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 27TH DAY OF NOVEMBER, 2024

BEFORE

THE HON'BLE MR. JUSTICE E.S.INDIRESH

WRIT PETITION NO.24304 OF 2021 (KLR-RES)

BETWEEN:

SRI. L. N. GOVINDASWAMY
S/O LATE SRI RAMA BHOVI
AGED ABOUT 72 YEARS
R/AT NO.90/9
NAACHANAHALLI PALYA
J P NAGARA
MYSURU DISTRICT
MYSURU - 570 008.

...PETITIONER

(BY SRI. MANJUNATH G KANDEKAR, ADVOCATE)

AND:

Digitally signed by
SHARMA ANAND
CHA
Location: High Court
of Karnataka

1. THE STATE OF KARNATAKA
REVENUE DEPARTMENT
M S BUILDING
DR. AMBEDKAR VEEDHI
BENGALURU - 560 001
REPRESENTED BY ITS SECRETARY,
2. THE DEPUTY COMMISSIONER
MYSURU DISTRICT
MYSURU - 571 129.
3. THE ASSISTANT COMMISSIONER
MYSURU SUB DIVISION
MYSURU - 571 129.



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And Copying charges with of 30
Received



4. THE TAHSILDAR
MYSURU-HUNSUR ROAD
MYSURU - 571 105.
5. MYSORE URBAN DEVELOPMENT AUTHORITY
(MUDA)
JHANSI LAXMI BAI ROAD
MYSURU - 570 005
REPRESENTED BY ITS
COMMISSIONER.

...RESPONDENTS

(BY SMT. RASHMI M. RAO, HCGP FOR R1 TO R4;
SRI. T.P. VIVEKANANDA, ADVOCATE FOR R5)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO DIRECT THE RESPONDENTS TO CONSIDER THE REPRESENTATION VIDE ANNEXURE-A DATED 15.09.2021 AND TO RESTORE THE NAME OF THE PETITIONER OR HIS FAMILY MEMBERS IN THE RTC AND ALL OTHER REVENUE RECORDS PERTAINS TO SCHEDULE PROPERTY; TO DIRECT THE RESPONDENT NO.5 TO PAY COMPENSATION IN RESPECT OF SCHEDULE PROPERTY TO THE PETITIONER AND OTHER FAMILY MEMBERS OF HIM.

THIS PETITION, COMING ON FOR FURTHER HEARING, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:





CORAM: HON'BLE MR. JUSTICE E.S.INDIRESH

ORAL ORDER

1. In this writ petition, petitioner has sought for a direction to the respondent -authority to consider the representation dated 15.09.2021 (annexure-A) and to restore the name of the petitioner or his family members in RTC extracts and all other revenue records with regard to the schedule property, inter alia sought for a direction to respondent no.5 - Mysore Urban Development Authority to compensate in respect of the schedule property, to the petitioner.
2. The relevant facts for adjudication of this Writ Petition are that, it is the case of the petitioner that one Sheragar Laxma Bhovi was in possession of the land bearing Sy. Nos.82, 52 and 61 to an extent of 13 acres 29 guntas in Dattagalli Village, Mysore Taluk. It is further stated in the writ petition that, land has been granted in favour of said Sheragar Laxma Bhovi as per the Grant Order dated 31.03.1954 (Annexure-B). After demise of the original owner - Sheragar Laxma Bhovi, name of the petitioner was entered in the revenue records as per IHR No.4/1983-84 (Annexure-C). It is also stated in the Writ





Petition that, in view of the cloud in so far as title of the petitioner is concerned, the Assistant Commissioner, Mysore Sub Division, interfering with the payment of compensation, and as such petitioner has filed suit in O.S. No.96/1997 before the Civil Court which came to be decreed on 30.07.2001 (Annexure-D) wherein the Civil Court has declared that plaintiffs therein are the absolute owners of the schedule property. It is also stated in the Writ Petition that, being aggrieved by the Judgment and Decree of the Trial Court in O.S. No.96/1997, the respondent - Government has filed R.A. No.257/2009 wherein the delay application filed by the respondent - Government came to be allowed against which, the petitioner herein has preferred W.P. No.27735/2010 before this Court, which came to be allowed as per the Order dated 30.08.2011 (Annexure-E). It is also stated in the Writ Petition that the respondent no.5 herein has utilised the land belonging to the petitioner herein without initiating any acquisition proceedings and accordingly, the petitioner has presented this Writ Petition with the prayer as referred to above.

3. Heard Sri. Manjunath G. Kandekar, learned counsel appearing for the petitioner and Smt. Rashmi M. Rao, learned





High Court Government Pleader appearing for respondent Nos.1 to 4 and Sri. T.P. Vivekananda, learned counsel appearing for the respondent No.5.

4. It is contended by the learned counsel for the petitioner that, in view of the Judgment and Decree passed by the Civil Court in O.S.No.96/1997 (Annexure-D), the title to the property in question has reached finality in view of the Judgment of this Court in W.P.No.27735/2010. It is further submitted by the learned counsel that land in question has been acquired by respondent No.5. Sri. Manjunath G. Kandekar, learned counsel for the petitioner emphasised that the land in question has been utilised by respondent no.5 for the purpose of formation of road and drainage facility and to make way for the general public. In the backdrop of these aspects, learned counsel for the petitioner submitted that since respondent No.5 has utilised the land of the petitioner, petitioner has filed necessary application to enter name of the petitioner and his family members in RTC records, so also seeking direction against respondent no.5 to grant compensation in respect of the utilised land in question.





5. Per contra, learned High Court Government Pleader submitted that there is a cloud in so far as title to the property in question is concerned and also disputes the finding made in favour of Sheragar Laxma Bhovi.

6. Sri. T.P. Vivekananda, learned counsel for respondent No.5 invited the attention of the Court to the order of this Court dated 29.01.2024 and 12.02.2024 and submitted that in terms of the said orders, the respondent no.5 has deposited a sum of Rs.51,50,161/- before this Court as respondent no.5 utilised the portion of land belonging to the petitioner herein and further he contended that, the entire extent of land as claimed by the petitioner has not been acquired in view of the report made by Assistant Director of Land Records which is produced along with the memo dated 26.02.2024 filed in this Writ Petition and accordingly, sought for disposal of the Writ Petition.

7. In the light of the submissions made by the learned counsel appearing for the parties, petitioner herein has produced the Grant Order dated 31.08.1959 as per Annexure-B indicating substantial title in respect of the land in question. It





is also noted that petitioner has filed O.S. No.96/1997 seeking declaration against the Government and the competent Civil Court by Judgment and Decree at Annexure-D, decreed the suit in favour of the plaintiff / petitioner herein and feeling aggrieved by the same, the respondent - Government has filed R.A.No.257/2009 wherein there is delay of five years in filing the Appeal and further, the Appellate Court has condoned the delay in filing the Appeal and said aspect was questioned before this Court by the petitioner herein in W.P.No.27735/2010 and this Court vide Order dated 30.08.2011 (Annexure-E), allowed the Writ Petition, and as such, set aside the order passed by the Appellate Court in R.A.No.257/2009, resulting in dismissal of the Appeal itself.

8. It is also pertinent to note that the Government preferred RSA No.2026/2012 against the Judgment and Decree dated 24.11.2011 in R.A.No.257/2009 which came to be dismissed by this Court in so far as the submission made by the learned counsel appearing at the bar that portion of the land has been utilised by respondent no.5 for the purpose of construction of a road and drainage for the facility of general public, by Judgment dated 22.04.2014. The respondent - Government





thereafter preferred Civil Appeal No.20866/2012 assailing the Order of this Court in W.P. No.27735/2010 before the Hon'ble Supreme Court. In this regard, learned counsel for the petitioner has produced the copy of the Order dated 30.11.2012 passed by the Hon'ble Supreme Court in Civil Appeal No.20866/2012 wherein the Hon'ble Supreme Court has rejected the appeal filed by the respondent - Government, and thereby upheld the Order of this Court dated 30.08.2011 passed in W.P.No.27735/2010.

9. In the result, title to the property in question is accepted as the same has reached finality in so far as the fact that the land in question is belonging to the petitioner in the respective layout. I have carefully examined the Order dated 12.02.2024 passed by this Court wherein this Court directed the authorities to survey the land in question in the presence of the petitioner and to file a report relating to the extent of land which has been utilised by respondent no.5. Accordingly, the respondent-Government has filed the report of Assistant Director of Land Records, Nazarbad, Mysuru, as per the memo dated 26.02.2024.





10. In the backdrop of these aspects it is contended by the learned counsel appearing for respondent no.5, that the respondent no.5 has utilised the land belonging to the petitioner. In that view of the matter, I am of the view, that it is not in dispute that a portion of the land has been utilised by respondent no.5.

11. In that view of the matter, I am of the view that, as the title in so far as land in question has reached finality in view of the order passed by the Hon'ble Supreme Court as referred to above in Civil Appeal No.20866/2012 dated 30.11.2012, as well as the Judgment of this Court in RSA No.2026/2012 dated 22.04.2014 and therefore, the respondent no.4 herein is required to enter the name of the petitioner in the revenue records including the RTC extracts to enable the petitioner herein to get compensation from respondent no.5. In that view of the matter, respondent no.4 is directed to pass appropriate order to enter the name of the petitioner or his family members in the RTC extracts within one month from the date of receipt of certified copy of this Order and thereafter the petitioner is directed to approach the respondent no.5 seeking





compensation in respect of the land which has been utilised by them.

12. Accordingly, the amount in deposit made by respondent no.5 be returned to respondent no.5 through RTGS with an intimation to the learned counsel for the respondent no.5.

13. It is also open for the petitioner to approach respondent no.5 seeking enhancement of compensation if so advised since no acquisition proceedings have been initiated by respondent no.5.

14. The Writ Petition stands disposed of with the above observations.



SD/-
(E.S.INDIRESH)
JUDGE

sac
List No.: 1 SI No.: 27

'TRUE COPY'
S.K.M. emamaliqi
Section Officer 22/5/25
High Court of Karnataka
Bengaluru - 560 001

- The date on which the application was made 21/5/24
- b) The date on which charges and additional charges if any are called for
- c) The date on which charges and additional charges if any are deposited/Paid
- d) The date on which the copy is ready 22/5/24
- e) The date on which the copy is ready for delivery 22/5/24
- f) The date on which the applicant is required to appear on or before 27/5/24
- g) The date on which the copy is delivered to the Applicant 13/6/24
- h) Examined by

(1)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION No. 24304/2021 (KLR-RES)

Between:

Sri.L.N.Covindaswamy

... Petitioner

And:

The State of Karnataka and others

....Respondents

SYNOPSIS

Dates	Events
31/03/1954	The schedule lands granted in favour of Late Sheregar Laxma Bhovi and revenue records came to be mutated in his name and in view of same RTC's were standing in his name through mutation entry.
06/02/1996	In view of the interference of the Assistant Commissioner Mysore Sub-division in respect of payment of compensation to petitioner and other family members, it was constrained them to file a suit against state of Karnataka and Assistant Commissioner in the nature of declaration in O.S.No.96/1997.
08/07/2009	The respondent authority failed to consider the representation of the petitioners in pursuant to judgment and decree in O.S No.96/1997, the petitioner and others have filed WP No.13813/2008, the Hon'ble court has allowed the said writ petition and directed the respondents to consider the grievance of the petitioner within a period of two months.
13/07/2020	The non action of the respondent authorities constrained the petitioner and other family members to file W.P.No.34297/2017 on failure of the respondent to restore the Khata and RTC in respect of schedule land and also direction to pay compensation to the petitioner and other family members. The said Writ Petition disposed of treating the writ petition itself was a representation and directed the respondent authorities redress the

(2)

	grievance of the petitioner and other family members.
15/09/2021	The petitioner gave representation to the respondents, to restore the name of the petitioner and other family members in the revenue records and pay compensation as per Annexure-A.

That basically one Sheragar Laxma Bhovi has possessed the schedule lands in continuation of grant in favour of late Sheragar Laxma Bhovi dated 31/03/1954, revenue records come to be mutated in his name and in view of same RTC's were standing in his name through mutation entry. After the demise of Sheragar Laxma Bhovi, petitioner name came to be entered in the revenue records like RTC's as per IHR No.4/1983 S4 and it was continuing. That during 1987 in view of the interference of the Assistant Commissioner Mysore Sub-division in respect of payment of compensation to petitioner and other family members, it was constrained them to file a suit against state of Karnataka and Assistant Commissioner in the nature of declaration, which was subsequently numbered as O.S.No.96/1997. The said matter came to be decreed after trial, holding that the petitioner and others family members are the owners and they are entitle to receive compensation payable towards the schedule property. Thereafter the respondent Government filed appeal R.A.No.257/2009 after delay of 5 years, where the appellate Court condone the delay for filing appeal, the consideration of delay application has been questioned by the petitioner and others in view of the decision of the Government not to prefer an appeal and also questioning the considering application vide W.P.No.27735/2010 (GM CPC). Thereafter in view of the action of the respondent No.5 proceeding to develop the schedule land, the petitioner and his family members are entitle to compensation in respect of their land being subject matter of the development taken by the respondent No.5, the petitioner and other family

(2)

members filed necessary application to respondent No. 1 to 4 seeking restoration of his name in the revenue records to consider by the respondent No.5 in releasing compensation in the name of petitioner and his family members in pursuant his name in the RTC's. In view of non consideration his request through application, the petitioner filed necessary application and also filed W.P.No.13813/2008, where the Hon'ble Court passed an order directing the Tahasildar to consider the application of the petitioner vide order dated 08/07/2009. Thereafter also initiated contempt proceedings in C.C.No.1099/2016 in view of non taking of action, however in view of delay the contempt has been withdrawn.

It is submitted that non action of the respondent authorities constrained the petitioner and other family members to file W.P.No.34297/2017 on failure of the respondent to restore the Khata and RTC in respect of schedule land and also direction to pay compensation to the petitioner and other family members. The said Writ Petition disposed of treating the writ petition itself as a representation and directed the respondent authorities redress the grievance of the petitioner and other family members who were parties in the said writ petition. That a year has been lapsed, the respondent authorities failed to consider and redress the grievance of the petitioner in respect of the restoration of Khata and also compensation pay bill by the 5th respondent in respect of the schedule property. In this respect parallel to annexure-A the petitioner is also gave representation to the respondent authorities on various date. Thus non-consideration of the representation of the petitioner, the petitioner is before this Hon'ble court.

Place: Bangalore

Date: 27/12/2021

Advocate for Petitioner

(4)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION No. 24304.../2021 (KLR-RES)

(Original Jurisdiction)

Between:

Sri.L.N.Govindaswamy
S/o Late Sri Rana Bhovi,
Aged 72 Years, R/at No.90/9,
Naachanahalli Palya,
J.P.Nagara, Mysore District
Mysore-570 008

Petitioner

And:

1. The State of Karnataka
Revenue Department, M.S.Building,
Dr.Ambedkar Veedhi,
Bengaluru-560001.
Represented by Its Secretary.

2. The Deputy Commissioner
Mysuru District.
Mysuru-571129

3. The Assistant Commissioner
Mysuru Sub Division.
Mysuru-571129

4. The Tahsildar,
Mysuru-Hunsur Road.
Mysuru-571105

5. Mysore Urban Development Authority
(MUDA), Jhansi Laxmi Bai Road,
Mysore-570005
Rep by its Commissioner

T.P. Vivekananda
Respondents

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 AND
227 OF CONSTITUTION OF INDIA

The petitioner pleaded to submit as follows:-

I. The petitioner has sought Writ of Mandamus to consider his representation to restore the Khata and RTC records pertaining to

(5)

the land bearing Sy.No.52 an extent 1 acre 34 guntas and Sy.No.61 an extent of 1 acre 35 guntas and Sy.No.82 an extent of 10 acres of Dattagalli Village, Kasaba Hobli, Mysore Taluk, by considering the representation dated 15.09.2021 of him. The said representation is produced as Annexure 'A' to this Writ Petition.

II. BRIEF FACT OF THE CASE:-

1. That basically one Sheragar Laxma Bhovi has possessed the land bearing Sy.No.82, 52 and 61 the total extent of 13 acre 29 guntas of Dattagalli Village, Kasaba Hobli, Mysore Taluk. The petitioner and other legal heirs of Sheragar Laxma have succeeded the above referred property being left behind by their grandfather. It is for the sake of convenience, the said property is also indicated in the schedule to this writ petition.
2. It is submitted that in continuation of grant in favour of late Sheragar Laxma Bhovi dated 31/03/1954, revenue records came to be mutated in his name and in view of same RTC's were standing in his name through mutation entry. The said certificate dated 31/03/1954 is herewith produced as Annexure 'B'.
3. It is submitted that after the demise of Sheragar Laxma Bhovi, petitioner name came to be entered in the revenue records like RTC's as per IHR No.4/1983-84 and it was continuing. The said Pahani/RTC is herewith produced as Annexure 'C'.
4. The petitioner submits that during 1987 in view of the interference of the Assistant Commissioner Mysore Sub-division in respect of payment of compensation to petitioner and other family members, it was constrained them to file a suit against the Government of Karnataka and Assistant Commissioner in the name of

(6)

declaration which was subsequently numbered as O.S.No.96/1997. The said matter came to be decreed after trial holding that the petitioner and others family members are the owners and they are entitle to receive compensation payable towards the schedule property. The said judgment and Decree passed in O.S.No.96/1997 is herewith produced as Annexure-'D'. There after the respondent Government filed appeal R.A.No.257/2009 after delay of 5 years, where the appellate Court condone the delay for filing appeal. the consideration of delay application has been questioned by the petitioner and others in view of the decision of the Government not to prepare an appeal and also questioning the considering application vide W.P.No.27735/2010 (GM CPC). The writ petition filed by the petitioner and his brothers came to be allowed vide order dated 30/08/2011 in W.P.No.27735/2010 is produced as Annexure-'E'. Thereafter in view of the action of the respondent No.5 proceeding to develop the schedule land, the petitioner and his family members are entitle to compensation in respect of their land being subject matter of the development taken by the respondent No.5, the petitioner and other family members filed necessary application to respondent No. 1 to 4 seeking restoration of his name in the revenue records to consider by the respondent No.5 in releasing compensation in the name of petitioner and his family members in pursuant his name in the RTC's. In view of non consideration his request through application, the petitioner filed necessary application and also filed W.P.No.13813/2008 where the Hon'ble Court passed an order directing the Tahasildar to consider the application of the petitioner vide order dated 08/07/2009 passed in W.P.13813/2008 is herewith produced as Annexure-'F'. Thereafter also initiated contempt proceedings in C.C.No.1099/2016 in view of non taking of action, however in view of delay the contempt has been withdrawn. The statement of objection filed by the MUDA in W.P.No.34297/2017 is herewith produced as Annexure-'G'.

(7)

5. It is submitted that non action of the respondent authorities constrained the petitioner and other family members to file W.P.No.34297/2017 on failure of the respondent to restore the Khata and RTC in respect of schedule land and also direction to pay compensation to the petitioner and other family members. The said Writ Petition disposed of treating the writ petition as a representation and directed the respondent authorities redress the grievance of the petitioner and other family members who were parties in the said writ petition. The order dated 12/05/2018 passed in W.P.No.34297/2017 is herewith produced Annexure-H.

6. It is submitted that a year has been passed, the respondent authorities failed to consider and redress the grievance of the petitioner in respect of the restoration of khata and also compensation pay bill by the 5th respondent in respect of the schedule property. In this respect guided to annexure the petitioner is also gave representation to the respondent authorities on various date, the said representation is annexed to the writ petition as Annexure-J, K, L, M respectively. However the respondents never bothered and careless about the grievance and inconvenience caused to the petitioner due to the delay, neglect and mala fide act of the respondent. In view of the delay and still grievance of the Petitioner remained unredressed by the respondent authorities, it is just and reasonable to consider the representation of the petitioner, hence the petitioner is before the Hon'ble Court through instant writ petition on the following amongst other grounds.

III. GROUNDS:

7. The act of in non-consideration the request of the Petitioner to consider representation by entering name in the RTC and revenue records pertains to schedule property is unjust and against the

grievance of the Petitioner, thus non consideration of his representation given as per annexure 'A' is improper.

8. It is submitted that the schedule property being the land left behind by the grandfather of the petitioner and in continuation of the same, under IHR No.4/1983-84 petitioner's name was mutated in the relevant column of RTC's and subsequently during the pendency of proceedings before the civil court his name was removed. The decree in the nature of declaration of ownership in respect of schedule property came to be passed in favour of the petitioner and other family members. Despite that, non consideration of the representation of the petitioner as per annexure-'A' and also the other application is illegal and improper on the part of the Respondent authority.

9. It is submitted that in the original suit No. 96/1997 it is declared that the petitioner and his other family members are owners of schedule property. For the sake of payment of compensation the RTC's entries required to be restored in the name of petitioner and the compensation needs to be released by the 5th respondent in favour of the petitioner and his family member. It is in view no RTC entry the MUDA Authority has failed to release compensation amount in favor of the Petitioner despite he and his family members are entitled to the same and there is a Government order regarding payment of compensation in favor of the Petitioner and his other family members.

10. It is submitted that despite the direction in the earlier writ petition and the relevant orders placed by the petitioner's and his family members, the respondent never proceed to consider the same and slept over the representation and right of the petitioner and his family members in respect of their entitlement of the relief sought in the repeated representation and application. In view of

(9)

the same it is immediate need of an order through writ of mandamus in respect of the representation of the petitioner.

11. It is submitted that in any view and diagonal, the petitioner is entitle to relief and consideration of his representation as per annexure-'A' is essential.

III. GROUND FOR INTERIM RELIEF:-

12. It is submitted that in view of the interference of the revenue authorities towards payment of compensation and removal of the name of petitioner from RTC during the pendency of suit no O.S.No.96/1997, the petitioner has suffered inconvenience and their being confirmed the judgment and decree of ownership of the petitioner and other family members during pendency of the suit, interim stay not to enter any others name in respect of the title documents pertains to schedule property is needed.

13. The petitioner having any alternative remedy is not to approach this Hon'ble court, the petitioner is before this Hon'ble court through this writ petition.

14. The petitioner has not filed any petition/s, proceedings before this Hon'ble court or before this Hon'ble court.

PRAYER

Wherefore the petitioner prays that this Hon'ble court do grant the following to;

a) allow the writ petition and issue writ of mandamus directing the Respondents to consider the representation dated 17.08.2021 and restore the name of the petitioner in the family name.

(10)

the RTC and all other revenue records pertains to schedule property;

b) Issue direction to respondent No.5 to pay compensation in respect of schedule property to the petitioner and other family members of him;

c). pass such other order/s as this Hon'ble Court deems fit in the circumstances of the case and in the interest of justice and equity.

INTERIM RELIEF

Pending disposal of the above writ petition, it is prayed that this Hon'ble court be pleased to pass an interim order directing the respondent no.1 to restore the name of the petitioner in the RTC's relating to schedule property in the interest of justice and equity.

SCHEDULE PROPERTY

All that piece and parcel of land bearing Sy.No.52 an extent 1 acre 34 guntas, Sy.No.61 an extent of 1 acre 35 guntas and Sy.No.82 an extent of 10 acres of Dattagalli Village, Kasaba Hobli, Mysore Taluk and District.

Place: Bangalore

Date: 27/12/2021

Advocate for Petitioner
Manjunath G Kandekar
KAR/2360/1995
Advocate, MSJ Associates
No.A-104, 'A' Block, 1st
floor, Brigade Majestic,
1st Main, Gandhinagar,
Bangalore-560 009
Ph: 9448448836

(10-11)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION No...../2021

Between;

Sri. L. N Govindaswamy

Petitioner

And;

The state of Karnataka and others

Respondents

VERIFYING AFFIDAVIT

I, L. N Govindaswamy S/o late Rama Bhovi, Aged about 72 years, R/at No.90/9, Naachanahalli Paiya, J.P Nagara, Mysore District 570008, today camped at Bangalore, do hereby solemnly affirm and state on oath as follows:-

1. I submit that I am the petitioner in the above case and I know the facts of the case, hence I am swearing to this affidavit.

2. I submit that the contents of writ petition paragraph No 1 to..... are true and correct to the best of my knowledge, information and belief.

3. I submit that Annexure A is original and Annexure-B to... are true copies of the same.

Identified by me

Advocate

Place: Bangalore

Date:

L. N. Govindaswamy

Deponent

ದಿನಾಂಕ: 15.09.2021

ಇಂದ,

ಎಲ್. ಎನ್. ಗೋವಿಂದಸ್ವಾಮಿ
ವಿನ್ ಲೇಟ್ ರಾಮ ಬೋವಿ,
ವಾಸ ನಂ.90/9, ನಾಚನಹಳ್ಳಿ ಹಾಳ,
J.P. ನಗರ, ಮೈಸೂರು-570008

ಗೆ,

1. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು
ಕಂದಾಯ ಇಲಾಖೆ,
ಬಹುಮಹಡಿ ಕಟ್ಟಡ, ಅಂಬೇಡ್ಕರ್ ವೀದಿ,
ಬೆಂಗಳೂರು-01



2. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು
ಮೈಸೂರು ಜಿಲ್ಲೆ, ಮೈಸೂರು

3. ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಮೈಸೂರು ಸಬ್-ಡಿವಿಷನ್, ಮೈಸೂರು

4. ತಹಸೀಲ್ದಾರರು
ಮೈಸೂರು ತಾಲ್ಲೂಕು
ಮೈಸೂರು

5. ಮೈಸೂರು ಅರ್ಬನ್ ಲಭಿವ್ಯರ್ಥಿ ಪ್ರಾಧಿಕಾರ (MUDA)
ಜಾನ್ಸೆ ರಾಣಿ ಲಕ್ಷ್ಮೀಬಾಯಿ ರಸ್ತೆ, ಮೈಸೂರು

ಮುಖ್ಯ -

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಮೈಸೂರು ಜಿಲ್ಲೆ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಗಲ್ಲ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 82
52, ಮತ್ತು 61 ರ ವಿಸ್ತೀರ್ಣ 13 ಎಕರೆ 29 ಗುಂಟೆ ಜಮೀನಿನ ಪಹಣಿ ದಾಖಲೆ ನನ್ನ
ಹಾಗೂ ಉಳಿದ ಕುಟುಂಬಸ್ಥರ ಹೆಸರಿಗೆ ವರ್ಗಾಯಿಸಿ, ಖಾತೆ ಮಾಡುವ ಬಗ್ಗೆ.

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮೂಲತಃ ಮೈಸೂರು ತಾಲ್ಲೂಕಿನ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 52 ರಲ್ಲಿ 1 ಎಕರೆ 34 ಗುಂಟೆ, ಸರ್ವೇ ನಂಬರ್ 61 ರಲ್ಲಿ 1 ಎಕರೆ 35 ಗುಂಟೆ ಮತ್ತು ಸರ್ವೇ ನಂಬರ್ 82 ರಲ್ಲಿ 10 ಎಕರೆ ಜಮೀನು ನನ್ನ ಅತೃಪ್ತದ ಕ್ರೀ. ಶೇರುಗಾರ್ ಲಕ್ಷ್ಮಿ ಬೋವಿ ಯವರಿಗೆ ಮಂಜೂರಿ ಮೂಲಕ ಬಂದು ಎಂ. ಆರ್. ನಂಬರ್. 90/1953-54 ರಂತೆ ಖಾತೆಯಾಗಿ ಪಹಣಿ ಹಾಗೂ ರೆವೆನ್ಯೂ ದಾಖಲೆಗಳು ಅವರ ಹೆಸರಿಗೆ ದಾಖಲಾಗಿದ್ದು, ಅವರ ಮರಣ ನಂತರ IHR -4 /1983-84 ರಂತೆ. L ಗೋವಿಂದಸ್ವಾಮಿ ಯಾದ ನನ್ನ ಮತ್ತು ಇತರರ ಹೆಸರಿಗೆ ಪಹಣಿ ದಾಖಲಾಗಿ ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿ ಕೊಂಡು ಬಂದಿರುತ್ತದೆ.

ವಸ್ತು ಸ್ಥಿತಿ ಹೀಗಿರುವಾಗ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ಜಮೀನಿನ ಪೈಕಿ ಕೆಲವು ವಿಸ್ತೀರ್ಣವನ್ನು ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದವರು ನಮಗೆ ಯಾವುದೇ ಮುನ್ನೂರಿನೆಯನ್ನು ನೀಡದೆ ಸ್ವಾಧೀನಕ್ಕೆ ತೆಗೆದುಕೊಂಡು ಅಭಿವೃದ್ಧಿ ಪಡಿಸಿ ಬಡಾವಣೆ ಹಾಗೂ ರಸ್ತೆ ರಚನೆ ಮಾಡಿರುತ್ತಾರೆ. ಈ ಕಾರಣ ನಾವುಗಳು ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಮತ್ತು ಇತರೆ ಇಲಾಖೆ ಮತ್ತು ಪ್ರಾಧಿಕಾರದ ವಿರುದ್ಧ ಮಾನ್ಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಓ. ಎಸ್. ನಂಬರ್. 551 /1987 ಹಾಗೂ ಓ. ಎಸ್. ನಂಬರ್. 727 /1990 ರಾಜ್‌ಗಳನ್ನು ಹೂಡಿದ್ದು ಹಾಗೂ ದಾಖಾ ಸಂಖ್ಯೆ 96 /1997 ಪ್ರಕರಣ ಬಾಕಿ ಇರುವಾಗ ಆರ್.ಟಿ. ಸಿ. ಗಳನ್ನೂ ರದ್ದು ಮಾಡಿ ಸರ್ಕಾರ ಎಂದು ನಮೂದು ಮಾಡಿರುತ್ತಾರೆ. ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಪ್ರಾಧಿಕಾರದಿಂದ ಪರಿಹಾರ ಪಡೆದುಕೊಳ್ಳಲು ನಮ್ಮನ್ನು ಮಾರೀಕರೆಂದು ಘೋಷಿಸಿ ದಿನಾಂಕ 30 /07 /2001 ರಂದು ತೀರ್ಪು ನೀಡಿರುತ್ತದೆ ಸದರಿ ನ್ಯಾಯಾಲಯದ ಡಿಕ್ರಿಯನ್ನು ಯಾವತ್ತೂ ವ್ಯಕ್ತಿಸಿರುವುದಿಲ್ಲ ಹಾಗೂ ನಮ್ಮ ಹೆಸರಿಗೆ ಪಹಣಿಯಲ್ಲಿ ಖಾತೆಯನ್ನು ದಾಖಲಿಸಿರುವುದಿಲ್ಲ ಈ ಕಾರಣದಿಂದ ನಾವು ಹಿಂದೆ ರಿಟ್ ಅರ್ಜಿ 13813 /2008 ರಂತೆ ಸಲ್ಲಿಸಿದ್ದು ಇರುತ್ತದೆ. ಸದರಿ ರಿಟ್ ಆದೇಶದಲ್ಲಿ ಅಸಲು ದಾಖಾ ಸಂಖ್ಯೆ 96 /1997 ರಂತೆ ತೀರ್ಪಿನಂತೆ ಕ್ರಮ ವಹಿಸಲು ತಹಸೀಲ್ದಾರ್ ಮೈಸೂರು ರವರಿಗೆ ಆದೇಶವಿರುತ್ತದೆ. ತದನಂತರ ನಾವು ತಹಸೀಲ್ದಾರರಿಗೆ ಅನೇಕ ಬಾರಿ ಅರ್ಜಿ ಮೇರೆಗೆ ವಿನಂತಿ ಮಾಡಿಕೊಂಡಾಗಲೂ ಯಾವುದೇ ದಾಖಲೆಗಳು

ಮುಖ್ಯ-

ಪೆನ್ನು ಹೆಸರಿಗೆ ನಮೂದು ಮಾಡಿರುವುದಿಲ್ಲ, ತದ ನಂತರ ಮೂಲ ದಾವೆ ಸಂಖ್ಯೆ 96 / 1997 ರ ತೀರ್ಪಿನ ವಿರುದ್ಧ ವಿಳಂಬ ಮಾಡಿ ಆರ್ ಎ 257 / 2006 ರಂತೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ ಈ ಮಧ್ಯೆ ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ 27735 / 2010 ರಂತೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ ನಮ್ಮ ಪರವಾಗಿ ಆದೇಶವಾಗಿರುತ್ತದೆ. ಸದರಿ ಆದೇಶ ಮತ್ತು ಅದಕ್ಕೂ ಪೂರ್ವದಲ್ಲಿಯ ರಿಟ್ ಸಂಖ್ಯೆ 13813 / 2008 ರಂತೆ ಹೊರಡಿಸಿರುವ ಆದೇಶದನ್ವಯ ಸಹ ಅರ್ಜಿ ನೀಡಿದ್ದರು ಯಾವುದೇ ಕಾರ್ಯ ಸಫಲವಾಗಿರುವುದಿಲ್ಲ. ತದನಂತರ ರಿಟ್ ಪಿಟಿಷನ್ ಅರ್ಜಿ 27735 / 2010 ರ ಆದೇಶದ ವಿರುದ್ಧ ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮೈಸೂರು ರವರು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ 20866 / 2012 ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಮೇಲ್ಮನವಿ ಸಹ ವಜಾ ಆಗಿರುತ್ತದೆ. ಈ ಪ್ರಕರಣಗಳು ಮುಗಿದ ನಂತರ ದಲ್ಲಿ ಸಹ ನಾನು ಅನೇಕ ಅರ್ಜಿ ಹಾಗೂ ತದನಂತರ ರಿಟ್ ಅರ್ಜಿ ಸಹ ಮಾಡಿ, ಸದರಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ನಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡಿಕೊಡಲು ಹಾಗೂ ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರವು ಉಪಯೋಗಿಸಿಕೊಂಡಿರುವ ಜಮೀನಿನ ವಿಸ್ತೀರ್ಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಪರಿಹಾರ ಪಡೆದುಕೊಂಡು ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳದೆ ಇರುವ ಉಳಿಕೆ ವಿಸ್ತೀರ್ಣದ ಜಮೀನನ್ನು ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿಕೊಂಡು ನಮ್ಮ ಪಕ್ಕ ಮತ್ತು ಮಾರ್ಗೀಕರಣದಂತೆ ಸ್ವಾಧೀನ ಅನುಭವ ಅನುಭವಿಸಿಕೊಂಡು ಹೋಗಲು ಅನುಕೂಲವಾಗುವ ದೃಷ್ಟಿಯಿಂದ ಖಾತೆ ಮಾಡಿಕೊಡುವಂತೆ ಫುನ: ಫುನ: ನಿರಂತರವಾಗಿ ವಿನಂತಿ ಮಾಡಿ ಕೊಂಡರು ಹಾಗೂ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳಿಗೆ ದಿನಾಂಕ 15 / 07 / 2021 ರಂದು ಸಂಪೂರ್ಣ ವಾಸ್ತವಿಕತೆಯನ್ನು ವಿವರಿಸಿ ದಾಖಲೆ ಮತ್ತು ಅಡಕಗಳನ್ನು ಲಗತ್ತಿಸಿ ಕೊಟ್ಟಿರುವ ಅರ್ಜಿಯ ಮೇರೆಗೆ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ ದಿನಾಂಕ 19/07 / 2021 ರಂದು ಬಿಲ್ದಾಧಿಕಾರಿಗಳು ಮೈಸೂರು ಜಿಲ್ಲೆ ರವರಿಗೆ ವತ್ರದನ್ವಯ ನಿಯಮಾನುಸಾರ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳುವಂತೆ ತಿಳಿಸಿದ್ದಾಗ್ಯೂ ಹಾಗೂ ದಿನಾಂಕ 28 / 07 / 2021 ರಂದು ನಿಯಮಾನುಸಾರ ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಿ ಖಾತೆ ಬದಲಾವಣೆ ಮಾಡುವ ಬಗ್ಗೆ ಕ್ರಮ ವಹಿಸಲು ಸಹ ತಿಳಿಸಿದ್ದು ಇರುತ್ತದೆ. ಈಗಾಗಲೇ ಹಾಕಿರುವ ರಿಟ್ ಅರ್ಜಿಗಳು ಒಂದು ವರ್ಷಕ್ಕೆ ಮೇಲ್ಮಟ್ಟಿರುವುದರಿಂದ ಮತ್ತು ರೆವಿನ್ಯೂ ಅಧಿಕಾರಿಗಳು ಎಲ್ಲಾ ದಾಖಲೆಗಳನ್ನು ನೀಡಿ ವಾಸ್ತವಿಕತೆ ಮತ್ತು ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಿದ್ದಾಗ್ಯೂ ಯಾವುದೇ ರೀತಿಯ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳಲು ಮುಂದಾಗದೆ ಇರುವುದು ಆಶ್ಚರ್ಯ ಹಾಗೂ ಸಂದೇಹ ಅಸ್ಪದ ವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನಮಗೆ ತುಂಬಲಾರದ ಅನ್ಯಾಯವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನ್ಯಾಯ ದೊರಕುವುದಕ್ಕಿಂತ ಅನಗತ್ಯ ಖರ್ಚು ವೆಚ್ಚ ಮತ್ತು ಮಾನಸಿಕ ಹಿಂಸೆ ಹಾಗೂ ದುರ್ಬಲತೆ ಉಂಟಾಗಿರುತ್ತದೆ, ನಮಗೆ ರೆವೆನ್ಯೂ ಕಚೇರಿಗಳನ್ನು ಹಾಗೂ ಇತರೆ ಎಲ್ಲಾ ವಿಧದ ನ್ಯಾಯೋಚಿತವಾದ ವಿಭಾಗ ಹಾಗೂ ಇಲಾಖೆಗಳನ್ನು ಸಂಪರ್ಕಿಸಿಯೂ ನ್ಯಾಯ ದೊರೆಯುವ ಯಾವುದೇ ಸುಳಿವು ಲಭಿಸಿರುವುದಿಲ್ಲ, ಈ ಮೇಲಿನ ಕಾರಣಗಳಿಂದ ಕೊನೆಯ ಪ್ರಯತ್ನ ಎಂದು ತಿಳಿದು ಮೇಲಿನ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳಿಗೂ ಈ ಕೆಳಗೆ ಲಗತ್ತಿಸಿರುವ ದಾಖಲೆಗಳೊಂದಿಗೆ ಸನ್ನ ವಿನಯ ಪೂರ್ವಕ ಪ್ರಾರ್ಥನೆ

ಮುಖ್ಯ -

ದಿನಂದರೆ ದಾಖಲೆ ಹಾಗೂ ಈಗಾಗಲೇ ವಿವಿಧ ನ್ಯಾಯಾಲಯಗಳು ನೀಡಿರುವ ತೀರ್ಪುಗಳನ್ನು ತಕ್ಕದ್ದಾಗಿ ಪರಿಶೀಲಿಸಿ ನನ್ನ ಹಕ್ಕಿನಂತೆ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ವಿಸ್ತೀರ್ಣದ ಜಮೀನಿಗೆ ಹೆಸರುಗಳನ್ನು ನಮೂದು ಮಾಡಿ ಖಾತೆ ಕೋರಿಸಿ ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಬೇಕಾಗಿ ವಿನಂತಿ.

ಧನ್ಯವಾದಗಳೊಂದಿಗೆ



(ಎಲ್. ಎನ್. ಗೋವಿಂದಸ್ವಾಮಿ)

ಇಂತಿ ತಮ್ಮ ವಿಶ್ವಾಸಿ

ಲಗತ್ತಿಸಿರುವ ಅಡತೆಗಳು

1. ಮಂಜೂರಾತಿ ಪತ್ರದ ನಕಲು
2. ಎಂ.ಆರ್. ನಂ. 20/1953-54 ರ ನಕಲು
3. 79-80 ರಿಂದ 85-86 ಆರ್ ಟಿ ಸಿ
4. ಆರ್. ಆರ್. 6 ಮತ್ತು ರೆಕಾರ್ಡ್ಸ್ ಆಫ್ ರೈಟ್ಸ್
5. ಓ.ಎಸ್. ನಂ. 551/87, ಓ.ಎಸ್. ನಂ. 727/90 ಮತ್ತು ಓ.ಎಸ್. ನಂ. 96/97 ರ ಅಧೀನದ ಪ್ರತಿ
6. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 13813/2008 ರ ಪ್ರತಿ
7. ಆರ್. ಓ. ನಂ. 982/2008 ರ ಪ್ರತಿ
8. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 27735 /2010 ರ ಪ್ರತಿ
9. ಸರ್ವೋಚ್ಚನ್ಯಾಯಾಲಯದ ಎಸ್. ಎಲ್. ಪಿ ಸಂಖ್ಯೆ. 20866 /2010 ರ ಪ್ರತಿ
10. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 34297 /2017 ರ ಪ್ರತಿ



Translated copy of Annexure-A

Date:30-11-2021.

From.

L.N Govindaswamy s/o Late Rama bhovi
House No:90/9, Nachanahalli palya
J.P.Nagara, Mysuru-570008.

TO.

1. Principle Secretary
Revenue department
Multistore building
Ambedkar Vadhi
Bangalore-01.
2. Deputy Commissioner
Mysuru district
Mysuru.
3. Assistant commissioner
Mysuru Sub-division
Mysuru.
4. Thasildar Mysuru Taluk
Mysuru.
5. Mysuru urban development Authosith
Jansirani lakshmibai road, Mysuru.

Respected sir,

Subject:- Regarding the transfer of khatha and the R.T.C record of the land measuring 13 acres 29 guntas, in survey number 82, 52 and 61, Kasaba Hobli, Dattagalli village, Mysore district, in my name and that of the rest of my family members.

In connection with the above matter, originally 1-34 Acre in survey number 52 of Dattagalli village, Kasaba Hobli, Mysore taluk, 1-35 Acre in survey number 61 and 10 acres of land in survey number 82 came to my grandfather Shri Sherugar Lakshama Bovi through grant and the land title and revenue records were registered in his name as M. R. No. 90/1953 -54, after his death, the land title was registered in the name of L.Govindaswamy and others and we have been enjoying it as our right.



In such a situation, some of the above land has been acquired by the Mysore Urban Development Authority without giving us any notice and developed it and constructed a layout and road. For this reason, we have filed O. S. No.551 /1987 and O. S. No. 722 / 1990 suits in the Hon'ble Civil Court against the Government of Karnataka and other departments and authorities, while the case of suit No. 96 / 1997 is pending, the R.T.C. has also been cancelled and entered as 'Government'. In this case The Hon'ble court ordered as we are the owners of the above land and to claim the compensation from the MUDA on: 30/07/2001. The said Court's order has never been challenged and the khatha has not been registered in our name in the R.T.C. Therefore, we have filed a writ petition as 13813/2008. In the said writ petition, the Tahsildar, Mysore has been ordered to take action as per the judgment the said O.S.No. 96/1997. Thereafter, we have requested the Tahsildar several times but khatha has not been done in our name. After that, you have filed an appeal against the original suit number 96/1997 with delay under RA 257/2000, In between this W.P:27735/2010 is orders in one favor. The said order and the earlier order issued in W.P.13813/2008 we filed an application, but no action has been taken. There after against the W.P:27735/2010 order Assistant commissioner mysuru filed an appeal in Supreme Court as 20866/2012 and the said appeal is also dismissed. Even after the completion of these cases, I have filed many applications and have repeatedly requested to make a khatha in our name as per the order of the said High Court and that the Mysore Urban Development Authority should obtain compensation for the area of land used and not acquired, so that we can enjoy the remaining area of land as per our right and ownership and enjoy the right and ownership. Simultaneously with explaining the facts and documents on 15/7/2021 we are given application to Principle secretary to the Revenu department on 19/07/2021 they were directed Deputy Commissioner to take action as per rules on 28/07/2021. Since the applications are above one year old and the Revenue officials have provided all the documents but have not taken any action, it is surprising and suspicious and it is an irreparable injustice to us and it is unnecessary expenditure and mental torture rather than getting justice. We have contacted the offices and all other relevant departments but we have not received any hint of getting justice. For the above reasons, finally I humbly request all the above officials to examine the records immediately (attached with this) and the judgments already given by various



courts and enter my name and rest of my family members in RTC and make as khatha as per my right and provide my document.

With Thanks

sign/-
(L.N. Govindaswamy)
Yours Faithfully

Enclosures:

1. Grant certificate copy.
2. Copy of M.R.20/1953-54.
3. RTC from 79-80 to 85-86.
4. Copy of R R 6 and records of rights.
5. Order of the O.S.551/87, O.S.727/90 and O.S.96/97.
6. Copy of high court the order W.P.13813/2008.
7. copy of the R.A.257/2009.
8. Copy of high court the order W.P.27735/2010.
9. Copy of Supreme court the order SLP.20866/2010.
10. Copy of high court the order W.P.34297/2017.



Form SI No. 51

Form 1

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7/10/1951

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1. ...
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4. ...

(12)

ಪರಿಶಿಷ್ಟ 1

Form 1

ಗ್ರಾಂಟು ಸರ್ವಿಷ್‌ಕೇಟ್- ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ನಿಬಂಧನೆಗಳ E ಪರಿಶಿಷ್ಟ

ಹಿಡುವಳಿಯಲ್ಲಿಲ್ಲದ ಸರ್ಕಾರಿ ಜಮೀನನ್ನು ಸಾಗುವಳಿ ವಿಲೇವಾರಿ ಮಾಡಿ ಹಿಡುವಳಿ ಹಕ್ಕನ್ನು ಕೊಡುವುದಕ್ಕೆ ಏರ್ಪಟ್ಟ ನಿಬಂಧನೆಗಳ ಮೇರೆಗೆ ಈ ಕೆಳಗೆ ಬರೆಯಲ್ಪಟ್ಟಿರುವ ಪೆಡ್ಡುಲಿಸಲ್ಲಿ ವಿವರಿಸಲ್ಪಟ್ಟಿರುವ ಜಮೀನು ವಿಕ್ರಯಿಸಲ್ಪಟ್ಟು ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬುವರು ಬಹಿರಂಗವಾದ ಹರಾಜಿನಲ್ಲಿ ಅಥವಾ ನಿಯಮಿತವಾದ ಸರ್ಕಾರಿ ಕಿಮ್ಮತ್ತಿಗೆ ಕೊಂಡುಕೊಂಡಿರುವುದರಿಂದಲೂ ಮತ್ತು ಸದರಿ ಹರಾಜು ಕ್ರಮವಾಗಿ ಮಂಜೂರಾದಲ್ಪಟ್ಟಿರುವುದಲ್ಲದೆ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಸದರಿ ಜಮೀನಿನ ಕ್ರಯದಾರರೆಂದು ಕ್ರಮವಾಗಿ ಪ್ರಕಟಿಸಲ್ಪಟ್ಟಿರುವುದರಿಂದಲೂ ಮತ್ತು ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬುವರು 40.8.6 ರೂಪಾಯಿಗಳ ಕ್ರಯದ ಮೊಬಲಗಿನ ಪೂರಾ ಹಣವನ್ನು ಸರ್ಕಾರಿ ಏಜೆನ್‌ಗೆ ಪಾವತಿ ಮಾಡುವುದರಿಂದಲೂ

ಮೈಸೂರು..... ತಾಲೂಕಿನ ಅಮಲ್ಗಾರನಾದ

..... ಸಬ್ ಡಿವಿಜನ್ ಅಸಿಸ್ಟೆಂಟ್ ಕಮಿಷನರಾದ

..... ಡಿಸ್ಟ್ರಿಕ್ಟಿನ ಡೆಪ್ಯುಟಿ ಕಮಿಷನರಾದ

ಶ್ರೀ ಎಲ್.ಕಲ್ಲಯ್ಯ ಬಿ.ಎ ಎಂಬ ನಾನು ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬವರಿಗೆ ಸದರಿ ಜಮೀನಿನ ಹಿಡುವಳಿಯನ್ನು ಹೊಂದಲು ಈ ಮೂಲಕ ಅಪ್ಪಣೆಯನ್ನು ಕೊಟ್ಟಿರುತ್ತೇನೆ. ಅಲ್ಲದೆ ಆ ಜಮೀನನ್ನು ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬವರಿಗೂ ಅವರ ವಾರಸುದಾರರಿಗೂ ಅವರ ಪ್ರತಿ ನಿಧಿಗಳಿಗೂ ಮತ್ತು ಹವಾಲ್ತೆದಾರರಿಗೂ ಸರ್ವೆ ಬಾತರಿ (ಸರ್ವೆ ಗ್ಯಾರಂಟಿ) ನಿಬಂಧನೆಯ ಪರತ್ವಗಳ ಮೇರೆಗೆ ಈ ಮೂಲಕ ಕೊಟ್ಟು ಬಾಯಂ ಮಾಡಿರುತ್ತೇನೆ. ಈ ರೀತಿಯಾಗಿ ಕೊಟ್ಟು ಬಾಯಂ ಮಾಡಿರುವುದು ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡಿನ

ಮಾನ್ಯ.

(18)

ನಿಯಮಗಳಿಗನುಸಾರವಾಗಿ ಬರುವ ಅಪೀಲಿನಲ್ಲಿ ಅಥವಾ ರಿವಿಜನ್ ತೀರ್ಮಾನದಲ್ಲಿ ರದ್ದಾಗುವುದಕ್ಕೆ ಅಥವಾ ಬದಲಾಯಿಸಲ್ಪಡುವುದಕ್ಕೆ ಒಳಪಟ್ಟಿರುತ್ತದೆ. ಮತ್ತು ಈ ಮುಂದೆ ನಮೂದಿಲ್ಲದಂತಹ ಷರತ್ತಿನ ನಿಯಮಗಳಿಗೂ, ಆಯಾ ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರುವ ನಿಬಂಧನೆಗಳ ಮೇರೆಗೆ ಅದು ಪುನರ್ವಿಮರ್ಶೆಯಿಂದ ಬದಲಾಯಿಸಲ್ಪಡುವವರಿಗೆ ಕ್ರಮವಾಗಿ ಕೊಡುತ್ತಾ ಬರಬೇಕೆಂದು ಷರತ್ತಿಗೂ ಒಳಪಟ್ಟು ಅದು ಮೇಲೆ ಹೇಳಿದಂತೆ ಅವರೆಲ್ಲರಿಗೂ ನಡೆದುಬರತಕ್ಕದ್ದು.

1. ಪರಂತು ಈ ಕಂದಾಯವನ್ನು ಪಂಚಾಯಿತಿ ಕೋಡಿನ ನಿಯಮಗಳ ಮೇರೆಗೆ ಆಗಿಂದಾಗ್ಗೆ ಈ ಸಂಬಂಧದಲ್ಲಿ ವಿಧಿಸಬಹುದಾದ ನಿಬಂಧನೆಗಳ ಪ್ರಕಾರ ಪ್ರತಿಯೊಂದು ರೆವಿನ್ಯೂ ಸಾಲಿಗೂ ಕೊಡುತ್ತಾ ಬರಬೇಕು. ಇದಕ್ಕೆ ತಪ್ಪಿದಲ್ಲಿ ಈ ಮೊಬಲಗನ್ನು ಲ್ಯಾಂಡ್ ರೆವೆನ್ಯೂ ಕೋಡಿನಿಂದಲೂ ಮತ್ತು ಆದರ ಮೇರೆಗೆ ಏರ್ಪಟ್ಟಿರುವ ನಿಬಂಧನೆಗಳಿಂದಲೂ ವಿಧಾಯಕವಾಗಿರುವ ರೀತಿಯಲ್ಲಿ ಬಲಾತ್ಕಾರದ ನಡವಳಿಕೆಗಳನ್ನು ಜರುಗಿಸಿ ವಸೂಲ್ಯಾಡಲಾಗುವುದು.

2. ಪರಂತು, ಸಾಮಾನ್ಯವಾದ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಅಥವಾ ಮುನಿಸಿಪಲ್ ಅಥವಾ ಇತರ ಸ್ಥಳೀಯ ಉದ್ದೇಶಗಳಿಗಾಗಿ ಕಾನೂನಿನಿಂದ ವಿಧಾಯಕವಾಗಿರುವ ಅಥವಾ ವಿಧಾಯಕ ಮಾಡಲ್ಪಡಬಹುದಾದ ಜಮೀನು ಕಂದಾಯವಲ್ಲದ ಇತರ ವರಿಗಳನ್ನೂ ತೆರಿಗೆಯನ್ನೂ ಮತ್ತು ಸೆಸ್ಸುಗಳನ್ನೂ ಈ ಜಮೀನಿನ ಮೇಲೆ ವಿಧಿಸುವುದಕ್ಕೆ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನ ದೆಸೆಯಿಂದ ಯಾವ ಅಭ್ಯಂತರವೂ ಇರತಕ್ಕದ್ದಲ್ಲ.

3. ಪರಂತು ಆ ಗ್ರಾಮದಲ್ಲಿ ಜೀರ್ಣೋದ್ಧಾರ ಮಾಡಲ್ಪಟ್ಟ ಯಾವ ಮೇಜರ್ ಮತ್ತು ಮೈನರ್ ಕೆರೆಗಳನ್ನು ಸರಿಯಾದ ದುರಸ್ತಿನಲ್ಲಿಡಬೇಕಾದ ಮಾಮೂಲು ಜವಾಬ್ದಾರಿಯು ಸದರಿ ಸರ್ವೆ ನಂಬರಿನ ಹಿಡುವಳಿದಾರರಾದ



ಕಾರಣದಿಂದ ಅಥವಾ ಇತರ ನ್ಯಾಯಸಮ್ಮತವಾದ ಮಾಲೀಕರಾದ ಕಾರಣದಿಂದ ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬುವರ ಮೇಲೆ ಹೊರಿಸಲ್ಪಡುತ್ತದೆಯೋ ಆ ಗ್ರಾಮದ ಅಂತಾ ಕೆರೆಗಳನ್ನು ಮೇಲ್ಕಂಡ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬುವರು ಅಥವಾ ಸದರಿ ಜಮೀನಿನ ನ್ಯಾಯ ಸಮ್ಮತವಾದ ಇತರ ಮಾಲೀಕರು ಇನ್ನು ಮುಂದೆ ಎಲ್ಲ ಕಾಲಗಳಲ್ಲಿಯೂ ತಮ್ಮ ಸ್ವಂತ ವೆಚ್ಚದಿಂದ ಒಳ್ಳೆ ದುರಸ್ತಿನಲ್ಲಿಡತಕ್ಕದ್ದು ಮತ್ತು ಅವರು ಸದರಿ ಜಮೀನಿನಲ್ಲಿಯೂ ಅದರ ಸುತ್ತಲೂ ಇರುವ ಎಲ್ಲೆಯ ಗುರುತುಗಳನ್ನು ಸರಿಯಾದ ಸ್ಥಿತಿಯಲ್ಲಿ ಕಾಪಾಡಿಕೊಂಡು ಬರತಕ್ಕದ್ದು ಅವರು ಈ ಕೆಲಸಗಳನ್ನು ಮಾಡದೆ ತಪ್ಪಿದಲ್ಲಿ ಅವರಿಗೆ ಕ್ರಮವಾಗಿ ನೋಟಿಸನ್ನು ಕೊಟ್ಟ ತರುವಾಯ ಈ ವಿಚಾರದಲ್ಲಿ ಅವರ ಜವಾಬ್ದಾರಿಯು ಇರುವಷ್ಟರ ಮಟ್ಟಿಗೆ ಸದರಿ ಕೆರೆಗಳನ್ನು ದುರಸ್ತಿನಲ್ಲಿಟ್ಟು ಕೊಳ್ಳತಕ್ಕ ಕೆಲಸಗಳನ್ನು ಮಾಡಿಸುವುದೂ ಸದರಿ ಎಲ್ಲೆಯ ಗುರುತುಗಳ ದುರಸ್ತಿ ಕೆಲಸಗಳನ್ನು ಮಾಡಿಸುವುದೂ ಮತ್ತು ಅಂಥ ದುರಸ್ತಿ ಕೆಲಸಗಳಿಗೆ ತಗಲುವ ಖರ್ಚನ್ನು ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬುವವರಿಂದ ಅಥವಾ ಆ ಜಮೀನಿನ ನ್ಯಾಯವಾದ ಮಾಲೀಕನಾದ ಇತರ ಮನುಷ್ಯನಿಂದ ಕಂದಾಯದ ಬಾಕಿಯಂತೆ ವಸೂಲ್ಯಾಡುವುದೂ ಸಹ ಮೈಸೂರು ಸರ್ಕಾರದವರಿಗೆ ನ್ಯಾಯ ಸಮ್ಮತವಾಗಿರತಕ್ಕದ್ದು.

4. ಪರಂತು, ಆ ಜಮೀನಿನ ಮೂಲಕ ಹಾಯ್ದು ಹೋಗುವ ಅಥವಾ ಆ ಜಮೀನಿನ ಸುತ್ತಲೂ ಇರುವ ಎಲ್ಲ ರಸ್ತೆಗಳ ಮತ್ತು ದಾರಿಗಳ ಮತ್ತು ನೀರಿನ ಝರಿಗಳ ವಿಷಯದಲ್ಲಿಯೂ ಸರ್ಕಾರದವರಿಗೆ; ಅಥವಾ ಸದರಿ ಜಮೀನಿನ ಅಕ್ಕಪಕ್ಕ ಅಥವಾ ಅದರ ಸಮೀಪದಲ್ಲಿರುವ ಜಮೀನುಗಳ ಮಾಲೀಕರಿಗೆ ಅಥವಾ ಗ್ರಾಮಸ್ಥರಿಗೆ ಹಾಲಿ ಇತರಕ್ಕೂ ಹಕ್ಕುಗಳಿಗೆ; ಅಥವಾ ಮಾಮೂಲು ಮೇರೆಗೆ ನಡೆದು ಬಂದಿರುವ ಹಕ್ಕುಗಳಿಗೆ; ಆಗಲಿ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನಲ್ಲಿರುವುದು ಯಾವುದೂ ಬಾಧ್ಯಕವಸ್ತುಂಟು ಮಾಡತಕ್ಕದ್ದಲ್ಲ.

ಮಾನ್ಯ

(20)

5. ಪರಂತು. ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬುವರಿಗಾಗಲೀ ಆತನ ವಾರಸುದಾರರಿಗಾಗಲೀ ಪ್ರತಿನಿಧಿಗಳಿಗಾಗಲೀ ಅಥವಾ ಹವಾಲ್ತಿದಾರರಿಗಾಗಲೀ ಈ ಜಮೀನಿನ ಮೇಲೆ ಅಥವಾ ಈ ಜಮೀನಿನ ಒಳಗಡೆ ಅಥವಾ ಈ ಜಮೀನಿನ ಯಾವ ಭಾಗದಲ್ಲಾಗಲೀ ಈಗ ಇರುವ ಅಥವಾ ಮುಂದೆ ಯಾವ ಕಾಲದಲ್ಲಿಯೇ ಆಗಲಿ ಕಂಡು ಹಿಡಿಯಲ್ಪಡಬಹುದಾದ ರತ್ನಗಳು ಚಿನ್ನ ಮತ್ತು ಇತರ ಖನಿಜಗಳು ಅಥವಾ ಕಲ್ಲಿದ್ದಲು-ಇವುಗಳಿಗೆ ಅಥವಾ ಇವುಗಳ ವಿಷಯದಲ್ಲಿ ಅಥವಾ ರತ್ನಗಳು, ಚಿನ್ನ ಅಥವಾ ಇತರ ಖನಿಜಗಳು ಅಥವಾ ಕಲ್ಲಿದ್ದಲು ಇವುಗಳನ್ನುಳ್ಳ ಅಥವಾ ಇವುಗಳಿವೆಯೆಂದು ಊಹಿಸಲ್ಪಡುವ ಅಥವಾ ಬಂಡೆಯ ವಿಷಯದಲ್ಲಿ ಯಾವ ಹಕ್ಕಾಗಲಿ ಸ್ವಾಮ್ಯವಾಗಲಿ ಅಥವಾ ಪ್ರಯೋಜನವಾಗಲಿ ಈ ಮಾಲೀಕತೆಯ ದಸ್ತಾವೇಜಿನ, ದೆಸೆಯಿಂದ ಉಂಟಾಗುವುದೆಂದು ಅಥವಾ ಇರುವಂತೆ ಭಾವಿಸಲ್ಪಡತಕ್ಕದ್ದಲ್ಲ. ಈ ಕೆಳಗೆ ಕಂಡ ಷರತ್ತಿಗೊಳಪಟ್ಟ ಇವುಗಳೆಲ್ಲವೂ ಕಾಲಿ ಜಾರಿಯಲ್ಲಿರುವ ಷರತ್ತುಗಳ ಮೇಲೆ ಅಥವಾ ಈ ವಿಚಾರದಲ್ಲಿ ಆಗಿಂದಾಗ್ಗೆ ವಿಧಿಸಲ್ಪಡಬಹುದಾದ ಷರತ್ತುಗಳ ಮೇಲೆ ಮೈಸೂರು ಸರ್ಕಾರಕ್ಕೆ ಈ ಮೂಲಕ ಉಳಿಸಿಕೊಳ್ಳಲ್ಪಟ್ಟಿವೆ.

ಆದರೆ ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬವರು, ಅವರ ವಾರಸುದಾರರು ಪ್ರತಿನಿಧಿಗಳು ಅಥವಾ ಹವಾಲ್ತಿದಾರರು ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಅಥವಾ ಅದರೊಳಗೆ ದೊರೆಯಬಹುದಾದ ಲೋಹಗಳು ಅಥವಾ ಕಲ್ಲಿದ್ದಲು ಅಥವಾ ರತ್ನಗಳು ಇವುಗಳನ್ನು ಬಿಟ್ಟು ಇತರ ಖನಿಜಗಳನ್ನು ಎಂದರೆ, ಮುರಡು, ಕಲ್ಲು, ಸುಣ್ಣು ಕಲ್ಲು ಮತ್ತು ಇತರ ಸಾಧಾರಣ ಖನಿಜಗಳು ಇವುಗಳನ್ನು ವ್ಯಾಪಾರಕ್ಕಾಗಿ ತೆಗೆದುಕೊಳ್ಳದೆ ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಎಂಬವರು, ಅವರ ವಾರಸುದಾರರ ಅಥವಾ

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ಅವರ ಪ್ರತಿನಿಧಿಗಳ ವಾಸ್ತವವಾದ ಸ್ವಂತ ಉಪಯೋಗಕ್ಕಾಗಿ ಉಚಿತವಾಗಿ ತೆಗೆದುಕೊಳ್ಳಲು ಅವರಿಗೆ ಅವಕಾಶವಿರತಕ್ಕದ್ದು.

6. ಪರಂತು, ಸದರಿ ಜಮೀನಿನಲ್ಲಿರುವ ಗಂಧದ ಮರಗಳು ಮೈಸೂರು ಸರ್ಕಾರಕ್ಕೆ ಸೇರಿದವುಗಳಾಗಿವೆ. ಅವುಗಳಿಗಾಗಿ ಬೋನಸ್ಸು ಮೊಬಲಗನ್ನು ಕೊಡುವ ವಿಚಾರದಲ್ಲಿ ಹಾಲಿ ಇರುವ ಅಥವಾ ವಿರ್ಪಡಿಸಲ್ಪಡುವ ನಿಬಂಧನೆಗಳಿಂದ ಅವಕಾಶ ವಿರುವಷ್ಟರ ಮಟ್ಟಿಗೆ ಹೊರತು, ಸದರಿ ಗಂಧದ ಮರಗಳ ಮೇಲೆ ಸದರಿ ಸೇರ್ ವೇಗಾರ್ ಲಕ್ಷ್ಮಿಬಾಯಿ ಖಂಬುವವರಿಗೆ ಅಥವಾ ಅವರ ವಾರಸುದಾರರಿಗೆ, ಪ್ರತಿನಿಧಿಗಳಿಗೆ ಅಥವಾ ಹವಾಲ್ತದಾರರಿಗೆ ಈ ಮಾಲೀಕತೆಯ ಪತ್ರದಿಂದ ಯಾವ ಹಕ್ಕು ಉಂಟಾಗದಂತೆಯೂ ಅಥವಾ ಇರುವಂತೆಯೂ ಭಾವಿಸಲ್ಪಡತಕ್ಕದ್ದಲ್ಲ.

7. ಪರಂತು, ಲ್ಯಾಂಡ್ ರೆವಿನ್ಯೂ ಕೋಡನ ಮತ್ತು ಸದರಿ ಕೋಡಿನ ಮೇರೆಗೆ ವಿರ್ಪಟ್ಟಿರುವ ನಿಬಂಧನೆಗಳ ಅಥವಾ ತತ್ಕಾಲದಲ್ಲಿ ಜಾರಿಯಲ್ಲಿರಬಹುದಾದ, ಇತರ ಕಾನೂನಿನ ನಿಯಮಗಳಿಗೆ ಸಾಮಾನ್ಯವಾಗಿ ಒಳಪಟ್ಟು ಸಹ ಈ ಜಮೀನಿನ ಅನುಭವವನ್ನು ಕೊಡಲಾಗಿದೆ.

8. ಸದರಿ ಜಮೀನನ್ನು 15 ವರ್ಷಗಳ ಕಾಲ ಪರಭಾರೆ ಮಾಡಕೂಡದು.

9. ಜಮೀನು ಅಬಾದಿಗೆ ನಾಲಾಯಕ್ಕಾಗಿ ಮಾಡಬಾರದು.

10. ಸದರಿ ಜಮೀನು ಅಳತೆ ಕಾಲದಲ್ಲಿ ಬದಲಾವಣೆಗೆ ಅನುಗುಣವಾಗಿರುತ್ತೆ.

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ಜಮೀನಿನ ವಿವರ

ದಿವ್ಯಾಂಶ	ತಾಲ್ಲೂಕು	ಗ್ರಾಮ	ಹೆಸರು (ಯಾವುದೇ ದಾಖಲೆ ಇದ್ದರೆ)	ಚಕ್ಕುಬಂದಿ	ಸರ್ವೆ ಸಂಖ್ಯೆ	ವಿಸ್ತೀರ್ಣ ಎಕರೆ ಗುಂಟೆ	ಆಕಾರ ರೂ. ಗುಂಟೆ
ಮೈಸೂರು	ಮೈಸೂರು	ದಟ್ಟಗಲ್ಲಿ		ರವಿಶ್ಯಾ ಸೆಕ್ಟ್	ಜುಮ್ಮಾ 82 ಪೈಕಿ ಹೋಟ್ ಎರಾಬು... 52 ಉಷ್ಟಿ ಕರಿ..... 61 ಬಾಗಾಯಿತ್ತು.....	10-00 1-34 1-35 13-29	10-0-0 1-8-0 1-8-0 13-0-0

ಹೋಟ್ ಎರಾಬನ್ನು ಬಿಟ್ಟಿರುವ ಉದ್ದೇಶವನ್ನು ಇಲ್ಲಿ ಸ್ಪಷ್ಟವಾಗಿ ನಮೂದಿಸಬೇಕು.

1958 ನೆಯ ಇಸವಿ 3 ತಿಂಗಳ 31 ನೆಯ ತಾರೀಖಾದ ಈ ದಿನ ಕೊಡಲ್ಪಟ್ಟಿದೆ

ಸಹಿ/-
ತಹಸೀಲ್ದಾರ್
ಮೈಸೂರು ತಾಲ್ಲೂಕು

ಸಹಿ/-
ಅಮಲ್ದಾರ್
ಮೈಸೂರು

ಮಾ.

Translated copy of Annexure-B

Form-1

Grant Certificate- Land Revenue Annexure E

Whereas, under the rules for the disposal of unoccupied Government land for cultivation and the grant of occupancy rights, the land specified in the Schedule hereunder written has been sold, and Servegar laxmabhovi has purchased it in public auction or for upset price and the sale has been duly confirmed, and Servegar laxmabhovi declared the purchaser thereof, and whereas the said Servegar laxmabhovi has paid into the Government Treasury the full sum of the purchase-money amounting to Rs.40,8.6

Now I Sri L.Kallaiah the

Amildar Mysuru Taluk

Assistant Commissioner

Deputy Commissioner

The said Servegar laxmabhovi to enter into occupation of the said land and hereby grant and confirm subject to cancellation or modification in appeal or revision under the provisions of the Land Revenue Code, the said land to the said Servegar laxmabhovi, his heirs, personal representatives and assigns under the terms of the Survey Guarantee Rule and subject to the provisions hereinafter mentioned and subject also to the regular payment of the land revenue assessment on the land as fixed under the rules in force for the time being until the same is revised in accordance with the law for the time being in force:

(1) Provided that this assessment shall be paid for each revenue year as per rules prescribed in this behalf from time to time under the provisions of the Land Revenue Code, failing which it will be recoverable by coercive process in the manner prescribed by the Land Revenue Code and Rules thereunder.

(2) Provided also that this title-deed in no way affects the liability of the above said land to such rates, taxes and cesses other than land revenue as are or



as may be imposed by law, whether for general, municipal or other local purposes.

(3) Provided also that the said Servegar laxmabhovi. or other lawful owner of the said land shall at all times hereafter at his own expense maintain, in good order, the restored major and minor tanks of the village with respect to which the customary obligation to maintain is imposed on the said A.B. by virtue of his being the occupant or other lawful owner of the said survey number and shall put up, repair and maintain in good order the boundary marks around and in the said land, failing which it shall be lawful for His Highness the Maharaja's Government after due notice to cause the maintenance work of the said tank in so far as his liability in this behalf extends and the repair of the said boundary marks to be carried out, and to recover the cost of such maintenance work and such repair as a revenue demand from the said Servegar laxmabhovi. or other lawful owner.

(4) Provided also that nothing in the title-deed contained shall affect the existing or customary rights of Government or of proprietors of lands adjoining or lying near the said land or of the villagers in common in all existing roads and paths and in streams of water running through or bounding the said land.

(5) Provided also that this title-deed shall in no way be considered to grant to or in any way vest in the said Servegar laxmabhovi, his heirs, personal representatives or assigns any right, title or interest in or to precious stones, gold and other minerals or coal or stone or rock containing or supposed to contain precious stones, gold or other minerals or coal known to exist or which may at any time hereafter be discovered on or under the said land or any part thereof all of which are hereby respectively reserved to the Government of His Highness the Maharaja of Mysore subject to the conditions now in force or which may be prescribed in this behalf from time to time, subject to the conditions that the said Servegar laxmabhovi, his heirs, personal representatives or assigns shall always be allowed to use free of charge any limestone, granite and ordinary minerals other than metals or coal or precious stones which may be found on or under the said



land and which may be applied to the bona fide private use of the said Servegar laxmabhovi, his heirs, personal representatives or assigns and not removed for purposes of sale.

(6) Provided also that this title-deed shall not be considered in any way to grant to or vest in the said Servegar laxmabhovi, his heirs, personal representatives or assigns the right to sandal trees which are hereby reserved to the Government of His Highness the Maharaja of Mysore, except in so far as the rules that are or may be framed in the matter of the grant of bonuses for such trees may permit.

(7) Provided also that the grant shall be subject further generally to the provisions of the Land Revenue Code and the rules thereunder or any other law for the time being in force.

8) The said land should not be alienated for 15 years.

9) Land should not be made as unsuitable for cultivation.

10) The land measurement is subject to change over time.

Specification of the Land

District	Taluk	Village	Name, if any	Boundaries	Survey No.	Extent	Assessment RS. paise
Mysuru	Mysuru	Dattagalli	-	Revenue sketch	Total 62 pYki Phut Kharab. 52 Dry..... Wet..... 61 Garden.....	10-00 1-34 1-35 13-29	10-0-0 1-8-0 1-8-0 13-0-0

The purpose for which Phut Kharab is allowed to be specifically mentioned here.

Dated this 31ST. day of March 1958.

signed/-
Amildar.
Mysuru.



(C.C.)

Name: <u> </u> Roll: <u> </u>	Date: <u> </u> Page: <u> </u>
--	--

இதன் மூலம், எந்த

177

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சென்னை

1	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
2	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
3	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
4	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
5	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
6	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
7	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
8	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
9	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
10	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
11	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1
12	ಪ್ರಾ. ಶಿಕ್ಷಣ ಇಲಾಖೆ, ಸರ್ಕಾರಿ	1

12. *Trichostema*

13 4-20-2005 Wednesday 4:30 PM, L1410 2:15

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$$25 \overline{) 515} \begin{array}{r} 20 \\ 50 \\ \hline 15 \\ 15 \\ \hline 0 \end{array}$$

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5000

Costs are

9/1-16

Typed copy of Annexure-C

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Translated copy of Annexure-C
Record of Tenancy and crops (RTC) Form. No.16
Taluk:Mysore
Hobli: Kasaba
Village: DATTAGALLI
Page No. (177)

1. Sy. No	3 Khetuvaru	Acres guntas	4. Revenue	Rs. P.	Ownership and Owners Name and Address	10. type of ownership	11. Other Rights and Debts
82 pal	Total Extent Kharab (A) Kharab (B) remains	A B C	(a) Land revenue (b) pair (k) cess (d) water bill	0.00 0.00 0.00 0.00	Servuegar Iaxmaboyi LN Govinda swamy Bin Ramaboyi Khata No.	MR 20/53-54 IHR.4/83-84.	
2. Hissa *							
5. soil pattern	7. Numbers of trees 8. Irrigation Extent						
Red	Name	No	SI	source of water	total		
Govt							
6. Patta							
Govt							

12. Details of cultivation and tenancy										
Year and season	Name and address of the cultivator	system of cultivation	Details of tenancy			Use of Land	13. Use of Land and Crop Profile			
1	2	3	Extent	Lease	category	8	9	10	11	12
			ac.	gu				non cross	cross	total
			4	5	6	7		10	11	12
86-87										

copy
signed/-
Thasildar
Mysuru taluk.

[Signature]

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2)

TITLE SHEET FOR JUDGEMENTS IN SUITS

Page 11, 2 (Line 1)
 Tick 23
 Ledger 4 in Sales
 (R. 12 94)

IN THE COURT OF THE ¹~~1~~ CIVIL JUDGE (JR. DN.) & JMC.,

A)

MESOPH

Present, Smt. M. Shobba, BSc LLB.,
(Name of the Presiding Judge)

2) L. S. Gunda Swamy, 35 years 3) Jeyaraj
Residing at Nachanaballi Palay,

Abstract

TREATMENT

Blunder Gri : A.E. Notaraj

By Pleader Sri

 $V_{S, \text{eff}} = 1.5 \text{ V}$

1) State of Karnataka, represented by its Chief Secretary, Government of Karnataka, Vidhana Veechi, Vidhana Soudha, Bangalore;
2) The Asst. Commissioner, Mysore Sub-Division, Mysore;
3) MIRA, JLB Road, Represented by its Commissioner.

By Reader Sci D1 and D2 : Appl

Date of completion of the Suit

5.2.56

¹ *United States v. Egan*, 197 F.2d 101, 104 (2d Cir. 1955).

Declaration

Time of the commencement of recording of the evidence.

19. 3.2.2000

date on which the judgement was pronounced

30.7.2007

7. Conclusions

Year 7

Month/s

2003/04

(M. B. HODGE)

II CIVIL JUDGE (J.R.DV.) & JUDGE.

10- The names and descriptions of all the plaintiffs and defendants as stated in the complaint should be mentioned

WD 2126-GBPT-1009 Page of 101 this each—Nov 11/13
This certified copy consists of.....13.....
sheets and Court feeworth Rs. 24.....
Deposited St No 3670 2126-GBPT-1009
Rs. 24/11/13.....by 187.....DBS-2 of 2

Examiner.
11 Civil Judge & Mag. Court
Mysore

2009

(26)

O.S. NO. 96/97

JUDGEMENT

94

Plaintiff filed the suit against the defendant for declaration that the plaintiffs are the absolute owners of the suit schedule property and for other declaration that the plaintiffs are entitled to receive the compensation amount from the 3rd defendant payable in respect of the suit schedule property and for Permanent Injunction and also for costs and other reliefs.

2. It is the case of the plaintiff that one Sarvegar Laxmaboyi is the grand father of the plaintiffs and Ramaboyi is the father of the plaintiff. The plaintiffs No. 2 and 3 are the brothers of the first plaintiff. Originally the suit schedule property granted in favour of the grand father of the plaintiffs the late Sarvegar Laxmaboyi vide grant bearing No. DCD 42/53-54 dated 21.3.1950. In pursuance of the above said grant late Laxmaboyi also got in possession of the same and he enjoyed the suit schedule property till his death. The late Sarvegar Laxmaboyi had only one son namely Ramaboyi. And he died in the year 1981 leaving

20/9/97

(27)

being the plaintiffs as the sole surviving legal representatives to represent his person as well as estate in law.

3. After the death of their grandfather late Sarvegar Ramaboyi the suit schedule properties came to the ownership, possession and enjoyment of the plaintiff's father Ramaboyi by virtue of inheritance. The late Ramaboyi also passed away, of course, intestate and as such after his death the plaintiffs became the absolute owners of the suit schedule properties by inheritance.

4. During the life time of their father Ramaboyi, the schedule properties were jointly enjoyed and possessed and managed by the plaintiffs as well as their father. After the death of their father the properties remained in possession of the plaintiffs. The plaintiffs during the year 1982-83 raised ragi and jowar crops in 37.48.82.

5. The 3rd defendant, namely The City Improvement Trust Board has acquired the schedule properties and for the purposes of converting



Handwritten signature

(28)

O.S. NO. 36/77

-3-

the same to residential sites. No notice of acquisition nor compensation has ever been issued or paid to the plaintiffs. In Sy. No. 82 the 3rd defendant has dug a borewell whereas the other 250 aas. described in the schedule below have been converted into layouts. The plaintiffs are highly aggrieved of all these misdeeds. When the plaintiffs approached the 3rd defendant with the title deeds to establish their ownership rights in respect of the lands acquired and in particular the schedule properties the second defendant started interfering with the payment of compensation with the plaintiffs by the 3rd defendant. A notice styled as a notice of showcause bearing NO. LMD 262/84-85 dated 01/11/84 was issued in the name of the late Sarvegar Laxmaboyi and which was received by the plaintiffs. In the said notice the second defendant directed the late Sarvegar Laxmaboyi to appear on 31.10.1986 at 11 a.m. in his office for production of all the original title deeds in respect of the schedule properties. It was also stated in the said notice that the name of the late Sarvegar Laxmaboyi was entered in the revenue records illegally. Therefore, the clarification



(29)

was sought. The second plaintiff however, appeared before the second defendant gave a statement of 31.10.86 and also gave xerox copies of the title deeds. Thereafter no order has been passed by the second defendant nor the second defendant has given any clearance to the third defendant for payment of compensation. It is a deliberate act of delay in order to deprive the plaintiffs of their legitimate claims in respect of the schedule property and the compensation payable to them for acquiring the same by the 3rd defendant.

5. The issue of notice by the second defendant and with holding of the payment of compensation by the 3rd defendant are acts which amount to depriving the owners and the proprietary rights of the plaintiffs in respect of the schedule properties. Therefore the plaintiffs got issued a legal notice to all the 3 defendants on 13.8.87 as required under the statute informing them of all these facts and asking appraising the defendants of the cause of action the plaintiffs are to approach this Court and also the reliefs sought against. All the defendants



Long

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O.S. NO. 36/87

-5-

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have received the notice as per (postal acknowledgment. When the plaintiffs were awaiting reply from the defendants for their notice, the second defendant issued another notice dated 8.10.87 and has directed him to appear before him on 19.10.87. The plaintiffs have already issued notice under section 80 CPC and are instituting this suit for proper reliefs. The second defendant has no jurisdiction to issue the above said notice. It was not open for the second defendant to have caused the issuance of the impugned notice after recording the statement of the second plaintiff. Therefore, the plaintiffs filed the suit.

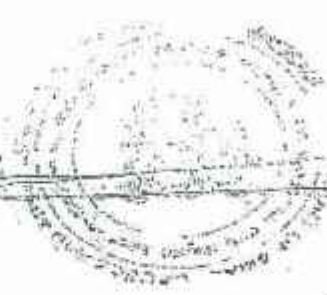
7. After filing of the suit, suit summons was issued to the defendant. The defendant appeared before this Court and filed their written statement.

8. In the written statement the defendants have stated that the suit as brought by the plaintiff is not maintainable either under law or on facts. The defendants have denied all the allegations made in the plaint.

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[Signature]

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3. It is the specific case of the defendant that the suit schedule lands are belonged to the Government. After perusal of the revenue records pertaining to the suit schedule properties these defendants came to know that the alleged grant is illegal. Hence the second defendant has cancelled the said alleged grant. According to the rules, the Government cannot grant the land to the landless persons with 5 acre only, but not more than 5 acres. Hence at any time the Government never granted the 13 acres of land in favour of the late Sarvagat Jambharkar. The suit schedule property belong to these defendants. The plaintiffs are not entitled to any compensation amount as they do not own the owners of the suit schedule properties. The HRC was changed in the name of the Government as the name of Sarvagat Jambharkar was entered in the HRC was illegal. The second defendant has not authority to issue notice to the plaintiff. Hence the second defendant has jurisdiction to issue the notice to the plaintiff. There is no cause of action for the suit and the cause of action mentioned in the plaint is incorrect. The suit is not properly valued. Therefore,

(21)

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the defendant prays for dismissal of the suit.

10. On the basis of the above pleadings, this Court has framed the following :

: ISSUES ::

- 1) Whether the plaintiff proves that he is the absolute owner of the suit schedule property ?
- 2) Whether the plaintiff proves that he is entitled to receive compensation from the 3rd defendant ?
- 3) Whether the plaintiff proves the alleged interference of the defendants ?
- 4) Whether the plaintiff is entitled for the suit claim ?
- 5) What order and decree ?

11. In order to prove his case, the second plaintiff was examined as PW1 and produced the documents Ex.P1 to Ex.P19. The Talsildar was examined as DW1 on behalf of the defendants and got marked the documents Rx.D1.

12. Heard the arguments.

13. My findings to the above said Issues are as following :

[Signature]

Issue No.1 : In the affirmative.

Issue No.2 : In the affirmative.

Issue No.3 : In the affirmative.

Issue No.4 : In the affirmative.

Issue No.5 : As per the orders
for the following :

:: REASONS ::

14. Issue No.1 to 4

It is the case of the plaintiff that one Servagar Laxmaboyi is the grand father of the plaintiffs and late Ramaboyi is the father of the plaintiffs. The suit schedule property granted in favour of their grandfather Servagar Laxmaboyi vide grant bearing No.DCD 49/53-54 dated 31.3.1954. The plaintiff's grand father late Servagar Laxmaboyi was put in possession of the same and he was in possession and enjoyment of the suit schedule property till his death. The plaintiff's grandfather late Servagar Laxmaboyi had only one son namely Ramaboyi. and he died in the year 1981 leaving behind the plaintiffs as the sole surviving legal representatives to represent his person as well as estate in law.

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O.S. NO. 26/77

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15. After the death of their grandfather late Servagar Iammaboyi the suit schedule property came into the ownership, possession and enjoyment of their father late Ramaboyi by virtue of inheritance. After the death of their father late Ramaboyi the plaintiffs became the absolute owners of the suit schedule property by inheritance.

16. The 3rd defendant namely The Mysore Urban Development Authority acquired the suit schedule property for the purpose of converting the same into residential sites. No notice of acquisition nor compensation has ever been issued to the plaintiffs. The 3rd defendant has dug a borewell in Sy.No.82. The suit schedule property has been converted into layouts. The plaintiffs are highly aggrieved of all these misdeeds. When the plaintiffs approached the 3rd defendant with the title deeds to establish their ownership rights in respect of the lands acquired and in particular the schedule properties the second defendant started interfering with the payment of compensation with the plaintiffs by the 3rd defendant. A notice styled as a notice of showcause bearing No.LND 262/84-85 dated 11/1/85 was issued in the name of the late Servagar

[Signature]

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Laxmaboyi and which was received by the plaintiffs. In the said notice the second defendant directed late Sarvegar Laxmaboyi to appear on 31.10.86 at 11 a.m. in his office for production of all the original title deeds in respect of the schedule properties. It was also stated in the said notice that the name of late Sarvegar Laxmaboyi was entered in to the revenue records illegally. Therefore the clarification was sought. The second plaintiff however appeared before the second defendant gave a statement on 31.10.86. Thereafter KRM no order has been passed by the second defendant nor the second defendant has given any clearance to to the third defendant for payment of compensation. It is a deliberate act of delay in order to deprive the plaintiffs of their legitimate claims in respect of the schedule property and the compensation payable to them for acquiring the same by the 3rd defendant.

The issue of notice by the second defendant and with holding of the payment of compensation by the 3rd defendant are acts which amount to disputing the ownership and the proprietary rights of the plaintiffs in respect of the suit schedule properties. Therefore, the plaintiffs got issued a legal notice all the 3 defendants on 13.8.87 as required



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under the statute informing them of all these facts and also appraising the defendants of the cause of action the plaintiffs have to approach this Court and also the reliefs to be sought against.

17. When the plaintiffs were waiting reply from the defendants for their notice, the second defendant issued another notice dated 8.10.87 and has directed him to appear before him on 17.10.87. The plaintiffs have already issued notice under section 80 CPC and are prosecuting this suit for proper reliefs. The second defendant has no jurisdiction to issue the above said notice. It was not open for the second defendant to have caused the issuance of the impugned notice after recording the statement of the second plaintiff.

18. On the other hand ~~it is the case of the~~ defendant that the case of the defendant is one of the total denial. It is the specific case of the defendant that the suit schedule property belongs to the government. After perusing the revenue records pertaining to the schedule properties, these defendants came to know that the alleged grant is illegal. Hence the second defendant

[Signature]

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has cancelled the alleged grant. According to the rules the government grant the land to the landless persons with in 5 acres only. But not more than 5 acres. Hence XXX at any time the government never granted 13 acres 27 guntas in favour of the Sanyagar Laxmaboyi. There is no cause of action for the suit. The cause of action mentioned in the plaint is concocted. The entries made in the RGC are changed in the name of the Sanyagar Laxmaboyi was entered in the RGC was illegal.

19. On the basis of the above pleadings both the parties have adduced the evidence. The second plaintiff was examined as PW1 and he has stated before this court that the suit schedule property was granted in favour of his grandfather in the year 1953-54 and his grandfather was in possession and enjoyment of the suit schedule property till his death. His father Bannaboyi was the only son to his grandfather and he was in possession and enjoyment of the suit schedule property till his death. The plaintiffs became the owners of the suit schedule property after the death of their father. The 3rd defendant acquired the suit schedule property and they have



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formed the layout. The 3rd defendant has not given any compensation for having acquired the suit schedule properties. The second defendant is interfering with their right to receive the compensation from the 3rd defendant in respect of the suit schedule property. In support of his contention PW1 has produced Ex.P1 to Ex.P19. Ex.P11 is the copy of the grant certificate. Ex.P2 is the genealogical tree. Ex.P3, Ex.P4 and Ex.P14 to Ex.P16 are the HTC extracts and Ex.P17 and Ex.P18 are the Index of land and Records of Right in respect of the suit schedule property. Ex.P12 is the copy of the Interior order passed in Writ Petition No.1597/92. PW1 has also produced the notice issued by the second defendant as per Ex.P5 and Ex.P6.

20. In support of their contention, the Tahsildar was examined as DW1. DW1 has also clearly stated before this Court that the suit schedule properties belong to the government. The documents produced by the plaintiffs are all created documents and they have not issued these documents from their office. DW1 has clearly

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admitted in his cross-examination that they have not yet cancelled the grant Ex.P11. The grant certificate Ex.P11 was issued in favour of the plaintiff's grandfather Sarvegar Jaymaboy in the year 1953-54. DW1 further stated before this Court that they have issued notice to the plaintiffs in respect of Ex.P11. The plaintiffs have also produced Ex.P10, the order passed by the Tahsildar, Mysore Taluk on 22.12.1973. The Tahsildar has converted the land in Sy. No. 32 measuring 10 acres for residential purpose, subject to the conditions imposed in the order.

21. The plaintiffs are claiming their right over the suit schedule property under the virtue of Ex.P11. It is the specific case of the defendant that the suit schedule property belongs to the government and it was not granted in favour of the plaintiff's grandfather and they have no right, title or interest over the suit schedule property. DW1 has also clearly stated before this Court that they have not cancelled the grant certificate Ex.P11. DW1 also further stated before this Court that the granting authority has got power to cancel the grant made in



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favour of any party. The defendant has not yet cancelled the Ex.P11. As per Ex.P11 the suit schedule property was granted in favour of the grandfather of the plaintiffs. The defendant also alleged that the documents produced by the plaintiffs are all bogus documents. But till today, they have not yet cancelled the revenue records in respect of the suit schedule properties produced by the plaintiffs as per Ex.P11 and the entries in the PTC extracts. The evidence of PW1 and Ex.P11 and Ex.P19 discloses that the suit schedule property granted in favour of the grandfather of the plaintiffs. Therefore, the plaintiffs are the absolute owners of the suit schedule property since the government has not yet cancelled the grant and the grant certificate ^{issued} in favour of the plaintiff's grandfather. Therefore, the plaintiffs are entitled to receive the compensation amount in respect of the suit schedule properties from the 3rd defendant. The 3rd defendant has no right to interfere with the plaintiff's right to ^{receive} the compensation amount from the 3rd defendant. Hence I answer Issue No.1 to 4 in the affirmative.

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22. In view of my aforesaid discussions,
I proceed to pass the following :

:: ORDER ::

The suit of the plaintiff is decreed
with cost, declaring that the plaintiffs
are the absolute owners of the suit schedule
properties. The plaintiffs are entitled to
receive the compensation amount from the 3rd
defendant payable in respect of the suit sche-
dule properties. The second defendant is per-
manently restrained from interfering with the
plaintiff's right to receive the compensation
amount in respect of the suit schedule proper-
ties from the 3rd defendant.

(Dictated to the Stenographer, transcribed by
by her, revised and corrected by me and then
pronounced in the Open Court on the 30th day
of July, 2001).



II CIVIL JUDGE

(M. S. JUDGE)

(J. M. P. C.) & J. M. P. C.

MYSORE.



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O.S.NO. 26/97

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List of documents & witnesses : Plaintiff :

PW1 : Govindaswamy

Documents :

- Ex.P1 : R/C
- Ex.P2 : Genealogical Tree
- Ex.P3, 4 and Ex.P14 to 16 : R/C
- Ex.P5 & 6 : Notice
- Ex.P7 : Copy of notice
- Ex.P8 to 10 : Acknowledgement
- Ex.P11 : Grant Certificate
- Ex.P12 : Writ Petition 15974/92
- Ex.P13 : Allegation Certificate
- Ex.P17 : Index of land
- Ex.P18 : Records of Right
- Ex.P19 : Karmayam Receipt

1. Copy of R/C 24-1-11
2. Copy of Genealogical Tree 24-1-11
3. Copy of R/C 24-1-11
4. Copy of R/C 24-1-11
5. Copy of R/C 24-1-11
6. Copy of R/C 24-1-11
7. Copy of R/C 24-1-11
8. Copy of R/C 24-1-11
9. Copy of R/C 24-1-11
10. Copy of R/C 24-1-11
11. Copy of R/C 24-1-11
12. Copy of R/C 24-1-11
13. Copy of R/C 24-1-11
14. Copy of R/C 24-1-11
15. Copy of R/C 24-1-11
16. Copy of R/C 24-1-11
17. Copy of R/C 24-1-11
18. Copy of R/C 24-1-11
19. Copy of R/C 24-1-11
20. Copy of R/C 24-1-11

List of witnesses and documents : Defendant

DW1 : Ramachandirajah

Ex.D1 : Letter.

Copy of the original document is being submitted for the purpose of the case.

II CIVIL

1) Copy of the original document is being submitted for the purpose of the case. 26.08.11
2) Copy of the original document is being submitted for the purpose of the case. 26.08.11
3) Copy of the original document is being submitted for the purpose of the case. 26.08.11
4) Copy of the original document is being submitted for the purpose of the case. 26.08.11
5) Copy of the original document is being submitted for the purpose of the case. 26.08.11
6) Copy of the original document is being submitted for the purpose of the case. 26.08.11
7) Copy of the original document is being submitted for the purpose of the case. 26.08.11
8) Copy of the original document is being submitted for the purpose of the case. 26.08.11
9) Copy of the original document is being submitted for the purpose of the case. 26.08.11
10) Copy of the original document is being submitted for the purpose of the case. 26.08.11
11) Copy of the original document is being submitted for the purpose of the case. 26.08.11
12) Copy of the original document is being submitted for the purpose of the case. 26.08.11
13) Copy of the original document is being submitted for the purpose of the case. 26.08.11
14) Copy of the original document is being submitted for the purpose of the case. 26.08.11
15) Copy of the original document is being submitted for the purpose of the case. 26.08.11
16) Copy of the original document is being submitted for the purpose of the case. 26.08.11
17) Copy of the original document is being submitted for the purpose of the case. 26.08.11
18) Copy of the original document is being submitted for the purpose of the case. 26.08.11
19) Copy of the original document is being submitted for the purpose of the case. 26.08.11
20) Copy of the original document is being submitted for the purpose of the case. 26.08.11

Certified that this is a true and secured copy of the original. All the matters appearing in original have been faithfully copied without any modification.

Examiner
II Civil Judge & JMFC Court
Mysore

2008

(213)

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DECREE FOR DECLARATION AND PERMANENT INJUNCTION.

IN THE COURT OF THE II CIVIL JUDGE (JR.DN.) & JMFC., MYSOR

O.S.No. 96/97

CR 54

Plaintiffs : 1. Sri Puttaswamy, S/o late Ramaboyi,
aged about 45 years.

2. Sri L.N.Govindaswamy, S/o late Ramaboyi, aged about 36 years.

3. Sri Jayaswamy, S/o late Ramaboyi, aged about 30 years.

Pri. Judge
Court of Small Causes
Mysore

Plaintiffs 1 to 3 are residents of Nachanahally Palya, Mysore city.

-Vs-

Defendants: 1. State of Karnataka, represented by its Chief Secretary, Government of Karnataka, Vidhana Veedhi, Vidhana Soudha, Bangalore.

2. The Assistant Commissioner, Mysore Sub-Division, Mysore.

3. Mysore Urban Development Authority, J.L.B. Road, Mysore - represented by its Commissioner.

Suit filed on 4-2-96

Suit Claim: Suit for declaration that the plaintiffs are the absolute owners of the suit schedule properties, for another declaration that the plaintiffs are entitled to receive compensation amount from the 3rd defendant payable in respect of the suit schedule properties, and for a permanent injunction restraining the second defendant from interfering with the plaintiff's right to receive compensation in respect of the suit schedule properties from the defendant and for costs, and such other reliefs.

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This suit coming on this 30th day of July, 2001, for final disposal before Smt. M. Shobha, B.Sc., LL.B., II Civil Judge (Jr. Dn.) & JMFC., Mysore, in the presence of Sri A.S. Narasaj, Advocate for plaintiffs and of Sri M. Maraiiah, Govt. Pleader for D-1 and D-2 and Sri K.S. Nagaraju, Advocate for D-3.

By pronouncing judgment after contest, it is ordered and decreed that the suit filed by the plaintiffs against the defendants is hereby decreed with cost, declaring that the plaintiffs are the absolute owners of the suit schedule properties. The plaintiffs are entitled to receive the compensation amount from the 1st defendant payable in respect of the suit schedule properties. The 2nd defendant is presently restrained from interfering with the plaintiffs' right to receive the compensation amount in respect of the suit schedule properties from the 1st defendant.

Further it is ordered and decreed that the defendants shall pay the cost ~~arising~~ incurred in this suit a sum of Rs. 13/- to the plaintiffs.

Given under my hand and the seal of the Court, this 30th July 2001.

M. Shobha 1/8
(M. Shobha)

II Civil Judge (Jr. Dn.) &
JMFC., Mysore.

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O.S. 95/97

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Memorandum of costs incurred in this suit.

By the
plaintiffs Defendants.

Court fee on plaint:	100-00	-
-do- Application:	6-00	-
-do- Vakalat:	1-00	1-00
Process fee	24-00	-
Advocate's fee	Is not paid	

Total Rs.

131-00 1-00

SCHEDULE

II C.J. (Jr. Dn.) & JMFC., Mysore

1. Dry land bearing Sy.No. 82, extent 10 acres.
2. Dry land bearing Sy.No. 52, extent 1.34 acres
3. Dry land bearing Sy.No. 61, extent 1.35 acres.

Item No.1 to 3 are situated in Dattagally Grama,
Mysore Taluk, Mysore.

II Civil Judge (Jr. Dn.) & JMFC.,
Mysore

Certified that this is a true and correct
copy of the original. All the matters ap-
pearing in original have been faithfully
copied without any modification.

Examiner
II Civil Judge & JMFC Court
Mysore

CERTIFICATE

That this is a true and correct
copy of the original. All the matters ap-
pearing in original have been faithfully
copied without any modification.

Examiner
II Civil Judge & JMFC Court
Mysore

1. Copy applied for on...	24.1.17
2. Copying charges required to be produced on...	
3. Copying charges produced on...	24.1.17
4. Application required to appear on...	5.1.17
5. Application produced on...	25.1.17
6. Copy ready on...	24.1.17
7. Copy delivered on...	25.1.17
8. Copied by...	
9. Examined by...	

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1) Copy Applied for 26.08.14
2) Copying 26.08.14
3) Copying 26.08.14
4) Application 09.10.14
5) Application 20.09.14
6) Copy sent 20.09.14
7) Copy delivered 20.09.14
8) Copied by ex
9) Examined by L

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TITLE SHEET FOR JUDGMENTS IN SUITS
IN THE COURT OF THE II CIVIL JUDGE (JR.DN) & JMFC MYSORE

(Present: Smt.M.Shobha BSc., LL.B.,

(Name of the presiding Judge)

O.S.No.96/97

1) Sri.Puttaswamy, 45 years 2) Sri.L.N.Govindaswamy 35 years
3) Sri.Jayaswamy 30 years, all S/o Late Ramaboyi at Nachanahally
Palya, Mysore City.

Plaintiff

Pleader Sri.A.S.Nataraj

Plaintiffs

(By Pleader Sri.....)

-Vs-

1. State of Karnataka, represented by its Chief Secretary,
Government of Karnataka, Vidhana Veedhi, Vidhana Soudha,
Bangalore.
2. The Assistant Commissioner, Mysore Sub-Division, Mysore
3. Mysore Urban Development Authority J.L.B Road, Mysore
represented by its Commissioner.

Defendant

Defendants

(By Pleader Sri D1 and D2 : AGP
D3 : KSN

Date of Institution of the suit

6.2.96

Nature of the (Site on pronote, suit for
Declaration and possession suit for
injunction etc.)

Declaration

Date of the commencement of recording
of the evidence

19.9.2000

Date on which the judgment was
Pronounced

30.7.2001

call duration

year/s
5

Month/s
5

Day/s
24

Sd/- 30/7

(M.SHOBHA)

II CIVIL JUDGE (JR.DN) & J.M.F.C
MYSORE,



(43)

JUDGEMENT

Plaintiff filed the suit against the defendant for declaration that the plaintiffs are the absolute owners of the suit schedule properties and for other declaration that the plaintiffs are entitled to receive the compensation amount from the 3rd defendant payable in respect of the suit schedule property and for permanent injunction and also for costs and other reliefs.

2. It is case of the plaintiff that one Servegar Laxmaboyi is the grand father of the plaintiffs and Ramaboyi is the father of the plaintiff. The plaintiff No.2 and 3 are the brothers of the first plaintiff. Originally the suit schedule property granted in favour of the grand father of the plaintiffs the late Servagar Laxmaboyi vide grant bearing No.DCD 49/53-54 dated 31.3.1954. In Pursuance of the above said grant late Laxmaboyi also put in possession of the same and he enjoyed the suit schedule property till his death. The late Servegar Laxmaboyi and only one son namely Ramaboyi and he died in the year 1981 leaving behind the plaintiffs as the sole

[Signature]

(18)

surviving legal representatives to represent his person as well as estate in law.

3. After the death of their grand father late Servegar Laxmaboyi the suit schedule properties came to the ownership, possession and enjoyment of the plaintiff's father Ramaboyi by virtue of inheritance. The late Ramaboyi also passed away, of course, intestate and as such after his death the plaintiffs became the absolute owners of the suit schedule properties by inheritance.

4. During the life time of their father Ramaboyi the schedule properties were jointly enjoyed and possessed and managed by the plaintiffs as well as their father. After the death of their father the property remained in possession of the plaintiff. The plaintiffs during the year 1982-83 raised ragi and jowar crops in Sy.No.82.

5. The 3rd defendant, namely the city Improvement Trust Board has acquired the schedule properties for the purposes of converting the same in to residential sites. No notice of acquisition nor compensation has every been issued or paid to the plaintiffs. In Sy.No.82 the 3rd defendant has

Waf

dug a borewell whereas the other 2 Sy.Nos. described in the schedule below have been converted into layouts. The plaintiffs are highly aggrieved of all these misdeeds. When the plaintiffs approached the 3rd defendant with the title deeds to establish their ownership rights in respect of the lands acquired and in particular the schedule properties the second defendant started interfering with the payment of compensation with the plaintiffs by the 3rd defendant. A notice styled as a notice or show cause bearing No.LND262/84-85 dated nil was issued in the name of the late Servegar Laxmaboyi and which was received by the plaintiffs. In the said notice the second defendant directed the late Servegar Laxmaboyi to appear on 31.10.1986 at 11 a.m in his office for production of all the original title deeds in respect of the schedule properties. It was also stated in the said notice that the name of the late Servegar Laxmaboyi was entered in the revenue records illegally. Therefore, the clarification was sought. The second plaintiff however, appeared before the second defendant gave a statement on 31.10.86 and also gave Xerox copies of the title deeds. Thereafter no order has been passed by the second defendant



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nor the second defendant has given any clearance to the third defendant for payment of compensation. It is a deliberate act of delay in order to deprive the plaintiffs of their legitimate claims in respect of the schedule property and the compensation payable to them for acquiring the same by the 3rd defendant.

6. The issue of notice to the second defendant and with holding of the payment of compensation by the 3rd defendants are acts which amount to disputing the ownership and the proprietary rights of the plaintiffs in respect of the suit schedule properties. Therefore the plaintiffs got issued a legal notice to and the 3rd defendants on 13.8.87 as required under the statute informing them of all these facts and also apprising the defendants of the cause of action the plaintiffs have to approach this court and also the reliefs to be sought against. All the 3rd defendants have received the notice as per the postal acknowledgement. When the plaintiffs have awaiting reply from the defendants for their notice the second defendant issued another notice dated 8.1.87 and has directed him to appear before him on 19.10.87. The plaintiffs have already issued notice under section 80 CPC and are



instituting this court for proper reliefs. The second defendant has no jurisdiction to issue the above said notice. It was not open for the second defendant to have caused the issuance of the impugned notice after recording the statement of the second plaintiffs. Therefore, the plaintiffs filed the suit.

7. After filing of the suit, suit summons was issued to the defendant. The defendant appeared before the court and filed their written statement.

8. In the written statement the defendants have stated that the suit as brought by the plaintiff is not maintainable either under law or on facts. The defendants have denied all the allegations made in the plaint.

9. It is the specific case of the defendants that the suit schedule lands are belonged to the government. After perusal of the revenue records pertaining to the suit schedule properties these defendants came to know that the alleged grant is illegal. Hence the second defendant had cancelled the said alleged grant. According to the rules, the government grant the land to the landless persons with in 5 acre only, but not more than 5 acres. Hence at any time the government



never granted the 13 acres 27 guntas in favour of the late Sarvegar Laxmaboyi. The suit schedule property belong to these defendants. The plaintiffs are not entitled to any compensation amount as they are not the owners of the suit schedule properties. The RTC are changed in the name of the government as the name of Servegaar Laxmaboyi was entered in the RTC was illegal. The second defendant has got authority to issue notice to the plaintiff. Hence, the second defendant have jurisdiction to issue the notice to the plaintiffs. There is no cause of action for the suit and the cause of action mentioned in the plaint is concocted. The suit is not properly valued. Therefore, the defendants prays for dismissal of the suit.

10. On the basis of the above pleadings, this court has framed the following:

:: ISSUES ::

- 1) Whether the plaintiff proves that he is the absolute owner of the suit schedule property?
- 2) Whether the plaintiff proves that he is entitled to receive compensation from the 3rd defendant?



- 3) Whether the plaintiff proves the alleged interference of the defendants?
- 4) Whether the plaintiff is entitled for the suit claim?
- 5) What order and decree?

11. In order to prove his case, the second plaintiff was examined as PW1 and produced the documents Ex.P1 to Ex.P19. The Tahsidlar was examined as DW1 on behalf of the defendants and got marked the documents Ex.D1.

12. Heard the arguments.

13. My findings to the above said issues are as following:

Issue No.1 : In the affirmative.

Issue No.2 : In the affirmative.

Issue No.3 : In the affirmative.

Issue No.4 : In the affirmative.

Issue No.5 : As per the orders for the

following:

14. Issue No.1 to 4



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It is the case of the plaintiff that one Servegar Laxmaboyi is the grand father of the plaintiffs and late Ramaboyi is the father of the plaintiffs. The suit schedule property granted in favour of their grandfather Servegar Laxmaboyi vide grant bearing No.DCD 49/53-54 dated 31.3.1954. The plaintiff's grandfather late Servegar Laxmaboyi was put in possession of the same and he was in possession and enjoyment of the suit schedule property till this death. The plaintiff's grandfather late Servegar Laxmaboyi had only one son namely Ramaboyi. And he died in the year 1981 leaving behind the plaintiffs as the sole surviving legal representatives to represent his person as well as estate in law.

15. After the death of their grandfather late Servegar Laxmaboyi the suit schedule property came to the ownership, possession and enjoyment of their father late Ramaboyi by virtue of inheritance. After the death of their father late Ramaboyi the plaintiffs became the absolute owners of the suit schedule property by inheritance.



16. The 3rd defendant namely the Mysore Urban Development Authority acquired the suit schedule property for the purpose of converting the same in to residential sites. No notice of acquisition nor compensation has even been issued to the Plaintiffs. The 3rd defendant has dug a borewell in Sy.No.82. The suit schedule property has been converted into layouts. The plaintiffs are highly aggrieved of all these misdeeds. When the plaintiffs approached the 3rd defendant with the title deeds to establish their ownership rights in respect of the lands acquired and in particular the schedule properties the second defendant started interfering with the payment of compensation with the plaintiffs by the 3rd defendant. A notice styled as a notice of show cause bearing No.LND 262/84-85 dated nil was issued in the name of the late Servegar Laxmaboyi and which was received by the plaintiffs. In the said notice the second defendant directed late Servegar Laxmaboyi to appear on 31.10.86 at 11 a.m in his office of production of all the original title deeds in respect of the schedule properties. It was also stated in the said notice that the name of late Sarvegar Laxmaboyi was entered in to the revenue records illegally. Therefore, the clarification



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was sought. The second plaintiff however appeared before the second defendant gave a statement on 31.10.86. Thereafter no order has been passed by the second defendant nor the second defendant has given any clearance to the third defendant for payment of compensation. It is a deliberate act of delay in order to deprive the plaintiffs of their legitimate claims in respect of the schedule property and the compensation payable to them for acquiring the same by the 3rd defendant.

The issue of notice by the second defendant and with holding of the payment of compensation by the 3rd defendant are acts which amount to disputing the ownership and the proprietary rights of the plaintiffs in respect of the suit schedule properties. Therefore, the plaintiffs got issued a legal notice to all the 3 defendants on 13.8.87 as required, under the statute informing them of all these facts and also appraising the defendants of the cause of action the plaintiffs have to approach this court and also the reliefs to be sought against.



17. When the plaintiffs were waiting reply from the defendants for their notice, the second defendant issued another notice dated 8.10.87 and has directed him to appear before him on 19.10.87. The plaintiffs have already issued notice under section 80 CPC and are instituting this suit for proper reliefs. The second defendant has no jurisdiction to issue the above said notice. It was not open for the second defendant to have caused the issuance of the impugned notice after recording the statement of the second plaintiff.

18. On the other hand the case of the defendant is one of the total denial. It is the specific case of the defendant that the suit schedule property belongs to the government. After perusing the revenue records pertaining to the schedule properties, these defendants came to know that the alleged grant is illegal. Hence the second defendant has cancelled the alleged grant. According to the rules the government grant the land to the landless persons with in 5 acres only. But not more than 5 acres. Hence at any time the government never granted 13 acres 27 guntas in favour of the Servegar Laxmaboyi. There is no cause of action for the suit. The cause of action mentioned in the plaintiffs concocted. The entries

Signature

made in the RTC are changed in the name of the Servegar Laxmaboyi was entered in the RTC was illegal.

19. On the basis of the above pleadings both the parties have adduced the evidence. The second plaintiff was examined as PW-1 and he has stated before this court that the suit schedule property was granted in favour of his grandfather in the year 1953-54 and his grandfather was in possession and enjoyment of the suit schedule property till his death. His father Ramaboyi was the only son to his grandfather and he was in possession and enjoyment of the suit schedule property till his death. The plaintiffs became the owners of the suit schedule property after the death of their father. The 3rd defendant acquired the suit schedule property and they have formed the layout. The 3rd defendant has not given any compensation for having acquired the suit schedule properties. The second defendant is interfering with their right to receive the compensation from the 3rd defendant in respect of the suit schedule property. In support of his contention Pw1 has produced Ex.P1 to Ex.P.19. Ex.P11 is the genealogical tree. Ex.P3, Ex.P4 and Ex.P14 to Ex.P16 are the RTC extracts and Ex.P17 and Ex.P18 are the Index of land and

[Signature]

Records of Right in respect of the suit schedule property. Ex.P12 is the copy of the interim order passed in writ petition No.1597/292. Pw1 has also produced the notice issued by the second defendant as per Ex.P5 and Ex.P6.

20. In support of their contention, the Tahsildar was examined as Dw.1. Dw1 has also clearly stated before this court that the suit schedule properties belong to the government. The documents produce by the plaintiffs are all created documents and they have not issued/these documents from their office. Dw1 has clearly admitted in his cross-examination that they have not yet cancelled the grant Ex.P11. the grant certificate was issued in favour of plaintiff's grandfather Servegar Laxmaboyi in the year 1953-54. Dw1 further stated before this court that they have issued notice to the plaintiff in respect of Ex.P11. The plaintiffs have also produced Ex.P12, the order passed by the Tahsildar, Mysore Taluk on 27.12.1973. The Tahasildar converted the land in Sy.No.82 measuring 10 acres for residential purpose, subject to the conditions imposed in the order.



21. The plaintiffs are claiming their right over the suit schedule property under the virtue of Ex.P11. It is the specific case of the defendant that the suit schedule property belongs to the government and it was not granted in favour of the plaintiff's grandfather and they have no right, title or interest over the suit schedule property. DW1 has also clearly stated before this Court that they have not cancelled the grant certificate Ex.P1. DW1 also further stated before this court that the granting authority has got to cancel the grant made in favour of any party. The defendant has not yet cancelled the Ex.P11. As per Ex.P:11 the suit schedule property was granted in favour of the grandfather of the plaintiffs. The defendant also alleged that the documents produced by the plaintiffs are all bogus document. But till today, they have not yet cancelled the revenue records in respect of the suit schedule properties produced by the plaintiffs as per Ex.P11 and the entries in the RTC extracts. The evidence of PW1 and Ex.P11 and Ex.P19 disclosed that the suit schedule property granted in favour of the grandfather of the plaintiffs. Therefore, the plaintiffs are the absolute owners of the suit schedule property since the government has not yet cancelled



the grant and the grant certificate issued in favour of the plaintiff's grandfather. Therefore, the plaintiff are entitled to receive the compensation amount in respect of the suit schedule properties from the 3rd defendant. The 3rd defendant has no right to interfere with the plaintiff's right to receive the compensation amount from the 3rd defendant. Hence I answer issue No.1 to 4 in the affirmative.

22. In view of the my aforesaid discussions, I proceed to pass the following:

ORDER

The suit of the plaintiffs is decreed with cost, declaring that the plaintiffs are the absolute owners of the suit schedule properties. The plaintiffs are entitled to receive the compensation amount from the 3rd defendant payable in respect of the suit schedule properties. The second defendant is permanently restrained from interfering with the plaintiff's right to receive the compensation amount in respect of the suit schedule properties from the 3rd defendant.



(Dictated to the Stenographer, transcribed by her, revised and corrected by me and then pronounced in the open court this the 30th day of July, 2001).

Sd/- 30/7
(M.SHOBHA)
II CIVIL JUDGE (JR.DN) & J.M.F.C
MYSORE.

List of documents and witnesses : Plaintiff

PW-1 : Govindswamy

Documents:-

Ex.P1 : RTC

Ex.P2 : Genealogical Tree

Ex.P3 : 4 and Ex.P14 to 16: RTC

Ex.P5 and 6 : Notice

Ex.P7 : Copy of Notice

Ex.P8 to 10 : Acknowledgement

Ex.P11 : Grant Certificate

Ex.P12 : Writ Petition 15974/92

Ex.P15 : Alienation Certificate

Ex.P17 : Index of Land

Ex.P18 : Records of Right

Ex.P19 : Kandayam Receipt

List of witnesses and documents : Defendant

DW1 : Ramachandaiah

Ex.D1: Letter.

Sd/- 30/7
(M.SHOBHA)
II CIVIL JUDGE (JR.DN) & J.M.F.C
MYSORE.



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**DECREE FOR DECLARATION AND PERMANENT
INJUNCTION**

IN THE COURT OF THE II CIVIL JUDGE (JR.DN) & JMFC
MYSORE

O.S.no.96/97

Plaintiff: 1. Sri.Puttaswamy S/o Late Ramaboyi
Aged about 45 years

2. Sri.L.N.Govindaswamy S/o Late Ramaboyi
Aged about 36 years

3. Sri.Jayaswamy S/o Late Ramaboyi
Aged about 30 years

Plaintiffs 1 to 3 are residing of
Nachanahally Palya, Mysore City.

-Vs-

Defendants: 1. State of Karnataka, represented
by its Chief Secretary, Government
of Karnataka, Vidhana Veedhi
Vidhana Soudha, Bangalore.

2. The Assistant Commissioner
Mysore Sub-Division, Mysore

3. Mysore Urban Development Authority
J.L.B Road, Mysore represented
by its Commissioner.

Suffi filed on 6-2-96

Suit Claim:- Suit for declaration that the plaintiffs are the absolute owners of the suit schedule properties, for another declaration that the plaintiffs are entitled to receive compensation amount from the 3rd defendant payable in respect of the suit schedule properties, and for a permanent

[Signature]

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injunction restraining the second defendant from interfering with the plaintiff's right to receive compensation in respect of the suit schedule properties from the defendant and for costs, and such other reliefs.

This suit coming on this 30th day of July, 2001, for final disposal before Smt.M.Shobha B.Sc., LL.B., II Civil Judge (JR.Dn) & JMFC Mysore in the presence of Sri.A.S.Nataraj, Advocate for plaintiffs and of Sri.M.Maraiah, Govt., pleader D-1 and D-2 and Sri.K.S.Nagaraju, Advocate for D-3.

By pronouncing Judgment after contest, it is ordered and decreed that the suit filed by the plaintiffs against the defendants is hereby decreed with costs, declaring that the plaintiffs are the absolute owners of the suit schedule properties. The plaintiffs are entitled to receive the compensation amount from the 3rd defendant payable in respect of the suit schedule properties. The 2nd defendant is permanently restraining from interfering with the in respect of the suit schedule properties from the 3rd defendant.

Further it is ordered and decreed that the defendants shall pay the cost incurred in this suit a sum of Rs.31-00 to the plaintiffs.

Given under my hand and the seal of the court, this 30th July 2001.

Sd/- 6/8
(M.Shobha)
II Civil Judge (Jr.Dn) & J.M.F.C
Mysore,



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Memorandum of costs incurred in this suit

By the

	Plaintiffs	Defendants
Court fee on Plaint : 100-00	100-00	-
- do - Application : 6-00	6-00	-
- do - Vakalath : 1-00	1-00	1-00
Process fee 24-00	24-00	-
Advocate's fee to not filed -	-	-
Total Rs.	<u>131-00</u>	<u>1-00</u>

Sd/- 6/8
(M.Shobha)
II Civil Judge (Jr.Dn) & J.M.F.C
Mysore,

SCHEDULE

1. Dry land bearing Sy.No.82, extent 10 acres
2. Dry land bearing Sy.No.52, extent 1.34 acres
3. Dry land bearing Sy.No.61, extent 1.35 acres

Item No.1 to 3 are situated in Dattagally Grama, Mysore
Taluk, Mysore

Sd/- 6/8
(M.Shobha)
II Civil Judge (Jr.Dn) & J.M.F.C
Mysore,

(Signature)

IN THE HIGH COURT OF KARNATAKA, BANGALORE

DATED THIS THE 30TH DAY OF AUGUST, 2011

BEFORE

THE HON'BLE MR.JUSTICE K.SREEDHAR RAO

WRIT PETITION NO: 27735/2010 (GM-CPC)

BETWEEN:-

1. SRI PUTTASWAMY,
S/O. LATE RAMA BOYI,
AGED ABOUT 60 YEARS.
2. SRI L.N. GOVINDASWAMY,
S/O. LATE RAMA BOYI,
AGED ABOUT 49 YEARS.
3. SRI JAYAKAMASWAMY,
S/O. LATE RAMA BOYI
AGED ABOUT 50 YEARS.

ALL ARE R/OFNACHANAHALLIPALYA,
J.P. NAGAR,
MYSORE CITY.

PETITIONERS

(BY SRI K. SREEDHAR ASSOCIATES, ADVOCATES)

AND:-

1. STATE OF KARNATAKA,
BY ITS CHIEF SECRETARY,
VIDHANA SOUDHA,
BANGALORE - 560001.
2. THE ASST. COMMISSIONER,
MYSORE SUB-DIVISION,
MYSORE.



3. THE MYSORE URBAN
DEVELOPMENT AUTHORITY,
BY ITS COMMISSIONER,
J.L.B ROAD,
MYSORE.

RESPONDENTS

(BY SRI K. KRISHNA, AGA FOR R1 & R2)
(BY SRI P.S. MANJUNATH AND
H.C. SHIVARAMU, ADVOCATES FOR R3)

THIS W.P. IS FILED UNDER ARTICLES 226 & 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO SET ASIDE THE ORDER DATED 19.7.2010 ON I.A. NO.1 IN R.A. NO.257/2009 PASSED BY THE Vth ADDITIONAL DISTRICT JUDGE, MYSORE AND DISMISS THE SAID I.A. NO.1 VIDE ANNEXURE-K AND ALSO THE APPEAL AS IT IS DEVOID OF MERITS AND ETC.

This petition is coming for preliminary hearing in 'B' group on this day, the Court made the following:-

ORDER

The petitioners are the plaintiffs who filed a suit for declaration that the plaintiffs are the owners of the property acquired by the Respondent No.3 - MUDA and that they are entitled for compensation.

2. It was the contention of the Government that the grant of land in favour of predecessor of the plaintiffs is illegal and that the claim the land to the extent of 13 acres was granted is untenable. In normal practice the grant of





land is only to the extent of 5 acres. After recording the evidence and hearing the parties, the trial court decreed the suit against the defendants.

3. The Government vide order at Annexure-D dated 4.10.2011 took a decision not to appeal against the said decree. However, vide order dated 2.2.2006, the Govt. also passed an order that the view taken in the order dated 4.10.01, the Govt. reiterated its stand as not to prefer an appeal. However, the Government by its order, dated 12.04.06 passed an order directing to file appeal. On the basis of the said order, the appeal was filed with delay of 5 years. The application for condonation of delay was filed.

4. The Appellate Court allowed the application for condonation of delay and condoned the delay. The plaintiffs-respondents aggrieved by the same, have filed this writ petition.

5. It is the contention of the petitioners that there is no sufficient cause for condonation of delay. Hence the



order passed by the Appellate Court in condoning the delay, is bad in law.

6. The Government Advocate per contra submits that property is a public property. The public interest would be jeopardized if the delay is not condoned. It is submitted that the appellants have got case in the appeal. Hence the view taken by the trial court is sound and proper.

7. The trial court has referred to the decision of the Supreme Court reported in AIR 1996 SC 1623 (State of Haryana Vs. Chandra Mani and others) and has come to the conclusion that normally the Govt. machinery is impersonal and slow in taking decision. Therefore, whenever public interest is involved, the courts are to be liberal in exercise of discretion for condonation of delay. The decision cited has no application to the facts of the case. In the present case, the Government was aware of the decree. After scrutiny, the Government took a decision not to prefer an appeal vide Annexure-D in the year 2001 and again in the year 2006, reiterated its earlier view that appeal should not be

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Adv.

preferred. However, in the third round, the Government has taken decision to prefer an appeal. These facts clearly show that the Government was aware of the decree and on earlier occasion, taken decision not to prefer an appeal. These facts clearly indicate that Government was conscious of the decree and did not take steps to prefer the appeal. It is not the case that the Government has for the first time came to now the decree after and thereafter preferred an appeal with application for condonation of delay. The facts stated by the respondents-appellants does not constitute sufficient cause for condonation of delay. In that view, the writ petition is allowed. The original records to be returned to the Government.

Sd/-
JUDGE

NM



IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 8TH DAY OF JULY 2009

BEFORE

THE HON'BLE MR. JUSTICE A.S.SOPANNA

W.P.No. 13813/2008 (KLR-RR/SUR)

BETWEEN:

- 1 SRI PUTTA SWAMY
AGED 56 YEARS
- 2 SRI L N GOVINDA SWAMY
AGED 46 YEARS
- 3 SMT JAYASWAMY
AGED 40 YEARS

PETITIONERS 1 TO 3 ARE SONS AND
DAUGHTER OF LATE RAMA BOYI
R/C D.NO 90/9
NACHANAHALLI PALYA
J.P NAGAR, MYSORE

... PETITIONERS

(BY M/S. K SREEDHAR ASSOCIATES, ADVS.)

AND:

- 1 THE STATE OF KARNATAKA
REP BY ITS SECRETARY
REVENUE DEPARTMENT
M.S. BUILDING
BANGALORE 560 001
- 2 THE TAHSILDHAR
MYSORE TALUK
HUNSUR MYSORE ROAD
MYSORE

... RESPONDENTS

(BY SRI R KUMAR, HCGP)

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Ans.

THIS WRIT PETITION FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA PRAYING TO DIRECT THE 2ND RESPONDENT TO RESTORE THE KHATHA AND RTC IN THE NAMES OF THE PETITIONERS IN THE LIGHT OF THE JUDGMENT DT. 30.7.2001 IN O.S.NO.96/1997 IN RESPECT OF THE SCHEDULE PROPERTY.

THIS WRIT PETITION COMING ON FOR PRELIMINARY HEARING IN "B" GROUP, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The petitioners are before this Court seeking for issuance of a writ of mandamus directing the second respondent to restore the khatha and RTC in the names of the petitioners in respect of the suit properties in the light of the judgment dated 30.7.2001 passed in O.S.No.96/1997 which is at Annexure-B.

2. The case of the petitioners is that since the revenue entries were reversed and the petitioners' title to the properties in question had been disputed, they had filed a suit in O.S.No.96/1997 seeking for, a judgment and decree of declaration that the petitioners herein are the absolute owners of the suit schedule properties. Respondent No.1 herein and also the Mysore Urban Development Authority had been impleaded as

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[Signature]

defendants to the said suit. According to the petitioners, the judgment and decree dated 30.7.2001 have attained finality and therefore in terms of the said judgment and decree since the petitioners have been declared as the absolute owners of the suit schedule properties they are entitled for change of revenue entries in their names by way of restoration and it is in that context, the petitioners had approached the Tahsildar vide Annexure-E dated 8.2.2002. Since the Tahsildar did not act upon the said request, subsequent representations were made to the Assistant Commissioner and also to the Principal Secretary, Revenue Department. Since the said application and the representations have not evoked any response, the petitioners are before this Court seeking for issuance of a writ of mandamus to the second respondent to restore khatha and RTC in their names in respect of the suit schedule properties.

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3. A perusal of the operative portion of the impugned judgment at Annexure-B would indicate that the suit has been decreed in favour of the plaintiffs namely the petitioners herein and therefore the request made by the petitioners before the Tahsildar at the outset seems appropriate unless there is any other legal impediment to do so. In that view, a direction is issued to the second respondent to consider the request made by the petitioners vide application dated 8.2.2002 as per Annexure-E to the petition. While acting upon the said application, the second respondent shall issue notice to the Mysore Urban Development Authority, who are one of the defendants in the suit and after receiving their response, the second respondent shall proceed to consider the said request. Since it is not certain as to whether the said application is still available on the file of the second respondent, it is directed that the petitioners shall enclose a copy of the said application along with a certified copy of this order before the second respondent. Thereafter, the second respondent

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20/8/02

shall act in accordance with law and the process for considering the request of the petitioners shall be initiated within a period of two months from the date of receipt of a copy of this order and the entire process shall be completed as expeditiously as possible.

In terms of the above, the petition stands disposed of. No order as to costs.

Sd/-
Judge

hkh

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No.34297/2017

BETWEEN:

L.N.Govindaswamy

... Petitioner

AND:

State of Karnataka & Others

... Respondents

STATEMENT OF OBJECTIONS FILED BY RESPONDENT
No.5.

The respondent No.5 respectfully submits as follows:

1. The petitioner in the above writ petition has sought for a writ of mandamus directing the fourth respondent Thasildar to restore the katha and RTC in respect of 1 acre 34 guntas in Sy.No.52, 1 acre 35 guntas in Sy.No.61 and 10 acres in Sy.No.82 of Datagalli Village, Mysore Taluk and District.
2. The land measuring 1 acre 34 guntas in Sy.No.52, land measuring 1 acre 35 guntas in Sy.No.61 and land measuring 10 acres in Sy.No.82. When the aforesaid writ petition had come up before this Hon'ble Court on 03.01.2018, it was submitted on behalf of the Authority that the prayer in the writ petition is only against the Thasildar, Mysore Taluk for effecting katha and entering the name of the petitioner in the RTC, in terms of the judgment and decree in OS No.96/1997 and no prayer has been sought as against the Authority. On behalf of the petitioner, it was submitted that only if the name of the petitioner is entered in the RTC, the petitioner will be entitled to



approach this respondent and seek payment of compensation in respect of the land utilized by this respondent for formation of the layout. Subsequently, the writ petition was amended adding the second prayer by seeking direction to this respondent to pay the compensation in respect of the entire extent of 13 acres 29 guntas, i.e. the land measuring 1 acre 34 guntas in Sy.No.52, land measuring 1 acre 35 guntas in Sy.No.61 and land measuring 10 acres in Sy.No.82.

3.It is respectfully submitted that only after the first prayer is granted to the petitioner by directing the Thasildar, Mysore Taluk to enter the name of the petitioner in the RTC in respect of the lands in question, this respondent could consider the request of the petitioner for payment of compensation for the land utilized for the purpose of formation of layout and not in respect of the entire extent of 13 acres 29 guntas. Therefore, it is for the State Government to answer the first prayer and the second prayer is consequential to the grant of first prayer.

4.In so far as the claim of the petitioner in the suit in OS No.96/1997 and the Regular Appeal filed against the said judgment, writ petition filed against the order passed by the Lower Appellate Court in RA No.257/2009 and other cases are concerned, there is no need to advert in the present statement of objections, as the same as attained finality before the Hon'ble Supreme Court of India.



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5. On 30.12.2004 the petitioner had submitted a representation to the Secretary to Urban Development Department requesting for payment of compensation and allotment of site for utilization of land in Sy.No.56, 61 & 82 of Dattagahalli Village, Mysore Taluk, without acquisition. Copy of the said representation is produced herewith and marked as ANNEXURE - R1. The said representation has been forwarded by the Urban Development Department through its communication dated 30.12.2014 directing this respondent to report the action taken on the request of the petitioner for payment of compensation and allotment of site. Copy of the said communication is produced herewith and marked as ANNEXURE - R2.

6. In response of the said representation of the petitioner and the direction of the Government this respondent after obtaining report from the Engineering Section has called upon the petitioner to produce the encumbrance certificate, letter of certification of tenancy, Geonological tree & latest photograph etc., Copy of the endorsement dated 20.01.2005 is produced herewith and marked as ANNEXURE - R3. The petitioner has not produced the documents sought for by this respondents and in the mean time the state government through the Thasildar and Deputy Commissioner have filed regular appeal and the matter went up to Hon'ble Supreme Court of India.

7. It is respectfully submitted that on 10.11.2014, this respondent wrote a letter to the State Government narrating the



background of the litigation between the petitioner and the State and also steps take by the petitioner for execution of the decree of the Trial Court has requested the State Government for suitable order with regard to the payment of compensation. In response to the said letter, the State Government by its communication dated 08.10.2015 at Annexure - S has directed this respondent to pay the compensation in respect of 4 acres 5 guntas is concerned, as per the agreement, if any, already entered into with the land owner or in case if it is not possible to proceed as per the Agreement, to pay compensation in terms of the provisions of new Land Acquisition Act which has come into effect from 01.01.2014 and further directing this respondent to approve the layout plan in respect of 9 acres 16 guntas in terms of section 32 of the KUDA Act.

8 To give effect to the direction of the State Government as contained in communication dated 08.10.2015 at Annexure - S, it has become necessary for this respondent to call upon the petitioner to produce the current RTC, Mutation Extract, Copy of the Akhar Band, Sagunli Chit and the Sketch of the property certified by the Thasildar Mysore Taluk. Copy of the notice dated 30.11.2015 is produced herewith and marked as ANNEXURE - R4

9. In order to implement the direction of the Government dated 08.10.2015 this respondent issued one more notice on 29.11.2016 calling upon the petitioner to produce his document of title relating to

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land in question. Copy of the said notice is produced herewith and marked as ANNEXURE - R5.

10. This respondent issued one more notice on 15.03.2017 reiterating the content of earlier notice dated 29.11.2016 by calling upon the petitioner to produce documents of title. Copy of the said notice is produced herewith and marked as ANNEXURE - R6.

11. In the mean time the petitioner without producing any one of the documents called upon in the notices & communications referred to above has filed the above writ petition seeking for direction to Thasildar to restore the Katha & RTC in respect of the lands in question. For the said prayer this respondent can have no objection. However the petitioner without advert into the notices issued by this respondent has amended the writ petition seeking direction to pay the compensation. In the absence of production of the correspondence refer to supra, the prayer sought by the petitioner as against this respondent cannot be granted. The petitioner has suppressed the aforesaid material documents which would through light to the controversy involved in writ petition.

12. Since the State Government has directed this respondent to take steps to implement the agreement, if any, already entered into with the land owner or to pay the compensation in terms of the new Land Acquisition Act, unless this respondent is satisfied about the revenue records standing in the name of the petitioner, it would not be



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possible to take steps for determination of the compensation in respect of the land utilized by this respondent to an extent of 4 acres 5 guntas.

13. In that view of the matter, once the name of the petitioner is entered in the revenue records and RTC is written in the name of the petitioner and the petitioner produces the documents of title in respect of the land in question, this respondent would take immediate steps for determination of compensation and pay the same to the petitioner.

14. It is respectfully submitted that when the petitioner has made the application for amendment of the writ petition seeking additional prayer directing this respondent to pay the compensation in respect of the entire land in question, this respondent addressed a communication dated 30.01.2018 to the Deputy Commissioner, Mysore District informing that in view of the orders passed in OS No.90/1997, RA No.257/2009 W.P.No.27735/2010, and SLP No.20866/2012, the Authority has to pay the compensation or deposit in the Civil Court and the petitioner in W.P.No.34297/2017 has filed an application for additional prayer seeking for a direction to the Authority to pay the compensation and therefore sought for the opinion of the Deputy Commissioner regarding the payment of compensation. Copy of the communication dated 30.1.2018 is produced herewith and marked as ANNEXURE-R.7.

15. So far this respondent has not received any communication from the Deputy Commissioner, Mysore District. In that view of the



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matter, this respondent has further addressed a communication reminding Deputy Commissioner about the earlier communication dated 30.01.2018. Copy of the communication dated 30.5.2018 is produced herewith and marked as ANNEXURE-R.8. In view of the aforesaid circumstances to alleviate the doubt in the minds of the petitioner with regard to the payment of compensation, this respondent has taken steps to calculate the total amount of compensation for which the petitioner is entitled as follows:

Rs.4,00,000/- per acre in respect of 4 acre 5 guntas.	Rs.16,50,000-00
Interest @ 9% per annum for 4678 days i.e., for the date of approved given by the government from 03.08.2005 to 31.05.2018	Rs.19,03,241-00
Total Compensation Amount	Rs.35,53,241-00

16. This respondent proposes to pay the aforesaid amount to the petitioner only upon the name of the petitioner is entered in the record of rights by the Thasildar and the petitioner execute the Deed of Conveyance in favour of the Authority in respect of 4 acres 5 guntas. Till such time, the petitioner obtains the RTC written in his name and executes the registered Sale Deed in favour of the Authority, this respondent would keep the aforesaid amount in fixed deposit so as to earn interest on the said amount.

[Signature]

17. All other averments which are not specifically traversed and which run counter to the interest of this respondent are hereby denied and the petitioner is put to strict proof of the same.

PRAYER

WHEREFORE, this respondent respectfully prays that this Hon'ble Court may be pleased to dispose of the writ petition by recording the aforesaid submission of this respondent, in the interest of justice and equity.

Bangalore,
Dated: 05.06.2018.

ADVOCATE FOR RESPONDENT
No.5

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.No.34297/2017

BETWEEN:

Sri.L.N.Govindaswamy

... Petitioner

AND:

State of Karnataka & others

... Respondents

AFFIDAVIT

I, P.S.Kantharaju aged about 45 years, S/o. Srinivasulu, resident of Mysore, now at Bangalore, do hereby state on oath as follows:

1.I submit that I am the Commissioner of the 5th respondent Mysore Urban development Authority. I know the facts of the case based on the records maintained in the office of the Authority and accordingly I am swearing to this affidavit.

2.I submit that statements made in paragraphs 1 to 17 in the Statement of objections accompanying this affidavit are true and correct to the best of my knowledge.

3.I submit that Annexure-R.1 to R.8 produced along with the statement of objections are true copies of the originals.

VERIFICATION

I, P.S.Kantharaju, the deponent do hereby verify and declare that the statements made above from paragraphs 1 to 3 are true and correct.

Bangalore,
Date: 05.06.2018
Identified by me

DEPONENT

Advocate
No. of Corrections:

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 13TH DAY OF JULY, 2020

BEFORE

THE HON'BLE MR.JUSTICE P.B. BAJANTHRI

WRIT PETITION NO.34297/2017 (KLP-RES)

BETWEEN:

1. SRI. L.N. GOVINDA SWAMY
S/O LATE RAMA BHOVI,
AGED ABOUT 63 YEARS,
R/O NO.90/9, NACHANAHALLI,
PEENYA, J.P. NAGAR,
MYSORE - 570 008.
2. SMT. YASHODA D/O LATE PUTASWAMY,
AGED ABOUT 46 YEARS, NO.11,
SIDDAPPAJI TEMPLE ROAD,
NACHANAHALLI PALYA,
JP NAGARA, MYSORE - 570 008.
3. SHRI LOKESH S/O LATE PUTASWAMY,
AGED ABOUT 43 YEARS, NO.11,
SIDDAPPAJI TEMPLE ROAD,
NACHANAHALLI PALYA,
JP NAGARA, MYSORE - 570 008.
4. SMT. LAKSHMI W/O LATE JAYASWAMY,
AGED ABOUT 51 YEARS,
5. SMT. MANJULA J D/O JAYASWAMY,
AGED ABOUT 20 YEARS,
6. KAVITHA D/O JAYASWAMY,
AGED ABOUT 15 YEARS,
SINCE MINOR REPRESENTED BY
HER MOTHER SMT. LAKSHMI

PETITIONERS 4 TO 6 ARE
RESIDING AT NO. 81,



SIDDAPPAJI TEMPLE ROAD,
NACHANAHALLI PALYA, JP NAGARA,
MYSORE - 570 008.

... PETITIONERS

(BY SRI. K. SREEDHAR, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REPRESENTD BY ITS SECRETARY,
REVENUE DEPARTMENT, M.S. BUILDING,
VIDHANA VEEDHI, BENGALURU 1.
 2. THE DEPUTY COMMISSIONER,
MYSURU DISTRICT, MYSURU.
 3. THE ASST COMMISSIONER,
MYSURU SUB DIVISION, MYSURU.
 4. THE TAHSILDAR,
MYSURU TALUK,
MYSURU-HUNSIK ROAD,
MYSURU.
 5. MYSORE URBAN DEVELOPMENT AUTHORITY
(MUDA), JHANSI LAXMI BAI ROAD,
MYSURU, REPRESENTED
BY ITS COMMISSIONER
- ... RESPONDENTS

(BY SRI. LAXMINARAYAN, AGA FOR R-1 TO R-4;
SRI. PRASANNA B.R., ADVOCATE FOR R-5)

THIS WRIT PETITION IS FILED UNDER ARTICLE 226
OF THE CONSTITUTION OF INDIA PRAYING TO DIRECT R-4
TAHSILDAR TO RESTORE THE KHATA AND RTC IN RESPECT
OF PETITION SCHEDULE LANDS IN VIEW OF THE
JUDGMENT AND DECREE MADE IN O.S.96/1997 DATED
30.07.2001 VIDE ANNEX-E EXPEDITIOUSLY AND ETC.

THIS PETITION COMING ON FOR PRELIMINARY
HEARING IN B GROUP THROUGH VIDEO CONFERENCE,
THIS DAY, THE COURT MADE THE FOLLOWING:-



ORDER

In the instant petition, petitioners have prayed for the following reliefs:

i) *ISSUE a writ in the nature of Mandamus directing the 4th Respondent Tahsildar to restore khata and RTC in respect of suit schedule lands in view of the judgment and decree made in OS No. 96/1997 expeditiously so that the petitioner's family can claim compensation from MUDA, and*

ii) *DIRECT the 5th Respondent MUDA to pay the compensation to the Petitioner only in respect of area of lands acquired in lands bearing Sy. No. 52 measuring 1.34 Acres, Sy. No. 61 measuring 1.35 Acres and Sy. No. 82 measuring 10 Acres, situated in Dattagalli village, Mysore Taluk and District, as expeditiously as possible, and;*

Additional Prayer:

iii) *"Quash by the issue of Writ of Certiorari, the impugned endorsement bearing No. LND/PR 476/2011-12 dated 31.7.2018 vide Ann-Y, as the same is illegal, arbitrary and without authority of law", and*



iv) PASS such other orders as may be deemed just and expedient in the circumstances of the case, including the award of costs of this writ petition, in the interest of justice and equity.

2. Learned counsel for the petitioners pointed out the order of this Court dated 11.03.2020, which reads as under:-

"The Petitioners in the above writ petition have sought for writ of mandamus directing the 4th respondent-Tahsildar to restore katha and RTC in respect of suit schedule lands pursuant to judgment and decree made is O.S.No.96/1997 expeditiously so that petitioners family can claim compensation from MUDA and direct 5th respondent MUDA to pay compensation to the petitioners in respect of area of lands acquired in land bearing Sy.No.52 measuring 1 acre 34 guntas, Sy.No.61 measuring 1 acre 35 guntas and Sy.No.82 measuring 10 acres (acquired land to an extent of 4 acres 5 guntas only) situated at Dattagalli Village, Mysore Taluk. He would further submits that the decree passed by

Edap.

the Civil Court declaring that plaintiffs are the absolute owners and appeal filed by the defendants came to be dismissed. The said order reached finality.

Sri. Vivekananda, learned counsel appearing for respondent-MUDA submits that 3rd respondent-MUDA is ready to pay demand draft for a sum of Rs.35,53,241/- in respect of acquired land within a week.

Learned Government Advocate wants to justify the inaction of the respondents by filing the objections.

List this matter on 20.03.2020."

3. Undisputedly, petitioners have not approached respondent No.5 with reference to the prayer sought in the present petition. Petitioners have sought a writ of mandamus to the concerned authority without approaching the appropriate authority. The Apex Court in the case of **Mani Subrat Jain Vs. State of Haryana** reported in **AIR 1977 SC 276** at para No.9 has held as under:



"9. The High Court rightly dismissed the petitions. It is elementary though it is to be restated that no one can ask for a mandamus without a legal right. There must be a judicially enforceable right as a legally protected right before one suffering a legal grievance can ask for a mandamus. A person can be said to be aggrieved only when a person is denied a legal right by some one who has a legal duty to do something or to abstain from doing something. (See Halsbury's Laws of England 4th Ed. Vol. I, paragraph 122); State of Hayana V. Subash Chander, (1974) 1 SCR 165 = (AIR 1973 SC 2216); Jasbhai Motibhai Desai V. Roshan Kumar Haji Bashir Ahmed, (1976) 3 SCR 58 = (AIR 1976 SC 578) and Ferris Extraordinary Legal Remedies paragraph 198."

and in view of the Supreme Court decision in the case **Kolkata Metropolitan Development Authority -vs- Pradip Kumar Ghosh and others** reported in (2018)13 SCC 623 has dealt with the matter and relevant paragraph reads as under:

W. G.

with the matter and relevant paragraph reads as under:

18. In regard to efficacy of order dated 10.9.1993, the respondents have relied upon power to issue mandamus and the effect thereof. A reference has been made to the decisions in CAG V. K.S. Jagannathan & Anr. (1986) 2 SCC 679 and Andi Mukta Sadguru Shree Muktajee Vandas Swami Suvarna Jayanti Mahotsav Smarak Trust & Ors. V. V.R. Rudani. In CAG the court observed (SCC pp. 592-93, para 20)

"20. There is thus no doubt that the High Courts in India exercising their jurisdiction under Article 226 have the power to issue a writ of mandamus or a writ in the nature of mandamus or to pass orders and give necessary directions where the government or a public authority has failed to exercise or has wrongly exercised the discretion conferred upon it by a statute or a rule or a policy decision of the government or has exercised such discretion mala fide or on irrelevant considerations or by ignoring the relevant considerations and materials or in such a manner as to frustrate the object of conferring such discretion or the policy for



implementing which such discretion has been conferred. In all such cases and in any other fit and proper case a High Court can, in the exercise of its jurisdiction under Article 226, issue a writ of mandamus or a writ in the nature of mandamus or pass orders and give directions to compel the performance in a proper and lawful manner of the discretion conferred upon the government or a public authority, and in a proper case, in order to prevent injustice resulting to the concerned parties, the court may itself pass an order or give directions which the government or the public authority should have passed or given had it properly and lawfully exercised its discretion."

4. At this juncture, learned counsel for the petitioners vehemently contended that O.S. No.96/1997 has attained finality. He also relied on Annexure-T. The said document has no nexus with the relief sought. It is relating to implementation of order passed in WP No. 13813/2008. Therefore, petitioners are not entitled for the aforesaid writ of mandamus.

Def.

5. For issuance of writ of mandamus one must have legal or statutory right and demand before the Competent Authority. On perusal of entire records, there is no demand or representation on behalf of petitioners to the concerned respondent. Thus, writ petition stands disposed of treating the present writ petition as representation to respondent No.5. Concerned respondent is hereby directed to redress the petitioners' grievance within a period of eight weeks from the date of receipt of copy of this order and communicate the decision to the petitioners in respect of petitioners' grievance.

With the above observations, writ petition stands disposed of.

In view of disposal of main matter, I.A. No.2/2018 and I.A. No.5/2018 stand disposed of.

MBM

Sd/-
JUDGE



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ANNEXURE J

ದಿನಾಂಕ: 30/11/21

ಇಂದ,

ಎಲ್. ಡಿನ್. ಗೋವಿಂದಸ್ವಾಮಿ
ಬಿನ್ ಲೇಟ್ ರಾಮ ಬೋವಿ,
ದಾಸ ನಂ.90/9, ನಾಚನಹಳ್ಳಿ ಪಾಳ್ಯ,
J.P. ನಗರ, ಮೈಸೂರು-570008

ಗೆ.

1. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು

ಕಂದಾಯ ಇಲಾಖೆ,

ಬಹುಮಹಡಿ ಕಟ್ಟಡ, ಅಂಬೇಡ್ಕರ್ ವೀದಿ,

ಬೆಂಗಳೂರು-01

2. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು

ಮೈಸೂರು ಜಿಲ್ಲೆ, ಮೈಸೂರು

3. ಸಹ ವಿಭಾಗಾಧಿಕಾರಿಗಳು

ಮೈಸೂರು ಸಬ್-ಡಿವಿಷನ್, ಮೈಸೂರು

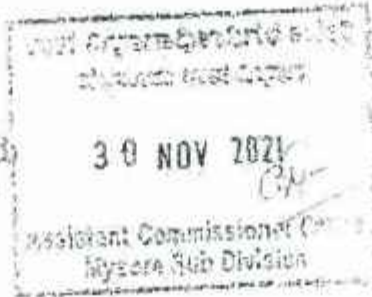
4. ತಹಸೀಲ್ದಾರರು

ಮೈಸೂರು ತಾಲ್ಲೂಕು

ಮೈಸೂರು

5. ಮೈಸೂರು ಆರ್ಬನ್ ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ (MUDA)

ಜಾನ್ಸಿ ರಾಣಿ ಲಕ್ಷ್ಮೀಬಾಯಿ ರಸ್ತೆ, ಮೈಸೂರು



ಮಾನ್ಯ

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಮೈಸೂರ್ ಜಿಲ್ಲೆ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಗಲ್ಲ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 82
52, ಮತ್ತು 61 ರ ವಿಸ್ತೀರ್ಣ 13 ಎಕರೆ 29 ಗುಂಟೆ ಜಮೀನಿನ ಪಹಣಿ ದಾಖಲೆ ನನ್ನ
ಹಾಗೂ ಉಳಿದ ಕುಟುಂಬಸ್ಥರ ಹೆಸರಿಗೆ ವರ್ಗಾಯಿಸಿ, ಖಾತೆ ಮಾಡುವ ಬಗ್ಗೆ.

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮೂಲತಃ ಮೈಸೂರು ತಾಲ್ಲೂಕಿನ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಗಲ್ಲ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 52 ರಲ್ಲಿ 1 ಎಕರೆ 34 ಗುಂಟೆ, ಸರ್ವೇ ನಂಬರ್ 61 ರಲ್ಲಿ 1 ಎಕರೆ 35 ಗುಂಟೆ ಮತ್ತು ಸರ್ವೇ ನಂಬರ್ 82 ರಲ್ಲಿ 10 ಎಕರೆ ಜಮೀನು ನನ್ನ ತಾತನವರ ಶ್ರೀ ಶೇರುಗಾರ್ ಲಕ್ಷ್ಮಿ ಭೋವಿ ಯವರಿಗೆ ಮಂಜೂರಿ ಮೂಲಕ ಬಂದು ಎಂ. ಆರ್. ನಂಬರ್. ೨೦/1953 -54 ರಂತೆ ಖಾತೆಯಾಗಿ ಪಹಣಿ ಹಾಗೂ ರೆವೆನ್ಯೂ ದಾಖಲೆಗಳು ಅವರ ಹೆಸರಿಗೆ ದಾಖಲಾಗಿದ್ದು, ಅವರ ಮರಣ ನಂತರ IHR -4 /1983 -84 ರಂತೆ, L ಗೋವಿಂದಸ್ವಾಮಿ ಯಾವ ನನ್ನ ಮತ್ತು ಇತರರ ಹೆಸರಿಗೆ ಪಹಣಿ ದಾಖಲಾಗಿ ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿ ಕೊಂಡು ಬಂದಿರುತ್ತದೆ.

ವಸ್ತು ಸ್ಥಿತಿ ಹೀಗಿರುವಾಗ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ಜಮೀನಿನ ವೈಕಿ ಶೇವು ವಿಸ್ತೀರ್ಣವನ್ನು ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದವರು ನಮಗೆ ಯಾವುದೇ ಮುನ್ಸೂಚನೆಯನ್ನು ನೀಡದೆ ಸ್ವಾಧೀನಕ್ಕೆ ತೆಗೆದುಕೊಂಡು ಅಭಿವೃದ್ಧಿ ಪಡಿಸಿ ಬಡಾವಣೆ ಹಾಗೂ ರಸ್ತೆ ರಚನೆ ಮಾಡಿರುತ್ತಾರೆ. ಈ ಕಾರಣ ನಾವುಗಳು ಕರ್ನಾಟಕ ನರ್ಕಾರ ಮತ್ತು ಇತರ ಇಲಾಖೆ ಮತ್ತು ಪ್ರಾಧಿಕಾರದ ವಿರುದ್ಧ ಮಾನ್ಯ ಸಿವಿಲ್ ಸ್ಯಾಟೂಲಿಯದಲ್ಲಿ ಓ. ಯಸ್. ನಂಬರ್. 551 /1987 ಹಾಗೂ ಓ. ಯಸ್. ನಂಬರ್. 727 /1990 ದಾವೆಗಳನ್ನು ಮಾಡಿದ್ದು ಹಾಗೂ ದಾವಾ ಸಂಖ್ಯೆ 96 /1997 ಪ್ರಕರಣ ಬಾಕಿ ಇರುವಾಗ ಆರ್.ಟಿ. ಸಿ. ಗಳನ್ನೂ ರದ್ದು ಮಾಡಿ ನರ್ಕಾರ ಎಂದು ನಮೂದು ಮಾಡಿರುತ್ತಾರೆ. ಮಾನ್ಯ ಸ್ಯಾಟೂಲಿಯದ ಪ್ರಾಧಿಕಾರದಿಂದ ಪರಿಹಾರ ಪಡೆದುಕೊಳ್ಳಲು ನಮ್ಮನ್ನು ಮಾಲೀಕರೆಂದು ಘೋಷಿಸಿ ದಿನಾಂಕ 30 /07 /2001 ರಂದು ತೀರ್ಪು ನೀಡಿರುತ್ತದೆ ಸದರಿ ಸ್ಯಾಟೂಲಿಯದ ಡಿಕ್ರಿಯನ್ನು ಯಾವತ್ತೂ ಪ್ರಶ್ನಿಸಿರುವುದಿಲ್ಲ ಹಾಗೂ ನಮ್ಮ ಹೆಸರಿಗೆ ಪಹಣಿಯಲ್ಲಿ ಖಾತೆಯನ್ನು ದಾಖಲಿಸಿರುವುದಿಲ್ಲ ಈ ಕಾರಣದಿಂದ ನಾವು ಹಿಂದೆ ರಿಟ್ ಅರ್ಜಿ 13813 /2008 ರಂತೆ ಸಲ್ಲಿಸಿದ್ದು ಇರುತ್ತದೆ. ಸದರಿ ರಿಟ್ ಆದೇಶದಲ್ಲಿ ಅಸಲು ದಾವಾ ಸಂಖ್ಯೆ 96 /1997 ರಂತೆ ತೀರ್ಪಿನಂತೆ ಕ್ರಮ ವಹಿಸಲು ತಹಸೀಲ್ದಾರ್ ಮೈಸೂರು ರವರಿಗೆ ಆದೇಶವಿರುತ್ತದೆ. ತದನಂತರ ನಾವು ತಹಸೀಲ್ದಾರರಿಗೆ ಅನೇಕ ಬಾರಿ ಆರ್ಜಿ ಮೇರೆಗೆ ವಿನಂತಿ ಮಾಡಿಕೊಂಡಾಗಲೂ ಯಾವುದೇ ದಾಖಲೆಗಳು

ಮಾನ್ಯ

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ನಮ್ಮ ಹೆಸರಿಗೆ ನಮೂದು ಮಾಡಿರುವುದಿಲ್ಲ, ತದ ನಂತರ ಮೂಲ ದಾವೆ ಸಂಖ್ಯೆ 96 /1997 ರ ತೀರ್ಪಿನ ವಿರುದ್ಧ ವಿಳಂಬ ಮಾಡಿ ಆರ್ ಎ 257 /2006 ರಂತೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ ಈ ಮಧ್ಯೆ ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ 27735 /2010 ರಂತೆ ಆರ್ಜಿ ಸಲ್ಲಿಸಿ ನಮ್ಮ ಪರವಾಗಿ ಆದೇಶವಾಗಿರುತ್ತದೆ. ಸದರಿ ಆದೇಶ ಮತ್ತು ಅದಕ್ಕೂ ಪೂರ್ವದಲ್ಲಿಯ ರಿಟ್ ಸಂಖ್ಯೆ 13813 /2008 ರಂತೆ ಹೊರಡಿಸಿರುವ ಆದೇಶದನ್ವಯ ಸಹ ಆರ್ಜಿ ನೀಡಿದ್ದರು ಯಾವುದೇ ಕಾರ್ಯ ಸಫಲವಾಗಿರುವುದಿಲ್ಲ. ತದನಂತರ ರಿಟ್ ಪಿಟಿಷನ್ ಆರ್ಜಿ 27735 /2010 ರ ತೀರ್ಪಿನ ವಿರುದ್ಧ ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮೈಸೂರು ರವರು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ 20866 /2012 ಸಲ್ಲಿಸಿದ್ದು ನದರಿ ಮೇಲ್ಮನವಿ ಸಹ ವಜಾ ಆಗಿರುತ್ತದೆ. ಈ ಪ್ರಕರಣಗಳು ಮುಗಿದ ನಂತರ ದಲ್ಲಿ ಸಹ ನಾನು ಅನೇಕ ಆರ್ಜಿ ಹಾಗೂ ತದನಂತರ ರಿಟ್ ಆರ್ಜಿ ಸಹ ಮಾಡಿ. ಸದರಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ನಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡಿಕೊಡಲು ಹಾಗೂ ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರವು ಉಪಯೋಗಿಸಿಕೊಂಡಿರುವ ಜಮೀನಿನ ವಿಸ್ತೀರ್ಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಪರಿಹಾರ ಪಡೆದುಕೊಂಡು ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳದೆ ಇರುವ ಉಳಿಕೆ ವಿಸ್ತೀರ್ಣದ ಜಮೀನನ್ನು ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿಕೊಂಡು ನಮ್ಮ ಹಕ್ಕು ಮತ್ತು ಮಾಲೀಕತ್ವದಂತೆ ಸ್ವಾಧೀನ ಅನುಭವ ಅನುಭವಿಸಿಕೊಂಡು ಹೊಣೆಗಾರ ಅನುಕೂಲವಾಗುವ ದೃಷ್ಟಿಯಿಂದ ಖಾತೆ ಮಾಡಿಕೊಡುವಂತೆ ಪುನಃ ಪುನಃ ನಿರಂತರವಾಗಿ ವಿನಂತಿ ಮಾಡಿ ಕೊಂಡರು ಹಾಗೂ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳಿಗೆ ದಿನಾಂಕ 15 /07 /2021 ರಂದು ಸಂಪೂರ್ಣ ದಾಖಲೆಗಳನ್ನು ವಿವರಿಸಿ ದಾಖಲೆ ಮತ್ತು ಅಡಕಗಳನ್ನು ಲಗತ್ತಿಸಿ ಕೊಟ್ಟಿರುವ ಆರ್ಜಿಯ ಮೇರೆಗೆ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ ದಿನಾಂಕ 19/07 /2021 ರಂದು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಮೈಸೂರು ಜಿಲ್ಲೆ ರವರಿಗೆ ಪತ್ರದನ್ವಯ ನಿಯಮಾನುಸಾರ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳುವಂತೆ ತಿಳಿಸಿದ್ದಾಗ್ಯೂ ಹಾಗೂ ದಿನಾಂಕ 28 /07 /2021 ರಂದು ನಿಯಮಾನುಸಾರ ಕೂಲಂಜವವಾಗಿ ಪರಿಶೀಲಿಸಿ ಖಾತೆ ಬದಲಾವಣೆ ಮಾಡುವ ಬಗ್ಗೆ ಕ್ರಮ ವಹಿಸಲು ಸಹ ತಿಳಿಸಿದ್ದು ಇರುತ್ತದೆ. ಈಗಾಗಲೇ ಪಾಕಿರುವ ರಿಟ್ ಆರ್ಜಿಗಳನ್ನು ಒಂದು ವರ್ಷಕ್ಕೆ ಮೇಲ್ಮಟ್ಟಿರುವುದರಿಂದ ಮತ್ತು ರೆವಿನ್ಯೂ ಅಧಿಕಾರಿಗಳು ಎಲ್ಲಾ ದಾಖಲೆಗಳನ್ನು ನೀಡಿ ಪಾಸ್‌ಪಾಕೆಟ್ ಮತ್ತು ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಿದ್ದಾಗ್ಯೂ ಯಾವುದೇ ರೀತಿಯ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳಲು ಮುಂದಾಗದೆ ಇರುವುದು ಆಶ್ಚರ್ಯ ಹಾಗೂ ಸಂದೇಹ ಅತ್ಯಂತ ವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನಮಗೆ ತುಂಬಲಾರದ ಅನ್ಯಾಯವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನ್ಯಾಯ ದೊರಕುವುದಕ್ಕಿಂತ ಅನಗತ್ಯ ಖರ್ಚು ವೆಚ್ಚ ಮತ್ತು ಮಾನಸಿಕ ಹಿಂಸೆ ಹಾಗೂ ದುರ್ಬಲತೆ ಉಂಟಾಗಿರುತ್ತದೆ, ನಮಗೆ ರೆವಿನ್ಯೂ ಕಚೇರಿಗಳನ್ನು ಹಾಗೂ ಇತರೆ ಎಲ್ಲಾ ವಿಧದ ನ್ಯಾಯೋಚಿತವಾದ ವಿಭಾಗ ಹಾಗೂ ಇಲಾಖೆಗಳನ್ನು ಸಂಪರ್ಕಿಸಿಯೂ ನ್ಯಾಯ ದೊರೆಯುವ ಯಾವುದೇ ಸುಳಿವು ಲಭಿಸಿರುವುದಿಲ್ಲ, ಈ ಮೇಲಿನ ಕಾರಣಗಳಿಂದ ಕೊನೆಯ ಪ್ರಯತ್ನ ಎಂದು ತಿಳಿದು ಮೇಲಿನ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳಿಗೂ ಈ ಕೆಳಗೆ ಲಗತ್ತಿಸಿರುವ ದಾಖಲೆಗಳೊಂದಿಗೆ ನನ್ನ ವಿನಯ ಪೂರ್ವಕ ಪ್ರಾರ್ಥನೆ



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ಎನೆಂದರೆ ದಾಖಲೆ ಹಾಗೂ ಈಗಾಗಲೇ ವಿವಿಧ ನ್ಯಾಯಾಲಯಗಳು ನೀಡಿರುವ ತೀರ್ಪುಗಳನ್ನು ತತ್ಕ್ಷಣ ಪರಿಶೀಲಿಸಿ ನನ್ನ ಹೆಸರಿನಂತೆ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ವಿಸ್ತೀರ್ಣದ ಜಮೀನಿಗೆ ಹೆಸರುಗಳನ್ನು ಸಮೂಹ ಮಾಡಿ ಖಾತೆ ಕೋರಿಸಿ ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಬೇಕಾಗಿ ವಿನಂತಿ.

ಧನ್ಯವಾದಗಳೊಂದಿಗೆ


(ಎಲ್. ಎಸ್. ಗೋವಿಂದಸ್ವಾಮಿ)

ಇಂತಿ ತಮ್ಮ ವಿಶ್ವಾಸಿ

ಲಗತ್ತಿಸಿರುವ ಅಡಕಗಳು

1. ಮಂಜೂರಾತಿ ಪತ್ರದ ನಕಲು
2. ಎಂ. ಆರ್. ನಂ. 20/1953-54 ರ ನಕಲು
3. 79-80 ರಿಂದ 85-86 ಆರ್. ಟಿ. ಸಿ
4. ಆರ್. ಆರ್. 6 ಮತ್ತು ರೆಕಾರ್ಡ್ಸ್ ಆಫ್ ರೈಟ್ಸ್
5. ಓ.ಎಸ್. ನಂ. 551/87, ಓ.ಎಸ್. ನಂ. 727/90 ಮತ್ತು ಓ.ಎಸ್. ನಂ. 96/97 ರ ಆದೇಶದ ಪ್ರತಿ
6. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪೀಟಿಷನ್ ಸಂಖ್ಯೆ. 13813/2008 ರ ಪ್ರತಿ
7. ಆರ್. ಏ. ನಂ. 982/9004 ರ ಪ್ರತಿ
8. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪೀಟಿಷನ್ ಸಂಖ್ಯೆ. 27735 /2010 ರ ಪ್ರತಿ
9. ಸರ್ವೋಚ್ಚನ್ಯಾಯಾಲಯದ ಎಸ್. ಎಲ್. ಪಿ ಸಂಖ್ಯೆ. 20866 /2010 ರ ಪ್ರತಿ
10. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪೀಟಿಷನ್ ಸಂಖ್ಯೆ. 34297 /2017 ರ ಪ್ರತಿ



Translated copy of Annexure-J
Date:30-11-2021.

From.

L.N Govindaswamy s/o Late Rama bhovi
House No:90/9, Nachanahalli palya
J.P.Nagara, Mysuru-570008.

TO.

1. Principle Secretary
Revenue department
Multistore building
Ambedkar Vadhi
Bangalore-01.
2. Deputy Commissioner
Mysuru district
Mysuru.
3. Assistant commissioner
Mysuru Sub-division
Mysuru.
4. Thasildar Mysuru Taluk
Mysuru.
5. Mysuru urban development Authosith
Jansirani lakshmibai road, Mysuru.

Respected sir,

Subject:- Regarding the transfer of khatha and the R.T.C record of the land measuring 13 acres 29 guntas, in survey number 82, 52 and 61, Kasaba Hobli, Dattagalli village, Mysore district, in my name and that of the rest of my family members.

In connection with the above matter, originally 1-34 Acre in survey number 52 of Dattagalli village, Kasaba Hobli, Mysore taluk, 1-35 Acre in survey number 61 and 10 acres of land in survey number 82 came to my grandfather Shri Sherugar Lakshama Bovi through grant and the land title and revenue records were registered in his name as M. R. No. 90/1953 -54, after his death, the land title was registered in the name of L.Govindaswamy and others and we have been enjoying it as our right.



In such a situation, some of the above land has been acquired by the Mysore Urban Development Authority without giving us any notice and developed it and constructed a layout and road. For this reason, we have filed O. S. No.551 /1987 and O. S. No. 722 / 1990 suits in the Hon'ble Civil Court against the Government of Karnataka and other departments and authorities, while the case of suit No. 96 / 1997 is pending, the R.T.C. has also been cancelled and entered as 'Government'. In this case The Hon'ble court ordered as we are the owners of the above land and to claim the compensation from the MUDA on: 30/07/2001. The said Court's order has never been challenged and the khatha has not been registered in our name in the R.T.C. Therefore, we have filed a writ petition as 13813/2008. In the said writ petition, the Tahsildar, Mysore has been ordered to take action as per the judgment the said O.S.No. 96/1997. Thereafter, we have requested the Tahsildar several times but khatha has not been done in our name. After that, you have filed an appeal against the original suit number 96/1997 with delay under RA 257/2000. In between this W.P:27735/2010 is orders in one favor. The said order and the earlier order issued in W.P.13813/2008 we filed an application, but no action has been taken. There after against the W.P:27735/2010 order Assistant commissioner mysuru filed an appeal in Supreme Court as 20866/2012 and the said appeal is also dismissed. Even after the completion of these cases, I have filed many applications and have repeatedly requested to make a khatha in our name as per the order of the said High Court and that the Mysore Urban Development Authority should obtain compensation for the area of land used and not acquired, so that we can enjoy the remaining area of land as per our right and ownership and enjoy the right and ownership. Simultaneously with explaining the facts and documents on 15/7/2021 we are given application to Principle secretary to the Revenue department on 19/07/2021 they were directed Deputy Commissioner to take action as per rules on 28/07/2021. Since the applications are above one year old and the Revenue officials have provided all the documents but have not taken any action, it is surprising and suspicious and it is an irreparable injustice to us and it is unnecessary expenditure and mental torture rather than getting justice. We have contacted the offices and all other relevant departments but we have not received any hint of getting justice. For the above reasons, finally I humbly request all the above officials to examine the records immediately (attached with this) and the judgments already given by various



courts and enter my name and rest of my family members in RTC and make as khatha as per my right and provide my document.

With Thanks

sign/-
(L.N. Govindaswamy)
Yours Faithfully

Enclosures:

1. Grant certificate copy.
2. Copy of M.R.20/1953-54.
3. RTC from 79-80 to 85-86.
4. Copy of R R 6 and records of rights.
5. Order of the O.S.551/87, O.S.727/90 and O.S.96/97.
6. Copy of high court the order W.P.13813/2008.
7. copy of the R.A.257/2009.
8. Copy of high court the order W.P.27735/2010.
9. Copy of Supreme court the order SLP.20866/2010.
10. Copy of high court the order W.P.34297/2017.



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ದಿನಾಂಕ: 30/11/21

ಇಂದ,

ಎಲ್. ಎಸ್. ಗೋವಿಂದಸ್ವಾಮಿ
ಬಿನ್ ಲೇಟ್ ರಾಮ ಬೋವಿ,
ವಾಸ ನಂ.90/9, ನಾಚನಹಳ್ಳಿ ಪಾಳ್ಯ,
J.P. ನಗರ, ಮೈಸೂರು-570008

ಗೆ,

1. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು
ಕಂದಾಯ ಇಲಾಖೆ,
ಬಹುಮಹಡಿ ಕಟ್ಟಡ, ಅಂಬೇಡ್ಕರ್ ವೀದಿ,
ಬೆಂಗಳೂರು-01

2. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು
ಮೈಸೂರು ಜಿಲ್ಲೆ, ಮೈಸೂರು

3. ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಮೈಸೂರು ಸ್ಟಾ-ಡಿವಿಷನ್, ಮೈಸೂರು

4. ಕಹನೀಲ್ಕಾರರು
ಮೈಸೂರು ತಾಲ್ಲೂಕು
ಮೈಸೂರು

5. ಮೈಸೂರು ಅರ್ಬನ್ ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ (MUDA)
ಜಾನ್ಸಿ ರಾಣಿ ಲಕ್ಷ್ಮೀಬಾಯಿ ರಸ್ತೆ, ಮೈಸೂರು

ಮುಖ್ಯ

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಮೈಸೂರು ಜಿಲ್ಲೆ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಗಲ್ಲ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 82
52, ಮತ್ತು 61 ರ ವಿಸ್ತೀರ್ಣ 13 ಎಕರೆ 29 ಗುಂಟೆ ಜಮೀನಿನ ಪಹಣಿ ದಾಖಲೆ ನನ್ನ
ಹಾಗೂ ಉಳಿದ ಕುಟುಂಬಸ್ಥರ ಹೆಸರಿಗೆ ವರ್ಗಾಯಿಸಿ, ಖಾತೆ ಮಾಡುವ ಬಗ್ಗೆ.

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮೂಲತಃ ಮೈಸೂರು ತಾಲ್ಲೂಕಿನ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಗಲ್ಲ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 52 ರಲ್ಲಿ 1 ಎಕರೆ 34 ಗುಂಟೆ, ಸರ್ವೇ ನಂಬರ್ 61 ರಲ್ಲಿ 1 ಎಕರೆ 35 ಗುಂಟೆ ಮತ್ತು ಸರ್ವೇ ನಂಬರ್ 82 ರಲ್ಲಿ 10 ಎಕರೆ ಜಮೀನು ನನ್ನ ತಾತನಾದ ಶ್ರೀ ಶೇರುಗಾರ್ ಲಕ್ಷ್ಮ ಬೋವಿ ಯವರಿಗೆ ಮಂಜೂರಿ ಮೂಲಕ ಬಂದು ಎಂ. ಆರ್. ನಂಬರ್. 90/1953-54 ರಂತೆ ಖಾತೆಯಾಗಿ ಪಹಣಿ ಹಾಗೂ ರೆವೆನ್ಯೂ ದಾಖಲೆಗಳು ಅವರ ಹೆಸರಿಗೆ ದಾಖಲಾಗಿದ್ದು, ಅವರ ಮರಣ ನಂತರ IHR -4 /1983-84 ರಂತೆ, L ಗೋವಿಂದಸ್ವಾಮಿ ಯಾದ ನನ್ನ ಮತ್ತು ಇತರರ ಹೆಸರಿಗೆ ಪಹಣಿ ದಾಖಲಾಗಿ ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿ ಕೊಂಡು ಬಂದಿರುತ್ತದೆ.

ಮತ್ತು ಸ್ಥಿತಿ ಹೀಗಿರುವಾಗ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ಜಮೀನಿನ ಪೈಕಿ ಕೆಲವು ನಿಷ್ಕರ್ಷವನ್ನು ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದವರು ನಮಗೆ ಯಾವುದೇ ಮುನ್ಸೂಚನೆಯನ್ನು ನೀಡದೆ ಸ್ವಾಧೀನಕ್ಕೆ ತೆಗೆದುಕೊಂಡು ಅಭಿವೃದ್ಧಿ ಪಡಿಸಿ ಬಡಾವಣೆ ಹಾಗೂ ರಸ್ತೆ ರಚನೆ ಮಾಡಿರುತ್ತಾರೆ, ಈ ಕಾರಣ ನಾವುಗಳು ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಮತ್ತು ಇತರ ಇಲಾಖೆ ಮತ್ತು ಪ್ರಾಧಿಕಾರದ ವಿರುದ್ಧ ಮಾನ್ಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಓ. ಎಚ್. ನಂಬರ್. 551 /1987 ಹಾಗೂ ಓ. ಜುಸ್. ನಂಬರ್. 727 /1990 ದಾವೆಗಳನ್ನು ಕೂಡಿದ್ದು ಹಾಗೂ ದಾವಾ ಸಂಖ್ಯೆ 96 /1997 ಪ್ರಕರಣ ಬಾಕಿ ಇರುವಾಗ ಆರ್.ಟಿ. ಸಿ. ಗಳನ್ನೂ ರದ್ದು ಮಾಡಿ ಸರ್ಕಾರ ಎಂದು ನಮೂದು ಮಾಡಿರುತ್ತಾರೆ. ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಪ್ರಾಧಿಕಾರದಿಂದ ಪರಿಹಾರ ಪಡೆದುಕೊಳ್ಳಲು ನಮ್ಮನ್ನು ಮಾರೀಕರೆಂದು ಘೋಷಿಸಿ ದಿನಾಂಕ 30 /07 /2001 ರಂದು ತೀರ್ಪು ನೀಡಿರುತ್ತದೆ ಸದರಿ ನ್ಯಾಯಾಲಯದ ದಿಕ್ರಿಯನ್ನು ಯಾವತ್ತೂ ಪ್ರಶ್ನಿಸಿರುವುದಿಲ್ಲ ಹಾಗೂ ನಮ್ಮ ಹೆಸರಿಗೆ ಪಹಣಿಯಲ್ಲಿ ಖಾತೆಯನ್ನು ದಾಖಲಿಸಿರುವುದಿಲ್ಲ ಈ ಕಾರಣದಿಂದ ನಾವು ಹಿಂದೆ ರಿಟ್ ಅರ್ಜಿ 13813 /2008 ರಂತೆ ಸಲ್ಲಿಸಿದ್ದು ಇರುತ್ತದೆ. ಸದರಿ ರಿಟ್ ಆದೇಶದಲ್ಲಿ ಅಸಲು ದಾವಾ ಸಂಖ್ಯೆ 96 /1997 ರಂತೆ ತೀರ್ಪಿನಂತೆ ಕ್ರಮ ವಹಿಸಲು ತಹಸೀಲ್ದಾರ್ ಮೈಸೂರು ರವರಿಗೆ ಆದೇಶವಿರುತ್ತದೆ. ತದನಂತರ ನಾವು ತಹಸೀಲ್ದಾರರಿಗೆ ಅನೇಕ ಬಾರಿ ಅರ್ಜಿ ಮೇರೆಗೆ ವಿನಂತಿ ಮಾಡಿಕೊಂಡಾಗಲೂ ಯಾವುದೇ ದಾಖಲೆಗಳು

ಮಾನ್ಯ

ನಮ್ಮ ಹೆಸರಿಗೆ ನಮೂದು ಮಾಡಿರುವುದಿಲ್ಲ, ತದನಂತರ ಮೂಲ ದಾವೆ ಸಂಖ್ಯೆ 96 / 1997 ರ ತೀರ್ಪಿನ ವಿರುದ್ಧ ವಿಳಂಬ ಮಾಡಿ ಆರ್ ಎ 257 / 2000 ರಂತೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ ಈ ಮಧ್ಯೆ ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಪಿಟೀಷನ್ ಸಂಖ್ಯೆ 27735 / 2010 ರಂತೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ ನಮ್ಮ ಪರವಾಗಿ ಆದೇಶವಾಗಿರುತ್ತದೆ. ಸದರಿ ಆದೇಶ ಮತ್ತು ಅದಕ್ಕೂ ಪೂರ್ವದಲ್ಲಿಯ ರಿಟ್ ಸಂಖ್ಯೆ 13813 / 2008 ರಂತೆ ಹೊರಡಿಸಿರುವ ಆದೇಶದನ್ವಯ ಸಹ ಅರ್ಜಿ ನೀಡಿದ್ದರು ಯಾವುದೇ ಕಾರ್ಯ ಸಫಲವಾಗಿರುವುದಿಲ್ಲ. ತದನಂತರ ರಿಟ್ ಪಿಟೀಷನ್ ಅರ್ಜಿ 27735 / 2010 ರ ಆದೇಶದ ವಿರುದ್ಧ ಉಪನ್ಯಾಸಾಧಿಕಾರಿ ಮೈಸೂರು ರವರು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ 20866 / 2012 ಸಲ್ಲಿಸಿದ್ದು, ಸದರಿ ಮೇಲ್ಮನವಿ ಸಹ ವಜಾ ಆಗಿರುತ್ತದೆ. ಈ ಪ್ರಕರಣಗಳು ನುಗ್ಗಿದ ನಂತರ ದಲ್ಲಿ ಸಹ ನಾನು ಅನೇಕ ಅರ್ಜಿ ಹಾಗೂ ತದನಂತರ ರಿಟ್ ಅರ್ಜಿ ಸಹ ಮಾಡಿ, ಸದರಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ನಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡಿಕೊಡಲು ಹಾಗೂ ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರವು ಉಪಯೋಗಿಸಿಕೊಂಡಿರುವ ಜಮೀನಿನ ವಿಸ್ತೀರ್ಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಪರಿಹಾರ ಪಡೆದುಕೊಂಡು ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳದೆ ಇರುವ ಉಳಿಕೆ ವಿಸ್ತೀರ್ಣದ ಜಮೀನನ್ನು ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿಕೊಂಡು ನಮ್ಮ ಹಕ್ಕು ಮತ್ತು ಮಾಲೀಕತ್ವದಂತೆ ಸ್ವಾಧೀನ ಅನುಭವ ಅನುಭವಿಸಿಕೊಂಡು ಹೋಗಲು ಅನುಕೂಲವಾಗುವ ದೃಷ್ಟಿಯಿಂದ ಖಾತೆ ಮಾಡಿಕೊಡುವಂತೆ ಪುನಃ ಪುನಃ ನಿರಂತರವಾಗಿ ವಿನಂತಿ ಮಾಡಿ ಕೊಂಡರು ಹಾಗೂ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳಿಗೆ ದಿನಾಂಕ 15 / 07 / 2021 ರಂದು ಸಂಪೂರ್ಣ ವಾಸ್ತವಿಕತೆಯನ್ನು ವಿವರಿಸಿ ದಾಖಲೆ ಮತ್ತು ಅಡಕಗಳನ್ನು ಲಗತ್ತಿಸಿ ಕೊಟ್ಟಿರುವ ಅರ್ಜಿಯ ಮೇರೆಗೆ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ ದಿನಾಂಕ 19/07 / 2021 ರಂದು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಮೈಸೂರು ಜಿಲ್ಲೆ ರವರಿಗೆ ಪತ್ರದನ್ವಯ ನಿಯಮಾನುಸಾರ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳುವಂತೆ ತಿಳಿಸಿದ್ದಾಗ್ಯೂ ಹಾಗೂ ದಿನಾಂಕ 28 / 07 / 2021 ರಂದು ನಿಯಮಾನುಸಾರ ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಿ ಖಾತೆ ಬದಲಾವಣೆ ಮಾಡುವ ಬಗ್ಗೆ ಕ್ರಮ ವಹಿಸಲು ಸಹ ತಿಳಿಸಿದ್ದು ಇರುತ್ತದೆ. ಈಗಾಗಲೇ ಹಾಕಿರುವ ರಿಟ್ ಅರ್ಜಿಗಳು ಒಂದು ವರ್ಷಕ್ಕೂ ಮೇಲ್ಪಟ್ಟಿರುವುದರಿಂದ ಮತ್ತು ರೆವಿನ್ಯೂ ಅಧಿಕಾರಿಗಳು ಎಲ್ಲಾ ದಾಖಲೆಗಳನ್ನು ನೀಡಿ ವಾಸ್ತವಿಕತೆ ಮತ್ತು ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಿದ್ದಾಗ್ಯೂ ಯಾವುದೇ ರೀತಿಯ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳಲು ಮುಂದಾಗದೆ ಇರುವುದು ಆಶ್ಚರ್ಯ ಹಾಗೂ ಸಂದೇಹ ಆಸ್ಪದ ವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನಮಗೆ ತುಂಬಲಾರದ ಅನ್ಯಾಯವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನ್ಯಾಯ ದೊರಕುವುದಕ್ಕಿಂತ ಅನಗತ್ಯ ಖರ್ಚು ವೆಚ್ಚ ಮತ್ತು ಮಾನಸಿಕ ಹಿಂಸೆ ಹಾಗೂ ದುರ್ಬಲತೆ ಉಂಟಾಗಿರುತ್ತದೆ, ನಮಗೆ ರೆವಿನ್ಯೂ ಕಚೇರಿಗಳನ್ನು ಹಾಗೂ ಇತರೆ ಎಲ್ಲಾ ವಿಧದ ನ್ಯಾಯೋಚಿತವಾದ ವಿಭಾಗ ಹಾಗೂ ಇಲಾಖೆಗಳನ್ನು ಸಂಪರ್ಕಿಸಿಯೂ ನ್ಯಾಯ ದೊರೆಯುವ ಯಾವುದೇ ಸುಳಿವು ಲಭಿಸಿರುವುದಿಲ್ಲ, ಈ ಮೇಲಿನ ಕಾರಣಗಳಿಂದ ಕೊನೆಯ ಪ್ರಯತ್ನ ಎಂದು ತಿಳಿದು ಮೇಲಿನ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳಿಗೂ ಈ ಕೆಳಗೆ ಲಗತ್ತಿಸಿರುವ ದಾಖಲೆಗಳೊಂದಿಗೆ ನನ್ನ ವಿನಯ ಪೂರ್ವಕ ಪ್ರಾರ್ಥನೆ

ಮಾನ್ಯ

ಎನಂದರೆ ದಾಖಲೆ ಹಾಗೂ ಈಗಾಗಲೇ ವಿವಿಧ ನ್ಯಾಯಾಲಯಗಳು ನೀಡಿರುವ ತೀರ್ಪುಗಳನ್ನು ತತ್ಕ್ಷಣ ಪರಿಶೀಲಿಸಿ ಸನ್ನಿಹಿತವಾಗಿ ಈ ಮೇಲ್ಕಂಡಿರುವ ವಿವರಗಳನ್ನು ಜಮೀನಿಗೆ ಹೆಸರುಗಳನ್ನು ನಮೂದು ಮಾಡಿ ಪಾತೆ ಹೋರಿಸಿ ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಬೇಕಾಗಿ ವಿನಂತಿ.

ಧನ್ಯವಾದಗಳೊಂದಿಗೆ



(ಎಲ್. ಎಸ್. ಗೋವಿಂದಸ್ವಾಮಿ)

ಇಂತಿ ತಮ್ಮ ವಿಶ್ವಾಸಿ

ಲಗತ್ತಿಸಿರುವ ಅಡಕಗಳು

1. ಮಂಜೂರಾತಿ ಪತ್ರದ ನಕಲು
2. ಎಂ.ಆರ್. ನಂ. 20/1953-54 ರ ನಕಲು
3. 79-80 ರಿಂದ 85-86 ಆರ್ ಟಿ ಸಿ
4. ಆರ್. ಆರ್. ರಿ ಮತ್ತು ರೆಕಾರ್ಡ್ಸ್ ಅಫ್ ರೈಟ್ಸ್
5. ಓ.ಎಸ್. ನಂ.551/87, ಓ.ಎಸ್.ನಂ. 727/90 ಮತ್ತು ಓ.ಎಸ್. ನಂ 96/97 ರ ಆಗೋರದ ಪ್ರತಿ
6. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 13813/2008 ರ ಪ್ರತಿ
7. ಆರ್. ಎ. ನಂ. 988/2008 ರ ಪ್ರತಿ
8. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 27735 /2010 ರ ಪ್ರತಿ
9. ಸರ್ವೋಚ್ಚನ್ಯಾಯಾಲಯದ ಎಸ್. ಎಲ್. ಜಿ ಸಂಖ್ಯೆ. 20866 /2010 ರ ಪ್ರತಿ
10. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 34297 /2017 ರ ಪ್ರತಿ



Translated copy of Annexure-K

Date:30-11-2021.

From.

L.N Govindaswamy s/o Late Rama bhovi
House No:90/9, Nachanahalli palya
J.P.Nagara, Mysuru-570008.

TO.

1. Principle Secretary
Revenue department
Multistore building
Ambedkar Vadhi
Bangalore-01.
2. Deputy Commissioner
Mysuru district
Mysuru.
3. Assistant commissioner
Mysuru Sub-division
Mysuru.
4. Thasildar Mysuru Taluk
Mysuru.
5. Mysuru urban development Authosith
Jansirani lakshmibai road, Mysuru.

Respected sir,

Subject:- Regarding the transfer of khatha and the R.T.C record of the land measuring 13 acres 29 guntas, in survey number 82, 52 and 61, Kasaba Hobli, Dattagalli village, Mysore district, in my name and that of the rest of my family members.

In connection with the above matter, originally 1-34 Acre in survey number 52 of Dattagalli village, Kasaba Hobli, Mysore taluk, 1-35 Acre in survey number 61 and 10 acres of land in survey number 82 came to my grandfather Shri Sherugar Lakshama Bovi through grant and the land title and revenue records were registered in his name as M. R. No. 90/1953 -54, after his death, the land title was registered in the name of L.Govindaswamy and others and we have been enjoying it as our right.



In such a situation, some of the above land has been acquired by the Mysore Urban Development Authority without giving us any notice and developed it and constructed a layout and road. For this reason, we have filed O. S. No.551 /1987 and O. S. No. 722 / 1990 suits in the Hon'ble Civil Court against the Government of Karnataka and other departments and authorities, while the case of suit No. 96 / 1997 is pending, the R.T.C. has also been cancelled and entered as 'Government'. In this case The Hon'ble court ordered as we are the owners of the above land and to claim the compensation from the MUDA on: 30/07/2001. The said Court's order has never been challenged and the khatha has not been registered in our name in the R.T.C. Therefore, we have filed a writ petition as 13813/2008. In the said writ petition, the Tahsildar, Mysore has been ordered to take action as per the judgment the said O.S.No. 96/1997. Thereafter, we have requested the Tahsildar several times but khatha has not been done in our name. After that, you have filed an appeal against the original suit number 96/1997 with delay under RA 257/2000, In between this W.P:27735/2010 is orders in one favor. The said order and the earlier order issued in W.P.13813/2008 we filed an application, but no action has been taken. There after* against the W.P:27735/2010 order Assistant commissioner mysuru filed an appeal in Supreme Court as 20866/2012 and the said appeal is also dismissed. Even after the completion of these cases, I have filed many applications and have repeatedly requested to make a khatha in our name as per the order of the said High Court and that the Mysore Urban Development Authority should obtain compensation for the area of land used and not acquired, so that we can enjoy the remaining area of land as per our right and ownership and enjoy the right and ownership. Simultaneously with explaining the facts and documents on 15/7/2021 we are given application to Principle secretary to the Revenue department on 19/07/2021 they were directed Deputy Commissioner to take action as per rules on 28/07/2021. Since the applications are above one year old and the Revenue officials have provided all the documents but have not taken any action, it is surprising and suspicious and it is an irreparable injustice to us and it is unnecessary expenditure and mental torture rather than getting justice. We have contacted the offices and all other relevant departments but we have not received any hint of getting justice. For the above reasons, finally I humbly request all the above officials to examine the records immediately (attached with this) and the judgments already given by various



courts and enter my name and rest of my family members in RTC and make as khatha as per my right and provide my document.

With Thanks

sign/-
(L.N. Govindaswamy)
Yours Faithfully

Enclosures:

1. Grant certificate copy.
2. Copy of M.R.20/1953-54.
3. RTC from 79-80 to 85-86.
4. Copy of R R 6 and records of rights.
5. Order of the O.S.551/87, O.S.727/90 and O.S.96/97.
6. Copy of high court the order W.P.13813/2008.
7. copy of the R.A.257/2009.
8. Copy of high court the order W.P.27735/2010.
9. Copy of Supreme court the order SLP.20866/2010.
10. Copy of high court the order W.P.34297/2017.



ದಿನಾಂಕ: 30/11/21

ಇಂದ,

ಎಲ್. ಎನ್. ಗೋವಿಂದಸ್ವಾಮಿ
ಬಿನ್ ಲೇಟ್ ರಾಮ ಬೋವಿ,
ವಾಸ ನಂ.90/9, ನಾಚನಹಳ್ಳಿ ಪಾಳ್ಯ,
J.P. ನಗರ, ಮೈಸೂರು-570008

ಗೆ.

1. ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು
ಕಂದಾಯ ಇಲಾಖೆ,
ಇಹುಮಹಡಿ ಕಟ್ಟಡ, ಲಂಬೇಡ್ಕರ್ ವೀದಿ,
ಬೆಂಗಳೂರು-01

2. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು
ಮೈಸೂರು ಜಿಲ್ಲೆ, ಮೈಸೂರು

3. ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು
ಮೈಸೂರು ಸಬ್-ಡಿವಿಷನ್, ಮೈಸೂರು

4. ತಹಸೀಲ್ದಾರರು
ಮೈಸೂರು ತಾಲ್ಲೂಕು
ಮೈಸೂರು

5. ಮೈಸೂರು ಆರ್ಬನ್ ಅಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ (MUDA)
ಜಾನ್ಸಿ ರಾಣಿ ಲಕ್ಷ್ಮೀಬಾಯಿ ರಸ್ತೆ, ಮೈಸೂರು



(Signature)

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಮೈಸೂರು ಜಿಲ್ಲೆ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಗಲ್ಲ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 82
52, ಮತ್ತು 61 ರ ವಿಸ್ತೀರ್ಣ 13 ಎಕರೆ 29 ಗುಂಟೆ ಜಮೀನಿನ ಪಹಣಿ ದಾಖಲೆ ನನ್ನ
ಹಾಗೂ ಉಳಿದ ಕುಟುಂಬಸ್ಥರ ಹೆಸರಿಗೆ ವರ್ಗಾಯಿಸಿ, ಖಾತೆ ಮಾಡುವ ಬಗ್ಗೆ.

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಮೂಲತಃ ಮೈಸೂರು ತಾಲ್ಲೂಕಿನ ಕಸಬಾ ಹೋಬಳಿ ದಟ್ಟಹಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೇ ನಂಬರ್ 52 ರಲ್ಲಿ 1 ಎಕರೆ 34 ಗುಂಟೆ, ಸರ್ವೇ ನಂಬರ್ 61 ರಲ್ಲಿ 1 ಎಕರೆ 35 ಗುಂಟೆ ಮತ್ತು ಸರ್ವೇ ನಂಬರ್ 82 ರಲ್ಲಿ 10 ಎಕರೆ ಜಮೀನು ನನ್ನ ತಾತನಾದ ಶ್ರೀ ಶೇರುಗಾರ್ ಲಕ್ಷ್ಮ ಜೋವಿ ಯವರಿಗೆ ಮಂಜೂರಿ ಮೂಲಕ ಬಂದು ಎಂ. ಆರ್. ನಂಬರ್. ೨೦/1953 -54 ರಂತೆ ಖಾತೆಯಾಗಿ ಪಹಣಿ ಹಾಗೂ ರವೆನ್ಯೂ ದಾಖಲೆಗಳು ಅವರ ಹೆಸರಿಗೆ ದಾಖಲಾಗಿವೆ, ಅವರ ಮರಣ ನಂತರ IHR -4 /1983 -84 ರಂತೆ L ಗೋವಿಂದಸ್ವಾಮಿ ಯಾದ ನನ್ನ ಮತ್ತು ಇತರರ ಹೆಸರಿಗೆ ಪಹಣಿ ದಾಖಲಾಗಿ ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಬವಿಸಿ ಕೊಂಡು ಬಂದಿರುತ್ತದೆ.

ವಸ್ತು ಸ್ಥಿತಿ ಹೀಗಿರುವಾಗ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ಜಮೀನಿನ ಪೈಕಿ ಕೆಲವು ವಿಸ್ತೀರ್ಣವನ್ನು ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದವರು ನಮಗೆ ಯಾವುದೇ ಮುನ್ನೂತನೆಯನ್ನು ನೀಡದೆ ಸ್ವಾಧೀನಕ್ಕೆ ತೆಗೆದುಕೊಂಡು ಅಭಿವೃದ್ಧಿ ಪಡಿಸಿ ಬಡಾವಣೆ ಹಾಗೂ ರಸ್ತೆ ರಚನೆ ಮಾಡಿರುತ್ತಾರೆ. ಈ ಕಾರಣ ನಾವುಗಳು ಕರ್ನಾಟಕ ಸರ್ಕಾರ ಮತ್ತು ಇತರ ಇಲಾಖೆ ಮತ್ತು ಪ್ರಾಧಿಕಾರದ ವಿರುದ್ಧ ಮಾನ್ಯ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದ ಓ. ಆರ್. ನಂಬರ್. 551 /1987 ಹಾಗೂ ಓ. ಆರ್. ನಂಬರ್. 727 /1990 ದಾವೆಗಳನ್ನು ಹೂಡಿದ್ದು ಹಾಗೂ ದಾವಾ ಸಂಖ್ಯೆ 96 /1997 ಪ್ರಕರಣ ಬಾಕಿ ಇರುವಾಗ ಆರ್.ಟಿ. ಸಿ. ಗಳನ್ನೂ ರದ್ದು ಮಾಡಿ ಸರ್ಕಾರ ಎಂದು ನಮೂದು ಮಾಡಿರುತ್ತಾರೆ. ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಪ್ರಾಧಿಕಾರದಿಂದ ಪರಿಹಾರ ಪಡೆದುಕೊಳ್ಳಲು ನಮ್ಮನ್ನು ಮಾಲೀಕರೆಂದು ಘೋಷಿಸಿ ದಿನಾಂಕ 30 /07 /2001 ರಂದು ತೀರ್ಪು ನೀಡಿರುತ್ತದೆ ಸದರಿ ನ್ಯಾಯಾಲಯದ ದಿಕ್ರಿಯನ್ನು ಯಾವತ್ತೂ ಪ್ರಶ್ನಿಸಿರುವುದಿಲ್ಲ ಹಾಗೂ ನಮ್ಮ ಹೆಸರಿಗೆ ಪಹಣಿಯಲ್ಲಿ ಖಾತೆಯನ್ನು ದಾಖಲಿಸಿರುವುದಿಲ್ಲ ಈ ಕಾರಣದಿಂದ ನಾವು ಹಿಂದೆ ರಿಟ್ ಅರ್ಜಿ 13813 /2008 ರಂತೆ ಸಲ್ಲಿಸಿದ್ದು ಇರುತ್ತದೆ. ಸದರಿ ರಿಟ್ ಆದೇಶದಲ್ಲಿ ಅಸಲು ದಾವಾ ಸಂಖ್ಯೆ 96 /1997 ರಂತೆ ತೀರ್ಪಿನಂತೆ ಕ್ರಮ ವಹಿಸಲು ತಹಸೀಲ್ದಾರ್ ಮೈಸೂರು ರವರಿಗೆ ಆದೇಶವಿರುತ್ತದೆ. ತದನಂತರ ನಾವು ತಹಸೀಲ್ದಾರರಿಗೆ ಅನೇಕ ಬಾರಿ ಅರ್ಜಿ ಮೇರೆಗೆ ವಿನಂತಿ ಮಾಡಿಕೊಂಡಾಗಲೂ ಯಾವುದೇ ದಾಖಲೆಗಳು



ನಮ್ಮ ಹೆಸರಿಗೆ ನಮೂದು ಮಾಡಿರುವುದಿಲ್ಲ, ತದ ನಂತರ ಮೂಲ ದಾವೆ ಸಂಖ್ಯೆ 96 / 1997 ರ ತೀರ್ಪಿನ ವಿರುದ್ಧ ವಿಳಂಬ ಮಾಡಿ ಆರ್ ಡಿ 257 / 2006 ರಂತೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ ಈ ಮಧ್ಯೆ ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಪೀಟಿಷನ್ ಸಂಖ್ಯೆ 27735 / 2010 ರಂತೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿ ನಮ್ಮ ವರವಾಗಿ ಆದೇಶವಾಗಿರುತ್ತದೆ. ಸದರಿ ಆದೇಶ ಮತ್ತು ಅದಕ್ಕೂ ಪೂರ್ವದಲ್ಲಿಯ ರಿಟ್ ಸಂಖ್ಯೆ 13813 / 2008 ರಂತೆ ಹೊರಡಿಸಿರುವ ಆದೇಶದನ್ವಯ ಸಹ ಅರ್ಜಿ ನೀಡಿದ್ದರು ಯಾವುದೇ ಕಾರ್ಯ ಸಫಲವಾಗಿರುವುದಿಲ್ಲ. ತದನಂತರ ರಿಟ್ ಪೀಟಿಷನ್ ಅರ್ಜಿ 27735 / 2010 ರ ಆದೇಶದ ವಿರುದ್ಧ ಉಚ್ಚನ್ಯಾಯಾಧಿಕಾರಿ ಮೈಸೂರು ರವರು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮೇಲ್ಮನವಿ ಸಂಖ್ಯೆ 20866 / 2012 ಸಲ್ಲಿಸಿದ್ದು ಸದರಿ ಮೇಲ್ಮನವಿ ಸಹ ವಜಾ ಆಗಿರುತ್ತದೆ. ಈ ಪ್ರಕರಣಗಳು ಮುಗಿದ ನಂತರ ದಲ್ಲಿ ಸಹ ನಾನು ಅನೇಕ ಅರ್ಜಿ ಹಾಗೂ ತದನಂತರ ರಿಟ್ ಅರ್ಜಿ ಸಹ ಮಾಡಿ, ಸದರಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದಂತೆ ನಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ಮಾಡಿಕೊಡಲು ಹಾಗೂ ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರವು ಉಪಯೋಗಿಸಿಕೊಂಡಿರುವ ಜಮೀನಿನ ವಿಸ್ತೀರ್ಣಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಪರಿಹಾರ ಪಡೆದುಕೊಂಡು ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳದೆ ಇರುವ ಉಳಿಕೆ ವಿಸ್ತೀರ್ಣದ ಜಮೀನನ್ನು ನಮ್ಮ ಹಕ್ಕಿನಂತೆ ಅನುಭವಿಸಿಕೊಂಡು ನಮ್ಮ ಹಕ್ಕು ಮತ್ತು ಮಾರಿಕತತ್ವದಂತೆ ಸ್ವಾಧೀನ ಅನುಭವ ಅನುಭವಿಸಿಕೊಂಡು ಹೋಗಲು ಅನುಕೂಲವಾಗುವ ದೃಷ್ಟಿಯಿಂದ ಖಾತೆ ಮಾಡಿಕೊಡುವಂತೆ ಪುನಃ ಪುನಃ ನಿರಂತರವಾಗಿ ವಿನಂತಿ ಮಾಡಿ ಕೊಂಡರು ಹಾಗೂ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳಿಗೆ ದಿನಾಂಕ 15 / 07 / 2021 ರಂದು ಸಂಪೂರ್ಣ ವಾಸ್ತವಿಕತೆಯನ್ನು ವಿವರಿಸಿ ದಾಖಲೆ ಮತ್ತು ಅಡಕಗಳನ್ನು ಲಗತ್ತಿಸಿ ಕೊಟ್ಟಿರುವ ಅರ್ಜಿಯ ಮೇರೆಗೆ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ ದಿನಾಂಕ 19/07 / 2021 ರಂದು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಮೈಸೂರು ಜಿಲ್ಲೆ ರವರಿಗೆ ಪತ್ರದನ್ವಯ ನಿಯಮಾನುಸಾರ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳುವಂತೆ ತಿಳಿಸಿದ್ದಾಗ್ಯೂ ಹಾಗೂ ದಿನಾಂಕ 28 / 07 / 2021 ರಂದು ನಿಯಮಾನುಸಾರ ಕೂಲಂಕುಷವಾಗಿ ಪರಿಶೀಲಿಸಿ ಖಾತೆ ಬದಲಾವಣೆ ಮಾಡುವ ಬಗ್ಗೆ ಕ್ರಮ ವಹಿಸಲು ಸಹ ತಿಳಿಸಿದ್ದು ಇರುತ್ತದೆ. ಈಗಾಗಲೇ ಹಾಕಿರುವ ರಿಟ್ ಅರ್ಜಿಗಳು ಒಂದು ವರ್ಷಕ್ಕೆ ಮೇಲ್ಮಟ್ಟಿರುವುದರಿಂದ ಮತ್ತು ರೆವಿನ್ಯೂ ಅಧಿಕಾರಿಗಳು ಎಲ್ಲಾ ದಾಖಲೆಗಳನ್ನು ನೀಡಿ ವಾಸ್ತವಿಕತೆ ಮತ್ತು ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಿದ್ದಾಗ್ಯೂ ಯಾವುದೇ ರೀತಿಯ ಕ್ರಮ ತೆಗೆದುಕೊಳ್ಳಲು ಮುಂದಾಗದೆ ಇರುವುದು ಅಶ್ಚರ್ಯ ಹಾಗೂ ಸಂದೇಹ ಆಸ್ತದ ವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನಮಗೆ ತುಂಬಲಾರದ ಅನ್ಯಾಯವಾಗಿರುತ್ತದೆ ಹಾಗೂ ನ್ಯಾಯ ದೊರಕುವುದಕ್ಕಿಂತ ಅನಗತ್ಯ ಖರ್ಚು ವೆಚ್ಚ ಮತ್ತು ಮಾನಸಿಕ ಹಿಂಸೆ ಹಾಗೂ ಮರ್ಬಲತೆ ಉಂಟಾಗಿರುತ್ತದೆ, ನಮಗೆ ರೆವಿನ್ಯೂ ಕಚೇರಿಗಳನ್ನು ಹಾಗೂ ಇತರ ಎಲ್ಲಾ ವಿಧದ ನ್ಯಾಯಾಚಿತವಾದ ವಿಭಾಗ ಹಾಗೂ ಇಲಾಖೆಗಳನ್ನು ಸಂಪರ್ಕಿಸಿಯೂ ನ್ಯಾಯ ದೊರೆಯುವ ಯಾವುದೇ ಸುಳಿವು ಲಭಿಸಿರುವುದಿಲ್ಲ, ಈ ಮೇಲಿನ ಕಾರಣಗಳಿಂದ ಕೊನೆಯ ಪ್ರಯತ್ನ ಎಂದು ತಿಳಿದು ಮೇಲಿನ ಎಲ್ಲಾ ಅಧಿಕಾರಿಗಳಿಗೂ ಈ ಕೆಳಗೆ ಲಗತ್ತಿಸಿರುವ ದಾಖಲೆಗಳೊಂದಿಗೆ ನನ್ನ ವಿನಯ ಪೂರ್ವಕ ಪ್ರಾರ್ಥನೆ

ಮುಖ್ಯ,

ಏನೆಂದರೆ ದಾಖಲೆ ಹಾಗೂ ಈಗಾಗಲೇ ವಿವಿಧ ನ್ಯಾಯಾಲಯಗಳು ನೀಡಿರುವ ತೀರ್ಪುಗಳನ್ನು ತತ್ಕ್ಷಣ ಪರಿಶೀಲಿಸಿ ನನ್ನ ಹಕ್ಕಿನಂತೆ ಈ ಮೇಲ್ಕಾಣಿಸಿದ ವಿಸ್ತೀರ್ಣದ ಭೂಮಿಗೆ ಹೆಸರುಗಳನ್ನು ನಮೂದು ಮಾಡಿ ಖಾತೆ ಪೋರಿಸಿ ದಾಖಲೆಗಳನ್ನು ಒದಗಿಸಬೇಕಾಗಿ ವಿನಂತಿ.

ಧನ್ಯವಾದಗಳೊಂದಿಗೆ



(ಎಲ್. ಎನ್. ಗೋವಿಂದಸ್ವಾಮಿ)

ಇಂತಿ ತಮ್ಮ ವಿಶ್ವಾಸಿ

ಲಗತ್ತಿಸಿರುವ ಅಡಕಗಳು

1. ಮಂಜೂರಾತಿ ಪತ್ರದ ನಕಲು
2. ಎಂ. ಆರ್. ನಂ. 20/1953-54 ರ ನಕಲು
3. 79-80 ರಿಂದ 85-86 ಆರ್ ಟಿ ಸಿ
4. ಆರ್. ಆರ್. 0 ಮತ್ತು ರೆಕಾರ್ಡ್ಸ್ ಅಫ್ ರೈಟ್ಸ್
5. ಓ.ಎನ್. ನಂ. 551/87, ಓ.ಎಸ್. ನಂ. 727/90 ಮತ್ತು ಓ.ಎಸ್. ನಂ. 96/97 ರ ಆದೇಶದ ಪ್ರತಿ
6. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 13813/2008 ರ ಪ್ರತಿ
7. ಆರ್. ಎ. ನಂ. 982/2009 ರ ಪ್ರತಿ
8. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 27735 /2010 ರ ಪ್ರತಿ
9. ಸರ್ವೋಚ್ಚನ್ಯಾಯಾಲಯದ ಎಸ್. ಎಲ್. ಪಿ ಸಂಖ್ಯೆ. 20866 /2010 ರ ಪ್ರತಿ
10. ಉಚ್ಚನ್ಯಾಯಾಲಯದ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ. 34297 /2017 ರ ಪ್ರತಿ



Translated copy of Annexure-L

Date:30-11-2021.

From.

L.N Govindaswamy s/o Late Rama bhovi
House No:90/9, Nachanahalli palya
J.P.Nagara, Mysuru-570008.

TO.

1. Principle Secretary
Revenue department
Multistore building
Ambedkar Vadhi
Bangalore-01.
2. Deputy Commissioner
Mysuru district
Mysuru.
3. Assistant commissioner
Mysuru Sub-division
Mysuru.
4. Thasildar Mysuru Taluk
Mysuru.
5. Mysuru urban development Authosith
Jansirani lakshmibai road, Mysuru.

Respected sir,

Subject:- Regarding the transfer of khatha and the R.T.C record of the land measuring 13 acres 29 guntas, in survey number 82, 52 and 61, Kasaba Hobli, Dattagalli village, Mysore district, in my name and that of the rest of my family members.

In connection with the above matter, originally 1-34 Acre in survey number 52 of Dattagalli village, Kasaba Hobli, Mysore taluk, 1-35 Acre in survey number 61 and 10 acres of land in survey number 82 came to my grandfather Shri Sherugar Lakshama Bovi through grant and the land title and revenue records were registered in his name as M. R. No. 90/1953 -54, after his death, the land title was registered in the name of L.Govindaswamy and others and we have been enjoying it as our right.



In such a situation, some of the above land has been acquired by the Mysore Urban Development Authority without giving us any notice and developed it and constructed a layout and road. For this reason, we have filed O. S. No.551 /1987 and O. S. No. 722 / 1990 suits in the Hon'ble Civil Court against the Government of Karnataka and other departments and authorities, while the case of suit No. 96 / 1997 is pending, the R.T.C. has also been cancelled and entered as 'Government'. In this case The Hon'ble court ordered as we are the owners of the above land and to claim the compensation from the MUDA on: 30/07/2001. The said Court's order has never been challenged and the khatha has not been registered in our name in the R.T.C. Therefore, we have filed a writ petition as 13813/2008. In the said writ petition, the Tahsildar, Mysore has been ordered to take action as per the judgment the said O.S.No. 96/1997. Thereafter, we have requested the Tahsildar several times but khatha has not been done in our name. After that, you have filed an appeal against the original suit number 96/1997 with delay under RA 257/2000, In between this W.P:27735/2010 is orders in one favor. The said order and the earlier order issued in W.P.13813/2008 we filed an application, but no action has been taken. There after against the W.P:27735/2010 order Assistant commissioner mysuru filed an appeal in Supreme Court as 20866/2012 and the said appeal is also dismissed. Even after the completion of these cases, I have filed many applications and have repeatedly requested to make a khatha in our name as per the order of the said High Court and that the Mysore Urban Development Authority should obtain compensation for the area of land used and not acquired, so that we can enjoy the remaining area of land as per our right and ownership and enjoy the right and ownership. Simultaneously with explaining the facts and documents on 15/7/2021 we are given application to Principle secretary to the Revenue department on 19/07/2021 they were directed Deputy Commissioner to take action as per rules on 28/07/2021. Since the applications are above one year old and the Revenue officials have provided all the documents but have not taken any action, it is surprising and suspicious and it is an irreparable injustice to us and it is unnecessary expenditure and mental torture rather than getting justice. We have contacted the offices and all other relevant departments but we have not received any hint of getting justice. For the above reasons, finally I humbly request all the above officials to examine the records immediately (attached with this) and the judgments already given by various



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courts and enter my name and rest of my family members in RTC and make as khatha as per my right and provide my document.

With Thanks

sign/-
(L.N. Govindaswamy)
Yours Faithfully

Enclosures:

1. Grant certificate copy.
2. Copy of M.R.20/1953-54.
3. RTC from 79-80 to 85-86.
4. Copy of R R 6 and records of rights.
5. Order of the O.S.551/87, O.S.727/90 and O.S.96/97.
6. Copy of high court the order W.P.13813/2008.
7. copy of the R.A.257/2009.
8. Copy of high court the order W.P.27735/2010.
9. Copy of Supreme court the order SLP.20866/2010.
10. Copy of high court the order W.P.34297/2017.



ತಜ್ಞೋಪದೇಶವಾಗಿ.

ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಮೈಸೂರು

ಇಂದ.

ಎಲ್.ಎನ್. ಗೋವಿಂದಸ್ವಾಮಿ ಬಿನ್ ರೇಟ್ ರಾಮಾ ಬೋವಿ,
ನಂ.90/91, 8ನೇ ಮೇಸ, ಬ್ಯಾಂಕ್ ಕಾಲೋನಿ,

'ಡಿ' ಬ್ಲಾಕ್, ಜಿ.ಪಿ.ನಗರ, ಮೈಸೂರು ಸಿಟಿ.

ANNEXURE

M

ಮಾನ್ಯರೇ,

ವಿಷಯ: ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಕಸಬಾ ಹೋಬಳಿ, ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 82, 52 ಮತ್ತು 61
ರಲ್ಲಿರುವ 13-29 ಗುಂಪೆ ಜಮೀನಿನ ಪಾತೆ ಮಾಡಿಕೊಡುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ:

1. ಆಸಲು ದಾವಾ ಸಂಖ್ಯೆ ಹಳೆ ಓ.ಎಸ್.ನಂ. 551/87, ನಂತರ 727/90 ನಂತರ ಹೊಸ ನಂ. 96/97
ಸಿವಿಲ್ ನ್ಯಾಯಾಧಿಕರ ನ್ಯಾಯಾಲಯ, ದಿ. 30.07.2001 ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಪ್ರಕಾರ.
2. ಹಳೆ ಆರ್.ಎ. ನಂ. 137/2006, ಹೊಸ ಆರ್.ಎ.257/2009 ಮೈಸೂರಿನ ಜಿಲ್ಲಾ ನ್ಯಾಯಾಲಯ ಆದೇಶದ
ಪ್ರಕಾರ
3. ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯ ಬೆಂಗಳೂರು ರಿಟ್ ವಿಟೇಷನ್ ನಂ. 27735/2010, ದಿ. 30.08.2001
4. ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯ ಪೇಷಲ್ ರೀಫ್ ಆಪೀಲ್ 20866/2012
5. ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯ ಬೆಂಗಳೂರು ರಿಟ್ ವಿಟೇಷನ್ ನಂ. 13183/2008, ದಿ. 08.07.2009
6. ಕಾನೂನು ಇಲಾಖೆಯ ವಿಭಾಗ ಪೌಢ, ಕರ್ನಾಟಕ ಸರ್ಕಾರ, ದಿ: _____
7. ಮೈಸೂರು ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಅಧಿಕೃತ ಜ್ಞಾಪನ ಪತ್ರ, ಕರ್ನಾಟಕ ದಿ:
8. ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ, ಬೆಂಗಳೂರು ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ದಿ.
04.10.2001 ರಲ್ಲಿ ಬರೆದ ಪತ್ರ
9. ನ್ಯಾಯಾಂಗ ಸಿಂದನೆ ಪ್ರಕರಣ ಸಂಖ್ಯೆ. ಸಿ.ಸಿ.ಸಿ. 806/2009 ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಮಾನ್ಯ
ತಜ್ಞೋಪದೇಶವರು ಪಲ್ಲಿಸಿದ ಪ್ರಮಾಣ ಪತ್ರ
10. ಸಿ.ಸಿ.ಸಿ. 1099/2016 ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದ ಪ್ರತಿ
11. ದಿನಾಂಕ 03.08.2005 ಪತ್ರ ಸಂಖ್ಯೆ. ನಆಇ445/ಮೈಅಪ್ರ/2004 ಸಗರಾಭಿವೃದ್ಧಿ ಇಲಾಖೆ ಸರ್ಕಾರದ
ಕಾರ್ಯದರ್ಶಿ ಬೆಂಗಳೂರು.
12. ಕ್ರೈ ನಂ. 13/2012 4ನೇ ಹೆಚ್ಚುವರಿ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯ (ಕಿ.ಶ್ರೀ) ಜಿ.ಎಂ.ಎಂ.ಫ್.ಸಿ ಆದೇಶ.
13. ಕಂದಾಯ ಇಲಾಖೆ ಬೆಂಗಳೂರು ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಯವರ ದಿನಾಂಕ 29.02.2012 ಸಭೆಯ ನಡವಳಿ
14. ಆರ್.ಎ. 490/18 ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ ನ್ಯಾಯಾಲಯ ಮೈಸೂರು ಉಪವಿಭಾಗ ದಿನಾಂಕ
28.08.2019

ಮಾನ್ಯ



18 ತಹಶೀಲ್ದಾರ್ ಕಾರ್ಯಾಲಯ ಮೈಸೂರು ತಾಲ್ಲೂಕು ತಿಳುವಳಿಕೆ ಪತ್ರ ದಿನಾಂಕ
30.09.2020 ಆರ್.ಆರ್.ಟಿ ಸಿ.ಆರ್ ನಂ.253 2020-21.

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಈ ಮೂಲಕ ತಮ್ಮಲ್ಲಿ
ವಿಗಂಟಿಕೊಳ್ಳುವುದೇನೆಂದರೆ, ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಕಸಬಾ ಹೋಬಳಿ, ದಟ್ಟಿಗಲ್ ಗ್ರಾಮದ ಸರ್ವೆ
ನಂ.57ರಲ್ಲಿ 1 ಎಕರೆ 34 ಗುಂಟೆ, ಸರ್ವೆ ನಂ.61ರಲ್ಲಿ 1 ಎಕರೆ 35 ಗುಂಟೆ ಹಾಗೂ ಸರ್ವೆ ನಂ.82 ರಲ್ಲಿ
10 ಎಕರೆ ಜಮೀನು ಒಟ್ಟು ಜಮೀನು 13 ಎಕರೆ 29 ಗುಂಟೆ, ದಿನಾಂಕ 31.03.1954ರಲ್ಲಿ ನನ್ನ
ತಾತನವರಾದ ಶ್ರೀ ಸೇರ್‌ವೆಗಾರ್ ಲಕ್ಷ್ಮಬೋಯಿರವರಿಗೆ ಮಂಜೂರಾಗಿ ಬಂದ ಅವರ ಹೆಸರಿನಲ್ಲಿ
ಎಂ.ಆರ್.ನಂ.20/1953-54 ರಂತೆ ಖಾತೆ ಆಗಿದ್ದು, ತದನಂತರ ಅವರ ಮರಣಾನಂತರ ಸದರಿ
ಜಮೀನು ಪೌತಿ ಮೇರೆಗೆ ಐ.ಹೆಚ್.ಆರ್.4/1983-84 ರಂತೆ ನನ್ನ ಹೆಸರಿಗೆ ಖಾತೆ ದಾಖಲಾಗಿರುತ್ತದೆ.
ನಾನು ಕಾಲ-ಕಾಲಕ್ಕೆ ಕಂದಾಯವನ್ನು ಪಾವತಿಸುತ್ತೇನೆ. 1987ರಲ್ಲಿ ಮಾನ್ಯ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು
ನನ್ನ ತಾತನವರಾದ ಶ್ರೀ ಸೇರ್‌ವೆಗಾರ್ ಲಕ್ಷ್ಮಬೋಯಿರವರಿಗೆ ತಿಳುವಳಿಕೆ ಪತ್ರ ನೀಡಿದ್ದು, ಅದರ ಮರಣ
ಪೂರೈಸುವುದರಿಂದ ಎಲ್.ಎನ್.ಗೋವಿಂದಸ್ವಾಮಿ ಅವರ ನಾನು ಮಾನ್ಯ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳಿಗೆ
1987ರಲ್ಲಿ ನೀಡಿದ ನೋಟೀಸ್‌ಗೆ ಪ್ರತ್ಯುತ್ತರವಾಗಿ ವಕೀಲರ ಮೂಲಕ ನೋಟೀಸ್ ಕೊಟ್ಟಿದ್ದು, ನಂತರ
ಮುಖ್ಯಕಾರ್ಯದರ್ಶಿ ಕಂದಾಯ ಇಲಾಖೆ, ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ಉಪವಿಭಾಗ
ಮೈಸೂರು ಹಾಗೂ ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ ಆಯುಕ್ತರು ಮೈಸೂರು ಇವರನ್ನು
ಪತ್ತೆಗಾರರನ್ನಾಗಿ ಮಾಡಿ ನಾವುಗಳು ಒ.ಎಸ್.ನಂ.551/1987, ನಂತರ ಒ.ಎಸ್.ನಂ.727/1990 ರ
ನಂತರ ಜೊಸ ನಂಬರ್‌ಆಗಿ 1996/97 2ನೇ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಶಾಶ್ವತ ತಡೆಯಾಜ್ಞೆ
ಮಾಲೀಕತ್ವ ಕೋರಿ ದಾವೆ ಹೂಡಿದ್ದು, ಈ ಮಧ್ಯೆ ಪ್ರಕರಣ ಇತ್ಯರ್ಥಕ್ಕೆ ಛಾಕಿ ಇರುವಾಗ ಮಾನ್ಯ
ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಆರ್.ಟಿ.ಸಿ ಯಲ್ಲಿ ನನ್ನ ಪೆಸರನ್ನು ತೆಗೆದು ಸರ್ಕಾರ ಎಂದು ನಮೂದು
ಮಾಡಿರುತ್ತಾರೆ. ಆದರೆ ದಿನಾಂಕ 30.07.2001 ರಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯವು ಮಾಲೀಕರೆಂದು
ಘೋಷಿಸಿ ಪ್ರಾಧಿಕಾರದಿಂದ ಭು ಪರಿಹಾರ ಪಡೆದುಕೊಳ್ಳಲು ಅರ್ಹರೆಂದು ಹಾಗೂ 2ನೇ ಪ್ರತಿವಾದಿ
ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳ ವಿರುದ್ಧ ಶಾಶ್ವತ ತಡೆಯಾಜ್ಞೆಯನ್ನು ನೀಡಿದ್ದು, ಅದರಂತೆ ಅರ್ಜಿದಾರರು ಭೂ
ಮಾಲೀಕರೆಂದು ನ್ಯಾಯಾಲಯ ತೀರ್ಮಾನ ಮಾಡಿರುತ್ತದೆ.

ಮುಖ್ಯ

ಸಂತರ ಮೈಸೂರು ನಗರ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಪರಿಹಾರ ಪಡೆಯಲು ಅರ್ಜಿಯನ್ನು ಸಲ್ಲಿಸಿದ್ದು, ಪ್ರಾಧಿಕಾರದವರು ನಗರಾಭಿವೃದ್ಧಿ ಇಲಾಖೆ, ಕಾರ್ಯದರ್ಶಿ ಬೆಂಗಳೂರು, ದಿನಾಂಕ 03.08.2005 ರಲ್ಲಿ ಪರಸ್ಪರ ಒಪ್ಪಂದದ ಮೇರೆಗೆ ಎಕರೆಗೆ 4 ಲಕ್ಷ ರೂಪಾಯಿಗಳ ದರದಲ್ಲಿ ಹಾಗೂ ಪೋಷಾಡ ನಿವೇಶನ ಪರಸ್ಪರ ಒಪ್ಪಂದದ ಮೇರೆಗೆ ಶರ್ಣಾಟಕ ಪ್ರಾಧಿಕಾರ 1987 ಕೆಲಸ 35ರ ಅನ್ವಯ ಸರ್ಕಾರವು ಅನುಮೋದನೆ ನೀಡಿದ್ದು, ಆ ವಿಷಯವಾಗಿ ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ ಸಭೆಯಲ್ಲಿ ತೀರ್ಮಾನವಾಗಿ ದಿನಾಂಕ 06.01.2006ರಲ್ಲಿ ವಿವೇಶ ಭೂ ಸ್ವಾಧೀನ ಅಧಿಕಾರಿಗಳು ಆರ್.ಟಿ.ಸಿ ಯನ್ನು ಹಾಜರು ಪಡಿಸಲು ಅರ್ಜಿದಾರರಿಗೆ ಹಿಂಬರಹವನ್ನು ನೀಡಿರುತ್ತಾರೆ.

ನಾನು ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯಕ್ಕೆ ರಿಟ್ ಪಿಟಿಷನ್ ನಂ.13813/2008 ರಲ್ಲಿ ಸಲ್ಲಿಸಿದ್ದು, ದಿನಾಂಕ 08.07.2009 ರಲ್ಲಿ ನಮ್ಮ ಹೆಸರಿಗೆ ಖಾತೆ ದಾಖಲಿಸಲು ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ಆದೇಶವಾಗಿರುತ್ತದೆ.

ತಹಶೀಲ್ದಾರರು ಆ ಆದೇಶವನ್ನು ಪಾಲಿಸಿರುವುದಿಲ್ಲ. ಆದ್ದರಿಂದ ನಾನು ಮಾನ್ಯ ತಹಶೀಲ್ದಾರರ ವಿರುದ್ಧ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ಸಿ.ಸಿ.ಸಿ.806/2009 ನ್ಯಾಯಾಂಗ ನಿರ್ಧನ ಪ್ರಕರಣ ಸಲ್ಲಿಸಿದ್ದು, ಪ್ರಕರಣದಲ್ಲಿ ಮಾನ್ಯ ತಹಶೀಲ್ದಾರರವರು ಪ್ರಮಾಣ ಪತ್ರವನ್ನು ಸಲ್ಲಿಸಿದ್ದು, ಆರ್.ಎ ನಂ.257/2009 ಮಾನ್ಯ ಜಿಲ್ಲಾ ನ್ಯಾಯಾಲಯ ಮೈಸೂರು ಇಲ್ಲಿ ಪ್ರಕರಣ ಬಾಕಿ ಇರುವುದರಿಂದ ಖಾತೆ ಮಾಡಲು ಸಾಧ್ಯವಿಲ್ಲವೆಂದು ಉಚ್ಚನ್ಯಾಯಾಲಯಕ್ಕೆ ಪ್ರಮಾಣಪತ್ರವನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ಮಾನ್ಯ ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳು ಒ.ಎಸ್.ನಂ.96/97 ಆದೇಶದ ವಿರುದ್ಧ ಎರಡನೇ ಹೆಚ್ಚುವರಿ ನ್ಯಾಯಾಲಯ ಆರ್.ಎ ನಂ.137/2006 ಮೇಲ್ಮನವಿಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಸಂತರ ಆ ಪ್ರಕರಣವು 2ನೇ ಠೀಪ್ಪೆ ಜಿಲ್ಲಾ ನ್ಯಾಯಾಲಯಕ್ಕೆ ವರ್ಗಾವಣೆ ಬಂದು ಆರ್.ಎ ನಂ.257/2009 ಹೊಸ ಸಂಬರಾಗಿ ಆ ಪ್ರಕರಣವು ವಿಚಾರಣೆ ನಡೆಸಿ ಪ್ರಕರಣ ಸಲ್ಲಿಸಲು ಉಂಟಾಗಿರುವ ಕಾಲ ವಿಳಂಬ ಮನ್ನ ಮಾಡಿ ಆದೇಶ ಮಾಡಿರುತ್ತದೆ. ಸದರಿ ಆದೇಶದ ವಿರುದ್ಧ ಎಲ್.ಎನ್.ಗೋವಿಂದಸ್ವಾಮಿ ಆದ ನಾನು ರಿಟ್ ಪಿಟಿಷನ್ ನಂ.27735/2010 ಮೇಲ್ಮನವಿಯನ್ನು ಉಚ್ಚನ್ಯಾಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿ ಉಚ್ಚನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಿನಾಂಕ 30.08.2011 ರಂದು ಉಚ್ಚನ್ಯಾಯಾಲಯವು ಪುರಸ್ಕರಿಸಿ ನಮ್ಮ ಆದೇಶ ಹೊರಡಿಸಿರುತ್ತದೆ.

ಮುಖ್ಯ,

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ನಂತರ ಹಾಕೆ ಮಾಡಲು ಮಾನ್ಯ ತಹಶೀಲ್ದಾರರಿಗೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದಾಗ ಮಾನ್ಯ ತಹಶೀಲ್ದಾರರು ನನ್ನ ವಿರುದ್ಧ ಕ್ರಿಮಿನಲ್ ಪ್ರಕರಣ ನಂ.13/2012 ಘಜ್ಜಿ ದಾವಿಲು ಮಾಡಿರುತ್ತಾರೆ. ಆ ಪ್ರಕರಣವು 2017ರಲ್ಲಿ 4ನೇ ಹೆಚ್ಚುವರಿ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯ (ಕೆ.ಶ್ರೀ) ಜೆ.ಎಂ.ಎಫ್.ಸಿ ವಜಾ ಮಾಡಿರುತ್ತದೆ.

ನಂತರ ಮಾನ್ಯ ಕಾರ್ಯದರ್ಶಿಗಾಗಿ ಕಾರ್ಯದರ್ಶಿಗಳು ಹಾಗೂ ಕಂದಾಯ ಇಲಾಖೆಯ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿ ಬೆಂಗಳೂರು ದಿನಾಂಕ 29.02.2012 ರಲ್ಲಿ ಸಭೆ ಸೇರಿ ಆ ಸಭೆಯಲ್ಲಿ ತೀರ್ಮಾನ ಮಾಡಿ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ರಿಟ್ ಪಿಟಿಷನ್ ಸಂಖ್ಯೆ.27735/2010 ಅದರ ವಿರುದ್ಧ ಸ್ಲೆಷ್ ಲೀವ್ ಅಪೀಲ್ (ಸಿವಿಲ್) 20866/2012 ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಿದ್ದು, ಆ ಮೇಲ್ಮನವಿಯು ವಜಾಗೊಂಡಿರುತ್ತದೆ.

ಎಲ್.ಎನ್.ಗೋವಿಂದಸ್ವಾಮಿ ಆದ ನಾನು ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಮನು ಪರಿಷದರ ಕೋಟಿ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದಾಗ ಮಾನ್ಯ ಅಯುಕ್ತರು ಮೈಸೂರು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರ ಮೈಸೂರು ದಿನಾಂಕ 08.10.2014 ರಲ್ಲಿ ನಗರಾಭಿವೃದ್ಧಿ ಇಲಾಖೆ ಕಾರ್ಯದರ್ಶಿ ಬೆಂಗಳೂರು ಪತ್ರ ಬರೆದು ಪರಿಹಾರ ನೀಡಲು ಅನುಮತಿಯನ್ನು ಕೋರಿಕೊಂಡಿರುತ್ತಾರೆ.

ಆದರಂತೆ ದಿನಾಂಕ 08.10.2015 ರಲ್ಲಿ ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ ನಗರಾಭಿವೃದ್ಧಿ ಇಲಾಖೆ ಬೆಂಗಳೂರು ಸಂಖ್ಯೆ.ನಅಇ38ಮೈಅಪ್ರ2015 ರಲ್ಲಿ ಹೊಸ ನಿಯಮದ ಪ್ರಕಾರ 4 ಎಕರೆ 5 ಗುಂಟೆ ಜಮೀನಿಗೆ ಪರಿಹಾರ ಹಾಗೂ ಉಳಿಕೆ ಜಮೀನು 9 ಎಕರೆ 16 ಗುಂಟೆಯನ್ನು ನಕ್ಷೆ ಅನುಮೋದನೆ ನೀಡಬೇಕೆಂದು ನಿರ್ದೇಶನವನ್ನು ನೀಡಿರುತ್ತಾರೆ.

ನಂತರ ನಾನು ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದಾಗ ಅರ್ಜಿದಾರರು ಎಲ್.ಟಿ.ಸಿ ಯನ್ನು ಹಾಜರು ಪಡಿಸಿ ಎರಡು ವಿವೇಕಿ ಭೂ ಪ್ರಾಧೀನಾಧಿಕಾರಿಗಳು ಹಿಂಬರಹವನ್ನು ನೀಡಿರುತ್ತಾರೆ.

ನಂತರ ನಾನು ಮಾನ್ಯ ಉಚ್ಚನ್ಯಾಯಾಲಯಕ್ಕೆ ಮಾನ್ಯ ತಹಶೀಲ್ದಾರರ ವಿರುದ್ಧ ಸಿ.ಸಿ.ಸಿ 1099/2016 ನ್ಯಾಯಾಲಯ ನಿರ್ದೇಶನ ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಆ ಪ್ರಕರಣದಲ್ಲಿ ಕಾಲ ಪರಿಣಿತಿ ಇದೆ ಎಂದು ಉಚ್ಚನ್ಯಾಯಾಲಯ ತಿಳಿಸಿರುವುದರಿಂದ ಆ ಪ್ರಕರಣವನ್ನು ವಾಪಸ್ಸು ಪಡೆದುಕೊಂಡಿರುತ್ತೇನೆ.



ಸರ್ಕಾರಕ್ಕೆ ವರಸಿ ಸಲ್ಲಿಸಬೇಕೆಂದು ಆ ಪತ್ರದಲ್ಲಿ ಸ್ಪಷ್ಟವಾಗಿ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ನಮೂದು ಮಾಡಿರುತ್ತಾರೆ. ಅರ್ಜಿದಾರರಿಗೆ ಹಿಂಬರಹವನ್ನು ನೀಡಬೇಕೆಂದು ಆ ಪತ್ರದಲ್ಲಿ ಬರೆದಿರುತ್ತಾರೆ.

ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು ಆ ಪತ್ರಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ದಿನಾಂಕ 14.09.2020 ರಂದು ಹಾಗೂ ದಿನಾಂಕ 28.09.2021 ರಲ್ಲಿ ನಿಮಗೆ ಪತ್ರ ಬರೆದು ಖಾತೆ ಮಾಡುವ ವಿಚಾರವಾಗಿ ಕ್ರಮ ಕೈಗೊಳ್ಳಬೇಕೆಂದು ನಿರ್ದೇಶನವನ್ನು ನೀಡಿದ್ದಾರೆ. ಆದ್ದರಿಂದ ನಾನು ನಿಮ್ಮಲ್ಲಿ ಅರಿಕೆ ಮಾಡಿಕೊಳ್ಳುವುದೇನೆಂದರೆ, ಮೇಲೆ ತಿಳಿಸಿರುವ ಎಲ್ಲಾ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ನನ್ನ ಪರವಾಗಿ ಮಾಲೀಕರೆಂದು ಆದೇಶವನ್ನು ಮಾಡಿರುತ್ತದೆ. ದಟ್ಟಿಗಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 82 ರಲ್ಲಿ ಇನ್ನೂ ಕೆಲವರಿಗೆ ಮಂಜೂರಾತಿ ಆಗಿರುತ್ತದೆ.

ಸರ್ವೆ ನಂ 82 ರಲ್ಲಿ ದುರಸ್ತಿಯಾಗಿ ಹೊಸ ಸರ್ವೆ ನಂ. ಸಹ ನೀಡಿರುತ್ತಾರೆ. ಅದರಂತೆ ಆರ್.ಟಿ.ಸಿಯಲ್ಲಿ ಅವರ ಹೆಸರುಗಳು ಸಹ ಈ ಸಾಲಿನವರೆಗೂ ಜಾರ್ಡಿಯಲ್ಲಿರುತ್ತದೆ.

ಆದ್ದರಿಂದ ದಯವಿಟ್ಟು ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಕಸಬಾ ಹೋಬಳಿ, ದಟ್ಟಿಗಳ್ಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 82 ರಲ್ಲಿ 10 ಎಕರೆ ಜಮೀನು, ಸರ್ವೆ ನಂ. 61 ರಲ್ಲಿ 1 ಎಕರೆ 33 ಗುಂಟೆ ಹಾಗೂ ಸರ್ವೆ ನಂ. 52 ರಲ್ಲಿ 1 ಎಕರೆ 34 ಗುಂಟೆ ಮೇಲೆ ತಿಳಿಸಿರುವ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ನಮ್ಮ ಪರವಾಗಿ ಆದೇಶವಾಗಿರುವುದರಿಂದ ಖಾತೆಯನ್ನು ಮಾಡಿಕೊಡಬೇಕೆಂದು ತಮಲ್ಲಿ ಕೇಳಿಕೊಳ್ಳುತ್ತೇನೆ.

ದಿನಾಂಕ: 15-6-2021

L. N. H. H.
ತಾ.ಪಂ. ಅಧ್ಯಕ್ಷರು

ಸ್ಥಳ: ಮೈಸೂರು

ಮಾನ್ಯ,

ಸಂತರ ಡಬ್ಲ್ಯೂ.ಪಿ.34297/2017 ಮ್ಯಾಂಡೇಟ್ ರಿಟ್‌ನ್ನು ಮಾನ್ಯ ಉಚ್ಚಸ್ಥಾಯಾಲಯದಲ್ಲಿ ಸಲ್ಲಿಸಿದ್ದು, ದಿನಾಂಕ 13.07.2020 ರಲ್ಲಿ ತೀರ್ಮಾನವಾಗಿರುತ್ತದೆ.

ದಿನಾಂಕ 06.08.2020 ರಲ್ಲಿ ಖಾತೆ ಮಾಡಲು ತಹಶೀಲ್ದಾರರ ಕಾರ್ಯಾಲಯ ಆರ್ಜಿ ಸಲ್ಲಿಸಿರುತ್ತೇನೆ. ಆ ಆರ್ಜಿಗೆ ದಿನಾಂಕ 30.09.2020ರಲ್ಲಿ ತಾವು ನನಗೆ ಒಂದು ತಿಳುವಳಿಕೆ ಪತ್ರವನ್ನು ನೀಡಿದ್ದು, ಆ ತಿಳುವಳಿಕೆ ಪತ್ರದಲ್ಲಿ ಒ.ಎಸ್.ನಂ.96/97 ಧೃಢೀಕೃತ ನಕಲನ್ನು ಒಂದು ಬಾರದೊಳಗೆ ನೀಡಲು ತಿಳಿಸಿರುತ್ತೀರಿ ಅದರಂತೆ ದಿನಾಂಕ 09.10.2020 ರಲ್ಲಿ ನಾನು ನಿಮ್ಮ ಕಛೇರಿಗೆ ಧೃಢೀಕೃತ ನಕಲನ್ನು ನೀಡಿರುತ್ತೇನೆ. ಸಂತರ ತಾವು ಯಾವುದೇ ರೀತಿಯಲ್ಲಿ ಖಾತೆ ಮಾಡುವ ವಿಚಾರವಾಗಿ ಕಾನೂನು ಕ್ರಮ ಕೈಗೊಂಡಿರುವುದಿಲ್ಲ.

ದಿನಾಂಕ 04.09.2020 ರಲ್ಲಿ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳಿಗೆ ಖಾತೆ ಮಾಡಲು ನಿಮ್ಮ ಮೇಲೆ ದೂರು ಆರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಮಾನ್ಯ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು 06.11.2020 ರಲ್ಲಿ ಖಾತೆ ಮಾಡಲು ಕ್ರಮ ಕೈಗೊಳ್ಳ ಎಂದು ಮುಕ್ತಾಯಗೊಳಿಸಿರುತ್ತಾರೆ.

ದಿನಾಂಕ 04.11.2020 ರಲ್ಲಿ ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ಖಾತೆ ಮಾಡುವ ವಿಚಾರವಾಗಿ ಆರ್ಜಿ ಸಲ್ಲಿಸಿದ್ದು, ಆ ವಿಚಾರವಾಗಿ ದಿನಾಂಕ 10.11.2020 ರಲ್ಲಿ ನಿಮಗೆ ಖಾತೆ ಮಾಡಲು ಅಗತ್ಯ ಕ್ರಮ ಕೈಗೊಂಡು, ಕೈಗೊಂಡ ಕ್ರಮದ ಬಗ್ಗೆ ಆರ್ಜಿದಾರರಿಗೆ ಸೂಕ್ತ ಹಿಂಬರಹ ನೀಡುವಂತೆ ನಿಮಗೆ ಪತ್ರವನ್ನು ಕಳುಹಿಸಿರುತ್ತಾರೆ.

ಅದರೂ ನೀವು ಖಾತೆ ಮಾಡುವ ವಿಚಾರವಾಗಿ ಯಾವುದೇ ರೀತಿ ಕ್ರಮ ಕೈಗೊಳ್ಳದೇ, ನನಗೆ ಯಾವುದೇ ಹಿಂಬರಹ ನೀಡದೇ, ನನ್ನ ಆರ್ಜಿಯನ್ನು ವಿಲಿ ಇಡಲಾಗಿದೆ.

ದಿನಾಂಕ 05.07.2021 ರಲ್ಲಿ ಮತ್ತು 15.07.2021 ರಲ್ಲಿ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ ಕಂದಾಯ ಇಲಾಖೆ ಬೆಂಗಳೂರು ಎಲ್.ಎನ್.ಗೋವಿಂದಸ್ವಾಮಿ ಅವರ ನಾನು ಖಾತೆ ಮಾಡಲು ಎರಡು ಆರ್ಜಿಗಳನ್ನು ಸಲ್ಲಿಸಿದ್ದು ನನ್ನ ಆರ್ಜಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ದಿನಾಂಕ 19.07.2021 ರಲ್ಲಿ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ ಬೆಂಗಳೂರು ರವರು ಮಾನ್ಯ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳಿಗೆ ಮೈಸೂರು ಪತ್ರ ಬರೆದು ಹಾಗೂ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕಂದಾಯ ಇಲಾಖೆ ಬೆಂಗಳೂರು ದಿನಾಂಕ 28.07.2021 ರಲ್ಲಿ ಆರ್ಜಿದಾರರಿಗೆ ಖಾತೆ ಮಾಡಲು ಸೂಕ್ತ ಕ್ರಮ ಕೈಗೊಂಡು, ಕ್ರಮ ಕೈಗೊಂಡ ಬಗ್ಗೆ



Translated copy of Annexure-M

To.

Thasildar Mysuru Taluk
Mysuru.

From.

Date:30-11-2021.

L.N Govindaswamy s/o Late Rama bhovi
House No:90/9, Nachanahalli palya,
J.P.Nagara, Mysuru-570008.

Respected sir,

Subject:

Regarding the transfer of khatha and the R.T.C record of the land measuring 13 acres 29 guntas, in survey number 82, 52 and 61, Kasaba Hobli, Dattagalli village, Mysore district, in my name and that of the rest of my family members.

- Reference:
1. As per Mysuru District court order Old O.S.No.551/87 then 727/90 then New No.O.S. Order. 96/97 court order dated: 30.07.2001.
 2. As per Mysuru District court order Old No.137/2006 New No.R.A.257/2009.
 3. Hon'ble High court Bangalore W.P.27735/2010 dated:30.08.2001.
 4. Hon'ble Supreme court Special leave appeal 20866/2012.
 5. Hon'ble High court Bangalore W.P.13183/2008 dated:08.07.2009.
 6. Law Department Vidhana sowdha, Karnataka state dated:
 7. Official memorandum of Deputy Commissioner Mysuru dated:
 8. Principle Secretary to Revenue dept. of Government, Bangalore Assistant Commissioner latter dated: 04.10.2001.
 9. The Affidavit filed by the Thasildar in Court civil contempt petition No.CCC.806/2009.
 10. Hon'ble High court order copy of CCC.1099/2016.
 11. Copy of the letter by Urban development dept. dated: 03.08.2005. letter No.na.aa.i445/my a pra/2004.
 12. Order of the case Crime No. 13/2012 in 4th additional civil court(I.d) JMFC court.
 13. Meeting proceedings of Principle Secretary to Revenue dept. of Government, Bangalore dated:29.02.2012.
 14. Order copy of Assistant Commissioner's Court R.A.490/2018. dated:28.08.2019.
 15. Intimation letter of Mysuru Taluk Thasildar office RRCR.No.253/2020-21 dated: 30.09.2020.

In connection with the above matter, I hereby request you that in Mysore Taluk, Kasaba Hobli, Dattagalli village, Survey No. 52, 1.34 Acres. Survey No. 61, 1.35 acres and Survey No. 82, 10 acres of land, total 13-29 acres of land, was granted to my



grandfather, Shri Servegar Lakshmayoyi on 31.03.1954 and khatha was done in his name through M.R. No. 20/1953-54, and later on his death, the land was transferred in my name as I.H.R. 4/1983-84 on the basis of this, I paid the revenue tax from time to time. In 1987, the Assistant Commissioner Mysuru subdivision, gave a letter of intimation to my grandfather, Shri Servegar Lakshmayoyi, and since he was deceased, I, L.N. Govindaswamy, gave a notice through my lawyer in response to that notice, given to the Assistant Commissioner Mysuru subdivision in 1987. Then the Chief Secretary, Revenue Department, Assistant Commissioner Mysuru subdivision, and the Commissioner of Mysore Urban Development Authority, Mysore were made parties and we filed a suit under O.S. No. 551/1987. Then after O.S. No. 727/1990, a new number was filed in the 2nd Civil Court, 1996/97, seeking a permanent injunction for ownership. In the meantime, while the case was pending, the Assistant Commissioner Mysuru subdivision removed my name from the RTC and registered it as the 'Government'. However, on 30.07.2001, the Hon'ble Court declared the petitioners as the owners and entitled to receive land compensation from the Authority and issued a permanent injunction against the 2nd respondent Assistant Commissioner, Mysuru subdivision, and accordingly, the Court has decided that the petitioners are the owners of the land.

Later, an application was filed before MUDA for compensation, which was approved by the Government at a rate of Rs. 4 lakh per acre as per mutual agreement Urban Development Department, Secretary, Bangalore, on 03.08.2005 under Section 35 of the Karnataka Authority Act 1997 as per mutual agreement, in this regard a decision was taken in the Mysore City Development Authority meeting on 06.01.2006 and the Special Land Acquisition Officers have given a letter to the applicant to produce the RTC,

I, filed a writ petition in the Hon'ble High Court in No. 13813/2008, and an order was passed in the High Court on 08.07.2009 to make khatha in our name.

The Tahsildar has not complied with that order. Therefore, I have filed a contempt of court case CCC 806/2009 against the Tahsildar in the High Court, in which the Tahsildar has filed an affidavit and stated that RA No. 257/2009 case is pending before the District court hence khatha process cannot to be done.



The Assistant Commissioner Mysuru subdivision has filed an appeal in the Second Additional Court RA No. 137/2006 against the order of O.S. No. 96/97. Then that case was transferred to the 2nd Speedy District Court and the case was renumbered as R.A. No. 257/2009, which has ordered as excused the delay. Then I L.N. Govindaswamy, have filed an appeal in Writ Petition No. 27735/2010 against the said order in the High Court and the High Court has confirmed the appeal and order on 30.08.201

Later, I made a representation to the Tahsildar to make an khatha, the Tahsildar filed a criminal case No. 13/2012 against me. That case was dismissed by the 4th Additional Civil Court (L.D) J.M.F.C. in 2017.

Later, The Assistant Commissioner, Mysuru subdivision and the Chief Secretary of the Revenue Department, Bangalore met on 29.02.2012 and decided in that meeting to file a SLP against the writ petition No. 27735/2010. And in the Supreme Court, an appeal was filed in the Supreme Court under Special Leave Appeal (Civil) 20866/2012. That appeal is dismissed.

When I, L.N. Govindaswamy, filed an application for compensation to the Mysore Urban Development Authority, The Commissioner, Mysore Urban Development Authority, Mysore, wrote a letter to the Secretary, Urban Development Department, Bangalore, dated 08.10.2014, requested permission to provide compensation.

Accordingly, on 08.10.2015, the Under Secretary to the Government, Urban Development Department, Bangalore, vide No. na.aa.l.38.my.a.pra.2015 has issued a direction to grant compensation for 7-05 acres land and map approval for the remaining land of 9-16 acres as per the new rules.

Later, when I applied application to Special Land Acquisition the gave a letter stating that the applicant should produce the RTC.

Later, I filed a petition against the Tahsildar in the Hon'ble High Court under CCC 1099/2016. I have withdrawn that case because the High Court has stated that there is a time lag in that case



Then WP.34297 was filed in the Hon'ble High Court for mandamus, the case disposed on 13.07.2020.

On 06.08.2020, I have submitted an application to the Tahsildar's office to make khatha. On that application, you have given me a letter of intimation on 30.09.2020, in which you have asked me to provide a certified copy of O.S. No. 96/97 within a period, accordingly on 09/10/2020, I have given a certified copy to your office. After that, you have not taken any legal action regarding making khatha.

On 04/09/2020 a complaint was filed against you to the Assisatant Commissioner, Mysuru subdivision, for making khatha and the Assisatant Commissioner concluded by taking action to make a khatha on 06.11.2020.

On 04.11.2020, an application was filed with the Honorable Deputy commissioner. On 10.11.2020, a letter was sent to you asking you to take necessary action to make khatha and to provide a suitable acknowledgement to the applicant regarding the action taken.

However, you did not take any action regarding making khatha and without giving me any acknowledgement, my application was disposed.

On 05.07.2021 and 15.07.2021, I, L.N. Govindaswamy, submitted 2 applications to Principal Secretary, Revenue Department, Bangalore, to make khatha. Regarding my application, on 19.07.2021, the Principal Secretary, Revenue Department, Bangalore wrote a letter to the Deputy Commissioner, Mysore and the Under Secretary, Revenue Department, Bangalore to take appropriate action to make khatha for the applicant on 28.07.2021. In the letter clearly states that the Deputy Commissioner should submit report above the action taken to the government. and have to give an endorsement to the applicant.

The Deputy Commissioner has written to you on 14.09.2020 and 28.09.2021 and directed you to take action regarding the issue of making khatha. Therefore, I confess to you that in all the above mentioned courts, orders have been made in my favor as the owner. In Survey No. 82 of Dattagalli village, some more will be sanctioned.



A new survey number has also been given as a durasthi done in Survey No. 82. Accordingly, their names will also be valid in RTC till this year.

Therefore, I kindly request you to make khatha in our name and in our favor in the above mentioned courts for 10 acres of land in Survey No. 82, 1 acre 33 guntas in Survey No. 61 and 1 acre 34 guntas in Survey No. 52 in Mysore Taluk, Kasaba Hobli.

Date: 15.06.2021.

Place: Mysuru.

sign/-
(L.N. Govindaswamy)
Yours Faithfully



163

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

Writ Appeal No. _____/2025

In

WRIT PETITION NO.24304/2021(KLR-RES)

BETWEEN :

State of Karnataka & Ors

...Appellants

AND

Sri. L.N. Govindaswamy

...Respondents

MEMO REGARDING NON-FILING OF STATEMENT OF OBJECTIONS

The Appellant/s respectfully submits that, in Writ Petition No:24304/2021(KLR-RES) Respondent Nos:1 to 5 have not filed statement of objections.

Place: Bengaluru
Dated: _30.07.2025.

Gov. Advocate &
Advocate for Appellants-State

163-A

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.A.

OF 20 25

IN

W.P. No. 24304

/20 21 (Cur-Res)

BETWEEN :

The State of Karnataka

And others

:: APPELLANTS

AND :

Sri L. N. Govindaswamy.

:: RESPONDENT/S

To,

The Registrar General
High Court of Karnataka
Bengaluru- 560001

MEMO OF APPEARANCE

I have been instructed by the Head Legal Cell and Ex-Officio Deputy Secretary to Government Revenue Department M.S. Building, Bengaluru-1, vide G.O. No. RD. 28 LEW 2025 Dated 21/03/25. To appear for Appellant Nos. 1 to 4 in the above matter. This Hon'ble Court may therefore be pleased to enter my appearance for the said Appellant/s.

BENGALURU

Dated 30.10.7/2025

V. G. S. B.
ADDL. GOVT. ADVOCATE,

AND

ADVOCATE FOR APPELLANTS.

KAR 2324/09

Address for Service
Government Advocate
Advocate General's office
High Court Building
Bengaluru-1.

91/2025

Allocated to
P. S. H. 22/5/2025

163-B

P



PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA

Sub: Authorizing to the Government Advocate, Hon'ble High Court of Karnataka, Bengaluru for preferring **Writ Appeal** before the Hon'ble High Court of Karnataka, Bengaluru against the **Order dated: 27.11.2024** passed in **Writ Petition No. 24304/2021 (KLR-RES)** by the Hon'ble High Court of Karnataka, Bengaluru in the matter of **Sri. L.N. Govindaswamy, Mysuru District -Vs- The State of Karnataka, represented by its Secretary to Government, Department of Revenue, M.S. Building, Bengaluru and others.**

Read: File No. RD/28/LGW/2025 of Revenue Department (Land Grants-2), Karnataka Government Secretariat (E-File, Computer No. 1654474).

GOVERNMENT ORDER No. RD/28/LGW/2025, BENGALURU, DATED: 21.03.2025

Sanction is accorded to the Government Advocate, Hon'ble High Court of Karnataka, Bengaluru to prefer the **Writ Appeal** and appear before the Hon'ble High Court of Karnataka, Bengaluru against the **order dated: 27.11.2024** passed in **Writ Petition No. 24304/2021 (KLR-RES)** on behalf of the State of Karnataka represented by;

1. The State of Karnataka, represented by its Principal Secretary to Government, Department of Revenue, M.S. Building, Bengaluru.
2. The Deputy Commissioner, Mysuru District, Mysuru.
3. The Assistant Commissioner, Mysuru Sub Division, Mysuru.
4. The Tahsildar, Mysuru, Hunsur Road, Mysuru.

The Tahsildar, Mysuru Taluk, Mysuru (Mobile No. 9739721530, e-mail Id: tahsildarmysuru@karnataka.gov.in) shall be the Litigation-Conducting Officer and Swearing Officer and he shall sign the concerned petition and swear affidavit etc., which may be required to be filed in this connection.

The Tahsildar, Mysuru Taluk, Mysuru (Mobile No. 9739721530, e-mail Id: tahsildarmysuru@karnataka.gov.in) is directed to furnish all particulars, parawise remarks and records required in this behalf to the Government Advocate, Bengaluru for preparing draft statement of objections, under intimation to the **Under Secretary to Government, Revenue Department (Land Grants-2), M.S. Building, Bengaluru.**



**BY ORDER AND IN THE NAME OF
THE GOVERNOR OF KARNATAKA**

(SHANTALA RAMESH DODWAD)
Head of Legal Cell & Ex-officio
Deputy Secretary to Government,
Department of Revenue.

To:

1. The Government Advocate, Hon'ble High Court of Karnataka, Bengaluru.

...2

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.A

Of 2025.....

Between :-

PETITIONER
Appellants

State of Karnataka & ors

And :-

Sri L.N. Govindaswamy & Anr

RESPONDENT

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Place : Bengaluru

Dated :


Government Advocate

And

Advocate for Complainant/s
Accused/s

RNR

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

I.A.NO. of 2025
(Condonation of delay)

IN

WRIT APPEAL NO. OF 2025

IN

W.P.NO.24304/2021 (KLR-RES)

BETWEEN:

(1) State of Karnataka,
Revenue Department,
M S. Building,
Dr.Ambedkar Veedhi,
Bangalore-560 001.
Represented by
its Secretary.

(2) The Deputy Commissioner,
Mysuru District,
Mysuru-571 129.

(3) The Assistant Commissioner,
Mysuru Sub Division,
Mysuru-571 129

(4) The Tahsildar,
Mysuru-Hunsur Road,
Mysuru-571 105.

(Now at Nazarbad,
Mini Vidhana Souhda,
Mysuru Taluk,
Mysuru-570 010.)

...Appellants

AND:

(1) Sri. L.N Govindaswamy,
S/O. Late Sri.Ra,ma Bhovi,
Aged About 76 years,
R/At No.90/9,
Naachanahalli Palya,
J.P Nagara,
Mysuru District,
Mysuru-570 008.

(2) Mysore Urban
Development Authority (MUDA),
Jhansi Laxmi Bai Road,
Mysuru-570 005
Represented by
its commissioner.

. . . Respondents

APPLICATION FILED UNDER SECTION 5 OF LIMITATION ACT

That for the reasons sworn to in the accompanying Affidavit, this Hon'ble Court may be pleased to condone the delay of ----- days in filing the above Appeal in the interest of justice and equity.

Place: Bengaluru,
Dated: .07.2025

ARADHYA/YOGESH D NAIK/
28072025/29072025/MAIL


(YOGESH D NAIK)
ADDL. GOVT. ADVOCATE
AND
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA BANGALORE
WRIT APPEAL NO. OF 2025

BETWEEN:

The State of Karnataka &
Others
Appellants

AND:

Sri. L.N Govindaswamy
And another

... **Respondents**

AFFIDAVIT

I, K.M. Mahesh Kumar S/o Late Muniyappa aged about 40 years, working as Tahsildar, Mysuru Taluk, Mysuru, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:

1. I state that I am working as Tahsildar, Mysuru Taluk, Mysuru. I am conversant with the facts of the case based on records. I am the litigation conducting officer in this case and hence I am competent to swear to this affidavit.

2. I state that the Appellants have filed the above Writ Appeal being aggrieved by the order dated 27.11.2024 passed by the learned Single Judge in W.P. No.24304 of 2021 (KLR-RES). By the impugned order, the learned Single Judge has allowed the Writ Petition filed by the 1st

[Signature]



Respondent and directed the Appellant No.4 to enter the names of the 1st Respondent and his family members in the RTC pertaining to the petition schedule lands.

3. I state that after disposal of the Writ Petition by the learned Single Judge, the Appellant No.4 wrote a letter dated:09.01.2025 to the Appellant No.2 seeking clarification with regard to taking of further action on the order passed by the learned Single Judge. The Appellant No.2 in turn wrote a letter dated:15/01/2025 to the Appellant No.1 seeking permission to file appeal against the impugned order. Pursuant to the letter of the Appellant No.2 dated:15/01/2025, Appellant No.1 issued order bearing No. RD/28/LGW/2025, Bangalore dated:21/03/2025, accordingly permission to file Writ Appeal, challenging the order passed by the learned Single Judge. In the said order, I was appointed as Litigation Conducting Officer.

4. I state that after issuance the order dated:21/03/2025, the Govt Advocate from the Office of the Advocate General, sent a letter dated:03/05/2025, which is received in the office of the Appellant No.4 on 19/05/2025. In the said letter, several documents and information were sought to enable the office of the Advocate General to draft Writ Appeal. The office of the Advocate General also sought for English translation of documents which are in vernacular. In order to procure the translation of kannada documents it took some time. I also



Handwritten signature

had to prepare the grounds for appeal and delay note which consumed some time.

5. I state that the information sought from the office of the Advocate General was submitted by me on 19/06/2025. Immediately thereafter, the file was allotted to the Govt Advocate who drafted the Writ Appeal. After allotment of the file, the Govt Advocate also sought some information and the same was furnished. In this process, there is delay in filing the Writ Appeal. The delay caused is not intentional. It is only due to the bonafide reasons stated above. The movement of file from one office to another office has consumed some time which is only due to the administrative reasons.

6. I state that if a delay in filing Writ Appeal is condoned, no injury or hardship will be caused to the Respondents as they have a right to contest the case on merits. On the other hand, if the delay in filing the appeal is not condoned the Appellants will suffer and also the public interest will suffer.

WHEREFORE, I humbly pray that this Hon'ble Court be pleased to allow the accompanying application in the interest of justice and equity.

Bangalore
Dated: 09.07.2025


DEPONENT



VERIFICATION

I, the above named deponent do hereby verify that all the facts stated in this affidavit are true to my knowledge and that no part thereof is false and nothing material is concealed there from.

Verified at Bengaluru, on this day of 29 July 2025.


DEPONENT

Identified by:

Nand S. C.
Assistant,
Office of the Advocate General,
High Court Building,
Bengaluru.

ARADHYA/YOGESH D NAIK/L.A. FOR CONDATTON DELAY
IN WRIT APPEAL/28072025/29072025/MAIL

SWORN TO BEFORE ME

29.7
CHANDRASEKHARAIH. S
Advocate & Notary
No. 8/7, Kempegowda Nilaya
3rd Cross, Muthurayaswamy Extension
Sunkesara, Bangalore-560001



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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.

Of 20.....

Between :-

State of Karnataka & ors

~~PETITIONER~~
Appellants

And :-

Sri L. N. Govindaswamy & Anr

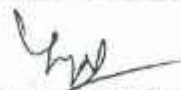
RESPONDENT

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Place : Bengaluru

Dated : 30/07/25


Government Advocate

And

Advocate for Complainant/s
Accused/s

RNR

IN THE HIGH COURT OF KARNATAKA, BANGALORE**WRIT APPEAL NO. OF 2025****IN****W.P.NO.24304/2021 (KLR-RES)****BETWEEN:**

(1) State of Karnataka,
Revenue Department,
M S. Building,
Dr.Ambedkar Veedhi,
Bangalore-560 001.
Represented by
its Secretary.

(2) The Deputy Commissioner,
Mysuru District,
Mysuru-571 129.

(3) The Assistant Commissioner,
Mysuru Sub Division,
Mysuru-571 129

(4) The Tahsildar,
Mysuru-Hunsur Road,
Mysuru-571 105.

(Now at Nazarbad,
Mini Vidhana Souhda,
Mysuru Taluk,
Mysuru-570 010.)

... APPELLANTS**AND:**

(1) Sri. L.N Govindaswamy,
S/O. Late Sri.Ra,ma Bhovi,
Aged About 76 years,
R/At No.90/9,
Naachanahalli Palya,

J.P Nagara,
Mysuru District,
Mysuru-570 008.

(2) Mysore Urban
Development Authority (MUDA),
Jhansi Laxmi Bai Road,
Mysuru-570 005
Represented by
its commissioner.

.. RESPONDENTS

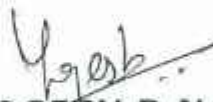
**APPLICATION UNDER ORDER 41 RULE 27 R/W
SECTION 151 OF THE CODE OF CIVIL PROCEDURE**

For the reasons stated in the accompanying affidavit,
the Appellants humbly pray that this Hon'ble Court may be
pleased to permit the Appellants to produce copies of the
following documents in the interest of justice and equity.

- (1) Document No.1 - Copy of the re-survey tippani
in respect of Sy. No. 82 of Dattagalli Village.
- (2) Document No.2 - Copy of the RTC in respect of
Sy. No. 82 of Dattagalli Village.
- (3) Document No.3 - Copy of the order
dated:05/08/1989 passed by the Assistant
Commissioner.
- (4) Document No.4 - Copy of order
dated:28/08/2003 passed by the Deputy
Commissioner, Mysore.
- (5) Document No.5 - Copy of the notification
dated:01/02/2011

- (6) Document No.6 - Copy of the order dated:04/07/2015 in O S No. 84/2015.
- (7) Document No.7 - Copy of the judgment and decree in O S No. 321/1995.
- (8) Document No.8 - order dated:19/06/2016 in ~~M~~ A No. 76/2015.
- (9) Document No.9 - Copy of the re-survey tippani in respect of Sy. No. 52 of Dattagalli Village.
- (10) Document No.10 - Copy of the RTC in respect of Sy. No. 52 of Dattagalli Village.
- (11) Document No.11 - Copy of the re-survey tippani in respect of Sy. No. 61 of Dattagalli Village.
- (12) Document No.12 -Copy of the RTC in respect of Sy. No. 61 of Dattagalli Village.

BANGALORE
DATE:


(**YOGESH D NAIK**)
ADDL. GOVT ADVOCATE
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA BANGALORE
WRIT APPEAL NO. OF 2025

BETWEEN:

The State of Karnataka &
Others

... **Appellants**

AND:

Sri. L.N Govindaswamy

... **Respondents**

AFFIDAVIT

I, K.M. Mahesh Kumar S/o Late Muniyappa aged about 40 years, working as Tahsildar, Mysuru Taluk, Mysuru, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:

1. I state that I am working as Tahsildar, Mysuru Taluk, Mysuru. I am conversant with the facts of the case based on records. I am the litigation conducting officer in this case and hence I am competent to swear to this affidavit.

2. I state that the Appellants have filed the above Writ Appeal being aggrieved by the order dated 27/11/2024 passed by the learned Single Judge in W.P. No.24304/2021 (KLR-RES). By the impugned order, the learned Single Judge has allowed the Writ Petition filed by the 1st Respondent and directed the Appellant No.4 to enter the RTC pertaining to the petition schedule lands.

3. I state that the documents sought to be produced are very much relevant for proper adjudication of the



[Handwritten signature]

issue involved in this case. The said documents could not be produced before the single judge, as the same are old documents could not be traced immediately. By the time the said documents were secured, the Writ Petition itself came to be disposed of by the learned single judge.

4. I state that the documents sought to be produced now clearly demonstrates that the land in question is classified as "Sarkari kere" in the revenue records. Further, there are documents which show that the 1st Respondent who is the petitioner in the Writ Petitioner had filed suits against the officials of the forest department. These aspects have been suppressed by the 1st Respondent in the Writ Petition and hence the same is also very much relevant in this case. The documents sought to be produced by the Appellants now are public documents and the same are undisputable.

5. I state that if the prayer made in the accompanying Application is granted, no injury or hardship would be caused to the Respondent. On the other hand, if the same is not granted, serious prejudice would be caused to the Appellants.

WHEREFORE, it is prayed that this Hon'ble Court be pleased to allow the accompanying application in the interest of justice and equity.



DEPONENT

VERIFICATION

I, the above named deponent do hereby verify that all the facts stated in this affidavit are true to my knowledge and that no part thereof is false and nothing material is concealed therefrom.

Verified at Bengaluru, on this day of

July 2025.

DEPONENT

Identified by:

Assistant,
Office of the Advocate General,
High Court Building,
Bengaluru.

ARADHYA/YOGESH D NAIK/I.A. FOR stay
IN WRIT APPEAL/28072025/29072025/MAIL



SWORN TO BEFORE ME
CHANDRASHEKHARAIAH. S.
Advocate & Notary
No. 817, Keshava Nilaya
3rd Cross, Muthuramany Extension
Sankarabagavathi, Bangalore-560091

Book... Page... 59
Req. No. 1770 Date 29/7/2025

176

6ನೂರು-1

29/04/2006

ರೀಸರ್ವೆ ಟಿಪ್ಪಣಿ

ಖಾತೆ: ಮೈಸೂರು

ನಂಬರಿ	ಗ್ರಾಮ:	ಪುಸ್ತಕ	ಪುಟ	ಸರ್ವೆ ನಂ.
೧	ದಟ್ಟಗಲ್ಲಿ	3	74	82

6-4-21

ಕೆ.ಎಂ.ಎಸ್.ಎಂ.ಎಂ.
೧೮೯

ಹವ್ಯಾಸವಿಲ್ಲ ಸ್ವಯಂ-ವಿರೋಧಿ

5.ನಂ
82

ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

ಹವ್ಯಾಸವಿಲ್ಲ
ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨
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ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

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ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

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ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

ಪ್ರಾ.ವಿ.ನಿ.ನಂ.೨೨

This is the annexure stated in the
Affidavit of... K.M. Mahesh Kumar

NOTARY

ಮಾಹೇಶ್ ಕುಮಾರ್

ಮಾಹೇಶ್ ಕುಮಾರ್

178

RE SURVEY TIPPANI

Taluk: Mysuru

dated:29.04.2006.

Hobli	Village	Book	Page	Survey No.
Kasaba	Dattagalli	3	74	82

Dated:6-4-21

Re Chalta No

Poo || Chaa || No.

184.

176.

Re Survey NO.

Poo || Sa || No.

82

62

Kharda yilla Kere(Lake)

Sy No.82

As per Akaraband	Total Land	Kharab	Balance
	170-28	170-28	-
As per Re Survey	170-28	170-28	-
	1-38	1-38	-
Balance	168-30	168-30	-

BOUNDARY MAP DRAWNED

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

ರಾಜ್ಯದ ಆಡಳಿತದ ಗಣಕೀಕರಣ ಮತ್ತು ವಿತರಣಾ ಇಲಾಖೆ (R.T.O.)

ರಾಜ್ಯದ

ರಾಜ್ಯದ

ರಾಜ್ಯದ

WD 0111-RTB-1, 10,000 pages of 100 lines each, 20 x 25

DECLARATION - NO
Village Account 175
175

82

ಹಾಕಿದ ಸಂ. ೨.೧
ಹಾಕಿದ ಸಂ. ೨.೧
ಹಾಕಿದ ಸಂ. ೨.೧
ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧
ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧	ಹಾಕಿದ ಸಂ. ೨.೧

82

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

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ಹಾಕಿದ ಸಂ. ೨.೧

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ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

This is the annexure of the Affidavit of K.M. Mahesh Kumar dated in the

NOTARY

82

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

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ಹಾಕಿದ ಸಂ. ೨.೧

ಹಾಕಿದ ಸಂ. ೨.೧

Taluk:Mysore

Hobli: Kasaba

Village: DATTAGALLI

Page No. (175)

1. Sy. No 82 pai *	3 Khetuvaru Acrs guntas	4. Revenue	Rs. 0.	Ownership and Owners Name and Address	10. type of ownership	11. Other Rights and Debts
	Total Extent Kharab (A) Kharab (B) remains A gunte 168 30	(a) Land revenue (b) pair (k) cess (d) water bill 0.00 0.00 0.00 0.00	0.00 Total	1. Sanjeevini ramabovi bin siddabovi. M.R.19/53-54 2. Lakshma bovi bin Puttabovi. M.R.20/5-54 3. N M Kenchaiah Ashokapuram M.R.21/53-54		
2. Hissa *	7. Numbers of trees	8. Irrigation	Extent			
5. soil Pattern	Name	No.	SI no.	source of water	total	
Red						
6. Patta						
Govt						
12. Details of cultivation and tenancy Year and season 1 Name and address of the cultivator 2 system of cultivation 3 Details of tenancy Extent 4 acrs. Lease 5 category 6. Extent 7 DRY, wet, plantation 8 Name of crop 9 Extent of Crop non cross. 10 cross 11 total 12 Source of water 13. Prodcotin For acres 14. Total of cross crops 15. cross crops 16. Extent 17.						
79-80						
80-81						

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signed/-
Thasildar
Mysurataluk

[Signature]

180

Document No - 2
ಕನಕನೂರು - 5



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ರೇಷನ್ ಆರ್ಡರ್ ಕೆ.ಆರ್. ಸಿಟಿ ಮತ್ತು ಹಳೇ ಪತ್ರಿಕೆ (RTC) ಫಾರಂ ನಂ.02

Print Page No: 1/1
Valid from 2001-09-28 00:00:00 To 2002-05-09 14:16:00

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ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.

1. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	2. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	3. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	4. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	5. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	6. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	7. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	8. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	9. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	10. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	11. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	12. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.
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1. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	2. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	3. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	4. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	5. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	6. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	7. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	8. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	9. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	10. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	11. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	12. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.
1683000000	1683000000	1683000000	1683000000	1683000000	1683000000	1683000000	1683000000	1683000000	1683000000	1683000000	1683000000

1. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	2. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	3. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	4. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	5. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	6. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	7. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	8. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	9. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	10. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	11. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.	12. ರೇಷನ್ ಕಾರ್ಡ್ ನಂ.
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Document No - 2
This is the annexure..... stated in the
Application of K.M. Mahesh Kumar
N. S. S. S.

Record of Tenancy and crops (RTC) Form. No.16
Taluk:Mysore Hobli: Kasaba Village: DATTAGALLI

Page No.1/1

copy

1. Sy. No 82 *	3 Khetuvanu	Acres guntas	4. Revenue	Rs. P.	Ownership and Owners Name and Address	10. type of ownership	11. Other Rights and Debts
	Total Extent Kharab (A) Kharab (B) remains	A 168 30	(a) Land revenue (b) pair (k) cess (d) water bill Total	0.00 0.00 0.00 0.00 0.00	Government Beelu Government Lake Government	0-00 0-00 0-00	As Per direction of the Deputy Commissioner the lease period is closed hence this land is taken back to Government.
2. Hissa *	7. Numbers of trees	8. Irrigation Extent					
5. soil Pattern Red	Name No SI no.	source of water total					
5. Patta Govt							
12. Details of cultivation and tenancy							
Year and season 1	Name and address of the cultivator 2	system of cultivation 3	Details of tenancy		Use of Land	13. Use of Land and Crop Profile	
			Extent 4 ac.	Lease 5 gu	category 6.	DBT, Vet, plantation 8	Name of crop 9
							Extent of Crop
							non cross. 10
							cross 11
							total 12
							Source of water 13.
							Production For acres 14.
							Total of cross crops
							cross crops
01-02							

Handwritten signature

ಮೈಸೂರು ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳವರ ಸಾಕ್ಷಿಯೊಳಗಿರುವುದರಿಂದ.

ಪ್ರಕಟಣೆ ಸಂಖ್ಯೆ: ಎಲೆನ್‌ಡಿ. ಆರ್. 4:85-86 ದಿನಾಂಕ: 5-8-89.

ಉಪಸ್ಥಿತರು:- ಶ್ರೀ ಎನ್. ಪ್ರಭಾಕರಪ್ಪ, ಕೆ.ಎ.ಎನ್.
ಉಪ ವಿಭಾಗಾಧಿಕಾರಿಗಳ
ಮೈಸೂರು ಉಪ ವಿಭಾಗ,
ಮೈಸೂರು.

ಮೇಲ್ಮನವಿದಾರರು

ವಿರುದ್ಧ

ಪ್ರತಿವಾದಿ

ಸರ್ಕಾರ

ಶ್ರೀ ಲಕ್ಷ್ಮಮ್ಮಲಾಯಿ ಪನ್
ಮುಖ್ಯಮಾನ್ಯರು
ಧ್ವಜಗಿರಿ, ಕನಕಾ ಭೋಜಿ
ಮೈಸೂರು ತಾಲೂಕು.

ವಿಷಯ:- ಮೈಸೂರು ತಾಲೂಕು ಕನಕಾ ಭೋಜಿ ಧ್ವಜಗಿರಿ
ಗ್ರಾಮದ ಸರ್ವೆ ನಂಬರು 52, 61, 82 ರಲ್ಲಿ ಕಂದಾಯ
ದಾಖಲೆಗಳ ಅಕ್ರಮ ನಮೂದಾತಿ ಇರಿಸುವುದು.

ಪ್ರಕಟಣೆಗೆ ಸಂಬಂಧಿಸಿದ ಸಂಕ್ಷಿಪ್ತ ವಿವರಗಳು :-

ಕಂದಾಯ ರಕ್ತ ಪರಿಶೋಧಕರು, ವಿಭಾಗಾಧಿಕಾರಿಗಳವರ ಕಛೇರಿ, ಮೈಸೂರು
ರವರು ತಮ್ಮ ದಿನಾಂಕ: 19-2-86 ರ ಆರ್.ಎ.ಡಿ. 785-86 ನೇ ಸಂಖ್ಯೆಯ
ಪತ್ರದಿಂದ ಮೈಸೂರು ತಾಲೂಕು ಥಿಪ್ಪಿಣಿ ಕನಕಾ ಭೋಜಿ ಧ್ವಜಗಿರಿ ಗ್ರಾಮದ
ಸರ್ವೆ ನಂಬರು 52 ರಲ್ಲಿ 1-34 ಎಕರೆ, 61 ರಲ್ಲಿ 1 ಎಕರೆ 35 ಗುಂಟೆ ಮತ್ತು
82 ರಲ್ಲಿ 10 ಎಕರೆ ಜಮೀನುಗಳನ್ನು ತಪಾಸಣೆ ನಡೆಸಿದ ಕಾಲದಲ್ಲಿ ಕೆಲವು ನ್ಯಾಯಾಂಗದ
ಕಂಡು ಬಂದಿರುವ ದಯಾಸ್ಥಾನದ ಮಂಜೂರಾದ ಬಗ್ಗೆ ಹಾಗೂ ಬಾಕಿ ರೆನೋವೇಶನ್
ಆದ ಬಗ್ಗೆ ಕಡತಗಳು ದೊರೆಯುವ ಕಾರಣ ಈ ಬಗ್ಗೆ ತಪ್ಪಿಸಲಾದ ರವರಿಂದ ವಿವರಣೆ
ನಡೆದು ಈ ಕಛೇರಿಗೆ ಮುಂದಿನ ಕ್ರಮಕೈಗೊಳ್ಳಲು ಕೋರಿತಾರೆ.

ಪ್ರಕಟಣೆಯ ಮೊಂಡಾಯಿಸಿಕೊಂಡು ವಿವರಣೆ ನಡೆಸಲು ಪ್ರತಿವಾದಿಗಳಿಗೆ
ದಿನಾಂಕ: 19-10-87 ರಂದು ಈ ಸಾಕ್ಷಿಯೊಳಗಿರುವ ಹಾಜರಾಗಲು ನೋಟೀಸನ್ನು
ಮೈಸೂರು ತಾಲೂಕು ತಪ್ಪಿಸಲಾದ ರವರ ಮೂಲಕ ಸಂಬಂಧಪಟ್ಟವರಿಗೆ ಹಾಕಿ
ಮಾಡಲು ಕಳುಹಿಸಿಕೊಟ್ಟಿರುತ್ತದೆ. ನಂತರ ಪ್ರಕಟಣೆಯ ದಿನಾಂಕ: 15-7-89,
29-7-89 ಮತ್ತು 5-8-89 ಕ್ಕೆ ಮುಂದುವರಿಸಿರುತ್ತದೆ.

ದಿನಾಂಕ: 15-7-89 ರಂದು ಪ್ರತಿವಾದಿಗಳ ಪರ ಶ್ರೀ ಎನ್. ಪ್ರಭಾಕರಪ್ಪ
ಯವರು ಈ ಸಾಕ್ಷಿಯೊಳಗಿರುವ ಹಾಜರಾಗಿ ಈ ಕೆಳಕಂಡಂತೆ ತಮಗೆ ದೀಕ್ಷೆಯನ್ನು
ಕೊಟ್ಟಿರುತ್ತಾರೆ.

ಪ್ರಕಟಣೆ ಭೂಮಿ(ಧ್ವಜಗಿರಿ) ಯು ಸರ್ವೆ ನಂಬರು 52, 61, 82 ರಲ್ಲಿ ಒಟ್ಟು
13 ಎಕರೆ 29 ಗುಂಟೆ ಭೂಮಿಯನ್ನು ಸರ್ಕಾರದ ಇವರ ಶಾಕಸಾದ ಲಕ್ಷ್ಮಮ್ಮಲಾಯಿ
ಯವರಿಗೆ ಮಂಜೂರು ಮಾಡಿತ್ತು. ಇವರ ತಾತ 71 ರಲ್ಲಿ ಮಂಜೂರುಗೊಂಡಿತ್ತು.
ನಂತರ ಇವರ ತಂದೆ 1980 ರಲ್ಲಿ ಮಂಜೂರುಗೊಂಡಿತ್ತು. ಇವರ ತಾತನಿಗೆ ಇವರ ತಂದೆ
ಲಯಾಬರೇ ಮಕ್ಕಳು. ಇವರ ತಂದೆ ಒಟ್ಟು 3 ಜನ ಮಕ್ಕಳಿರುತ್ತಾರೆ. ಇವರಲ್ಲಿಯೂ
ಒಬ್ಬಗೆ ವ್ಯವಸಾಯ ಮಾಡುತ್ತಿದ್ದಾರೆ. ಇವರ ತಂದೆ ಮರಣ ಹೊಂದಿದ ನಂತರ ಭೂಮಿ
ಇವರ ಹೆಸರಿನಲ್ಲಿ ಪಾತೆಯಾಗಿರುತ್ತದೆ. ಈ ಬಗ್ಗೆ ದಾಖಲೆಗಳನ್ನು ಹಾಜರುಪಡಿಸಿರುತ್ತಾರೆ
ಅದುದರಿಂದ ಪ್ರಕಟಣೆಯ ಮುಕ್ತಾಯಗೊಳಿಸಲು ಕೋರಿರುತ್ತಾರೆ.

ಅ ದೀ ಪ

ದಿನಾಂಕ: 5-8-89 ರಂದು ಪ್ರಕಟಣೆಯು ಈಗಾಗಲೇ ನಡೆಯಿತು. ಪ್ರಕಟಣೆಗೆ

(Signature)

సంబంధించి ప్రతిపాదించు డిమాండ్లకు చూపుతున్న ప్రతిభను గురించి ప్రశ్నించారు. 1980-81 నేల సారణ ఆర్.టి.సి. పరిశీలనలూగి సేవ్వువన ముఖ్యతను ప్రకార పూతే బడలావడించుగిరుత్తుదేందు నమూదిసలాగిది. 1980-81 క్రింత ఉందిన సారణ ఆర్.టి.సి. యనునూ పరిశీలనదాగ తిథి కేరీ అంగళవేందు శిశుబుబందిరుత్తుది. అలనదీ సర్క తనివేయించ ప్రకరణద భూమియను, రియూర సాధ్నినవలనూ, అలనదీ ఇరువుదు కండు బందిరుత్తుది. ప్రతిపాదించు బాడరుపడినద సాగువళి జీలించు జీరాకే ప్రతియను కూలబా. దావరీ ఎంజుదు న్నమ్మపజ్జిరుత్తుది. అదుదరింద 1980-81 నేల సారణ ఆర్.టి.సి. యు కాలం నం. 9 రణ ప్రతిపాదించు దేసరను. కేగదుహాకీ నకొర ఎందు బరీయలాగిది.

ತೀರ್ಪು: ಶೀಘ್ರ, ರವಿಗಾರರಗೆ ಉಚ್ಚಲಿಖನ ವೀಡಿಯೋ ದೊರಕಿತು. ಮೂಡಿನಿ, ನಂನೂರಿನಿ ನಡಿ
ಮೂಡಿ ಇಂದು ದಿನಾಂಕ: 5-8-89 ರಂದು ತೆರೆದ ಸಾಕ್ಷಿಯು ಬಾಂಧವರು, ಕ್ಷಮಾಪನ ಬಾಂಧವರು.

N- 
(ఎస్.ప్రభాకరశర్మ),
జడ్పీ విభాగాధికారి,
మేఘనాథులు జడ్పీ విభాగం, మేఘనాథులు.

- 1) ఆదేశక ప్రక్రియలు - ప్రతివాదియవరికి మేష్నూరు తాలూకాకు తహసీల్దార్ రవరథి ముఖాంతర జారీగే కలుపినది.
- 2) " " మేష్నూరు తాలూకాకు తహసీల్దార్ రవరిగే కలుపినకొడుతూ నదరి విషయదర్శన పూర్వ క్రమ కేటగొరాలు తిరిగినది.
- 3) " " నంబంధపు కడతకే.
- 4) నూరే కాపిగలు ఎరకు.

ಶ್ರೀಮತರೇ ಹೊಗಳಿಕೆ
ನೀತಿಗಾಗಿ
ಉಪ-ವಿಭಾಗಾಧಿಕಾರಿ
ಶ್ರೀಮತರೇ ಉಪ-ವಿಭಾಗ, ಮೈಸೂರು
15/11/08

Answered

Handwritten signature: *Samuel*

பெரிய காவலுக்கு உட்பட்ட
நிலை:

ತಕ್ಕದ್ದು
ಪ್ರತಿಪದ್ಯವು

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In the court of Assistant commissioner**Case No:LND.AUDIT.4:85-86****Dated:5-8-89****Presence: Sri N.Prabhakarappa. KAS****Assistant Commissioner****Mysore sub division****Mysore****Petitioner
Government****v/s****Respondents
Sri Lakkshma Bovi s/o
Puttabovi
Dattagalli kasaba hobli
Mysore Taluk**

Subject: Regarding illegal entry of revenue records in survey number 52 61 82 of Dattagalli village, Kasaba Hobli, Mysore taluk

The Revenue Auditor, Assistant Commissioner Office, Mysore, in his letter dated 19-2-86 R.A. D. 71. 85-86, has stated that during the inspection of the lands of Survey No. 52, 1-34 acres, 61, 1 acre 35 gunte and 82, 10 acres of land in Kasaba Hobli, Dattagalli village, Mysore taluk, some deficiencies were found and since the files regarding the grant of the said land and the restoration of the khatha were not available, he has sought an explanation from the Tahsildar in this regard and has requested this office to take further action.

The case is admitted in this court and issued notice to the respondents to appear in this court on 19-10-87 and the notice has been sent through the Mysore Taluk Tahsildar to the concerned parties. The case has been adjourned to 15-7-89, 29-7-89 and 5-8-89.

On 15-7-89, Shri L.N. Govindaswamy appeared in this court on behalf of the defendants and made the following statement.

The government had allotted a total of 13 acres 29 guntas of land in the survey numbers 52, 61, 82 of the said land (Dattagalli) to his grandfather Lakshma Bovi. His grandfather died in 71 and then his father died in 1980. His grandfather had only one child, his father - his father had a total of 3 children. All of them are farming together. After the death of his father, khatha of the the land was transwred in his name. Documents have been produced in this regard. Therefore the case has been requested to be closed.

ORDER

The case was called on 5/8/89. The statement and documents of the defendant regarding the case were thoroughly examined. The RTC for the year 1980-81 was examined and it was mentioned that there is a change in Khatha as per the "Succession Mutation". When the RTC for the year before 1980-81 was examined, it was found that the entry in agriculture column



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as "LAKE AREA". Also, on field verification revealed that the land in question was not in anyone's possession. It is clear that the Saguvali chit(grant certificate) presented by the defendant is the bogus document's Xerox copy. Therefore, in column 9 of the RTC for the year 1980-81, the name of the defendant was removed and the word "Government" was written.

The verdict was given dictation to the scribes, signed, and announced in open court today, 5/8/89.

Signed/
Assistant Commissioner
Mysuru sub division Mysuru.

Copy to:

1. Defedents, sent through the Mysore Taluk Tahsildar.
2. Thasildar Mysuru taluk to take necessary action in this aspect.
3. Concerned file
4. Spare copies -2



ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಮೈಸೂರು ಜಿಲ್ಲೆ, ಮೈಸೂರು.

ಎಂ.ಎಲ್.ಎಸ್.ಡಿ.(1)61/2000-01

ದಿನಾಂಕ 28.8.2003

ಅಧಿಕೃತ ಜ್ಞಾಪನೆ

ವಿಷಯ: ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಕವಬಾ ಹೋಬಳಿ, ಲಿಂಗಾಂಬುಧಿ ಕೆರೆಗೆ ಸೇರಿದ ಲಿಂಗಾಂಬುಧಿ, ದಟ್ಟಗಲ್ಲಿ ಮತ್ತು ಅಯ್ಯಾಜಯ್ಯನಹುಂಡಿ ಗ್ರಾಮಗಳಿಗೆ ಸೇರಿದ ಕ್ರಮವಾಗಿ ಸ.ನಂ. 23ರಲ್ಲಿನ 51.30 ಎಕರೆ, ಸ.ನಂ.82 ರಲ್ಲಿನ 161.10 ಎಕರೆ ಮತ್ತು ಸ.ನಂ. 11ರಲ್ಲಿ 28.23 ಎಕರೆ ಒಟ್ಟು 241.23 ಎಕರೆ ಜಮೀನನ್ನು ಅರಣ್ಯ ಮ್ಯಾನೂಯಲ್ ಸೆಷನ್ 49 ರ ಪ್ರಕಾರ ಸಂರಕ್ಷಿತ ಪ್ರದೇಶವೆಂದು ಘೋಷಿಸಿ, ಅನಂತರ ಅರಣ್ಯ ಇಲಾಖೆಗೆ ಅಧಿಸೂಚನೆ ಹೊರಡಿಸಲು ಸರ್ಕಾರವು ಅನುಮತಿ ನೀಡಿರುವ ವಿಚಾರ.



ಉಲ್ಲೇಖ: ಈ ಕಛೇರಿಯಿಂದ ಸರ್ಕಾರಕ್ಕೆ ಸಲ್ಲಿಸಿದ್ದ ಇದೇ ಸಂಖ್ಯೆಯ ಪ್ರಸ್ತಾವನೆ ದಿನಾಂಕ 4.8.2001.

2. ಸರ್ಕಾರದ ಆದೇಶ ಆರ್.ಡಿ.86 ಎಲ್ ಜಿಎಂ.2001 ದಿನ 8.7.2003.

..

ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಕವಬಾ ಹೋಬಳಿ, ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ಸ.ನಂ. 23, ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸ.ನಂ.82 ಮತ್ತು ಅಯ್ಯಾಜಯ್ಯನಹುಂಡಿ ಗ್ರಾಮದ ಸ.ನಂ. 11ನ್ನು ಒಳಗೊಂಡಿರುವ ಲಿಂಗಾಂಬುಧಿ ಕೆರೆಯು ಮೈಸೂರು ನಗರದ ರಾಮಕೃಷ್ಣನಗರ ಬಡಾವಣೆಗೆ ಹೊಂದಿಕೊಂಡಂತೆ ಇದ್ದು, ಅನೇಕ ದೇಶವಿರೋಧಗಳಿಂದ ಬರುವ ಪಕ್ಷಿ ಸಂಕುಲದ ಆಶ್ರಯ ತಾಣವಾಗಿರುತ್ತದೆ. ಈ ಕೆರೆಯ ನೀರನ್ನು ಅನುಪಾಸನ ನಿವಾಸಿಗಳು ಬಿಸಾಡುವ ತ್ಯಾಜ್ಯ ವಸ್ತುಗಳನ್ನು ಕೆರೆಗೆ ಹಾಕುವ ಮೂಲಕ ಮತ್ತು ಸುತ್ತಮುತ್ತಲ ಬಡಾವಣೆಯ ಚರಂಡಿ ನೀರು ಕೆರೆಗೆ ಸೇರಿ ಕೆರೆಯ ನೀರು ಸುಖಿತಗೊಂಡು ಪಕ್ಷಿ ಸಂಕುಲ ಜೀವಕ್ಕೆ ಮಾರಕವಾಗಿರುವುದರಿಂದ, ಈ ಕೊಠಲೇ ಇದನ್ನು ತಕ್ಷಣವಂತೆ ಹಾಗೂ ಪರಿಸರವನ್ನು ಕಾಪಾಡಿ ಅಂತರ್ಜಲ ಮಟ್ಟ ಏರ್ಪಾಡಲು ಹಾಗೂ ನೀರಾವರಿಯ ವ್ಯವಸ್ಥೆಯನ್ನು ಕಾಯ್ದುಕೊಳ್ಳಲು ತಕ್ಷಣ ಅಗತ್ಯವಾದ ಎಲ್ಲಾ ಕ್ರಮಗಳನ್ನು ಕೈಗೊಳ್ಳುವಂತೆ ಪರಿಸರದ ಬಗ್ಗೆ ಕಾಳಜಿ ಹೊಂದಿರುವವರು ಒತ್ತಾಯ ಪಡಿಸಿರುತ್ತಾರೆ. ಅದರಂತೆ ಮೇಲ್ಕಂಡ ಉದ್ದೇಶ ಈಡೇರಿಕೆಗೆ ತಹಶೀಲ್ದಾರ್ ರವರ ಪತ್ರ ಎಲ್.ಎಸ್.ಡಿ.153/94-95 ರಂತೆ ಈಗಾಗಲೇ ಜಮೀನನ್ನು ಅರಣ್ಯ ಇಲಾಖೆಗೆ ಮರಗಿಡಗಳನ್ನು ಬೆಳೆಸಲು ದಿ.1.7.94ರಲ್ಲಿ ಹಸ್ತಾಂತರಿಸಲಾಗಿದೆ.

ಅರಣ್ಯ ಇಲಾಖೆಯ ಉಪಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು ಈ ಕೆರೆಯ ವ್ಯಾಪ್ತಿಗೆ ಸೇರಿದ್ದು ಹಾಗೂ ಅರಣ್ಯ ವಿಭಾಗದ ಅಧೀನದಲ್ಲಿರುವ ಪ್ರದೇಶವನ್ನು "ಸಂರಕ್ಷಿತ ಪ್ರದೇಶ" ಎಂದು ಘೋಷಿಸುವಂತೆ ಕೋರಿರುತ್ತಾರೆ. ಈ ಮಧ್ಯೆ ಲಿಂಗಾಂಬುಧಿ ಕೆರೆಗೆ ಸೇರಿದ ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ವ್ಯಾಪ್ತಿಯ ಸ.ನಂ.82 ರಲ್ಲಿ 15.00 ಎಕರೆ ಪ್ರದೇಶವನ್ನು ಮೇರಿ ಬ್ರಿಕ್ ಇಂಡಸ್ಟ್ರೀಸ್ ರವರಿಗೆ ಗುತ್ತಿಗೆಗೆ ನೀಡಿದ್ದು ಇವರ ಗುತ್ತಿಗೆ ಅವಧಿಯು 29.6.2001 ರಲ್ಲಿ ಮುಗಿದಿರುವುದರಿಂದ ಇವರನ್ನು ತೆರೆವು ಗೊಳಿಸುವ ಬಗ್ಗೆ ಕ್ರಮ ಕೈಗೊಳ್ಳಲಾಗಿದ್ದು ಹಾಲಿ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ತಡೆಯಾಜ್ಞೆ ಇರುವುದರಿಂದ ತೆರವು ಗೊಳಿಸಲಾಗಿರುವುದಿಲ್ಲ. ಈ ಮಧ್ಯೆ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಲಿಂಗಾಂಬುಧಿ ಕೆರೆಯ ಪ್ರದೇಶವನ್ನು ಅವರ ಪತ್ರ ಎಲ್.ಎಸ್.ಡಿ. 234/01-02 ದಿ.21.6.2001 ರಲ್ಲಿ ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಎಂಎಲ್.ಡಿ.181 ಎಸ್.ಎಡಿ 69 ದಿನಾಂಕ 13.2.76 ರಂತೆ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು "ಸಂರಕ್ಷಿತ ಪ್ರದೇಶ" ಎಂದು ಘೋಷಿಸಲು ಕಛಾರಪ್ಪು ಮಾಡಿರುತ್ತಾರೆ.

ಮುಖ್ಯ

ಅದೇಶ

ಸರ್ಕಾರದ ಪತ್ರ ಅರ್.ಡಿ. 86 ಎಲ್.ಜಿ.ಎಂ. 2001 ದಿ. 8.7.2003 ರಲ್ಲಿ ನೀಡಿರುವ ನಿರ್ದೇಶನದಂತೆ ಮೈಸೂರು ತಾಲ್ಲೂಕು ಲಿಂಗಾಂಬುಧಿ ಕೆರೆಯ ವ್ಯಾಪ್ತಿಗೆ ಸೇರಿರುವ ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ಸ.ನಂ. 23 ರ 51.30 ಎಕರೆ, ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸ.ನಂ.82 ರ 161.10 ಎಕರೆ ಮತ್ತು ಅಯ್ಯಾಜಯ್ಯನಹುಂಡಿ ಗ್ರಾಮದ ಸ.ನಂ.11 ರ 28.23 ಎಕರೆ ಒಟ್ಟು 241.23 ಎಕರೆ ಜಮೀನಿನ ಪೈಕಿ ದಟ್ಟಗಲ್ಲಿ ಸ.ನಂ.82 ರಲ್ಲಿ ಮೇರಿ ಬ್ರಿಕ್ಸ್ ಇಂಡಸ್ಟ್ರೀಸ್ ಇವರಿಗೆ ಗುತ್ತಿಗೆಗೆ ನೀಡಿರುವ 15.00 ಎಕರೆ ಜಮೀನಿನ ಬಾಬು ಉಚ್ಚ ಸ್ವಾಯಾಂಶದಲ್ಲಿ ದಾವೆ ಸಡೆಯುತ್ತಿರುವ ಜಾರಣದಿಂದ ಸರ್ಧಕ್ಕೆ ಹೊರತು ಪಡಿಸಿ ಮತ್ತು ಇದೇ ಸ.ನಂ.ನಲ್ಲಿ ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರವು ಮನೆಗಳನ್ನು ನಿರ್ಮಿಸಿರುವ 10.00 ಎಕರೆ ಪ್ರದೇಶವನ್ನು ಬಿಟ್ಟು ಉಳಿದ ಏಕೀಕರಣವನ್ನು ಕರ್ನಾಟಕ ಭೂಕಂದಾಯ ಅಧಿನಿಯಮ ವಿಧಿ 71 ರಂತೆ ಸಾರ್ವಜನಿಕ ಉದ್ದೇಶಕ್ಕಾಗಿ ಸಾರ್ವಜನಿಕ, ಈ ಪ್ರದೇಶವನ್ನು ಅರಣ್ಯ ಪಂರಕ್ಷಿತ ಪ್ರದೇಶವೆಂದು ಘೋಷಿಸಲಾಗಿದೆ ಮತ್ತು ಅರಣ್ಯ ಇಲಾಖೆಯು ಪಂರಕ್ಷಿತ ಪ್ರದೇಶವೆಂದು ಅಗತ್ಯ ಅಧಿಸೂಚನೆ ಹೊರಡಿಸಲು ಆದೇಶಿಸಿದೆ. ದಟ್ಟಗಲ್ಲಿ ಸ.ನಂ. 82 ರಲ್ಲಿ ಮೇರಿ ಬ್ರಿಕ್ಸ್ ಇಂಡಸ್ಟ್ರೀಸ್ ಇವರಿಗೆ ಗುತ್ತಿಗೆಗೆ ನೀಡಿರುವ ಪ್ರದೇಶದ ಬಗ್ಗೆ ಉಚ್ಚ ಸ್ವಾಯಾಂಶದ ಅದೇಶದ ಸಂತರ ಕ್ರಮ ಮಹಿಷಲಾಗುವುದು.

ಸದ್ಯಾಲ್ ಕಲ್ಪಿ ವಿವರಿಸಿರುವ ಸರ್ವೆ ನಂಬರುಗಳನ್ನು ಅರಣ್ಯ ಇಲಾಖೆಯವರು ಪಂರಕ್ಷಿತ ಪ್ರದೇಶವೆಂದು ಕಾನೂನುಬಾಹಿರ ಕರ್ನಾಟಕ ಭೂ ಕಂದಾಯ ಅಧಿನಿಯಮ 1964 ರ ವಿಧಿ 71 ರಂತೆ ಸಾರ್ವಜನಿಕ ಉದ್ದೇಶಕ್ಕಾಗಿ ಪಂರಕ್ಷಿತ ಪ್ರದೇಶವೆಂದು ಘೋಷಿಸಿದೆ ಮತ್ತು ಅರಣ್ಯ ಇಲಾಖೆಯ ವಶಕ್ಕೆ ನೀಡಿದೆ. ಕಂದಾಯ ಇಲಾಖೆಗೆ ಈ ಜಮೀನು ಲೆಕ್ಕಪೂರೈಕೆ ವಾಪಸ್ಸು ಪಡೆಯುವ ಹಕ್ಕು ಹೊಂದಿರುತ್ತದೆ. ಅರಣ್ಯ ಇಲಾಖೆಯು ಯಾವ ಉದ್ದೇಶಕ್ಕಾಗಿ ಜಮೀನನ್ನು ಹಾಕಿರಿಸಿ ಪ್ರದೇಶೀಕರಣದಿಂದಲೂ ಅದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಉಪಯೋಗಿಸತಕ್ಕದ್ದು ಮತ್ತು ಅರಣ್ಯ ಕಾಯಿದೆಯಡಿಯಲ್ಲಿ ಮೂಕ ಅಧಿಸೂಚಿಸುತ್ತಿರುವ ಹೊರಡಿಸತಕ್ಕದ್ದು.

ಜೆ.ಡಬ್ಲ್ಯೂ.ಎಲ್

ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ಸ.ನಂ.23 ರಲ್ಲಿ 51.30 ಎಕರೆ ಜಮೀನಿನ ಚಕ್ಕುಬಂದಿ

ಪೂರ್ವಕ್ಕೆ	ಪಶ್ಚಿಮಕ್ಕೆ	ಉತ್ತರಕ್ಕೆ	ದಕ್ಷಿಣಕ್ಕೆ
ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ದಟ್ಟಗಲ್ಲಿ ಸ.ನಂ.24,25,26,20,29 ಮತ್ತು 31ರ ಜಮೀನು	ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸ.ನಂ.87 ಜಾಗೂ ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ಸ.ನಂ.14 ರ ಜಮೀನು	ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸ.ನಂ.82 ರ ಕೆರೆಯ ಪ್ರದೇಶ	ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ಸ.ನಂ.14,16,20,22 ಜಾಗೂ 32 ರ ಜಮೀನು

2. ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸ.ನಂ 82 ರಲ್ಲಿ ಮೇರಿ ಬ್ರಿಕ್ಸ್ ಇಂಡಸ್ಟ್ರೀಸ್ ಬಾಬು 15.00 ಎಕರೆ ಮತ್ತು ನಗರಾಭಿವೃದ್ಧಿ ಪ್ರಾಧಿಕಾರದ ವಶದಲ್ಲಿ ಇರುವ 10.00 ಎಕರೆ ಒಟ್ಟು 25.00 ಎಕರೆ ಹೊರತು ಪಡಿಸಿ ಉಳಿದ 136.10 ಎಕರೆ ಜಮೀನಿನ ಚಕ್ಕುಬಂದಿ.

ಪೂರ್ವಕ್ಕೆ	ಪಶ್ಚಿಮಕ್ಕೆ	ಉತ್ತರಕ್ಕೆ	ದಕ್ಷಿಣಕ್ಕೆ
ಮೂಲ್ಕೆ ಉಚ್ಚ ಸ್ವಾಯಾಂಶದ ತಡೆಯುಗಾಣೆ ದಟ್ಟಗಲ್ಲಿ ಜಾಗೂ	ದಟ್ಟಗಲ್ಲಿ ಸ.ನಂ.87, ಅಯ್ಯಾಜಯ್ಯನಹುಂಡಿ ಸ.ನಂ.11 ರ ಕೆರೆಯ ಪ್ರದೇಶ, ಸ.ನಂ.9 ದಟ್ಟಗಲ್ಲಿ ಸ.ನಂ.83,84 ಮತ್ತು 67 ರ ಜಮೀನು	ದಟ್ಟಗಲ್ಲಿ ಗ್ರಾಮದ ಸ.ನಂ.194, 192, 81,80, 75, 74, 73, 72 ಮತ್ತು 69ರ ಜಮೀನು	ಲಿಂಗಾಂಬುಧಿ ಗ್ರಾಮದ ಸ.ನಂ.23 ರ ಕೆರೆಯ ಪ್ರದೇಶ

ಮಾನ್ಯ

1. ಅಯ್ಯಾಜಯ್ಯನಹುಂದಿ ಗ್ರಾಮದ ಪ.ನಂ. 11 ರಲ್ಲಿ 28.23 ಎಕರೆ ಪ್ರದೇಶಕ್ಕೆ ಚಕ್ಕುಬಂದಿ

ಪೂರ್ವಕ್ಕೆ	ಪಶ್ಚಿಮಕ್ಕೆ	ಉತ್ತರಕ್ಕೆ	ದಕ್ಷಿಣಕ್ಕೆ
ದಟ್ಟಗಲ್ಕಿ ಪ.ನಂ.82 ರ ಕರೆಯ ಪ್ರದೇಶ	ಅಯ್ಯಾಜಯ್ಯನಹುಂದಿ ಗ್ರಾಮದ ಪ.ನಂ.3 ಮತ್ತು 14 ರ ಜಮೀನು	ಅಯ್ಯಾಜಯ್ಯನಹುಂದಿ ಗ್ರಾಮದ ಪ.ನಂ. 4 ಮತ್ತು 10 ರ ಜಮೀನು	ಅಯ್ಯಾಜಯ್ಯನಹುಂದಿ ಪ.ನಂ.13 ಮತ್ತು 12 ರ ಜಮೀನು



ಶ್ರೀ. ಸುಬ್ರಹ್ಮಣ್ಯ
ಜಿಲ್ಲಾಧಿಕಾರಿ

ಮೈಸೂರು ಜಿಲ್ಲೆ

1. ಪ್ರಾಥಮಿಕ ನೋಂದಣಿ ದಾಖಲೆಗಳು, ಕಂದಾಯ ಇಲಾಖೆ, ಬಹು ಮತದಿ ಕಟ್ಟಡ, ಬೆಂಗಳೂರು ಇವರ ಆವರಣದಲ್ಲಿವೆ.
2. ಅರೆದ್ವಿ, ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ವಿಭಾಗ, ಅರಣ್ಯ ಭವನ, ಅಮೋಕವುರಂ, ಮೈಸೂರು ಇವರಿಗೆ ಸೂಕ್ತ ತ್ರಮೆ ಕೈಗೊಳ್ಳಲು ಕಳುಹಿಸಲಾಗಿದೆ.
3. ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ಇವರಿಗೆ ಸೂಕ್ತತಮಗಾಗಿ.
4. ತಹಶೀಲ್ದಾರ್, ಮೈಸೂರು ಇವರಿಗೆ ಕಡತಮೊಂದಿಗೆ ಸೂಕ್ತ ಕ್ರಮ ಕೈಗೊಂಡು ವರದಿ ಸಲ್ಲಿಸಲು ಕಳುಹಿಸಲಾಗಿದೆ.
5. ಸಹಾಯಕ ನಿರ್ದೇಶಕರು, ಭೂ ಮಾಪನ ಇಲಾಖೆ, ಮೈಸೂರು ಇವರಿಗೆ ತಹಶೀಲ್ದಾರ್ ರವರಿಗೆ ಅಗತ್ಯ ವಿರಮೆ ನೀಡಲು ಕಳುಹಿಸಲಾಗಿದೆ.

ಸಕರಿಗೆ ಅರ್ಜಿ ಕೊಟ್ಟವರು ಸಿ.ಸಿ
ಸಕರಿಗೆ ಅರ್ಜಿ ಕೊಟ್ಟ ದಿನಾಂಕ 06-12-2014
ಸಕಲು ತಯಾರಿಸಿದ ದಿನಾಂಕ 15-12-2014
ಸಕಲು ತಯಾರಿಸಿದವರು ಇ.ಎ.ಎ.ಎ.
ಇತರು ಪಾಲ್ಗೊಂಡವರು P.N. ರಾಜೇಶ್ etc

ಶ್ರೀ. ಸುಬ್ರಹ್ಮಣ್ಯ

ಮೈಸೂರು ಜಿಲ್ಲಾಧಿಕಾರಿ
- ಮೈಸೂರು ಜಿಲ್ಲೆ

This is the annexure.....document No-4
Affidavit of....K.M. Mahesh Kumar
stated in the

NOTARY

ಮೈಸೂರು

OFFICE OF THE DEPUTY COMMISSIONER, MYSURU
DISTRICT, MYSURU.

No.LND.(1)61/2000-01

Dated: 28.08.2003.

OFFICIAL MEMORANDUM

Subject: Mysore Taluk, Kasaba Hobli, Lingambudhi, Dattagalli and Ayyajayanahundi villages belonging to Lingambudhi Lake, respectively, 51-30 acres in S.No. 23, 161.10 acres in S.No. 82 and 28.23 acres in S.No. 11, a total of 241.23 acres of land have been declared as a protected area as per Forest Manual Session 49 and the Government has given permission to the Forest Department to issue a notification.

Reference: 1. Date of proposal number submitted to the government by this office: 04.08.2001.
2. Government Order R.D.86.L.G.M.2001 dated:08.07.2003.

In 'Lingambudhi Lake, which consists of Sy.No. 23 of Lingambudhi village, Sy.No. 82 of Dattagalli village and Sy.No. 11 of Ayyajayanahundi village in Mysore taluk, is adjacent to the Ramakrishnanagara area of Mysore city and is a shelter for many birds from all over the world. The water of this lake is polluted by the waste materials thrown by the residents of the surrounding area and the sewage water of the surrounding area enters the lake, which is harmful to the life of birds. Those who are concerned about the environment have urged to avoid this and take all necessary steps immediately to protect the environment, maintain the groundwater level and maintain the irrigation system. Accordingly, for the fulfillment of the above aspect, the land has already been handed over to the Forest Department for the purpose of growing trees as per the letter of the Tahsildar L.N.D.153/94-95 dated 1.7.94.

The Deputy Conservator of Forests of the Forest Department has requested that the area falling under the jurisdiction of this lake and under the jurisdiction of the Forest Division be declared as a "Protected Area". In the meantime, 15.00 acres of land in S.No.82 of Dattagalli village belonging to Lingambudhi Lake has been leased to Mary Brick Industries, whose lease period expired on 29.6.2001, action has been taken to vacate it, but due to the current stay order of the High Court, it has not been vacated. In the meantime, the Sub-Divisional Officers, in their letter No. 234/01-02 B.21.6.2001 Ralli Sabarada Sukkul Nanda D. 181 E.N.O.D. 69 dated 13.2.76, have recommended that the District Collector declare the area of Lingambudhi Lake as a "Protected Area".



Order

As per direction by the government letter R.D.86 L.G.M 2001 dated: 8.7.2003. In Mysore Taluk, Lingambudi village Sy.No. 23. 51-30 Acres, Dattagalli village Sy No. 82 161-10 Acres, Iyyajayyanahundi Sy No.11 28-23 Acres total 241-23 Acres, Out of which leaving 15-00 acres of land given to Mary Bricks Industries on lease in Dattagalli Sy.No.82 for relating to this a case is pending in high court and leaving the 10.00 acres of land where the Urban Development Authority has constructed houses in this area, balance area is declared as Protected forest land and reserved for public as per Land Revenue act 1964 section 71 and ordered to pass a necessary Notification as "Forest department protected area". Action will be taken after the High Court order regarding the area given on lease to Mary Bricks Industries in Dattagalli Sy.No.82.

The survey numbers mentioned in the schedule shall be used for the same purpose as the Forest Department has declared the land as a protected area and the Forest Department shall issue a suitable notification under the Forest Department Act, and ordered as reserved for public as per Land Revenue act 1964 section 71 and hand over to the forest department. The Revenue Department has the right to reclaim this land if necessary.

Schedule

Index of the land in Sy.No.23 of Lingabudi village, to an extant of 51-30 Acres.

East	West	North	South
Land in Sy. No.24,25,26,20,29 and 31 of lingabudi village.	Land in Sy. No.87 of dattagalli village and 14 of lingabudi village.	Lake land in Sy. No.82 of Dattagalli village.	Land in Sy. No.14,16,20,22 and 32 of lingabudi village.

Index of the land 136.10 Acres of Dagttagalli village Sy No.82. except 10-00 Acres in position with MUDA and 15.00 Acres which is given lease to Mary bricks Industries

East	West	North	South
The balance land of Sy. No.82 in dattagalli village having Hon'ble High court stay,	Dattagalli village Sy.No.87, Lake land of Ayyajayyanahundi Sy.No.11, Dattagalli village Sy.No.9, land in Sy.No.83,84 and 67	Land in Sy. No.194, 192, 81,80,75,74,73,72 and 69	Lake land in Sy. No.23 of lingabudi village.

Index of the land in Sy.No.11 of Ayyajayyanahudi village, to an extant of 28-23 Acres.

East	West	North	South
Lake land in Sy. No.82 of Dattagalli village.	Land in Sy. No.3 and 14 of Ayyajayyanahundi village.	Land in Sy. No.4 and 10 of Ayyajayyanahundi village.	Land in Sy. No.13 and 12 of Ayyajayyanahundi village.

Signed/-
Deputy Commissioner
Mysuru District.

Copy to:

1. Principle secretary to Revenue Department , Multi store building, Bangalore. For kind information.
2. Forest reservoir, Mysuru division, aranya bhavana, Ashokapuram, Mysuru for necessary action.
3. Assistant Commissioner for necessary action.
4. Thasildar, Mysuru to take necessary action, and to submit the report of action taken.
5. Assistant director of land records, Survey department, Mysuru. To Assist Thasildar Mysuru Taluk.



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಅಪಜೀ 1 ಎಫ್‌ಎಎಫ್ 2011

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ,
ಬೆಂಗಳೂರು. ದಿನಾಂಕ: 01-02-2011.

ಅಭಿಸೂಚನೆ

ಕರ್ನಾಟಕ ಅರಣ್ಯ ಕಾಯ್ದೆ 1963 (1964ನೇ ಕರ್ನಾಟಕ ಕಾಯ್ದೆ 5 ಕಲಂ)ರ ಕಲಂ 4ರಲ್ಲಿ ಪ್ರದತ್ತವಾದ ಅಧಿಕಾರವನ್ನು ಚಲಾಯಿಸಿ, ಸರ್ಕಾರವು ಈ ಕೆಳಕಂಡ ಅನುಷ್ಠಾನದಲ್ಲಿ ನಮೂದಿಸಿರುವ ಅಂಗಾಂಜ್ವಲಿ ಕಡೆ, ಕಟ್ಟಡಗಳು ಮತ್ತು ಇತರವಸ್ತುಗಳ ಹುಂಡಿ ಗ್ರಾಮ. ಕನಕಾ ಹೋಬಳಿ, ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಮೈಸೂರು ಜಿಲ್ಲೆ, ಜಮೀನುಗಳನ್ನು ಈ ಅಭಿಸೂಚನೆಯು ಗೆಜೆಟ್‌ನಲ್ಲಿ ಪ್ರಕಟಗೊಂಡ ದಿನಾಂಕದಿಂದ ಜಾರಿಗೆ ಬರುವಂತೆ "ಮೀಸಲು ಅರಣ್ಯ" ಎಂದು ಈ ಮೂಲಕ ಘೋಷಿಸಿದೆ.

2. ಮೇಲ್ಕಂಡ ಕಾಯ್ದೆಯ ಕಲಂ 4 (1)(ಸಿ) ಪ್ರಕಾರ ಕರ್ನಾಟಕ ಸರ್ಕಾರವು ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ, ಮೈಸೂರು ಉಪ ವಿಭಾಗ ಇವರನ್ನು ಅರಣ್ಯ ವ್ಯವಸ್ಥಾಪನಾಧಿಕಾರಿಗಳನ್ನಾಗಿ ನೇಮಿಸಲಾಗಿದೆ. ಅರಣ್ಯ ವ್ಯವಸ್ಥಾಪನಾಧಿಕಾರಿಗಳು ಇವರು ಮೇಲೆ ನಮೂದಿಸಿರುವ ಪ್ರದೇಶದ ಮೇಲೆ ಯಾವುದೇ ವ್ಯಕ್ತಿಗೆ ಇರಬಹುದಾಗಿರುವ ಕೆಲವು ಬಾಧ್ಯತೆಗಳನ್ನು ಇತ್ಯಾಶ್ರಯಿಸಿ, ನಿರ್ಧರಿಸಿ, ವಿಚಾರಣೆ ಮಾಡಿ ತೀರ್ಮಾನಿಸುವುದು.

3. ಮೇಲ್ಕಂಡ ಕಾಯ್ದೆಯ ಕಲಂ 4(2) ಪ್ರಕಾರ ಕರ್ನಾಟಕ ಸರ್ಕಾರವು ಉಪ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳನ್ನು, ಮೈಸೂರು ವಿಭಾಗ, ಮೈಸೂರು ಇವರನ್ನು ಈ ವಿಭಾಗದಲ್ಲಿ ಅರಣ್ಯ ವ್ಯವಸ್ಥಾಪನಾಧಿಕಾರಿಗಳಿಗೆ ಸಹಕರಿತವರು ಹಾಗೂ ಅರಣ್ಯ ಇಲಾಖೆಯ ಪರವಾಗಿ ಪ್ರತಿನಿಧಿಸಲು ನೇಮಿಸಿದೆ.

4. ಮೇಲ್ಕಂಡ ಕಾಯ್ದೆಯ ಕಲಂ 11, 12, 13 ಮತ್ತು 14 ರ ಪ್ರಕಾರ ಅರಣ್ಯ ವ್ಯವಸ್ಥಾಪನಾಧಿಕಾರಿಗಳು ಈ ಆದೇಶ ಹೊರಡಿಸಿದ ದಿನಾಂಕದಿಂದ ಮೂರು ತಿಂಗಳೊಳಗೆ ಬಾಧಿತ ವ್ಯಕ್ತಿಗಳು ಸಲ್ಲಿಸುವ ಮೇಲ್ಮನವಿಗಳನ್ನು ಪರಿಶೀಲಿಸಲು, ಸದರಿ ಕಾಯ್ದೆಯ ಕುರಿತು 1963ನೇ ಪ್ರಕಾರ ಕರ್ನಾಟಕ ಕಂಡಾಯ ಮೇಲ್ಮನವಿ ನ್ಯಾಯ ಮಂಡಲಿಗೆ ಅಧಿಕಾರವಿರುತ್ತದೆ.

5. ಮೇಲ್ಕಂಡ ಕಾಯ್ದೆ ಕಲಂ 15ನೇ ಪ್ರಕಾರದ ಪ್ರಕಾರ ಭಾಧಿತವಾದ ಯಾವುದೇ ವ್ಯಕ್ತಿಯು ಸದರಿ ಕಾಯ್ದೆಯ ಕಲಂ 16(2)ನೇ ಪ್ರಕಾರ ಅಡೇಶ ಹೊರಡಿಸಿದ ದಿನಾಂಕದಿಂದ ಮೂರು ತಿಂಗಳೊಳಗೆ ಜಿಲ್ಲಾ ನ್ಯಾಯಾಲಯಕ್ಕೆ ಮೇಲ್ಮನವಿ ಸಲ್ಲಿಸಬಹುದು.

(2)



(2)

ಅನುಸೂಚಿ

1. ಜಿಲ್ಲೆಯ ಹೆಸರು : ಮೈಸೂರು
 2. ಸರ್ವೆ ನಂಬರ್, ಗ್ರಾಮ, ಪೋಲೀಸ್, ಹಾಲ್ಡಿಂಗ್‌ಗಳ ವಿವರ ಈ ಕೆಳಕಂಡಂತೆ ಇರುತ್ತದೆ:

ಕ್ರ. ಸಂ.	ಗ್ರಾಮ	ಸ.ನಂ.	ವಿಸ್ತೀರ್ಣ ಎ. ಗಂ.	ಪೋಲೀಸ್	ಹಾಲ್ಡಿಂಗ್	ಪರಾ
1.	ಲಂಗಾಂಬುಡಿ	23	51.20	ಮೈಸೂರು	ಮೈಸೂರು	
2.	ದಟ್ಟಣ್ಣ	82	136.10	ಮೈಸೂರು	ಮೈಸೂರು	ಮೇರಿ ಟ್ರಸ್ಟ್ ಬ್ಯಾಕ್ಲಿ ಮತ್ತು ಮೂಡಾ ನಿವೇಶನದ ಪ್ರದೇಶವನ್ನು ಹೊರತುಪಡಿಸಿದೆ.
3.	ಐಯ್ಯಪ್ಪನ ಹುಂಡಿ	11	25.23	ಮೈಸೂರು	ಮೈಸೂರು	
	ಒಟ್ಟು		216.23			

4. ಚಿಕ್ಕಬಂಡೆ: ಉತ್ತರಕ್ಕೆ :- ದಟ್ಟಣ್ಣ ಗ್ರಾಮದ ಬಾಸಗಿ ಜಮೀನು
 ಪೂರ್ವಕ್ಕೆ :- ದಟ್ಟಣ್ಣ ಗ್ರಾಮದ ಬಾಸಗಿ ಜಮೀನು ಮತ್ತು ಮೇರಿ ಟ್ರಸ್ಟ್
 ದಕ್ಷಿಣಕ್ಕೆ :- ಲಂಗಾಂಬುಡಿ ಗ್ರಾಮದ ಬಾಸಗಿ ಜಮೀನು ಮತ್ತು ಲಂಗಾಂಬುಡಿ ಕೆರೆಗೆ ಎದುರು
 ಪಶ್ಚಿಮಕ್ಕೆ :- ದಟ್ಟಣ್ಣ ಮತ್ತು ಐಯ್ಯಪ್ಪನ ಹುಂಡಿ ಗ್ರಾಮಗಳ ಬಾಸಗಿ ಜಮೀನು

1. ವಿಸ್ತೀರ್ಣ : 216 ಎಕರೆ 23 ಗುಂಡೆ
 2. ಸ್ಥಳೀಯ ಹೆಸರು : ಲಂಗಾಂಬುಡಿ ಕೆರೆ ನೆಲಮಾಲೀನ ಪ್ರದೇಶ
 3. ಸೂಚನೆ: 1) ಪ್ರಸ್ತಾವನೆಯಲ್ಲಿ ಪ್ರದೇಶದ ವಿಸ್ತೀರ್ಣ 216.23 ಎಕರೆಗಳಲ್ಲಿ ಮೇರಿ ಟ್ರಸ್ಟ್ ಮತ್ತು ಮೂಡಾ ನಿವೇಶನದ ಪ್ರದೇಶವನ್ನು ಹೊರತುಪಡಿಸಿದೆ.
 2) ಒಂದು ಗೆ. ಸೇತು = 100 ಮೀಟರ್‌ಗಳು (100 ಕೋಡಿಗಳು)
 3) ಪೂರ್ವ ಗೆ. ಸೇತುವೆಯ ವಿವರಗಳಿಲ್ಲ ಬರುವ ಸ್ಥಾನ ಸ್ಥಳೀಯ ಎಂಬುದು ಎ. ಸೇತುವೆಗಳ ಪ್ರದೇಶವು ಮೇರಿ ಟ್ರಸ್ಟ್ ಬ್ಯಾಕ್ಲಿಯ ಪ್ರದೇಶವಾಗಿರುತ್ತದೆ.

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ಪ್ರಶ್ನೆ: ಮೀಸಲು ಅರಣ್ಯವೊಂದು ಮೂಲಮಾಲು ಉದ್ದೇಶಿತ ಪ್ರದೇಶವು ದಟ್ಟಗಟ್ಟಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 84 ರ ಲೇಖನಕ್ಕೆ ಮೂಲಮಾಲು ಉದ್ದೇಶಿತವಾಗಿ, ಸ್ಥಾನ ಸಂಖ್ಯೆ: 1 ರಿಂದ ಸರಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 97, 98, 99 ಮತ್ತು 102 ರ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ, ಸ್ಥಾನ ಸಂಖ್ಯೆ: 4 ಮತ್ತು 5 ಗಳ ಮೇಲಿಂದ ಸರಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 192 ರ ಅಗ್ನೇಯ ಮೂಲಬಾರದಿಂದ ಆರಂಭವಾಗಿ ನಂತರ ಸರಳಿ ರೇಖೆಯು ಸರಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 80 ರ ಪಶ್ಚಿಮದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ನಂತರ ಸರ್ವೆ ನಂ. 78 ರ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ನಂತರ ಸರಳಿ ರೇಖೆಯು ಬಾಂದಿನಿಂದ ಹಾದು ಹೋಗುತ್ತದೆ. ನಂತರ ಸರ್ವೆ ರೇಖೆಯು ಸರಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 74 ರ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ 9 ನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಮೂಲಮಾಲು ರೇಖೆಯು ಸರ್ವೆ ನಂ. 74, 73, 72 ರ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ಸರ್ವೆ ನಂ. 60 ರ ದಕ್ಷಿಣದ ಮೂಲಮಾಲು ಬಾಂದಿನಿಂದ ಹಾದು ಹೋಗುತ್ತದೆ. ನಂತರ ಸರ್ವೆ ನಂ. 60 ರ ದಕ್ಷಿಣದ ಮೂಲಮಾಲು ಬಾಂದಿನಿಂದ ಸರಳಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 69 ರ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 14 ನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಸ್ಥಾನ ಸರ್ವೆ ನಂ. 69 ರ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ಬಾಂದಿನಿಂದ 9.50 ಸರಳಿ ಅಗ್ನೇಯ ದಿಕ್ಕಿನಲ್ಲಿರುತ್ತದೆ.

ಪರಿವರ್ತನೆ: ಸರ್ವೆ ರೇಖೆಯು ಸ್ಥಾನ ಸಂಖ್ಯೆ: 14 ರಿಂದ 15.00 ರವರೆಗೆ ದಕ್ಷಿಣಕ್ಕೆ 15.00 ಸರಳಿ ಚಲಿಸಿ ಸರಳಿ ಮೂಲಮಾಲು ಬಾಂದಿನಿಂದ ದಟ್ಟಗಟ್ಟಿ ಸರ್ವೆ ನಂ. 73 ರ ಅಗ್ನೇಯ ಬಾಂದಿನಿಂದ 12.00 ಸರಳಿ ಅಂತರದಲ್ಲಿ ಅಗ್ನೇಯ ದಿಕ್ಕಿನಲ್ಲಿರುತ್ತದೆ. ನಂತರ ಪಶ್ಚಿಮಕ್ಕೆ 5.95 ಸರಳಿ ಚಲಿಸಿ ಮೂಲಮಾಲು ಬಾಂದಿನಿಂದ ಹಾದು ಹೋಗುತ್ತದೆ. ನಂತರ ಸರಳಿ ಕಾಲುವೆಯ ಎಡಭಾಗಕ್ಕೆ ಬಂದು ತಲುಪುತ್ತದೆ. ನಂತರ ಸರಳಿ ಕಾಲುವೆಯ ಎಡಭಾಗದಲ್ಲಿ 5.70 ಸರಳಿ ಚಲಿಸಿ ಅಂಗಾಂಬುಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 24 ರ ವಾಯುವ್ಯ ಮೂಲ ಬಾಂದಿನಿಂದ ಹಾದು ಹೋಗುತ್ತದೆ. ನಂತರ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 19 ರಿಂದ ವಾಯುವ್ಯ ದಿಕ್ಕಿನಲ್ಲಿ 0.79 ಕೊಂಡಿಗಳು ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 20 ತಲುಪುತ್ತದೆ. ನಂತರ ಅಗ್ನೇಯ ದಿಕ್ಕಿನಲ್ಲಿ 2.38 ಸರಳಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 21 ಯನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಉತ್ತರಕ್ಕೆ 7.92 ಸರಳಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 22 ಬಾಂದಿನಿಂದ ವೈರುತ್ಯಕ್ಕೆ 2.48 ಸರಳಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 23 ಯನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 23 ದಿಕ್ಕಿನಲ್ಲಿ 8.70 ಸರಳಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 24 ಯನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಪಶ್ಚಿಮಾಭಿಮುಖವಾಗಿ 5.95 ಸರಳಿ ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 25 ಯನ್ನು ತಲುಪುತ್ತದೆ. ಸರಳಿ ಬಾಂದಿನಿಂದ ದಟ್ಟಗಟ್ಟಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 74 ರ ವೈರುತ್ಯ ಬಾಂದಿನಿಂದ ವೈರುತ್ಯಕ್ಕೆ 6.33 ಸರಳಿ ದೂರದಲ್ಲಿ ಇರುತ್ತದೆ. ನಂತರ ಅಗ್ನೇಯಾಭಿಮುಖವಾಗಿ 5.95 ಸರಳಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 26 ಅನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಅಂಗಾಂಬುಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 25 ರ ಉತ್ತರ ಬಾಂದಿನಿಂದ ವಾಯುವ್ಯ ದಿಕ್ಕಿನಲ್ಲಿ 12.25 ಸರಳಿ ದೂರದಲ್ಲಿರುತ್ತದೆ. ನಂತರ ಅಗ್ನೇಯಕ್ಕೆ 13.07 ಸರಳಿ ಚಲಿಸಿ ಮೂಲಮಾಲು ಬಾಂದಿನಿಂದ ಹಾದು ಹೋಗುತ್ತದೆ. ನಂತರ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 26 ಯನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಸೀಮಾ ರೇಖೆಯ ಅಗ್ನೇಯ ಮೂಲಮಾಲು ಸ್ಥಾನ ಸಂಖ್ಯೆ: 26 ಯನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಸೀಮಾ ರೇಖೆಯ ದಕ್ಷಿಣದ ಗಡಿಯಲ್ಲಿ 0.79 ಕೊಂಡಿಗಳು ಚಲಿಸಿ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 19 ನ್ನು ತಲುಪುತ್ತದೆ. ನಂತರ ಅಂಗಾಂಬುಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 24 ರ ವಾಯುವ್ಯ ಮೂಲಮಾಲು ಬಾಂದಿನಿಂದ ಹಾದು ಹೋಗುತ್ತದೆ. ನಂತರ ಸೀಮಾ ರೇಖೆಯ ಅಂಗಾಂಬುಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 24, 25, 26, 28, 29 ಮತ್ತು 31 ರ ಪಶ್ಚಿಮದ ಗಡಿಯಲ್ಲಿ ಚಲಿಸಿ ಸರ್ವೆ ನಂ. 32 ರ ಮೂಲಮಾಲು ಬಾಂದಿನಲ್ಲಿರುತ್ತದೆ. ಸ್ಥಾನ ಸಂಖ್ಯೆ: 25 ಕ್ಕೆ ಬಂದು ಹೋಗುತ್ತದೆ.

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FROM : PR SECY FOREST

PRK NO. : 91 83 2225(131)

T-6. 82 2011 10:57:41

ದತ್ತಿ: ನಂತರ ಸರ್ವೆ ರೇಖೆಯು ಅಂಗಾಂಶದಿಂದ ಸರ್ವೆ ನಂ. 02 ರ ಮೂಲದ ಮೂಲ ಬಾಂಧಿನಿಂದ ಸರ್ವೆ ನಂ. 02, 22, 20, 17, 16, 14 ಮತ್ತು 12 ರ ಮೂಲದ ರೇಖೆಯಲ್ಲಿ ಚಲಿಸಿ ಸದರಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 14 ರ ವಾಯುವ್ಯ ಬಾಂಧಿನಿಂದ ಪಶ್ಚಿಮಕ್ಕೆ 200 ಸರಳಕ ದೂರದಲ್ಲಿರುವ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 37 ನ್ನು ಸೇರುತ್ತದೆ.

ಪಶ್ಚಿಮ: ನಂತರ ಸರ್ವೆ ರೇಖೆಯು ಅಂಗಾಂಶದಿಂದ ಸರ್ವೆ ನಂ. 12 ರ ಕುಶಾನ್ಯ ಮೂಲ ಬಾಂಧಿನಿಂದ ಪ್ರಾರಂಭವಾಗಿ ದಟ್ಟಗಟ್ಟ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 07 ರ ಮೂಲದ ಮೂಲ ಬಾಂಧಿಗೆ ಬಂದು ಸ್ಥಳೀಯ ಚಲಿಸಿ ಸದರಿ ಸರ್ವೆ ನಂಬರಿನ ವಾಯುವ್ಯ ಮೂಲ ಬಾಂಧಿಗೆ ಬಂದು ಸ್ಥಳೀಯ ನಂತರ ವಾಯುವ್ಯದ ಕುಂಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 12 ಮತ್ತು 13 ರ ಮೂಲದ ಗಡಿರೇಖೆಯಲ್ಲಿ ವಾಯುವ್ಯದ ಮುಖವಾಗಿ ಚಲಿಸಿ ಸರ್ವೆ ನಂ. 13 ರ ವಾಯುವ್ಯ ಮೂಲ ಬಾಂಧಿನ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 44ಎ ಗೆ ಸೇರುತ್ತದೆ. ನಂತರ ವ್ಯಕ್ತಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 14 ಮತ್ತು 3 ರ ಮೂಲದ ರೇಖೆಯಲ್ಲಿ ಚಲಿಸಿ ಸದರಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 11 ರ ವಾಯುವ್ಯ ಮೂಲ ಬಾಂಧಿಗೆ ಬಂದು ಸ್ಥಾನ ಸಂಖ್ಯೆ: 44ಎ ಗೆ ಸೇರುತ್ತದೆ. ನಂತರ ಸರ್ವೆ ನಂ. 4 ಮತ್ತು 10 ರ ದಕ್ಷಿಣದ ಗಡಿರೇಖೆಯಲ್ಲಿ ಚಲಿಸಿ ಸರ್ವೆ ನಂ. 10 ರ ಅಗ್ನೇಯ ಮೂಲಕ್ಕೆ ಬಂದಿನಲ್ಲಿ ಇರುವ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 49 ನ್ನು ಸೇರುತ್ತದೆ. ನಂತರ ಸರ್ವೆ ರೇಖೆಯು ಉತ್ತರಾಭಿಮುಖವಾಗಿ ಮತ್ತು ವಾಯುವ್ಯಾಭಿಮುಖವಾಗಿ ಚಲಿಸಿ ವಾಯುವ್ಯದ ಕುಂಡಿ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 10 ರ ಮತ್ತು 9 ರ ಮೂಲದ ಗಡಿರೇಖೆಯಲ್ಲಿ ಹಾಗೂ ದಟ್ಟಗಟ್ಟ ಗ್ರಾಮದ ಸರ್ವೆ ನಂ. 03 ಮತ್ತು 04 ರ ಮೂಲದ ಗಡಿರೇಖೆಯಲ್ಲಿ ಚಲಿಸಿ ಪ್ರಾರಂಭದ ಸ್ಥಾನ ಸಂಖ್ಯೆ: 1 ನ್ನು ಸೇರುತ್ತದೆ.

ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ಆಜ್ಞಾನುಸಾರ
ಮತ್ತು ಅವರ ಹೆಸರಿನಲ್ಲಿ


(ಅಧೀಶಾಸ್ತ) 01/03/11

ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ.

ಇವರಿಗೆ:



ಅರಣ್ಯ, ಪರಿಸರ ಮತ್ತು ಜಲ ಪರಿಸ್ಥಿತಿ ಶಾಸ್ತ್ರ ಇಲಾಖೆ

ಸಂಕುಲನಕಾರರು ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ಆಜ್ಞಾನುಸಾರ - ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ವಿಶೇಷ ಸಂಚಿಕೆಯಲ್ಲಿ ಪ್ರಕಟಿಸಿ. ಅವರ 100 ಪ್ರತಿಗಳನ್ನು ಪ್ರಾಂಶುಪಾಲರು, 100 ಪ್ರತಿಗಳನ್ನು ಅಪರ ಪ್ರಧಾನ ಮುಖ್ಯ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿ (ಪ್ರಾಂಶುಪಾಲರ ಕಾರ್ಯಾಲಯ), ನಂಜನಗಿರಿ ಮತ್ತು ತರಬೇತಿ, ಅರಣ್ಯಭವನ, ಮೈಸೂರು ಮತ್ತು ಉಪ-ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿ, ಮೈಸೂರು ವಿಭಾಗ, ಮೈಸೂರು ಇವರಿಗೆ 100 ಪ್ರತಿಗಳನ್ನು ಒದಗಿಸುವಂತೆ ಕೋರಲಾಗಿದೆ.

ಪ್ರತಿಗಳು

1. ಪ್ರಧಾನ ಮುಖ್ಯ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು (ಅರಣ್ಯಪಡೆ ಮುಖ್ಯಸ್ಥರು), ಅರಣ್ಯ ಭವನ, ಮೈಸೂರು, ಬೆಂಗಳೂರು.

 (5)

(5)

2. ಅಪರ ಪ್ರಧಾನ ಮುಖ್ಯ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು (ಮೌಲ್ಯಮಾಪನ, ಕಾರ್ಯಾಯೋಜನೆ, ಸಂಶೋಧನೆ ಮತ್ತು ತರಬೇತಿ), ಅರಣ್ಯ ಭವನ, ಮಲ್ಲೇಶ್ವರಂ, ಬೆಂಗಳೂರು.
3. ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ವೃತ್ತ, ಮೈಸೂರು.
4. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ಜಿಲ್ಲೆ, ಮೈಸೂರು.
5. ಉಪ ಅರಣ್ಯ ಸಂರಕ್ಷಣಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ವಿಭಾಗ, ಮೈಸೂರು.
6. ಉಪ ವಿಭಾಗಾಧಿಕಾರಿ ಹಾಗೂ ಅರಣ್ಯ ವ್ಯವಸ್ಥಾಪನಾಧಿಕಾರಿಗಳು, ಮೈಸೂರು ಉಪ ವಿಭಾಗ, ಮೈಸೂರು.
7. ತಹಶೀಲ್ದಾರ್, ಮೈಸೂರು ತಾಲ್ಲೂಕು, ಮೈಸೂರು.
8. ಮಾನ್ಯ ಅರಣ್ಯ ಮತ್ತು ಸಣ್ಣ ಕೈಕಾರಿಕೆ ಸಚಿವರ ಅಪ್ಪ ಕಾರ್ಯದರ್ಶಿಗಳು, ವಿಧಾನಸೌಧ, ಬೆಂಗಳೂರು.
9. ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ/ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿ (ಅರಣ್ಯ)/ಉಪ ಕಾರ್ಯದರ್ಶಿ ಇವರ ಅಪ್ಪ ಕಾರ್ಯದರ್ಶಿ/ಅಪ್ಪ ಸಹಾಯಕರು, ಅರಣ್ಯ, ಪರಿಸರ ಮತ್ತು ಜೀವಿಶಾಸ್ತ್ರ ಇಲಾಖೆ, ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ, ಬೆಂಗಳೂರು.
10. ಶಾಖಾ ರಕ್ಷಕ ಕಡತ.

Document No-5
This is the annexure.....stated in the
Affidavit of...S. M. Mahesh Kumar.

NOTARY

(Signature)

GOVERNMENT OF KARNATAKA.

No.Aa.pa.ji.FA.F.2011

Secretary to the Government of Karnataka
Multi store building, Bangalore
Dated:01.02.2011.**NOTIFICATION**

In exercise of the powers conferred by section 4 of the Karnataka Forest Act, 1963 (section 5 of the Karnataka Act, 1964), the Government hereby declares the lands of Lingambudi Lake, Dattagalli and Aiyajayana Hundi Village, Kasaba Hobli, Mysore Taluk, Mysore District, as "Reserved Forest" with effect from the date of publication of this notification in the Gazette.

2. As per Section 4 (1)(c) of the above Act, the Government of Karnataka has appointed the Assistant Commissioner, Mysore Sub-Division as Forest Management Officers. The Forest Management Officers shall determine, inquire and decide on the possible rights of the above mentioned areas.

3. In terms of Section 4(2) of the above Act, the Government of Karnataka has appointed the Deputy Conservator of Forests, Mysore Division, Mysore, to assist the Forest Management Officer in this inquiry and to represent the Forest Department.

4. The Karnataka Revenue Appellate Tribunal shall have jurisdiction under section 16(1) of the said Act to examine appeals filed by the affected persons within three months from the date of issue of this order by the Forest Management Officer under sections 11, 12, 3 and 14 of the said Act.

5. Any person aggrieved under section 15 of the above Act may file an appeal to the District Court within three months from the date of issue of the order under section 16(2) of the said Act.

Schedule

1. District Name: Mysuru
2. Sy No. village, Hobli, Taluk, details are mentioned below

Sl No.	Village	Sy.No.	Extant Acre-Gunta	Hobli	Taluk	Remarks
1	Lingabudi	23	51-30	Mysuru	Mysuru	-
2	Dattagalli	82	136-10	Mysuru	Mysuru	Except Mary bricks Factory and MUDA Layout.
3	Ayyajayyanahundi	11	28-23	Mysuru	Mysuru	
	Total		216-23			

3. Index: North: Private land of Dattagalli village.



East: Private land of Dattagalli village. And Mary Bricks.

South: Private land of Lingabudi village. And Lingabudi tank bed area.

West: Private land of Dattagalli and Lingabudi village.

1. Extant: 216 Acres and 23 Guntas.
2. Location Name: Lingabudi Lake Plantation Area.
3. Note:
 1. proposed land of extant 216.23 Ares except Mary bricks Factory and MUDA Layout.
 2. One Chain= 20 Meteres(100 links)
 3. East: The position number appearing in the description of the eastern boundary line: from A to S is Mary Bricks Factory Area.

North: The proposed area of the Reserved Forest is Dattagalli village survey no. 84, starting from position no. 1 and ending at the southern boundary of The line from the corner of 192 as ends at the west of the village survey no. 80. It then runs along the southern boundary of 79 and reaches the southern boundary of Sy no. 78. Then the line runs along the southern boundary of the village government and ends at position no. 9. 74, 73, 72 6 and reaches the southern corner of the village. Then the survey of north-west direction of the said position is in the survey number 69.

East: The house is located at the south of the place number: 14 to PA, and the said Mojani is at the distance of 15.8 from the fire boundary of Dattagalli Survey No. 73. Then it moves towards the west and joins the left side of the sewage canal. It joins the north-west corner at 5.70 and joins the north-west corner of the village survey no. 24. Then it joins the north-west corner of the village survey no. 19 and reaches the north-west corner of the village survey no. 0.79. Then it moves towards the north-east at 2.38 and reaches the place number a. Then it moves towards the north at 7.92 and reaches the Dttagalli village survey no. 73 0 It is located in the south-west direction from the Patya Bandi at 2.48 degrees. Then in the Vimatya Vicka at 8.70 degrees, it moves to the position number: B, which is opposite to the 5.95 degrees of the horizontal line. The position number is: Yannu, the survey of the village of Dattagalli Corner position number. Then it moves 0.79 links in the upper part of the Neema line and reaches position number: 19. It becomes the north-west corner of survey no. 24 of lingabudi village. Then the boundary line moves along the western boundary of survey no. 24, 25, 26, 28, 29 and 31 of ayyajayyanahundi village and reaches position number: 26 which is the eastern corner of survey no. 32.

South: The survey line then runs along the eastern corner of Survey No. 02 of Lingabudi village on the line 32, 22, 20, 17, 16, 14 2 12 and joins Point No. 37, which is 2.00 chains to the west from the north-west boundary of Survey No. 14 of the said village.

West: The survey line starts from the north-eastern corner of Sy. No. 12 of lingambudhi village and runs along the eastern boundary of Survey No. 87 of Dattagalli village and joins the

north-western corner of the said survey number. Then it runs in a clockwise direction along the boundary line of Survey No. 12 and 13 of Ayyajayana Hundi village and joins the north-western corner of Survey No. 13 at Position No. 4. Then it runs along the eastern boundary line of Survey No. 14 and 3 of same village and joins the north-western source of Survey No. 11 of same village and joins Position No. 49. It runs along the southern boundary line of Survey No. 4 and 10 and joins the nearest source of Survey No. 10 at Position No. 49. The Survey Line runs northwards and westwards and passes along the eastern boundary of Survey No. 10 and 2 of Aiyajayana Hundi village and along the eastern boundary of Survey No. 83 and 84 of Dattagalli village and joins the starting point No. 1.

By order and in the name of the
Governor of Karnataka

Signed/-
Under Secretary to the Government,
Department of Forest,
Environment and Biodiversity

For: The editors karnataka Rajyapatra, of Karnataka State, Bangalore - Karnataka State have been requested to provide 100 copies to the Additional Chief Conservator of Forests (Evaluation, Planning, Research and Training), Aranya Bhavan, Malleshwaram, Bangalore and Deputy Conservator of Forests, Mysore Division, Mysore.

Copies

1. Principal Chief Conservator of Forests (Head of Forest Force), Forest Building, Malleshwaram, Bangalore.
2. Additional Chief Conservator of Forests (Evaluation, Planning, Research and Training), Aranya Bhavana, Malleshwaram, Bangalore.
3. Conservator of Forests, Mysore Circle, Mysore.
4. Deputy Commissioner, Mysore District, Mysore
5. Deputy Conservator of Forests, Mysore Division, Mysore.
6. Assistant Commissioner, Mysuru subdivision, and Forest Management Officer, Mysore Sub-Division, Mysore
7. Tahsildar, Mysore Taluk, Mysore
8. The Private Secretary to the Hon'ble Minister of Forests and Small Scale Industries, Vidhana Soudha,
9. Principal Secretary to the Government/Secretary to the Government (Forests)/Deputy Secretary to the Government: Forest Environment and Biology, Multi-storey Building, Bangalore
10. To the file.



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IN THE COURT OF THE II CIVIL JUDGE AND J.M.F.C., MYSURU

PRESENT: Ganapathi Prashanth M., B.A., LL.B.,
II Civil Judge & J.M.F.C.,
Mysuru.

Dated :- 04th day of July, 2015

O.S.No.84/2015

PLAINTIFF : L.N.Govindaswamy

Vs.,

DEFENDANTS : District Conservator of Forest and others

In I.A.No.I

APPLICANT : L.N.Govindaswamy

V/s

OPPENENTS : District Conservator of Forest and others

Orders on I.A.I

The Plaintiff has filed I.A.No.I under Order XXXIX Rule 1 and 2 of the CPC praying to grant temporary injunction against the Defendants not to interfere with his possession over the suit schedule property to anyone, pending disposal of the suit.

2. The defendants who are the State of Karnataka and its officials have not filed any objection.



3. Heard the learned counsel for the plaintiff, and perused the pleadings and materials on record.

4. The following points would arise for the consideration of this Court:

1. Whether at this stage the Plaintiff has made out a prima-facie case in his favour?
2. Whether the Plaintiff proves that balance of convenience lie in his favour?
3. Whether the Plaintiff proves that, in the event of not allowing I.A.No.I, he will be put to irreparable injury?

4. What Order?

5. My answers to the above points are as follows:

Point No.1: In the negative;

Point No.2: In the negative

Point No.3: In the negative

Point No.4: As per the order

for the following:-

REASONS

6. POINT No.1:- The description of the plaint schedule properties are as follows:

The land bearing Sy.No.82, total measurement is 10.00 acres, out of which the MUDA authority has acquired 1 acre 34 guntas of land, the remained land an extent of 8 acres 6 guntas of land situated at Dattagalli grama, Mysore Taluk, Mysore bounded on: East by- Road, West by - Land given to forest deparment, North by- Road and South by- Remained land Sy.No.82 belongs to Srinivasa.



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7. The plaintiff contends that the suit schedule property was granted to his grand father, Shervegar Lakshmabovi vide DCD 43/1953-54 dated 31.03.1954. The said document is not produced. The plaintiff has not produced any document to prove his relationship with the said Shervegar Lakshmabovi, prima -facie at this stage. It is noteworthy that the plaintiff claims that he is in possession of the suit schedule property. However, the present RTC extract produced by the plaintiff does not stands in the name of the plaintiff. It stands in the name of Government by mentioning it as ಸರ್ಕಾರಿ ಬೀಳು ಸರ್ಕಾರಿ ಕೆರೆ. The entire extent of Sy.No. of 82 measuring 168 acres and 30 guntas is mentioned as Government lake in the RTC extact, where back in the year 2007-08. It is also mentioned in the RTC that as per the order of Deputy Commissioner, in LND(1) 61/00-01, dated 28.08.2003 136.10 acres of land is a protected Forest area out of the same. Thus, when the RTC extract deos not stands in the name of the plaintiff, the possession of the plaintiff is not established prima-facie at this stage. Therefore, Prima-facie case is not made out. **Hence, Point No.1 is answered in the Negative.**

8. **Points No.2 and 3:-** Since these two points are inter-related, they are taken up together for consideration to avoid repetition. In view of the findings on Point No.1, these points became purely academic. The decision reported in AIR 2010 SC 296 (Kashi Math Vs., Srimad Sudhindra Thirtha Swamy and another) is relevant to the present set of facts and circumstances. Fact remains that, having failed to prove the Point No.1, the



Plaintiff has consequently failed to prove these two points as well.
Hence, these Points are answered in the Negative.

9. **Point No.4:-** In view of my findings on points No.1 to 3, I proceed to pass the following:-

ORDER

I.A.No.I filed by the Plaintiff under Order XXXIX Rule 1 and 2 of the CPC is hereby dismissed with cost.

(Dictated to the Stenographer, directly on the computer, corrected and then pronounced by me in the Open Court on this 04th day of July, 2015).

(Ganapathi Prashanth, M)
II Civil Judge & J.M.F.C.
Mysore.

Document No - 6
This is the annexure.....stated in the
Affidavit of...K.M. Mahesh Kumar


NOTARY



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Govt. of Karnataka

C R P. 571

Form No. 99 (Civil)
 Title-Sheet for
 Judgment in Suits
 (R. P. 91)

TITLE SHEET FOR JUDGEMENTS IN SUITS

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE (EX. DIV.)

К. У. А. О. Р. И.

AT BK: 64148017A DATE: 03/01/2011 (03)

Present.....
(Name of the Presiding Judge)

EXHIBIT. Suit No. 321 of 1937

C. Srinivasa, aged about 45 years, resident of Narasimhaiah's life
Tycere Taluk

Plaintiff

Plaintiffs

(By Blender Sri. ...)

V₅

Defendant:

Defendants

- [illegible]

1987-1993:

Date of Institution of the Suit

Suit for declaration,
pound note, permanent
injunction, damages, costs &
for costs.

Nature of the (suit on promote, suit for declaration and Possession suit for injunction, etc.)

15 - 07 - 2001:

Date of the commencement of recording of the evidence.

13 - 14 - 2023

Date on which the Judgement was pronounced

Year/s	Month/s	Day/s
07	01	07

Total duration

(Shivamogga - 1000000) :

Note:—The names and descriptions of all the plaintiffs and defendants as stated in the plaints should be mentioned

WD 2126—GHPG—4,000 pairs of 100 hits each—November, 1975

A circular postmark from New York, dated 1891. The text "NEW YORK" is at the top, "1891" is at the bottom, and "JAN 1" is in the center. The date "JAN 1" is written in a larger, bolder font than the year. The postmark is slightly faded and has a textured appearance.

auf

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(29)

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: ORIGINAL SUIT NO. - 321 of 1995 :

: J U D G M E N T :

The Plaintiff has filed this suit against Defendants for declaration, possession, Permanent Injunction, mesne profits and for costs.

2. The brief facts of the Plaintiff's case is as under:

That the Plaintiff is the owner in possession of the landed property bearing Sy.No.82, New Nos. 192,193 and 194 totalextent 17 Acres and 20Gs. It is situated in Dattagalligrama, Kasaba Hobli, Mysore taluk more fully described in the plaint schedule. It is the further contention of the Plaintiff that originally the schedule land was granted by the 3rd defendant in favour of the plaintiff's father, the late Chinnaboyi vide grant certificate Dt.10-4-1956 bearing No.DCA N.45/55/56 and the late father of the plaintiff was also put in possession of the schedule property and there is an extent of 10 acres in land bearing Sy.No.82 for which no new number is given, whereas for the remaining extent of 7 acres 20Gs. which also forms part and parcel of Sy.No.82 new numbers have been given as 192,193 and 194 as per Uttar copy. It is the further contention of the plaintiff in the plaint that father of the plaintiff died in or about the year 1981 leaving the plaintiff as his sole surviving heir and legal representative.



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-2-

That after the death of late Chinnaboyi, Plaintiff has become the absolute owner of the schedule property who is in peaceful possession and enjoyment of the same. All the relevant revenue records to establish right, title, possession and ownership of the plaintiff in relation to the suit schedule property are produced.

3. It is further contended in the plaint that although the schedule lands are in his peaceful possession and enjoyment, defendants 1 and 2 started interfering with his possession by planting trees on the land and immediately, the plaintiff complained to the first defendant in writing on 6-9-94 and in response to the said representation, first defendant called upon the plaintiff to produce documents of title, and the plaintiff replied to the said notice Dt. 26-9-94. That since the defendants 1 and 2 did not take action nor dispose off the objections raised by the plaintiff, a Writ Petition seeking Writ of Mandamus in W.P. No. 29521 of 1994 was filed on the file of the Hon'ble High Court of Karnataka, Bangalore and the Hon'ble High Court of Karnataka by its order Dated: 22-12-1994 directed the defendants 1 and 2 to consider and dispose off the plaintiff's objections Dated: 26-9-1994 within a period of two months. Subsequent to the orders passed by the Hon'ble High Court, plaintiff received two communications from the office of the first defendant on 14-2-1995 and 16-3-1995 and in these two notices, the first defendant again called upon the plaintiff to produce documents of title which was totally uncalled for. In the communication dated: 16-3-1995 time is given till 30-3-95 and instead of obeying the orders of the

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Hon'ble High Court of Karnataka in W.P.No.29521 of 1994, defendants are raising untenable and illogical pleas to avoid implementation of the High Court order. It is further contended by the plaintiff in the plaint that defendants 1 and 2 are also restrained from planting any trees in the suit land in the order passed by the Hon'ble High Court of Karnataka. That in the Andolana dated: 17-2-1995 a daily published in vernacular carried a news item to the effect that Chief Conservator of Forests would start the programme of planting trees in lingambudikere and other places, and on learning this news, the plaintiff rushed to the office of the first defendant and requested them to honour the order of the Hon'ble High Court of Karnataka and plaintiff was not given proper reply nor were they prepared to listen to him and give a patient hearing. It is further contended in the plaint that the defendants 1 and 2 have unlawfully fenced the boundaries of the entire schedule property by using barbed wires and thus taking forceable possession of the schedule property and thereby dispossessing the plaintiff from the same. The act of fencing and dispossessing the plaintiff occurred on 22-2-21995 when the entire process was completed. It is further contended by the plaintiff that the plaintiff got issued a notice to the defendant on 12-7-95 and the notice has been received by defendants 1 and 3 and 2nd defendant has managed to send back the notice without receiving the same on some pretext.



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It appears the first defendant has passed an illegal order on 3-4-1995 holding that the suit property is not in its possession, but the said order was communicated to the plaintiff only in the month of August 1995 after the receipt of the notice Dt. 12-7-95 and perhaps the order is anti-dated to suit its convenience. Hence, the suit.

4. On receipt of suit summons, defendants entered its appearance through District Govt. Pleader and filed written statement contending that the suit is not maintainable either in law or on facts. The defendants are not aware of the new survey Nos. 192, 193 and 194 given in lieu of old No. 82 and there is no relationship between the land in possession of the 2nd defendant and the land alleged to have been granted to the father of the plaintiff. In any case, the land claimed by the plaintiff is not at all within the land in possession of the defendants and that the plaintiff himself does not know as to where his land is situated and the schedule thereof and the defendants do not admit either the right of the plaintiff and that he is in possession of the schedule property. It is contended by the defendants in the written statement that either the plaintiff or his father was never in possession and enjoyment of the suit land which is in actual possession of the defendants. The plaintiff or his father does not have any right, title or interest in respect of schedule land. It is false and incorrect to say that the defendants 1 and 2



started interfering with his possession by planting trees on the said land. Originally, the land now in possession of the 3rd defendant belonged to the Government and the same was handed over to the defendants 1 and 2 after observing all the formalities in accordance with law and this is confirmed by the Tahsildar, Mysore taluk in his letter Dt.1-7-1994 addressed to the Divisional Commissioner, Mysore. From the date of taking possession of the suit land, the defendants are utilising the said land for the purpose for which it was sanctioned and has spent considerable money on fixation of boundary, laying of barbed wire fencing, development of garden, protection of environment, development and collection birds for sanctuary, illumination of the tank, construction of ladders for the visitors, providing play ground to the children etc., major work has been completed and the remaining portion of the work has to be completed before the end of current financial year viz., March 1996 by utilising the grant in aid already sanctioned and released. It is further contended by the defendants that as admitted by the plaintiff himself, he was called upon to produce documentary evidence in support of his title for the suit schedule property and the plaintiff failed to comply with and hence, it is incorrect to say that the defendants 1 and 2 did not take any action on his representation. It is further contended by the defendants that as per the direction of the Hon'ble High Court suitable action was taken within



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within a period of two months.

5. It is further contended by the defendants in their written statement that inspite of giving sufficient and reasonable opportunity to the plaintiff, to establish his right through documentary evidence, he has failed to do so and for purposes of disposal of Annexure F to the Writ Petition, the Deputy Conservator of Forests was appointed as Enquiry Officer to hold an enquiry on the petition Dt.26-9-1994 and to pass a considered order after giving reasonable opportunity and hearing the plaintiff in this case and a notice No.DMN CR 56/94-95 Dt.14/15-2-1995 requesting the plaintiff to produce Annexure-F to the Writ petition and meet the enquiry Officer with all the documents within seven days and this notice has been acknowledged by the plaintiff on 25-2-1995, but the plaintiff neither appeared before the Enquiry Officer nor produced the required records within the prescribed time limit and another opportunity was given to the plaintiff as per letter No.DMN.CR.56/94-95 (CR.56/94-95) Dated: 16-3-1995 sent through Regd.Post to produce the documents personally before the Enquiry Officer by giving the time limit upto 30th March 1995, but the plaintiff failed to appear before the Enquiry Officer nor produced the records within the stipulated dates. In view of the non-appearance of the plaintiff and non-production of the relevant documents by him, the Enquiry Officer considered all the available materials and records before him including Annexure-F to the Writ Petition and passed a considered order on 3-4-1995.

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stating that the Forest Department is not in possession of the lands allegedly belonging to either Sri.

Srinivasa or Sri Puttaswamy and a copy of the said order has been communicated to the Plaintiff and the defendants complied with the direction given by the Hon'ble High Court in the said Writ petition and the defendants have not undertaken planting of any trees in the schedule land subsequent to the direction issued by the High Court. It is the further contention of the defendants that the defendants published in the news papers a new item that the Chief Conservator of Forests would inaugurate the programme of the planting trees in Lingambudikere which is a huge area, that too in the land which belongs to and which is in actual possession of the defendants and the plaintiff has no right whatsoever to question the same and the plaintiff has failed to establish his title by producing the relevant documents so far inspite of providing him reasonable opportunities. It is further contended in the written statement by the defendants that the averment that the plaintiff was dispossessed of his land on 22-2-1995 is false, as he was never in possession of the said land. The defendants have not done any unlawful act and they have confined their activities only to the land in which they have right, title and interest. The defendants are required to complete the entire developmental work before the end of March 1996 and spend the grant released for the public purpose, in public interest and the plaintiff is



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therefore not entitled for the relief sought for. The defendants have further contended in their written statement that a suitably reply has been sent to the plaintiff in response to a notice got issued by him along with a copy of the order Dt. 3-4-1995 passed by the Enquiry Officer and the order passed on 3-4-1995 is a considered and lawful order passed on merits. There is no cause of action for the suit and this court has no jurisdiction to entertain and try the suit filed by the plaintiff. The suit has not been properly valued and the plaintiff has not paid sufficient and correct court fee. The plaintiff is not entitled for any of the relief and prayed for dismissal of the suit with exemplary costs.

6. On the basis of the above pleading of the parties, the following issues are framed by my learned predecessor:

- 1) Does the Plaintiff prove that he is the absolute owner of the suit schedule property ?
- 2) Is he entitled for possession of the suit schedule property ?
- 3) Is he also entitled for perpetual injunction ?
- 4) Do the defendants prove that the suit schedule property is the Government Property and the plaintiff has no claim whatsoever over the same ?
- 5) Do they further prove that originally the said property belonged to the Government and the same was handed over to the defendants 1 and 2 by observing all the formalities in accordance with law?
- 6) Is the plaintiff entitled to a decree as prayed for ?



7. In support of the case of the Plaintiff, Power of Attorney Holder plaintiff examined his / as P.w1 and got examined one witness as P.w2 and got marked Exs.P1 to P35 documents and closed his side. On the other hand, the defendants have examined Deputy Conservator of Forest as D.w1 and examined one more witness as D.Ws.2 the Range Forest Officer, and got marked Exs.D1 to D5 documents. I have heard the arguments of both sides.

8. My finding on the above issues are as follows:

- 1) Affirmative:
- 2) Affirmative:
- 3) Affirmative:
- 4) Negative:
- 5) Negative:
- 6) Affirmative for the following:

REASONS

9-: ISSUE NOS. 1 to 3:

I have taken all these issues together for consideration, as the finding on one issue rest on the other issue, so as to avoid repetition and to save the precious time of the court. To prove the said issues, the Plaintiff has examined himself as P.w1 and examined one witness as P.w2 and relied on Exs.P1 to P35. Ex.P1 is the Special Power of Attorney. Ex.P2 is the grant certificate. Ex.P3 is the kandayam receipt and Exs.P4 to P11 are the RTC extracts. Ex.P12 is the letter written by office of the Forest Department to the plaintiff, Dt.19-9-1994 and Ex.P13 is the reply letter written by plaintiff to the Forest Department.



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Ex.P14 is the letter Dt.14-3-1995 written by the Forest Department, Mysore to the Plaintiff and Ex.P15 is another letter Dt.16-3-1995 written by forest Department to the Plaintiff. Ex.P16 is the order of Special Tahsildar, Mysore Dt.20-2-1960. Ex.P17 is the letter written by Forest Department to the Plaintiff Dt.19-10-1994, by way of reply. Ex.P18 is the index of land and Ex.P19 is the records of right and Ex.P20 is the reply letter by Forest Department Dt.29-7-1995 and Ex.P21 is the copy of the order passed by Deputy Conservator of Forests, Mysore division Mysore. Ex.P22 is the copy of the legal notice; Ex.P23 is the postal acknowledgement; Ex.P24 is the postal cover and Ex.P25 is the two postal acknowledgements. Ex.P26 is the certified copy of the order passed in W.P.29521 of 1994 of the Hon'ble High Court of Karnataka, Bangalore. Ex.P27 is the petition copy filed in WP29521. Ex.P28 is the RTC extract. Ex.P29 is the Commission report. Ex.P30 is the Reply to memo of instructions; Ex.P31 is the Reply to memo of instructions. Ex.P32 is the sketch; Ex.P33 is the notice issued by Commissioner. Ex.P34 is the Court notice to Commissioner and Ex.P35 is the memo of instructions. Ex.D1 is the letter from Advocate General, Bangalore to the Deputy Secretary to Govt., Law Department, Bangalore Dt.26-12-1994; Ex.D2 is the proceedings of the Deputy Conservator of Forest, Mysore, Dt.3-4-1995. Ex.D3 is the letter by Deputy Commissioner, to the Deputy Conservator of Forests Dt.7-12-1993 and Ex.D4 is the letter from Office of the Div. Commissioner, Mysore Dt.25-3-1994 to the Deputy Conservator of forests, Mysore. Ex.D5 is the

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letter from Director of land Records and Ex.D6 is the sketch prepared by ADLR.

10. P.w1 L.N.Govindaswamy, the Power of Attorney Holder of plaintiff has deposed in his evidence that land bearing Sy.No.82 is located at Dhattagalli grama, measuring 10 acres and Sy.Nos. 192,193,194 totally measuring 7 acres 20Gs. situated in Dhattagalli are the suit schedule property. He has also deposed that Chinna Boyi, father of the Plaintiff was the owner of the suit schedule property and he had got those lands by way of Saguvali chit issued by the Government, as per Ex.P2 and since 1956 the suit property was in possession of Chinna Bovi and Chinnabovi died in the year 1981. He has also deposed that plaintiff is the only son of said Chinna Bovi and plaintiff became the absolute owner of the suit property after the demise of his father Chinna Bovi. He also deposed that during the year 1994, defendants tried to plant the trees over the suit properties and hence, plaintiff had filed a Writ petition before the Hon'ble High Court of Karnataka and it was ordered that the possession of the schedule property has to be returned to the plaintiff within two months and not to plant any such trees in the schedule property and thereafter, defendants issued a notice to the plaintiff calling upon him to produce the documents in respect of the schedule property and hence, they have produced the documents. This witness also



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deposed that the defendants have not handed over the possession of the suit property to the plaintiff and ~~hence~~ they have issued a paper publication in Andolana Daily Dt.17-2-1995 stating that they are planting the trees in the suit land and they had approached the defendants by giving representation but they have not passed any order and they have started planting the trees and fencing the schedule property and therefore, they have lodged the complaint before the Tahsildar and Deputy Commissioner, but they have also not taken any action and hence, the plaintiff has filed the suit. P.w1 has further ✓ deposed that defendants have planted trees in a portion of the suit land and fenced it. P.w1 has also deposed in his evidence that they have filed kandayam receipt, 8 RTC extracts, letter received from defendant No.2 Dt.19-9-1994, copy of the reply letter Dt.26-9-1994 sent to Defendant No.2 as per Exs.P3 to P12. This witness also deposed in his evidence that they have filed a letter received from defendant Dt.14-2-1995, another letter received from defendant No.Dt.16-3-1995 and order passed by the Tahsildar, permitting them to put-up construction dt.20-2-1990 and reply sent by defendant No.2 to the application filed by plaintiff Dt.29-10-1994, one index of land, one record of right, reply sent by defendant to their notice Dt.29-7-1995 and copy of the order passed by defendant No.1 Dt.3-4-1995, copy of the legal notice Dt.12-7-1995 and postal receipts, notice sent to defendant No.2 was returned unserved and he has also deposed that they have filed



the registered postal cover and two acknowledgements as per Exs.P13 to P25 and the certified copy of the W.P.29521/1994 is at Ex.P26 and Ex.P27 is the certified copy of the writ petition and Ex.P28 is the copy of the RTC for the years 1971 to 1976 and defendants have no right, title or interest over the suit property and defendants have planted the trees in their property.

11. This witness has further deposed in his evidence that after filing of the suit, Commissioner was appointed for investigation and Commissioner had been to the spot and filed his report. This witness also deposed that at that time RFO was present and Commissioner has surveyed the suit land and Plaintiff and RFO have signed the mahazar conducted by the Court commissioner on that day and prepared the sketch and he also signed the mahazar and the report of the Commissioner is at Ex.P29. This witness also deposed in his evidence that to the east of suit property, boundary line of Sakdevanapura which is now called as Srirampura, West: by remaining land of Sy.No.82, North: by MUDA property and South: Lingabudi gadi and Marry brick factory.

12. This witness was cross-examination by the District Govt. Pleader, but nothing fruitful has been elicited from this witness in the cross-examination, excepting the fact that they have filed the revenue sketch in respect of the suit property and also filed official memorandum issued

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by the Tahsildar and there is a Lingabudi kere to the south of suit property. This witness also deposed in his cross-examination that opinion of P.W.D. authority and Irrigation Department was secured before granting suit schedule property to the plaintiff and he has not arrayed the Tahsildar and A.C. as a parties to the suit. This witness also deposed in the cross-examination that the Forest Officials have planted the plants in the suit property. This witness also deposed in the cross-examination that the High Court has issued direction to the DFO to hold enquiry and submit his report within two months. This witness also denied to the suggestion that the suit property is the part and parcel of Lingabudi kere. This witness also denied to the suggestion that the entire land is in possession of forest department.

13. The Plaintiff has examined one more witness on his behalf by name Puttaswamaiah as P.W2. He has deposed in his evidence that he has visited the suit schedule property and notices were served upon the parties to the suit. He has also deposed that he has measured the suit survey number in the presence of the plaintiff and RFO and prepared the sketch in respect of the suit property as per the memo of instructions filed by the plaintiff. He has also deposed that he was not in receipt of any memo of instructions filed by the defendants. He has produced the report to the court which is at Ex.P29 and the mahazar is at Ex.P30. This witness also stated in his evidence that he has filed reply to the memo of instructions filed by plaintiff as per Ex.P31 and



Ex.P32 is the sketch prepared by him. This witness also deposed in his evidence that he has shown the suit schedule property in blue and green colour in Ex.P32 and in blue colour area shown in Ex.P32 Forest authorities have developed a park and area shown in Parrot Green colour is a vacant space and the area shown in blue colour measures 3 acres 25Gs. and the area shown in parrot green colour measures 4 acres 20Gs.

14. This witness was cross-examined by District Govt. Pleader. In the cross-examination this witness has deposed that blue area shown in Ex.P32 is in possession of forest Department and they have developed it and he has not made any enquiry in whose possession the area marked in parrot green was at that time. This witness also deposed in his cross-examination that he has not shown the boundaries of the said area as he had shown the said area in different colour, and he had shown in his report in para No.2 as the area in dispute between the parties to the suit as plaintiff told before him that there is a dispute in respect of that area. This witness also deposed in the cross-examination that Sy.Nos.192-193 and 194 there was a water here and there at that time i.e., at the time of inspection and they are Hiduvali lands. This witness also deposed that he is unable to say which portion of the land out of the area of 161 acres belongs to the defendant-forest department.



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15. D.WI R.Raju, the Deputy Conservator of Forests has deposed in his evidence that since 1 1/2 years he is working as a DCF in Mysore and he know the facts of the case on the basis of the records. This witness also deposed in his evidence that suit schedule property are in possession of the forest Department since 1994 and suit schedule properties are handed over by the Revenue Department to their Department and since then they are in possession of forest Department. This witness also deposed that they have undertaken number of developmental work in the suit property and they have developed a park, medicine garden and bird sanctuary in the suit properties and they have spent so far Rs.10/- to Rs.15/- lakhs for the developmental work and even today developmental work are in progress in the suit lands. This witness also deposed in his evidence that plaintiff had filed W.P.29521 of 1994 on the file of Hon'ble High Court of Karnataka, in which a direction has been issued to them to consider the claim of the petitioner/plaintiff. This witness also deposed that they had issued two notices to plaintiff to produce original documents in respect of his claim over the suit property, but he did not turned-up and not produced any documents in respect of his claim over the suit property and they have conducted enquiry and passed order holding that plaintiff has nothing to do with the suit properties. This witness also deposed that the say of plaintiff he was in possession of suit properties and they have dispossessed him on 22-2-1995 is not correct and plaintiff has not filed any complaint against



them either before Tahsildar or before Police in this regard and they have got all the documents for having delivered possession of the suit property by the Revenue Department to the Forest Department. This witness also deposed that he has produced the letter received from Advocate General Office dt. 26-12-1994 as per Ex.D1 and the copy of the report is at Ex.D2 and this witness also deposed that they also filed a letter dt. 7-12-1993 received from the office of the Deputy Commissioner as per Ex.D3 and letter dt. 25-3-1994 received from the Office of Divisional Commissioner as per Ex.D4 and Ex.D5 is the letter regarding the measurement of the land issued by Asst. Director of land records. and Ex.D6 is the sketch issued by ADLR. This witness also deposed that plaintiff has no right, title or interest over suit property.

15. This witness was cross-examined by the learned counsel for plaintiff and in this cross-examination this witness has un-equivocally admitted that he has given the evidence on the basis of the records and ground reality on the field. This witness also stated in the cross-examination that as per the records, he know the suit property which is in reference to Sy. Nos. 82, 192, 193 and 194 and as per the records, extent of Sy. No. 82 is totally measures 10 acres and Sy. Nos. 192, 193, and 194 together totally measures 7 acres and Sy. No. 82, 192, 193 and 194 forms a single plot and he do not know the boundaries of the above said survey numbers. This witness also



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stated in his cross-examination that he has not tried to ascertain the boundaries of the above said survey numbers as they are in their custody and they are not claiming any property claimed by the plaintiff in this suit. This witness also deposed in his cross-examination that he had verified the documents filed by the plaintiff in the suit claiming over his right of the suit property and he has to verify the boundaries given by the plaintiff in this suit with regard to the property claimed by him. This witness also deposed in the cross-examination that he has to verify whether plaintiff has lodged the complaint against forest Department for having tried to encroach upon his property and it is true the plaintiff was called upon to produce his documents to title.

16. The defendants have also examined Range Forest Officer A.H.Chandraprabha as D.W2. He has deposed in his evidence that since 1993-94 the suit schedule property is in their possession and it was transferred to their possession from Revenue Department and the say of the plaintiff that the suit schedule property is allotted to his father is false. This witness has further deposed that three survey numbers are there in the said area and totally 241.23 acres of land was allotted to them and nearly they have spent Rs.15 Lakhs for the development of the said land. This witness has further deposed in his evidence that the plaintiff had filed WP 29521 of 1994 and High Court has directed for holding fresh enquiry



and to submit a report within two months and notices were issued to the plaintiff, but he has not appeared before DFO and he has not produced any records. This witness has further deposed that the say of the plaintiff that they had tried to dispossess the plaintiff from the schedule property on 22-2-1995 is not correct and plaintiff has not filed any complaint against them. This witness has further deposed that Ex.D1 is the letter received from the office of Advocate General Dt.26-12-1994 and Ex.D2 is the enquiry report filed by DFO and Ex.D3 is the letter received from the office of Divisional Commissioner for planting tree in the suit land. Ex.D4 is the letter received from the Divisional Commissioner office along with sketch Ex.D6 and Ex.D5 is the extract of land including survey number allotted to their Department and plaintiff has no right or interest of the suit property.

17. This witness was cross-examined by the counsel for the plaintiff and in the cross-examination this witness has admitted that he had seen the suit schedule property after August 2001 and there is a record regarding the topography of the property as on 1995 and this witness has deposed in his cross-examination that he cannot say whether it was a fallow land at that time, but it was a revenue land at that time. This witness has further deposed in his cross-examination that he has not seen the revenue documents of the suit property from 1995 till this day and against he has deposed that he

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had seen the records in respect of Sy.No.82. This witness has further deposed in his cross-examination that he is not aware about the documents filed by the plaintiff in the case claiming title over the suit property and he has verified the boundaries of the suit schedule property. This witness has further admitted in the cross-examination that he is saying on the basis of the report submitted by the Court Commissioner and the Revenue records handed over by the Revenue authorities. This witness has further deposed in the cross-examination that they have no claim in other survey numbers except Sy.No.82 and he was not present while court Commissioner inspected the suit property and the then RFO was present at that time by name Shivashankaraswamy and D.K.Mahadevaiah, both are R.F.Os. and they are still in service. This witness has further admitted in the cross-examination that he has seen the sketch submitted by the Court Commissioner and Area marked in blue and parrot green colours in the sketch is the disputed area pertain to Sy No.82 and they are in possession of the said disputed area. This witness denied to the suggestion that the extent of disputed area comes to 7 acres 20Gs.. This witness has further admitted that there are no documents in their records to show that revenue authorities have conducted any such mahazar and handed over the land by fixing the boundaries. This witness has further admitted in the cross-examination that they were in receipt of notice before preparing Ex.D6 and he do not know apart from them, whether ADLR has given any such

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O.S.NO.-321 of 1995:

notices to any other persons and disputed area is shown in Ex.D6 also and he has also deposed that disputed area is not yet developed by the Forest Department, but it is in possession of Forest Department and disputed area shown in Ex.P32 and Ex.D6 are different and area marked in blue colour in Ex.P32 is developed into a park and bird sanctuary and the area marked in parrot green colour is not yet developed. This witness has admitted in his cross-examination that on 6-9-94 plaintiff lodged a complaint to the first defendant complaining about the alleged interference and hence, they got issued the notice calling upon the plaintiff to produce the documents and he has denied to the suggestion that on 26-9-94 plaintiff sent a reply along with documents. This witness also admitted the filing of W.P.26521 of 1994 by plaintiff against their Department also admitted that High Court has issued a direction to the defendants 1 and 2 directing them to reconsider the representation of plaintiff Dated:26-9-94 and there-after they have got issued two notices dt.14-2-1995 and 16-3-1995 calling upon the plaintiff to produce the documents and this witness also admitted that the High court has restrained them from planting trees for a period of two months and this witness denied to the suggestion that they have issued paper publication regarding plantation of trees on 17-2-95 in Andolana local news paper. This witness has further admitted in

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the cross-examination that they have started plantation from 1994 onwards and they have fenced the area of park in Sy.No.82 excluding area of MUDA in that survey number and fencing work completed earlier to February 1995. This witness has further admitted in the cross-examination that first defendant has reconsidered the representation of the plaintiff dt.26-9-94 as per the directions of the High Court on 3-4-95 and one M.N.Jayakumar passed the said order who is now serving as Conservator of Forest in Mysore. This witness further admitted in the cross-examination that he do not know the total extent of Sy.No.82. This witness has further admitted in the cross-examination that they are not claiming any portion of land in Sy.No.192,193 and 194.

18. The learned counsel for the Plaintiff has strenuously argued that Sy.No.82 measuring 10 acres and Sy.Nos. 192,193 and 194 measuring 7 acres 20Gs. as per the grant certificate Dated:10-4-1956 in favour of the father of the Plaintiff. The learned counsel further canvassed that Sy.No.82 is renumbered as 192, 193 and 194. The learned counsel further canvassed that the plaintiff filed Writ Petition before the Hon'ble High Court of Karnataka and High Court directed the defendants to hold fresh enquiry and on 17-2-1995 programme for planting trees was appeared in a local news paper and on 22-3-1995 plaintiff was dispossessed. The learned counsel further canvassed that as per the cross-examination of D.w2, revenue authorities have not handed over any portion of land and the learned counsel further canvassed that Ex.P2 is

not disputed by the defendants and Exs.P4 to P11 are the RTC extracts in respect of Sy.Nos.192,193 and 195 and the learned counsel further canvassed that Exs.P21 is the order of Deputy Conservator of Forests upon the application filed by the Plaintiff. The learned counsel further canvassed that P.w2 is the Commissioner, who went to the spot and shown in parrot gree colour and green colour are the suit schedule property, which is in possession of the defendants. The learned counsel further canvassed that Exs.D5 and D6 are the material documents filed by the defendants and nowhere it is shown in the documents that possession was given to the defendants and thereby the defendants have failed to prove their contention. The learned counsel further canvassed that the Court Commissioner has given a report marking the area of the plaintiff in possession of defendants and defendants have not filed any objection to the Commission report.

19. The learned counsel for the defendants have strenuously contended that Rupees ten to fifteen lakhs have been invested upon the developmental work and the area claimed by the plaintiff will not come in the area of defendants. The learned counsel further canvassed that grant certificate do not discloses the boundaries and further canvassed that plaintiff himself do not know where his land is located and pray for dismissal of the suit.



22. ISSUE NO.-5:

It is the contention of the defendants that originally the said property belonged to the Govt. and the same was handed over to defendants 1 and 2 by observing all the formalities, in accordance with law. Even though the defendants have taken the said contention, have not produced any satisfactory evidence either oral or documentary before court to prove their case. In view of my discussion above, I am of the opinion that the defendants have failed to prove this issue also. Hence, I answer this issue also in the Negative.

23. ISSUE NO. - 6:

In view of my finding on issue Nos. 1 to 5, the plaintiff is entitled for a decree. In the result, I pass the following:

ORDER

The suit of the Plaintiff is decreed as under:

It is declared that the Plaintiff is the owner of the schedule property. The plaintiff is entitled for possession of the schedule property. The defendants are directed to handover the possession of the schedule property;

The defendants are restrained from planting trees or otherwise alter the nature of the schedule property by way of Permanent Injunction;

There shall be a separate enquiry regarding mesne profits to be determined under Order 20 Rule 12 of CPC.

In the circumstances of the case, I direct the parties to bear their own costs.

(Typed to my dictation on Typewriter, revised, corrected and then pronounced by me in the open court on this day, the 13th November 2002)

(Shivananda Katti)
Principal Civil Judge
(Sr.Div.) Mysore;

ANNEXURE:

List of witnesses examined for the Plaintiff:

- P.w1 L.N.Govindaswamy: 18-7-2001, 17-8-2001, 24-8-2001:
 P.w2 Puttaswampiah: 19-9-2001:

List of witnesses examined for the Defendants:

- D.w1 R.Raju 6-11-2001, 21-1-2002, 6-2-2002:
 D.w2 A.H.Chandra Prabha: 25-2-2002, 5-3-2002, 14-3-2002:

List of documents exhibited for the Plaintiff:

- Ex.P1 Special Power of attorney:
 Ex.P2 Grant Certificate:
 Ex.P3 Kandayam receipt:
 Exs.P4 to P11 RTC extracts:
 Ex.P12 Letter of RFO, Mysore Div.
 Ex.P13 Reply letter copy:
 Ex.P14 and P15 Letters to Plaintiff from Forest Dept.
 Ex.P16 Order of Tahsildar:
 Ex.P17 Letter from Forest Dept. to Plaintiff:
 Ex.P.18 Index of Land:
 Ex.P19 Records of right:
 Ex.P20 Reply letter by Forest Dept. to the counsel:
 Ex.P21 Copy of the order passed by Deputy Conservator of Forests, Mysore:
 Ex.P22 Copy of the Legal notice:
 Ex.P23 Postal receipt:
 Ex.P24 Unserved postal cover:
 Ex.P25 Two Postal acknowledgements:
 Ex.P26 W.P.29521/1994- Writ petition copy; order: (copy)
 Ex.P27 Certified copy of W.P.29521/1994-writ petition;
 Ex.P28 RTC extract;
 Ex.P29 Commission report;
 Ex.P30 Mahazar;
 Ex.P31 Reply to memo of instructions:
 Ex.P32 Sketch:
 Ex.P33 Notice by Commissioner:
 Ex.P34 Court notice to Commissioner;
 Ex.P35 Memo of instructions filed by Plaintiff;

List of documents exhibited for the Defendants:

- Ex.D1 Letter to Deputy Secretary to Govt., Law Dept. from Advocate General Dt.26-12-1994:
 Ex.D2 Proceedings of the Deputy Conservator of Forests: Mysore;
 Ex.D3 Letter from Deputy Commissioner, Mysore;
 Ex.D4 Letter from Div. Commissioner, Mysore;
 Ex.D5 Statement showing the measurement of the land issued by ADLR: Mysore;
 Ex.D6 Sketch;

Pr1. Civil Judge (Sr. Div.)
 Mysore

blv/*

of the original. All
 appearing in original
 been fully copied
 at a modification

Exhibitor
 District and Sessions Court
 Mysore



10/11/18

20/11/23

20/11/18

20/11/23

61

232

(47)

46

DECREE FOR DECLARATION:-

IN THE COURT OF THE PRINCIPAL CIVIL JUDGE(SR. DVN.) AT MYSORE.

O.S.No. 321/95.

Plaintiff :-

C. Srinivasa, aged about
45 years, resident of Nachanahalli
palya, Mysore Taluk.

V/s.

Defendants :-

1. The Deputy Conservator of Forests,
Office of the Deputy Conservator
of Forests, Ashokapuram, Mysore.
2. The Range Forest Officer, Wood
Yard Aranya Bhavan, Ashokapuram
Mysore.
3. State of Karnataka, represented
by its Chief Secretary, Vidhana
Soudha, Vidhana Veedhi, Bangalore.

Suit filed on :- 13-10-1995:

CLAIM:- Suit is for declaration that the plaintiff is the absolute owner of the suit schedule property, for the relief of possession of the schedule property directing the defendants to put the plaintiff in possession of the plaint schedule property, for relief of permanent injunction restraining the defendant, its officers etc., from planting trees or otherwise alter the nature of schedule property, hold an enquiry for ascertaining future mesne profits for wrongful possession of the suit land under Order 20 Rule 12 C.P.C. award costs of these proceedings and grant such other reliefs.

This suit coming on this day for final disposal before Sri. Shivananda Katti, B.A., L.L.B., (Spl), Principal Civil Judge(Sr. Dvn.), Mysore, in presence of Sri. A.S. Nataraj Advocate for the plaintiff, the defendants are represented by the Addl. Government Pleader.

On contest and by pronouncing Judgement, it is ordered and decreed by declaring that the plaintiff is the

..2..



owner of the schedule property.

It is further ordered and decreed that the plaintiff is entitled for possession of the schedule property, and the defendants are directed to handover the possession of the schedule property.

It is further ordered and decreed that the defendants are restrained from planting trees or otherwise alter the nature of the schedule property by way of Permanent Injunction.

It is further ordered and decreed that there shall be a separate enquiry regarding mesne profits to be determined under Order 20 Rule 12 of C.P.C.

It is further ordered and decreed that the parties to bear their own costs.

Given under my hand and seal of this Court on this _____ day of November, 2002.

Principal Civil Judge (Sr. Dvn.)
Mysore.

MEMORANDUM OF COSTS INCURRED IN THIS SUIT.

	<u>Plaintiff</u>	<u>Defendants.</u>
1. Court fee paid on plaint :Rs.	50-00	-
2. Court fee paid on Vakalatnamas :Rs.	1-00	-
3. Court fee paid on Applns., :Rs.	18-00	-
4. Court fee paid on Process :Rs.	104-00	-
5. Pleader's fee, (P.C. not filed) :Rs.	-	-
Total :Rs.	173-00	-

Principal Civil Judge (Sr. Dvn.)
Mysore.

234

-3-

(47) 47

S U B S E D U L E.

Land bearing Sy.No. 82, having extent of 10 acres and lands bearing Sy.No.192, 193 and 194 having an extent of 7 acres 20 guntas in all 17 acres, 20 guntas situated in Wittagalligrama, Kasaba Hobli, Mysore Taluk, bounded on the east by lands belonging to Puttaswamy and MUDA property and Sakadevanapurada Gadi, west by land bearing Sy.No.82, (remaining portion and tank), north by property belongs to MUDA, Puttaswamy and Road, and South by lands of Mary Brick and Lingambudi Gadi.

Principal Civil Judge (Sr. Jn.)
Mysore.

I certify that this is a true copy of the original. All the copies appearing in original have been faithfully copied and at no modification.

Examiner
District and Sessions Court,
Mysore

Document No- 7
This is the annexure stated in the
Affidavit of K.M. Mahesh Kumar.

NOTARY

Signature

101484

17

[Handwritten signature]

ΣC/M/00

ΣC/M/04

ΣC/M/00

ΣC/M/57

(ΣC/M/0)

235

CS 2014-11

IN THE COURT OF III ADDL. SENIOR CIVIL JUDGE & CJM, MYSURU.
MA 76/2015

Appellant : LN GOVINDASWAMY

V/S

Respondent : DEPUTY CONSERVATOR OF FORESTS

Appeal is dismiss as not pressed.

Sd/-

III ASCJ & CJM, Mysuru.

Document NO-8
This is the annexure stated in the
Affidavit of...K.M. Mohesh Kumar.

NOTARY



237

Translated copy of document no-9

RE SURVEY TIPPANI

Taluk: Mysuru

dated:29.04.2006.

Hobli	Village	Book	Page	Survey No.
Kasaba	Dattagalli	2	13	52

Dated:05-3-21

Re Chalta No

Poo|| Chaa|| No.

86

173

Re Survey NO.

Poo|| Sa|| No.

52

25

Sy No.52

Sarkari Kharbu katte(Government Kharab tank bed)

As per Akaraband	Total Land 1-34	Kharab 1-34	Balance
As per Re Survey	1-34	1-34	-

BOUNDARY MAP DRAWNED



ಶಾಖಾ ಸಂಖ್ಯೆ

ರೇಕಾರ್ಡ್ ಆಫ್ ರೈಟ್ ಗೇರಿ ಮತ್ತು ಪದಾಣಿ ಪತ್ರಿಕೆ
ಹಂಚು : 108
Document NO-10

ಶಾಖಾ ಸಂಖ್ಯೆ 108
Document NO-10

1 ಸರ್ವೆ ನಂಬರು

52

3 ಶೇತವಾರ್-

ಒಟ್ಟು ವಿಸ್ತೀರ್ಣ
ಪೂರ್ಣ ಬರಾಬ (ಅ)
ಪೂರ್ಣ ಬರಾಬ (ಬ)
ಹಳದಿ ಬರಾಬ

ಎ. ಗು.

1-34
1-34

4 ಕಂದಾಯ:-

(ಅ) ಭೂಕಂದಾಯ
(ಬ) ಮೂಲ
(ಕ) ಸಮಗ್ರ
(ಡ) ಭೂಕಂದಾಯ

ಎ. ಗು.

ನ. ಸೆ.

5 ಕಟ್ಟಡದ ಅಥವಾ ಸ್ವಾಧೀನ
ವಾಣಿಜ್ಯ ಕೆಲಸದ ಮೇಲೆ

10 ಕಟ್ಟಡ ಅಥವಾ ಸ್ವಾಧೀನ
ಕೆಲಸದ ಮೇಲೆ

2 ಹೆಸರು

ಹೆಸರು

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5 ಮುಖ್ಯ ಸಾಮಗ್ರಿ

1-34

6 ಪಟ್ಟಿ

1-34

13 ಭೂಮಿಯ ಉಪಯೋಗ ಮತ್ತು ಬೆಳೆಗಳ ವಿವರ

12 ಗೇರಿಯ ವಿವರಗಳು

1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16
ಭೂಮಿಯ ವಿವರ	ಭೂಮಿಯ ಉಪಯೋಗ	ಮುಖ್ಯ ಬೆಳೆ	ಬೆಳೆಯ ಹೆಸರು	ಅಮತ್ಯ	ಮಿಶ್ರ	ಒಟ್ಟು	ಭೂಮಿ ವರಿಯ ಮೂಲ	ಉತ್ಪಾದನೆಯ ಮೂಲ (ಬಂಗಾಳ ಮೂಲಗಳು)	ಮಿಶ್ರಣದ ವಿಸ್ತೀರ್ಣ	ಹೆಸರು	ಎ. ಗು.	ಮೂಲ	ಎ. ಗು.	ಮೂಲ	ಎ. ಗು.

7071

Document NO-10

108

108

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108

Record of Tenancy and crops (RTC) Form. No.16
Village: DATTAGALLI
Hobli: Kasaba

Taluk:Mysore

Page No. (108)

1. Sy. No 52 *	3 Khetuvaru	Acres guntas	4. Revenue	Rs. P.	Ownership and Owners Name and Address	10. type of ownership	11. Other Rights and Debts																											
	Total Extent Kharab (A) Kharab (B) remains	A gunte 1 34	(a) Land revenue (b) pair (k) cess (d) water bill Total	0.00 0.00 0.00 0.00 0.00	Government Lake bund																													
2. Hissa *																																		
5. soil Pattern Red	7. Numbers of trees 8. Irrigation Extent																																	
	Name	No	SI no.	source of water																														
			1-34																															
6. Patta Govt																																		
12. Details of cultivation and tenancy																																		
Year and season 1	Name and address of the cultivator 2		system of cultivation 3		Details of tenancy		13. Use of land and Crop Profile																											
					Entent 4 acr.	Lease 5 gu	<table border="1" style="width: 100%; border-collapse: collapse;"> <tr> <th colspan="2">Use of Land</th> <th rowspan="2">Name of crop 9</th> <th colspan="3">Extent of Crop</th> <th rowspan="2">Source of water 13.</th> <th rowspan="2">Production For acres 14.</th> <th colspan="2">Total of cross crops</th> </tr> <tr> <th>category 6.</th> <th>Entent 7</th> <th>non cross 10</th> <th>cross 11</th> <th>total 12</th> <th>cross crops</th> <th>Extent</th> </tr> <tr> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> <td></td> </tr> </table>	Use of Land		Name of crop 9	Extent of Crop			Source of water 13.	Production For acres 14.	Total of cross crops		category 6.	Entent 7	non cross 10	cross 11	total 12	cross crops	Extent										
Use of Land		Name of crop 9	Extent of Crop			Source of water 13.	Production For acres 14.	Total of cross crops																										
category 6.	Entent 7		non cross 10	cross 11	total 12			cross crops	Extent																									
70-71																																		

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Record of Tenancy and crops (RTC) Form. No.16

Taluk:Mysore

Hobli: Kasaba

Village: DATTAGALLI

Page No.1/1

1. Sy. No	3 Khetuvaru	Acres guntas	4. Revenue	Rs. P.	9. Ownership and Owners Name and Address	extant	10. type of ownership	11. Other Rights and Debts
52 *	Total Extent Kharab (A) Kharab (B) remains	A 168 30	(a) Land revenue (b) pair (k) cess (d) water bill Total	0.00 0.00 0.00 0.00 0.00	Kharab Tank bed Government	0-00 0-00	LNDRT 4/85- 86,D/5.8.89 MR 8/89-90 MR 8/89-90	
2. Hissa *								
5. soil Fattren Red	7. Numbers of trees		8. Irrigation Extent					
5. Patta Govt	Name	No	SI no.	source of water	total			
12. Details of cultivation and tenancy								
Year and season 1	Name and address of the cultivator 2		system of cultivation 3		Details of tenancy		13. Use of Land and Crop Profile	
					Extant 4	Lease 5	Use of Land category 6	Name of crop 9
					acres	gu		Extant 10
								cross 11
								total 12
								Source of water 13.
								Produotin For acres 14.
								Total of cross crops
01-02	Kharab Tank bed		own			1-34		cross crops
								Extent

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ಪ್ರತಿಗಳು

ರೀಸರ್ವೆ ಟಿಪ್ಪಣಿ

29/04/2006

ಗ್ರಾಮ:	ಪುಸ್ತಕ	ಪುಟ	ಸರ್ವೆ ನಂ.
ದಟ್ಟಗಲ್ಗಿ	2	13	61

ತಾ. 21-2-21

9

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ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

ಪುನರ್ವಿಚಾರಣೆ ನಂ.

ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

ಪುನರ್ವಿಚಾರಣೆ ನಂ.

ರೀಸರ್ವೆ ನಂ.

61

ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

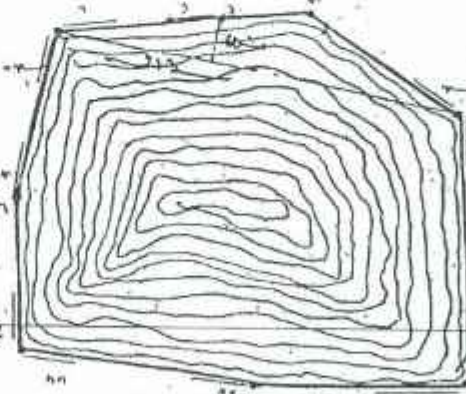
ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

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ಕರ್ತಾಲ್ಯಾ ಸರಿಯು



ಕರ್ತಾಲ್ಯಾ ಸರಿಯು

23/7

Notary Public for Karnataka

This is the annexure.....stated in the Affidavit of.....

K.M. Mahesh Kumar

NOTARY

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Translated copy of Document No-11

RE SURVEY TIPPANI

Taluk: Mysuru

dated:29.04.2006.

Hobli	Village	Book	Page	Survey No.
Kasaba	Dattagalli	2	13	61

Dated:21-2-21

Re Chalta No

Poo|| Chaa|| No.

61

4

Re Survey NO.

Poo|| Sa|| No.

61

23

Sy No.61

Sarkari Kharbu katte(Government Kharab tank bed)

As per Akaraband

Total Land
1-35Kharab
1-35Balance
-

As per Re Survey

1-35

1-35

-

BOUNDARY MAP DRAWNED



2015

Translated copy of document no-12

Record of Tenancy and crops (RTC) Form. No.16
Taluk:Mysore Hobli: Kasaba Village: DATTAGALLI

Page No. (126)

1. Sy. No 61 *	3 Khetuvanu Acres guntas	4. Revenue	Rs. P.	Ownership and Owners Name and Address	10. type of ownership	11. Other Rights and Debts
2. Hissa *	Total Extent Kharab (A) Kharab (B) remains	A gunte 1 35	(a) Land revenue (b) pair (k) cess (d) water bill Total 0.00 0.00 0.00 0.00 0.00	Government Lake bund		
	7. Numbers of trees 8. Irrigation Extent					
	5. soil Pattern Red	Name No SI no.	source of water total			
6. Patta Govt						
12. Details of cultivation and tenancy						
Year and season 1	Name and address of the cultivator 2	system of cultivation 3	Details of tenancy Use of Land Lease category 5 6		DRY, wet, plantation 8	Name of crop 9
			Extent 4 acr.	gu 7	Source of water 13.	Production For acres 14.
79-80 80-81					non cross 10	cross 11
					total 12	Total of cross crops cross crops Extent

2015

7

Valid from 2002
 Valid until 2004



24X

Translated copy of Document No-12

Record of Tenancy and crops (RTC) Form. No.16

Taluk:Mysore

Hobli: Kasaba

Village: DATTAGALLI

Page No.1/1

1. Sy. No 61 *	3 Khetuvaru	Acres guntas	4. Revenue	Rs. P.	Ownership and Owners Name and Address	10. Type of ownership	11. Other Rights and Debts
	Total Extent Kharab (A) Kharab (B) remains	A. gunte 165 30	(a) Land revenue (b) pair (k) ccss (d) water bill Total	0.00 0.00 0.00 0.00 0.00	Government Beelu Government Lake Government	0-00 0-00 0-00	As Per direction of the Deputy Commissioner the lease period is closed hence this land is taken back to Government.
2. Hissa *	7. Numbers of trees	B. Irrigation Extent					
5. soil Pattern Red	Name No SI source of water						
6. Patta Govt							
12. Details of cultivation and tenancy							
Year and season 1	Name and address of the cultivator 2	system of cultivation 3	Details of tenancy		Use of Land	13. Use of Land and Crop Profile	
			Extent 4 acr.	Lease 5 gu	category 6	Name of crop 9	Source of water 13.
						non cross 10	cross 11 12
							total 12
							Extent cross crops
01-02							

24X



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

W.P.

Of 20.....

Between :-

State of Karnataka & ors

PETITIONER
Appellants

And :-

Sri L.V. Govindaswamy & Anr

RESPONDENT

INDEX

Sl.No.	Particulars	Page Nos.
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(2)	Affidavit	249 — 252
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(4)		
(5)		
(6)		
(7)		
(8)		
(9)		
(10)		

Place : Bengaluru

Dated : 30/07/25


Government Advocate

And

Advocate for Complainant/s
Accused/s

RNR

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**IN THE HIGH COURT OF KARNATAKA AT
BENGALURU**

**I.A.No. of 2025
(for Stay)**

W.A.NO. OF 2025

IN

W.P. NO.24304 OF 2021 (KLR-RES)

BETWEEN:

(1) State of Karnataka,
Revenue Department,
M S. Building,
Dr.Ambedkar Veedhi,
Bangalore-560 001.
Represented by
its Secretary.

(2) The Deputy Commissioner,
Mysuru District,
Mysuru-571 129.

(3) The Assistant Commissioner,
Mysuru Sub Division,
Mysuru-571 129

(4) The Tahsildar,
Mysuru-Hunsur Road,
Mysuru-571 105.

(Now at Nazarbad,
Mini Vidhana Souhda,
Mysuru Taluk,
Mysuru-570 010.)

. . .Appellants

AND:

(1) Sri. L.N Govindaswamy,
S/O. Late Sri.Rama Bhovi,
Aged About 76 years,
R/At No.90/9,
Naachanahalli Palya,
J.P Nagara,
Mysuru District,
Mysuru-570 008.

(2) Mysore Urban
Development Authority (MUDA),
Jhansi Laxmi Bai Road,
Mysuru-570 005
Represented by
its commissioner.

. . . Respondents

APPLICATION UNDER ORDER 41 RULE 5 R/W
SECTION 151 OF THE CODE OF CIVIL PROCEDURE

For the reasons stated in the accompanying affidavit,
the Appellants humbly pray that this Hon'ble Court may be
pleased to stay the operation of the impugned order
dated:27/11/2023 in W.P No. 24304/2021(KLR-RES) in the
interest of justice and equity.

BANGALORE
DATE:


(YOGESH D NAIK)
ADDL. GOVT ADVOCATE
ADVOCATE FOR APPELLANTS

IN THE HIGH COURT OF KARNATAKA BANGALORE

WRIT APPEAL NO. OF 2025

BETWEEN:

The State of Karnataka &
Others
Appellants

AND:

Sri. L.N Govindaswamy
And another.

... **Respondents**

AFFIDAVIT

I, K.M. Mahesh Kumar S/o Late Muniyappa aged about 40 years, working as Tahsildar, Mysuru Taluk, Mysuru, today at Bengaluru, do hereby solemnly affirm and state on oath as follows:

1. I state that I am working as Tahsildar, Mysuru Taluk, Mysuru. I am conversant with the facts of the case based on records. I am the litigation conducting officer in this case and hence I am competent to swear to this affidavit.

2. I state that the Appellants have filed the above Writ Appeal being aggrieved by the order dated 27/11/2024 passed by the learned Single Judge in W.P. No. 24304/2021 (KLR-RES). By the impugned order, the learned Single Judge has allowed the Writ Petition filed by



(Signature)

the 1st Respondent and directed the Appellant No.4 to enter the RTC pertaining to the petition schedule lands.

3. I state that the 1st Respondent, who is the petitioner in the Writ Petition has suppressed several material facts in the writ petition. The 1st Respondent has no right over the lands in question. If the name of the 1st Respondent and his family members are entered in the revenue records, they will claim compensation from the 2nd Respondent to which they are not entitled.

4. I state that in order to avoid repetition, the grounds urged in the memorandum of writ appeal may kindly be read as part and parcel of this affidavit. The Appellants have got a prima facie case for grant of an interim order of stay of the impugned order passed by the learned single judge. During the pendency of this Writ Appel, if the impugned order is not stayed, public interest will suffer as the 1st Respondent and his family members will seek change of revenue entries and also claim compensation from the 2nd Respondent-MUDA.

WHEREFORE, It is prayed that this Hon'ble Court be pleased to allow the accompanying application in the interest of justice and equity.

Bangalore
Dated:29.07.2025


DEPONENT



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VERIFICATION

I, the above named deponent do hereby verify that all the facts stated in this affidavit are true to my knowledge and that no part thereof is false and nothing material is concealed there from.

Verified at Bengaluru, on this day of 29 July 2025.

[Signature]
DEPONENT

Identified by:

[Signature]
Assistant,
Office of the Advocate General,
High Court Building,
Bengaluru.

ARADHYA/YOGESH D NAIK/L.A. FOR stay
IN WRIT APPEAL/28072025/29072025/MAIL

SWORN TO BEFORE ME

[Signature] 29/7/2025
CHANDRASHEKARAIAH. S
Notary
8/17, Kempegowda Nilaya
Cross, Main
Bengaluru
560091



Book.... 6 Page... 59
Req. No. 1639 Date 29/7/2025 ✓